

Nevermore

Rolf Boldrewood

Project Gutenberg

Nevermore

Rolf Boldrewood

Project Gutenberg

The Project Gutenberg eBook of Nevermore

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Nevermore

Author: Rolf Boldrewood

Release date: November 8, 2010 [eBook #34240]

Most recently updated: July 6, 2011

Language: English

Other information and formats: www.gutenberg.org/ebooks/34240

Credits: Produced by David Edwards, Mary Meehan and the Online Distributed Proofreading Team at <http://www.pgdp.net> (This file was produced from images generously made available by The Internet Archive)

*** START OF THE PROJECT GUTENBERG EBOOK NEVERMORE

NEVERMORE

BY ROLF BOLDREWOOD

**AUTHOR OF 'ROBBERY UNDER ARMS,' 'THE
SQUATTER'S DREAM,' 'THE MINER'S RIGHT,' ETC.**

**London
MACMILLAN AND CO.
AND NEW YORK
1892**

All rights reserved

*First Edition 1892
Second Edition July and December 1892*

CONTENTS

[CHAPTER I](#)
[CHAPTER II](#)
[CHAPTER III](#)
[CHAPTER IV](#)
[CHAPTER V](#)
[CHAPTER VI](#)
[CHAPTER VII](#)
[CHAPTER VIII](#)
[CHAPTER IX](#)
[CHAPTER X](#)
[CHAPTER XI](#)
[CHAPTER XII](#)
[CHAPTER XIII](#)
[CHAPTER XIV](#)
[CHAPTER XV](#)
[CHAPTER XVI](#)
[CHAPTER XVII](#)
[CHAPTER XVIII](#)
[CHAPTER XIX](#)
[CHAPTER XX](#)
[CHAPTER XXI](#)
[CHAPTER XXII](#)
[CHAPTER XXIII](#)
[CHAPTER XXIV](#)

[BY THE SAME AUTHOR.](#)

CHAPTER I

'Then, by Heaven! I'll leave the country. I won't stop here to be bullied for doing what scores of other fellows have done and nothing thought about it. It's unjust, it's intolerable—'

Thus spoke impetuous Youth.

'I should say something would depend upon the family tradition of the "other fellows" to whom you refer. In ours gambling debts and shady transactions with turf-robbers happen to be forbidden luxuries.'

Thus spoke philosophic Age, calm, cynical, unsparing.

No power of divination was needed to decide that the speakers were father and son; no prophet to discover, on one side, sullen defiance following a course of reckless folly; on the other, wounded family pride and long-nursed consuming wrath.

As the rebellious son stood up and faced his sire, it was curious to mark the similarity of the inherited lineaments brought out more clearly in his moments of rage and defiance.

Both men were strong and sinewy, dark in complexion, and bearing the ineffaceable impress of gentle nurture, leisure, and assured position. The younger man was the taller, and of a frame which, when fully developed, promised unusual strength and activity. More often than the converse, does it obtain that the son, in outward appearance or mental constitution, reproduces his mother's attributes or those of her male relatives; the daughter, in complementary ratio, inheriting the paternal traits. But in this case Nature had strongly adhered to the old-established formula 'like father like son,' for whoso looked on Mervyn Trevanion, of Wychwood—the head of one of the oldest families in Cornwall—could not doubt for one moment that Launcelot Trevanion was his son.

If all other features had been amissing or impaired, the eyes alone, which contributed the most striking and peculiar features in both faces, would

have been sufficient to establish the relationship, not only because they were, in both faces, identical in colour and form, but because of the strange, almost unnatural lustre which glowed in them in that moment of excitement; neither large nor especially bright, they were scarcely remarkable under ordinary circumstances—of the darkest gray in colour and deeply-set under thick and overhanging eyebrows. A stranger might well overlook them, but, when turned suddenly in anger or surprise, a steady searching light commenced to glow in them which was discomposing, if not alarming. Even in a quick glance such as mere badinage might provoke, they were strange and weird of regard. Lighted up by the deeper passions, those who had been in the position to witness their effect spoke of it as unearthly and, in a sense, appalling.

In the family portraits, which for centuries had adorned the walls of the long gallery in Wychwood, the same feature could be distinctly traced. There was a legend, indeed, of the 'wicked' squire—one of the hard-drinking, duelling, dicing, dare-devils of the second Charles' day—who had so terrified his young wife—a gentle girl whose wealth had been the fatal attraction in the alliance—that she had fallen down before him in a fit, and never afterwards recovered health or reason.

All through Cornwall and the neighbouring counties they were known as the 'Trevanion eyes.' There was a hint of demoniacal possession in the first ancestor, who had brought them into the family from abroad, and a legendary compact with the Enemy of mankind, from whom the fiendish glare had been derived. Since the birth of the first Mervyn, 'the wicked squire,' the eldest son had inherited the same peculiar regard as regularly as to him had come the estate and most enviable rent-roll.

A saying had long been current among the county people that when the lands went to a younger son, this remarkable and, as they held, unlucky feature would be removed from the family of Trevanion as suddenly as it had entered it. But up to this time, no break in the succession, *de male en male*, had ever occurred.

Launcelot Trevanion (mostly called Lance) was the eldest son of this ancient house. There were two younger boys—Arthur and Penrhyn—respectively fourteen and twelve years old; but a cousin, early orphaned,

was the only girl in that silent and gloomy hall. Her beauty—she was the fairest flower of a race of which the women were proverbially lovely—irradiated Wychwood Hall, while her enforced gaiety charmed the saturnine Sir Mervyn out of many a fit of his habitual gloom. With the neighbours, the villagers, the friends of the house, she enjoyed a popularity as universal as unaffected, and not unfrequently had the remark been made by individuals of all these sections of provincial society, that Estelle Chaloner had, in a measure, thrown herself away, as the phrase runs, by betrothing herself to her wild cousin Lance; that she was too bright and bonnie a creature to become the mate of any Trevanion of Wychwood—hard, unyielding, and, in some sense, ill-fated as they had all been since the days of the first Sir Launcelot, no one knew how many centuries ago.

Certainly they had not been a fortunate or a prosperous family. Possessed originally of immense estates, and boasting an ancestry and military suzerainté—long anterior to the Conquest—undeniably brave, chivalrous, and daring to the point of desperation, they had uniformly espoused the wrong side in every important conflict. They had suffered from attainder, they had regained their lands only to lose them again. Bit by bit they had lost one fair manor after another, until, at last, Wychwood Hall and manor, a fine but heavily-mortgaged estate, were all that remained out of the vast dominion which stretched, according to time-worn charters still in the muniment room of the Hall, from Tintagel to the Devonshire border.

Estelle Chaloner, in whose veins ran several strains of Trevanion blood, had a character curiously compounded of the qualities of both families; outwardly resembling the Chaloners, who were a fair, blue-eyed race, more conspicuous for the grace and charm of social life than for the sterner traits, she possessed, unsuspectedly, a large infusion of the ancestral Trevanion nature.

In early youth those strongest tendencies and proclivities which come by inheritance are chiefly latent. Like the seedlings of a tropical forest they remain for years almost hidden by undergrowth. But when successive summers have stirred sap and rind, the deeply-rooted scions commence to assert themselves, towering over, and eventually, it may be, dwarfing the plants of earlier maturity.

Estelle and her cousin Lance had been playmates and friends since earliest infancy. There were but three years between them; like twins they had grown up with a curious similarity of thought and feeling, though of strongly contrasted temperaments. Then the divergent stage was reached when the girl begins to tread the path which leads to the goal of womanhood, when the boy essays the freedom of speech and act which mould the future man.

She was so gentle, he so haughty, yet were they alike in fearlessness, in love of dogs and horses, in passionate attachment to field-sports and the teachings of animated nature. Wanderers in the summer woods, fishing in the brook, climbing the old tower of the ruined church, what an Eden-like season of unstinted freedom was that of their early youth! It was a sorrowful day for both when Lance was sent to a public school and Estelle was relegated to a prim, high-salaried governess who stigmatised nearly all out-door exercise as unladylike, and forbade field-sports as being destructive to the hope of mental progress.

But though separated for the greater part of the year, there were still the precious vacation intervals when the cousins met and wandered in untrammelled freedom. Thus they rode and rambled, drove the young horses in the mail-phaeton to Truro—the market town—fished and hunted, shot and ferreted, she walking with the guns, none caring to make them afraid.

It had chanced in the year preceding Lance's unlucky quarrel with his father that they told each other of the love which had grown up with their lives, and which was to make a portion of them for evermore.

And now this rupture between the stern father and the stubborn son threatened the wreck of her young life's happiness. She had repeatedly warned Lance of the imprudence of his conduct, and laid before him the danger which he was too headstrong and reckless to forecast for himself; had long since reminded him that of all youthful follies and outbreaks, for some unexplained reason, his father was especially intolerant of those connected with the turf. The very mention of a racecourse seemed sufficient to arouse a paroxysm of rage. Why he was thus affected by the concomitants of a popular sport which country gentlemen, as a rule, regard

in the light of a pardonable relaxation, was not known to any of his household. Sir Mervyn was not so strait-laced in other matters as to make it incumbent upon him to frown down horse-racing for the sake of consistency. Still the fact remained. Any hint of race-meetings by Lance was viewed with the utmost disfavour. No animal suspected of a turn of speed was ever permitted lodgings in the Wychwood stables, spacious as they were. And now the sudden bringing to light of Lance's serious loss of money by bets at a recent county meeting, with moreover a proved part-ownership of the unsuccessful quadruped, had raised to white heat his sire's slow gathering, yet slower subsiding anger. Thus it came to pass that after one other stormy interview in which the elder man had heaped reproaches without stint upon the younger, the son had declared his resolution of 'quitting England, and taking his chance of a livelihood in some country where he would at least be free from the galling interference of an unreasonably severe father, who had never loved him, and who refused him the ordinary indulgence of his youth and station.'

'In the extremely improbable event of your quitting a comfortable home for a life of labour and privation,' the elder man said slowly and deliberately, 'I beg you distinctly to understand that I shall make you no allowance, nor even suffer your cousin to do so, should she be weak enough to wish it, and you sufficiently mean to accept it. Sink or swim by your own efforts. *I* shall never hold out a hand to save you.'

Then the son gazed at the sire, looking him full and steadfastly in the face for some seconds before he answered. Had there been a painter to witness the strange and unnatural scene, he might have noted that the light which blazed in the old man's eyes shot forth at times an almost lurid gleam, as from a hidden fire, while the youth's regard was scarcely less fell in its intensity.

'It is possible, even probable,' he said, 'that we may never meet again on earth. You have been hard and cruel to me, but I am not wholly unmindful of our relationship. Careless and extravagant I may have been—neither worse nor better than hundreds of men of my age and breeding, and may well have angered you. I had resolved, partly persuaded by Estelle, to humble myself and ask your pardon. That state of mind has passed—passed for ever. I shall leave Wychwood to-morrow, and if anything happens to me

in Australia, where I am going, remember this—if evil comes to me, on your head be it—with my last words, in my dying hour, I shall curse and renounce you, as I do now.'

As the boy spoke the last dreadful words, the older man, transported almost beyond himself, made as though he could have advanced and struck him. But with a strong effort he restrained himself.

The younger never relaxed the intensity of his gaze, but with a slow and measured movement approached the door, then halting for a moment said—'Enjoy your triumph to the uttermost—think of me homeless and a wanderer—if it pleases you. But as repentant or forgiving, never—neither in this world nor the next.'

Before the last words were concluded, Sir Mervyn turned his face with studied indifference to the window, and gazed upon the park, over which the last rays of the autumnal sun cast a crimson radiance. For a few moments only the solar beams glowed above the horizon; the landscape with strange suddenness assumed a pale, even sombre tone. A faint chill wind rustled the leaves of the great lime-tree, which stood on the edge of the lawn, and caused a few of the leaves to fall. When the squire looked around, Launcelot Trevanion was gone. He turned again to the window; mechanically his eye ranged over the lovely landscape, the far-stretching champaign of the park—one of the largest in the county, the winding river, the blue hills, the distant sea.

'What a madman the boy is,' he groaned out, to leave all this for a few hot words—and I too! Who is the wiser? I wonder. Will he be mad enough to keep his word? He is a stubborn colt—a true descendant of old Launcelot the wizard. If he fails to gather gold, as these fools expect, a voyage and a year's experience of what poverty and a rough life mean will be no bad teaching.'

'For what is anger but a wild beast?' quotes the humorist How many a man has, to his cost, been assured of this fact by personal experience. A wild beast truly, which tears and rends those whom nature itself fashions to be cherished.

With most men, reason resumes her sway, after a temporary dethronement, when regret, even remorse, appears on the scene. The consequences of the violence of act or speech into which the choleric man may have been hurried, stalk solemnly across the mental stage. Were but recantation, atonement, possible, forgiveness would be gladly sued for. But in how many instances is it too late? The sin is sinned. The penalty must be paid. Pride, dumb and unbending, refuses to acknowledge wrong-doing, and thus hearts are rent, friends divided, life-long misery and ruin ensured, oftentimes by the act of those who, in a different position, would have yielded up life itself in defence of the victim of an angry mood.

It was not long before the inhabitants of Truro, and, indeed, the country generally, were fully aware that there had been a violent quarrel between Sir Mervyn and his eldest son.

'The family temper again,' said the village wiseacres, as they smoked their pipes at night at the 'King Arthur,' 'the squire and the young master are a dashed sight too near alike to get on peaceably together. But they'll make it up again, the quality makes up everything nowadays.'

'Blamed if I know,' answered Mark Hardred, the gamekeeper of Wychwood, who, though not a regular attendant at the 'King Arthur,' thought it good policy to put in an appearance there now and then, 'there's a many of 'em like our people, just as dogged and worse, I'm feared Mr. Lance won't come back in a hurry, more's the pity.'

'He's a free-handed young chap as ever I see,' quoth the village rough-rider, 'it's a pity the old squire don't take a bit slacker on the curb rein, as to the matter of a bet now and then, all youngsters as has any spirit in 'em tries their luck on the turf. But he'll come back surely, surely.'

'He said straight out to the squire as he'd be off to Australia, where the goldfields has broke out so 'nation rich, along o' the papers, and it's my opinion to Australia he'll go,' replied the keeper. 'I never knew him go back of his word. He's main obstinate.'

'I can't abear folks as is obstinate,' here interpolated the village wheelwright, a red-faced solemn personage of unmistakable Saxon solidity of face and

figure. 'I feel most as if I could kill 'em. I'd a larruped it out of him if I'd been the vather of un, same as I do my Mat and Mark.'

This produced a general laugh, as the speaker was well known to be the most obstinate man in the parish, and his twin boys, Matthew and Mark, inheriting the paternal characteristic in perfection, in spite of their father's corrections, which were unremitting, were a true pair of wolf cubs, taking their unmerciful punishment mutely and showing scant signs of improvement.

'I must be agoing,' said the keeper, putting on his fur cap. 'I feel that sorry for Mr. Lance that I'd make bold to speak to the squire myself if he was like other people. But it'd be as much as my place was worth. It'll be poor Miss 'Stelle that the grief will fall on. Good-night all.' And the sturdy, resolute keeper, whose office had succeeded from father to son for generations at Wychwood, tramped out into the night.

CHAPTER II

It looks at times, it must be confessed, as if, the individual once embarked upon a course involving the happiness of a lifetime, an unseen influence hurries on events as though the fabled Fates were weaving the web of doom. Hardly had Lance thrown himself upon a horse and galloped over to Truro, directing, in a hasty note left in his room, that his personal effects should be forwarded to an address, than the first paper he took up contained an announcement which fitted exactly with his humour. It ran as follows—

'Steam to Australia.—For Melbourne and the Goldfields. The clipper ship, *Red Jacket*, three thousand tons register, Forbes, Commander, will have quick dispatch. Apply to Messrs. Gibbs, Bright, and Co.'

The die was cast. He saw himself speeding over the ocean on his way to the wild and wondrous land of gold, absolutely uncontrolled henceforth and free as air to follow his inclinations. There was intoxication in the very thought. For years to come he would not be subject to the trammels of civilisation. The trackless wilds, the rude, even savage society of a new, half-discovered country had no terrors for him. The wilder elements in the blood of the Trevanions seemed to have precipitated themselves in the person of this their descendant; to have rendered imperative a departure in some direction, no matter what, from the conventional region with its galling limitations and absurd edicts. Such are the problems of heredity. Despite of some natural regret that so serious a quarrel with his father, and the head of the family, should have been the proximate cause of his exile, the mere anticipation of a wholly free and unfettered life in a new land filled him with joy. Then arose visions such as course through the brain of ardent, inexperienced youth; of wondrous wealth acquired by lucky speculation or the discovery of a cavern filled with gold, after the manner of the *Arabian Nights*. With what feelings of triumph would he *then* return to his native land, having in all respects given the lie to the predictions of his foes and calumniators, receiving with complacent pride the congratulations of his father, in that hour softened and converted by the reputation of his

distinguished son. His name, once spoken with bated breath, now a by-word for success, would be in all men's mouths.

'Then! yes! then, darling Estelle!' had he said to his cousin in their last conversation, when she had vainly tried to shake his determination to leave England—'then I shall pay off the mortgage on the old estate; not that it matters much for one generation, I suppose, but I should like to be able to give a cheque for it to old Centall. Then I would buy the St. Austel lands, which will be pretty sure to be in the market by that time. Every one knows the estate is eaten up with interest as it is, and at the rate the Tredegars are living there must be an end in a few years. After that it will be about time to look out for a wife. Now whom would you like to recommend? Why, how grave you look!'

'Dreams and visions, Lance. Vain hopes, false and unreal,' said the girl. 'I see no prospect of success, much less of fairytale treasures. Think of all the adventurers who have left this very Duchy of Cornwall in old days or later. How few have ever returned!—fewer still who were not poorer than they left! It seems to me madness that you should go at all.'

'You are no true Englishwoman, Estelle, if you have not a spice of adventure in you,' he replied. 'Lovers and kinsfolk have always been sped on the path of glory before now. How else would the Indies have been gained or the new world discovered, if all hearts had been as faint as yours?'

'It is not that,' said the girl sadly, and laying her head wearily upon his broad breast, as she threw her arms around his neck. 'It is not that! I could send you away, almost rejoicing, in a good cause, were it to fight the Queen's battles, for the glory of our native land. But my heart sinks within me when I think of your going away with a father's curse upon your head, with a deep quarrel about a light matter on your mind, and for object and pursuit, only to seek for gold among an ignoble crowd of rude adventurers.'

'Gold!' said the young man, laughing lightly; 'and what else is every one striving for in these latter days? Gold means perfect independence. The realisation of dreams of fairyland—the respect of the herd—the friendship of the powerful—the love of the lovely! Why decry gold, cousin mine? But, except for the adventure—the wild freedom—the strangeness and danger of

a new world, few care so little for it as Lance Trevanion. And that you well know.'

'I know, my darling; I know. If it be so, why not stay at home? My uncle, I am sure, is sorry for having been so hasty. He will be glad of any chance to tell you so. A few years and your position as heir and eldest son must be acknowledged. Why leave these proved and settled privileges, and tempt dangers of sea, and storm, and an unknown land?'

'Too late! it is too late!' he said gloomily. 'I am a changed man. I can neither forget nor forgive his insults, my father though he be; and I feel as if I was irresistibly driven to take the voyage—to see this new country—to share in this great gold adventure. I could not draw back now.'

'And I feel, day by day, more strongly and vividly,' said the girl, 'that it will be your doom to go forth from us and return no more. It seems like a prophetic instinct in me. I feel it in every fibre of my being. But I will come to you, if you do not come to us. Whatever may happen, I will never rest satisfied till I have seen you in your new home. So, if you do not return in five years, you know what you have to expect. But you will return, will you not?' And again she clasped her arms around him, sobbing as if her heart would break.

Estelle Chaloner was a proud girl, one of those reserved yet passionate natures which habitually conceal their deeper feelings, as if jealous of exhibiting the sacred recesses of their hearts to the careless or irreverent. Ice on the surface, they resemble those regions which in springtime need but the touch of that great enchanter's wand to cause the living streams to flow, to produce the magically sudden apparition of verdure and fragrant flowerets.

'Darling Estelle! in five years I will come back,' he said, 'if I am alive. The time will soon pass. Think how much I shall have to talk about, and what wonders I shall have seen. You will hardly know me again.'

The girl sighed deeply, then raised her head, and gazing steadfastly at her lover, as the tears streamed unheededly adown her face, continued her pleading appeal without noticing his jesting speech—

'You will promise me then, will you not, solemnly and faithfully, you will swear by King Arthur's sword—our family vow—that on next Christmas five years, whatever betide, you will return?'

'Well,' he answered, slowly and heedfully, 'if nothing less will do, I suppose I shall have done something in that time or failed utterly and hopelessly. So I will promise. It wants nearly three months to Christmas, and if I do not turn up in December 1857, you may make sure that I am either dead or a captive among the Indians. I suppose there are Indians there. "By Arthur's sword!"' and here he crossed his hands, after the old Cornish fashion.

'I don't believe there are Indians,' she said. 'If you would read a little more, you naughty boy, you would know. Of course, there are savages of some sort, the worst being white. But we must exchange tokens, like lovers—and we are true lovers, are we not?' Here she seemed as if her tears would flow afresh, but controlled herself with a strong effort. Then she loosened a slender gold chain from her neck, to which was attached a coin of foreign appearance, traced with strange characters, and having upon it a wondrous woman's face, beauteous, but of an antique cast.

'Here,' she said, 'is my precious Egyptian princess. The man who gave it to me said it was possessed of talismanic virtues, that it secured safety and success to the wearer as long as he never permitted it to be taken from him by force or fraud. If he did, the charm was broken. You are the only person in the whole world to whom I would give it.'

'I thought you were too wise,' he said, taking the chain in his hand gently, nevertheless, 'to confess such superstition. But I will take it if it cheers you, darling Estelle, and here I swear that it shall be my companion night and day until we meet again. Here is a companion token, you have often asked for it before.'

'You are not going to give me the Chalonier ring, are you, Lance? How happy it would have made me one little month ago,' she cried. 'I must have it altered to fit my finger, I suppose? It can be altered back when you return.'

'It is yours from this moment, and for ever,' said he. 'May it bring you the good fortune it has failed to give me, so far. On a woman's hand the charm

may be broken. It has my mother's name inside, and, see,' here he touched a spring, disclosing a tiny recess under the principal stone, which was a diamond of great value, 'take your scissors and cut off a lock of my hair, and here is a place to put it. I may be gray when we meet again. Isn't it a queer ring?'

It was indeed an uncommon jewel. It had been his mother's, and by her had been inherited from the uncle who had first made his own and the family's fortunes by a long residence in India. He had received it from a Rajah in those old days when jewels and gifts passed freely between the servants of the Great East India Company and the native princes. A large ruby and an emerald of equal size flanked the centre jewel. The setting was peculiar, massive, but artfully disguised by the exquisite delicacy of the workmanship. The great beauty and value of the jewel would have made it noticeable and prized in any society in which the wearer might have moved.

'You have comforted me,' she said, smiling through her tears, and again taking his head in her hands and pressing her lips again and again to his brow and face. 'I feel now as if I had some guarantee that I should look on your dear face again. And mind, if you do not return in five years and three months I shall come to Australia to search for you.'

Thus they parted. He to face the new world of the strange and the unfamiliar—light of heart and ready of hand, as is the wont of untried youth; she to mourn his absence in secret, and to brood over her sorrow, as is ever the part of the steadfast heart of loving woman. The separation from his cousin Estelle was his sole cause of regret on leaving England. Yet that transient grief soon passed away amidst the turmoil and excitement of which he found himself a part in his capacity of six-hundredth-and-odd passenger on board the crowded ocean-going clipper. A strange enough experience to the home-bred youth, who, save on yachting cruises, had never dared the deep. Heterogeneous and strangely assorted was the crowd of the passengers—adventurers of every grade, feverishly anxious to reach the land of gold, chiefly inexperienced, but all sanguine of acquiring the facile fortunes which they had persuaded themselves the new world of the South had in store for them. Young men were there—mere boys, like himself—for whom the trials of toil, danger, and privation were all to come. Hitherto unrealised abstractions.

Others, again, whose grizzled beards showed them as men who had fronted foes in the battle of life, and were ready for another campaign. Many had never left England, and, in despite of occasional boasting, were heavy-hearted at the thought of the homes which they had left and might never see more. Nor was the emigration entirely masculine—

'There was woman's fearless eye
Lit by her deep love's truth,
There was manhood's brow serenely high—
And the fiery heart of youth.'

A half-expressed hope that the company in the second cabin would be less conventional and more amusing than in the first, joined to the necessity for economising his slender funds, had decided Lance Trevanion upon shipping as a second-class passenger. Certain to be compelled to lead a rough life upon his arrival in Australia, surely, he argued, the sooner he commenced to learn the way to do so the better. Nor would his association with refined women and well-bred men in the first cabin aid him in his search for gold—necessarily with rough, half-brigand comrades. Thus, partly as the outcome of the defiant spirit in which he was leaving home and native land, he booked himself as a second-class passenger.

Doubtless, in the curiously mingled crowd of passengers who thronged the first saloon of the *Red Jacket* in that fateful year of 1851, there were many remarkable persons, whose lives had included a far greater number of strange adventures than most modern novels. But for a wild and fanciful commingling of all sorts and conditions of men—from every clime, of every grade, degree, and shade of character, the second-class passengers bore off the palm. Since the untimely collapse of the architects of the Tower of Babel, there could seldom have been so diverse and bizarre a collection of humanity.

The *Red Jacket*, under the stern rule of Malcolm Forbes, from whose fiat there was no appeal, the most daring and successful maker of quick passages that the records of the Company knew, had steamed off at the hour appointed. Started when far from ready, however, if the masses of deck lumber which needed storage were to be taken into account. The weather, bad from the commencement, became worse in the Bay of Biscay, where

raged a perfect hurricane—a storm, or rather a succession of storms, under the fierce breath of which the *Red Jacket* lay-to for forty-eight hours at a stretch, afflicting the inexperienced voyagers with the strongly impressed notion that their voyage would not be quite so long as they expected. But the good ship held her own gallantly; finally ploughed her way through the mountainous billows of the Bay of Storms into lower latitudes. Milder airs and smoother seas cheered the depressed and pallid passengers. An increasing number walked the deck or sat in seats provided for them day by day. Cheerful conversation, merriment, and even such games as the conditions of 'board-ship' life permit were indulged in from time to time. Then Lance Trevanion had leisure to look around and examine his fellow-passengers. He would have been difficult to satisfy who could not among his compulsory comrades have selected one or more congenial acquaintance. In that year the *Red Jacket* was 'the great Club of the unsuccessful': authors and dramatists, University graduates, lawyers, and physicians, clergymen and artists, soldiers and sailors, tinkers and tailors, plough-boy, apothecary, thief—to quote the nursery classic. All were there.

Men of good family, like himself, chiefly younger sons, however, who had quitted Britain in order to enlarge the proverbial slenderness of a cadet's purse—

'One was a peer of ancient blood,
In name and fame undone—
And one could speak in ancient Greek,
And one was a bishop's son.'

The *soigné* ex-guardsman, for whom the last Derby had been the knell of fate, *he* was there, plainly dressed and unpretentious of manner, yet bearing the unmistakable stamp of the class whom King Fashion delighted to honour. The middle-aged club lounge, who thought the new game of Golden Hazard, at which the stakes were reported to be so heavy and the players so inexperienced, worth a voyage and a deal or two—he was there. The farmer's son, who had hunted too much; the farm labourer, who was a bit of a poacher; the gamekeeper, who had kept an eye on him; the shopman, whose soft hands had never done a day's hard work; the groom, the coachman, the gardener, each and every one of the members of the staff of rural and city life—were there. With some exceptions, they were chiefly

young, and now, as the fear and discomfort of the early part of the voyage wore off, the natural characters of the individuals commenced to exhibit themselves.

It was pathetic to see the trustful confidence with which delicately-nurtured women, following their improvident or heedless mates, clung to the idea that, once safely landed in the wondrous land of gold, all would be well. They had left in the old land all that had made the solace of their lives, their tenderest memories and inherited affection. After unutterable wretchedness and discomfort, they were now voyaging towards a land the characteristics of which were practically an unknown to them as those of the interior of Africa, and yet, 'O woman, great in thy faith!' those victims of ironic fate were cheerful, even gay. As they looked in the eyes of their husbands or the faces of their children and saw them happy and sanguine, they dreaded no cloud in the tropic sky, neither storm nor disaster, poverty nor danger, to come in the far south land.

With many young men on board, and others who, though no longer young, were not disinclined for games of chance, it was only to be expected that a little card-playing should go on. Lance was naturally fond of all games of hazard—bad, indeed, born and bred in him—derived from whatever ancestor—the true gambler's passion. He had enjoyed no great opportunity of developing it yet. All games of chance had been strictly interdicted at Wychwood. Now that he had come into freer atmosphere—into another world, socially considered—he felt a newly-arisen desire for play, so strong and unconquerable that it astonished himself. He had, of course, £200 or £300 with him, not intending to land in Australia quite penniless. This was more than many of his shipmates could boast of possessing, and he passed among them, in consequence, as quite a capitalist; in his way. Though he played regularly, almost daily in fact, he was more than moderately successful. The evil genius of chance, who lures men to their destruction by ensuring their success in their early hazards, was not absent on this occasion. Lance won repeatedly, so much so that his good fortune began to be as much a matter of general observation as his apparent easiness as regarded money.

It may be imagined that Trevanion's circle of acquaintances became enlarged. Inexperienced youngsters like himself mingled every day, when

the weather permitted, with men who had played for high stakes in good London clubs. Success, of course, varied. Many of the callow gamblers lost all they had, and had, perforce, to look forward to landing in Melbourne without a penny in the world.

Among those who were proverbially unsuccessful was a young man, who, from that and other reasons, commenced to attract an unusual share of attention from the other passengers. He and Lance Trevanion were decidedly unsympathetic. They were always pitted against one another in play. They appeared to be rivals in all things. More than once they had been on the verge of a quarrel, which the bystanders had prevented from being fought out. What was perhaps really curious was the fact, which all were quick to remark, that the two men resembled each other in personal appearance to a most uncommon degree. Lawrence Trevenna, for such was his name, was probably a year older, but otherwise had much the same figure, features, and complexion. The eyes, too, strange to say, were of the same shape and colour; and, as the two men faced each other in the quarrel before mentioned, more than one looker-on remarked the curious peculiarity—the strange unearthly glitter, the lurid light, which shone forth in the hour of wrath and defiance. No one had noticed it before in either face. 'They were as much alike,' said the second mate, who was standing by, somewhat disappointed that the fight did not come off, 'as if they were brothers. There couldn't have been a closer match.'

As it turned out, they had never seen one another before,—in fact, came from different parts of England. The other man, when looked at closely, was decidedly coarser in feature and less refined in type. His conversation, too, disclosed the fact that his early education had been indifferent. Handsome and stalwart as he was, under no circumstances could he be considered to rank as a gentleman. That his temper was violent was put beyond a doubt by the savage outbreak which led to the quarrel. It was not certain that he would have got the best of it in a hand-to-hand encounter, but his expression on reluctantly retiring was of unequivocal malevolence, as was indeed exhibited by his parting speech.

'I'll meet with you another day,' he said. 'Australia is not such a big place, after all. You may not have so many backers next time.'

'It's perfectly indifferent to me,' answered Trevanion, 'when or how we meet. I dare say my hands will save my head there, as they can do here. People shouldn't play for money who can't keep their tempers when they lose.'

The passengers of the *Red Jacket* had in a general way too much to think about to bother their heads about the accidental likeness existing between two young fellows in the second class, still the story leaked out. It was said 'that one of them was an eldest son and heir to an old historic name and a fine estate. The other was a very fine young man, but evidently a nobody, inasmuch as he dropped his aitches and so on. *But* they were so wonderfully alike that you could hardly tell them apart. It would be worth while to get up amateur theatricals and play the *Corsican Brothers*. Effect tremendous, you know! Queerest thing of all, too, they'd never met before and didn't like each other now they had met.'

'Strange things, doubles,' said Captain Westerfield, late of H.M. 80th Regiment. 'Not so very uncommon though. Most men in society have one. My fellow turned up at Baden, most extraordinary resemblance, wasn't an Englishman either. Raffish party too, spy and conspirator persuasion, that sort of thing. Did me good service once, though. Story too long to tell now.'

'Oh, Captain Westerfield, *do* tell it to us,' said the fascinating Mrs. Grey, as they walked back to the first-class region, after inspecting the two Dromios.

'Some day, perhaps,' murmured the Captain.

The *Red Jacket* held on her way with unslackened speed. Night and day, fair weather and foul, with winds ahead or astern, it was all the same to Captain Forbes. Never was an inch of canvas taken in before the 'sticks' began to give token of ill-usage. 'What she couldn't carry she might drag,' was his usual reply to remonstrating passengers. And he had his accustomed luck. In the murkiest midnight, or when fogs made the best lights invisible a ship's length in advance, the *Red Jacket* ran into no homeward-speeding bark. Nor did any other reckless-driving vessel, with a captain vowed to make the passage of the season, encounter him. The long, low coast-line of Australia and the Otway light were sighted at as nearly as possible the hour when they were expected to be visible, and through the Rip and up the vast land-locked haven of Port Phillip Bay went the Racer of the Ocean one

afternoon, fully two days in advance of the shortest passage which had ever been known in those days between the old old world and that new one which so long lay unknown and unpeopled beneath the Southern Cross.

CHAPTER III

So this was Melbourne! At least the nearest that the *Red Jacket* could get to it, on account of certain natural obstacles. But it lay only seven miles off, that is by the river, of which they could trace the windings through high walls of the thick-growing, but slender ti-tree (melaleuca). Anchored now in a broad bay, a low sandy shore on the eastern side, on the west a green level promontory, with a few huts and cottages sprinkled over it, falling back to far-stretching plains, with a volcanic peak in the foreground and a mountain range in the hazy distance.

Without much delay comes a roomy lighter alongside the *Red Jacket*, in which the passengers mostly elect to embark.

Their luggage, an avalanche of bags, bundles, trunks, and boxes, is shot on deck. A puffing, vicious-looking tug, with the air of 'a guinea a minute for my time,' drags them off, through the shoals of the Yarra, and so bustles forward till that grand and wonderful structure, the Melbourne wharf, a rudely planked platform fringing an illimitable ocean of black mud into which the river flat, guiltless of macadam, has been churned. Here their goods and chattels are unceremoniously transferred to the unsheltered wharf. It had been raining. The passengers, surrounded by draymen, hotel and lodging-house keepers, look blankly at each other. A few of the women begin to cry. Thus for them, as for all the *Red Jacket's* passengers, save the favoured few of the saloon, the hard schooling of colonial experience commences. If quarrels arise and animosities are generated on board ship, so also do friendships, true and permanent, spring up. Trevanion had made acquaintance with a young couple from the border of his own county. The man was a sturdy fellow, half miner, half farm-labourer, whom the hope of bettering his condition had tempted to the desperate step, as it appeared to all his neighbours, of emigration. His wife was a fresh-coloured, innocent, country villager, their one child, an engaging little button of three years old, one of the pets of the ship. The two men had arranged to go up to the diggings together, and Trevanion decided that in some respects he could not have a better mate. 'Gweny here can cook and wash for us, and if we get a

share of the gold and Tottie doesn't fall into one of their deep holes as they tell us about, we shall do main likely, Mr. Trevanion.' So it was settled, Mrs. Polwarth was a little nervous about travelling through the 'bush' and living at a 'digging,' but where her man went, she, as an Englishwoman and wife, was bound to go too. "'For better, for worse," pa'son he says, and I reckon, lad, I'll stick to thee as long as we've bread to eat or a shed to cover us.' Such was her simple creed.

'It strikes me,' said Trevanion, after the first few minutes of blank astonishment, in which the country-bred couple, and even he himself gazed around at the strange crowd and unfamiliar surroundings, 'that we'd better hail one of these drays and get our luggage taken up to a lodging-house, till we can look around. The weather is rather cold to my fancy for camping out, though it is Australia. We mustn't get laid up with chills, and fever, and ague, as that American warned us, to start with. So Jack, you take care of the boxes and the family—I'll soon manage a conveyance.'

After a short but spirited engagement with a drayman, who seemed an educated person, to Lance's astonishment, he compounded for a payment of two guineas, for which moderate sum the owner of this expensive equipage—worth a hundred and fifty pounds at ruling prices—covenanted to land them all in safety at a decent lodging-house.

'You are in luck,' said the drayman, as they were walking back to the wharf, 'to find a place to put your head in to-night, I can tell you. Lots of your fellow-passengers will have to camp out under any shelter they can extemporise. But I happen to hear the people I am taking you to say they had one bedroom and a small attic to let, the occupants having started for Ballarat this morning.'

'And how is it you are not there with all the rest of the world, if it's as rich as they say it is?'

'They can't exaggerate the richness of it. I know so much of my own knowledge, but I happened to buy this old nag and the dray, which brings me in about a thousand a year at present. I'm not an avaricious man, so I'm waiting on here till I feel in the humour to tackle digging in earnest.'

By this time the wharf was reached, and the dray being loaded with their boxes and bundles, Mrs. Polwarth placed comfortably in the centre, the men walked beside the driver. Two long and very broad streets were traversed before they arrived at a neat weatherboard cottage with dormer windows and an upper floor. The proprietor, a bronzed colonist, received them cheerfully, and immediately set to work to take in their luggage.

'Mother,' he said to a cheery, brisk little woman who now came up to the garden gate, 'you take in this young lady and little gal, and make 'em comfortable. Mr. Waters says as they've just come out in the *Red Jacket*. They'll be all the readier for their tea, I'll be bound. We'll see to all the boxes and things.'

'Mr. Waters, you'll just have time to do up the old horse afore the tea-bell rings. I wouldn't let them beef-steaks get cold, if I was you.'

As they sat smoking over a snug fire in the kitchen, after a well-cooked and sufficing meal, Lance and his 'mate' came fully to the conclusion that they *had* been in luck in falling across their friend the drayman, and being guided to such good quarters. Here they were comfortably lodged at a reasonable charge, and, moreover, had the advice of two experienced and well-disposed men as to their future plans and prospects.

'Yes. After stopping a week in Melbourne, I should certainly make tracks for Ballarat, if I were in your place,' said Mr. Waters the drayman. 'You've come all this way to dig. Jack has a wife and a child to work for, and the sooner you set about it the better.'

'But what is the best way to get there?' asked Lance. 'The road is bad, and it's a long way there. We can't carry our boxes. It's too expensive to go by coach. I don't see my way.'

'What Mr. Waters says is God's truth,' chimed in their host. 'You can't do nothing but spend money, and waste your time here, unless you was in a way of business, which ain't likely. Your only dart is to buy a staunch horse with a tip-cart, and put a tent atop of your luggage. Take tea, and sugar, and flour with you, a little bacon and so on. Then you camp every night. It costs you little or nothing, and you're as jolly as sand boys.'

'And how about finding the road, Mister?' asked Jack, looking rather anxious. 'It's many a long mile, and mostly through the woods, as I'm warned. We might lose our way.'

'A blind man could find the road night or day,' said Waters, with a laugh. 'It's a mile wide, and there's a string of carts and drays, men, women, and children, going along it, like a travelling fair. Night and day you can hear the bells on the horses and bullocks a couple of miles off.'

'Won't the turn-out cost heaps of money?' asked Lance, thinking of the price of Mr. Waters's horse and dray.

'Not above seventy or eighty pounds altogether, and you can sell them for the same or more money when you get to the diggings. We'll try and find you a decent turn-out with a canvas tilt to keep the rain off Mrs. Polwarth and Tottie. My friend Burnett knows half the miners that come here from Ballarat, and they often have a cheap lot, horse and cart, and a good many useful things given in, which they are in a hurry to sell before they leave for England.'

'That will suit us down to the ground, eh, Jack, and then—this day week—hey for Ballarat and a golden hole.'

For the next week Trevanion devoted himself to exploring Melbourne, and seeing as much as he could of the strange world to which he had voyaged on the other side of the globe. It was—to his British and comparatively untravelled idea—a state of society utterly foreign and at variance with all his preconceived ideas.

In the first place there were no poor people, no beggars, no evidence anywhere to be seen that anybody lacked money, food, clothes, or amusement. It was distinctly Utopian in the evidences of material prosperity, which everywhere abounded. The diggings both at Ballarat and Bendigo (as Sandhurst was then called) had been sufficiently long established to have furnished a class of lucky diggers who dominated the urban population, and gave a tone of universal opulence to the community.

With all this, though men were plentiful who had made their ten or twenty thousand pounds each in a few weeks, there was but little disorder, and no lawlessness observable. A good-natured extravagance, a defiant

recklessness of expenditure were the leading characteristics of the mining aristocracy.

It was true that their wives sported expensive silk dresses, gold chains, and diamond earrings; that they entertained one another as agreeable chance acquaintances regale at the Criterion—a hostelry built in the most expensive period of skilled labour, every brick used in which was reported to have cost half-a-crown. The theatres and concert-halls were crowded every night with a fairly appreciative and orderly audience. The theatrical and musical talent was exceptionally good at that time. For the news of the abounding gold of Ballarat travelled far and fast, and, where the auriferous lure is waved, have ever been wont to gather the mimes and the sweet singers of the world's best quality.

It was literally, and in many respects a revival of the golden age, a truly Arcadian time. A truce seemed to have been proclaimed to the world's sad-faced task-workers, to the slavery of desk and plough and loom. Save the exciting labour of the mine—when, perhaps, each stroke of the pick brought down stone heavy with the precious metal, or dislodged ingots and gold dust—work was there none. So, at last, a strong, light box-cart, with a staunch and active draught horse, having been purchased at a reasonable price,—their new-found friend arranged that part of the business,—a start was made one fine morning for Ballarat—the El Dorado of the South. All their worldly goods were packed safely and snugly. There was a canvas tilt, under which Mrs. Polwarth and Tottie would be sheltered from sun and storm, and could sleep at night. There was a small tent in which the men could dispose themselves. The bay horse, led by Jack, stepped off cheerfully and briskly, and then, with the blessings, metaphorically speaking, of their landlord and Mr. Waters, the little expedition set forth. The latter gentleman accompanied them for a short distance, until fairly past the outskirts of the town, and on the broad highway marked by a thousand wheels which led to Ballarat. He volunteered a modicum of advice, limited in quantity, but valuable.

'There's plenty of gold there, never fear, and new finds every day. You may go home with a fortune next year, and in the *Red Jacket* too, if she keeps lucky and don't get run down. You and that "Cousin Jack" are both workers, I can see it in all your ways. Stick together, you can trust each other, and

don't make more friends than you can help. You'll find men by the score there that would cut your throat for a ten-pound note, and chuck Mrs. Polwarth and Tottie down a shaft for the same price. Keep a good look-out at night. Don't drink or play cards with strangers. If you fall across a streak of luck, follow it up to the end, but don't keep gold in your tent. If you don't hit it just at first, persevere all the same. It's bound to come. And now I'll say good-bye, and good fortune to you. Look up Burnett when you come back; if I'm not with him, he'll know my address.'

So their friend—a good and true one in every sense—shook hands with Jack and his wife, kissed Tottie, with whom he left a large parcel of sugar-plums, and departed. It was strange that he and the boarding-house keeper should have taken such a fancy to the party; but such was the fact, and in new countries and wild places outside the pale of ordinary society, sudden and chance-made friendships spring up and blossom into full fruition much more frequently than people in old countries would believe. They had nothing to gain from these emigrants. They only accepted the bare amount due for services rendered. They prevented them from being over-reached in the purchase of that vitally necessary equipment in goldfield days—the horse and cart. They saw, too, that unlike the hero in that exciting Anglo-Colonial romance 'It's Never too late to Mend,' they were put in possession of a horse that *would pull down hill* as well as up. In fact they acted with simple good faith, generosity, and gratuitous courtesy, all through.

This was not the conduct to be expected from perfect strangers in a 'lawless community' like Melbourne, *vide* the fiction of the day. But it happened to be true nevertheless.

CHAPTER IV

It is unnecessary to accompany the little party along the somewhat tedious and decidedly muddy road which led the adventurers of the day to the spot 'where the root of all evil grew wild up the country.' O dear old friend, who used to quote this, and make merry over Governor Tarbox, where art thou now? They saw the Royal Mail dash by, drawn by six horses in an American coach, the leather-brace springs of which, and the plank road, were a constant wonder to Jack and Mrs. Polwarth. Now trotted along a dozen well-mounted police troopers, their boots and steel scabbards shining in the sun, conveying 50,000 ounces of gold in a four-horse drag. Anon, a drove of staring, long-horned fat cattle, engineered by a dog of high educational attainments, a black boy, and a couple of bearded, wild-looking stock-riders. Then, again, the bullock team of the period—fourteen bullocks drawing a laden canvas-covered waggon, with a tall Australian driver, the whip of him at times raising hair, at times volleying like musketry—was another unequivocal surprise. A flock of 2000 fat sheep, a drove of unbroken horses, a train of a dozen pack-mules, all these were fascinating novelties and wild surprises to the newly-arrived Britishers.

A few days, however, sufficed to inure the little party to the toils and difficulties of the journey, such as they were, and to teach them to make light of them. The road—as before stated—nearly a mile wide in places, and marked in black mud on the green turf, was visible to the naked eye night or day. Mrs. Polwarth learned to fry chops and steaks and make cakes as if she had been to the manner born, while the men pitched their tents and made their nightly camp as if they had done nothing else all their lives. Tottie, even, used to run about and pick great bunches of yellow flowers, which were so like buttercups, together with daisies and fringed violets, and was the merriest of the party.

'This is going gipsying with a vengeance,' said Lance one day. 'I never expected to find myself driving a cart and hobbling out an old horse, like a tinker on a common; but as it's the regular thing to do, and as this Tom Tidler's ground can't be so very far off now, I suppose one mustn't grumble.'

'It's main cheap travelling,' Jack would reply to these occasional repinings. 'It don't cost much, that's one thing, and the weather seems like taking up, so the little one can play about same as if she was at home.'

Ballarat—at length! The far-famed!—the wonder-town!—the capital of the kingdom of gold! A confused array of huts, tents, weatherboard houses, and stores huddled together, as if rained down from the sky, on the side of a hill partly covered with the iron-stemmed, sombre Eucalyptus. A brook, with yellow waters hurrying down between green and grassy banks. Crowds of silent, preoccupied looking men anxiously engaged in what, to the newcomers, seemed mysterious mining operations. Some were standing mid-leg deep in the creek, protected by thigh boots, rocking curious wooden cases, which looked like children's cradles, and which they afterwards found were called by that name. Policemen and mounted troopers went to and fro among them, or issued from an encampment higher on the hill—which was evidently the headquarters of the executive department. Mud-stained, bearded, and roughly dressed were the greater part of the population; Lance thought he had never seen so many ruffianly-looking fellows before. A marsh, filled with waving reeds, lay on a plateau a short distance to the westward of the field. The green banks looked pleasant to the eye, shaded, as they were, by wide-spreading trees—thicker of foliage than the others.

'If you think well, sir, we might just as well pitch our camp here,' said Jack. 'It's away from the crowd like, and I'll manage to make it snug and home-like in a week or two. We can leave the Missis here while you and I look out for a claim, as they call it.'

So they made their temporary home by the side of Lake Wendouree, as it came afterwards to be called, little dreaming that the day would come when the marsh would be dammed and deepened, when, steamers would ply upon its surface, and boat races and regattas take place thereon, with a thousand school-children holding high festival on its banks.

However, these developments were in the future. Nothing was to be seen now but the waving reeds, the green grass, and a great black log lying on

the ground, by the side of which they pitched the tent, as being a species of shelter and handy for purposes of cookery. Then the men wandered through the diggings, talking to the miners, as opportunity offered, and trying to learn something about the recognised method of making a commencement to dig gold.

Chance favoured them the day after they arrived, by the occurrence of a dramatic incident, instructive in its way, as it turned out.

They were walking along the side of the creek, looking at a curiously-silent toiling crowd of 20,000 men, who, working in very small and shallow claims, 16 feet square, on the celebrated 'Jewellers' Point,' were turning up gold in handfuls, panfuls, and, in some instances, nearly bucketfuls.

Suddenly every man raised his head and shouted 'Joe.' Jack and Lance thought the whole crowd had gone mad, as they hastened to join in the chorus. They noticed, however, a dozen or more individuals leave their work and depart unobtrusively. A moment after, a man came running desperately down a gully which led to the creek, hotly pursued by two troopers. He wormed his way among the holes, where the horsemen could not well follow him, and seemed in a fair way of escaping, when he ran nearly into the arms of a constable on foot, whom, coming from another direction, he had not seen. This official, a wily and active person, promptly secured him. He was then handcuffed and led off to the camp, where, to the great astonishment of the Englishmen, who followed to see the end of the affair, he was chained to a log by the leg; evidently a desperate criminal, they decided.

Lance interrogated one of the troopers who remained by the prisoner. 'I suppose he's a hardened offender. Is it for murder or robbery? or only horse-stealing?'

The trooper laughed. 'Well, he ain't what you might call a desprit bad 'un, though he's broke the law. He's been diggin' without a license.'

'What's that?'

'Well, you'll soon find out, young man. If you don't get one, you'll get tethered like this chap here. It's a permit to dig gold, and you have to pay

thirty bob a month to the Crown. You didn't think you were going to be let dig up a fortune on Crown land for nothing, did you?'

'Oh, I understand. Well, where can we get one?'

'D'ye see that big outside tent at the camp? Well, that's the Mining Registrar's. He'll give you one apiece, if you've got the cash, and then you can dig gold by the hundredweight, if so be as you can find it.'

'All right. Can I have a word with the prisoner?'

'Oh yes; while I'm here.'

Lance went up to the manacled one and accosted him. 'What's your name, my man?'

'I'm not "my man," or your man or any one else's. Though I'm not a free man, certainly, if it comes to that. Isn't it an infernal shame that a free-born Englishman should be chained up like a dog because he hasn't thirty shillings in his pocket?'

'It doesn't seem right,' said Lance. 'The money's not much, but, of course, a man may be out of luck and not have it. The reason I asked you your name was that I was just going to the Registrar to get a couple of licenses for my mate and myself, and I could get you one at the same time.'

'Didn't I tell you I had no money?' said the man, rather savagely.

'What does it matter about such a trifle? Of course, I will pay for you, and you can give it to me when convenient.'

'Thanks, very much,' said the stranger, with a softened voice and an accent which spoke of different surroundings. 'My name is Hastings. Edward Charles are my Christian names. You must make allowance for my being out of temper. This sort of thing is enough to gall any man, and there will be trouble out of it yet.'

'Now,' said Lance to the trooper, 'if I get a license, as you call it, for our friend here, will you let him go?'

'By rights,' said the trooper, who had a good-natured face, 'he ought to be brought up to-morrow before the Commissioner for not producing his license when called upon so to do by any authorised person. But they're all away, and I can square it—say he had got one that day, or something.'

'That will do,' said Lance, with a smile, as he handed the man a half-sovereign. 'I'll soon have his paper and my own. I can't leave a man—a gentleman, too—like this. That's the tent, isn't it?'

'He's a gentleman, that chap,' said the trooper to himself. 'Any one can see that; just out from home, too. But he's too soft. His money won't last long if he goes and pays up for every chap here that hasn't got a license.'

As it turned out, it was money well invested.

Trevanion went to the tent, where he found a busy gentleman sitting before a table covered with notes and gold and silver, official papers and books, etc., all in rather a state of confusion. He cut short his explanation by asking 'What names?' in a gruff voice.

These being supplied, he filled up three forms printed on parchment, which he cut out of a long narrow book like a cheque book, and, holding them in his hand, said, 'Four pounds ten you have to pay.'

Lance handed over five sovereigns and received ten shillings change. He then glanced at the licenses, consecutively numbered and dated, which gave permission to John Polwarth, Launcelot Trevanion, and Edward Charles Hastings 'to dig and search for gold upon Her Majesty's Crown lands in the colony of Victoria for the space of *one month* from date.' These documents had been signed in blank—'EVELYN P. S. STURT, Commissioner.'

CHAPTER V

The trooper came back to the log with the two 'new chums,' as he, a native-born Australian, would have called them, and turned his back while Trevanion handed Hastings his digging license. He then faced round. 'You've been arrested according to law for digging in Growlers' Gully without a license. Do you now produce one?' Hastings handed him the parchment slip before referred to. 'You hand me this license all correct and regular. I now discharge you from custody, and,' continued the trooper, evidently thinking he ought to say something magisterial and impressive, 'I hope it will be a warning to you.' He then unlocked the padlock, which was passed through a chain which held the handcuff which was round the man's ankle, and released him.

Hastings laughed as he stood up and stretched himself. 'I expected a few strange experiences when I started to dig gold in this extraordinary country, but I never thought to be chained up to a log by the leg. However, it's all in the day's work. You've only done your duty, Doolan, and indeed you've stretched it a bit in letting me off. I'll perhaps be able to do you a good turn some day. Good-bye.'

'Now Mr. ——,—I really don't know your name,—Trevanion, thanks, I see you and your friend are just off the ship and therefore not up to the wicked ways of digging life. I may say now that I hold myself deeply indebted to you. In requital, if you'll come to Growlers' Gully, where I'm hanging out, I can lay you on to a "show," as we miners call it, that may turn out something good.'

'We know nothing as yet,' said Lance. 'We're quite raw and inexperienced, therefore shall be very glad to go to Growlers' Gully or any other place, if there's a chance of setting to work in good earnest.'

'The best thing you can do, then,' said his new friend, 'is to walk out there and stay in our tent to-night. To-morrow you can get back and show your party the way. It's no good staying where you are.'

'Done with you,' said Lance. 'Jack, you can go back and tell your wife,' and away they went. After walking three or four miles, a kind of open ravine, which in Australia is called a gully, presented itself. The tents were thinner and the miners not quite so busy. 'That's our tent,' said Hastings, 'and there's my mate sitting on a log outside, smoking and wondering what's become of me. Hulloo! Bob, did you think I was lost or in chokee? This is Mr. Trevanion; he's stood my friend or else I should have spent the night on the chain, so we must lay him on to a show, if there's one in the gully.'

'It's a nice way to treat a Christian, chaining of him up like a dorg, ain't it, sir?' said the miner slowly. 'It'll raise trouble some day, I'll go bail. Proud to see you, sir. There's plenty of tea in the billy, it'll soon warm up. Luckily I baked last night and there's a goodish lump of corned silver-side of beef. You'll be ready for dinner, both on ye, I reckon.'

'This child is,' said Hastings, and 'Mr. Trevanion has had a goodish walk, which ought to sharpen his appetite. That's right, Bob.'

As he spoke, his companion, who, if slow of speech, was evidently a man of action, placed some tin plates on a small table in the tent, knives and forks, with a large loaf, half a round of cold corned beef, and a bottle of pickles. This done, he poured out two pint pannikins of tea, and sitting a little way off outside, filled his pipe and lit it afresh.

'Mind them Irishmen that took up number six claim above Jackson's?' inquired he.

'Think I do,' mumbled Hastings, whose mouth, like some people's hearts, was too full for utterance. 'Think I do; what about them?'

'What about 'em?' returned Bob. 'Why, they've jacked up and cut it. Said they wanted summut more certain. A dashed good show, I call it.'

'There's a chance for you, Trevanion,' said Hastings. 'Go and peg it out the moment you've finished this humble meal. You've got twenty-four hours to be at work in it. But the sooner you make a start the better. I shouldn't like to see you lose it. Bob will go with you.'

Lance made very good time over the corned beef, which he couldn't be induced to leave for a while. But he and Bob made a formal pegging out

half an hour afterwards, thus taking legal possession of two men's ground.

The very next morning saw the party duly installed. Mrs. Polwarth and Tottie had arrived, the tent was pitched, a fireplace made, the windlass fitted with a new rope, and Lance and Jack working away as if they had been mining all their lives.

For nearly a fortnight the two men toiled and delved, one winding up and the other picking and shovelling away at the various strata which intervened between them and the precious ore they hoped to discover.

'We shan't get no gold here, I don't believe,' quoth Jack, mournfully, one day. 'I've heard of a grand diggings only fifty miles off. I'm warned they're a-pickin' of it up in handfuls.'

'It wants ten days to the end of the month,' replied Lance. 'I like to stick to things when I've begun. Suppose we make up our minds to keep at it till then. It isn't fair to Hastings to run away without a good trial.'

'All right, Mr. Lance, we'll give it till the thirty-first. If we don't hit it then, I'm off to Forest Creek for good. Until then we'll see who can work the hardest.'

As far as manual labour was concerned there had now come to be perfect equality between the man of birth and the son of toil. Stalwart and symmetrical always, the frame of Lance Trevanion had now acquired from daily labour and simple food the muscle and elasticity of an athlete in full training. Hour after hour could he swing the pick and lift the shovel weighted with clay and gravel, or wind up the heavy raw hide bucket, fully loaded, without the slightest sense of fatigue, with hardly a quickening of the breath. The healthful, yet abundant, food always procurable at a prosperous digging, amply sufficed for all their needs; the sound and dreamless sleep restored strength and tissue, and sent them forth ready, even eager for the morning's toil.

As Lance walked among the tents, or strolled up the busy lighted street on Saturday night, resplendent in clean flannels or a half-worn shooting-jacket of fashionable cut, many an admirer of form, even in that *lanista* of magnificent athletes, the flower of the adventurous manhood of many a

clime, stopped to make favourable comment on the handsome young Englishman who had come to the gully with 'Callao' Hastings.

Just one day before the last one of the month, when the partners were already inquiring the distance of the first stage to Forest Creek, Lance broke into a stratum of decomposed rock mingled with quartz gravel. This was from a foot to eighteen inches in depth, and extended across the shaft. They did not know—ignorant as they were of the humblest mining lore—what had happened till they consulted their guide, philosopher, and friend, Hastings.

'Why, you've bottomed,' he made answer, with a look of profound wisdom, 'I'll go down and have a look at the "wash."'

They lowered him down. Ten minutes after he sent up the bucket, half-full; then, after the rope was lowered, came up himself. 'Get a tin dish and carry it down to the creek till I wash the "prospect,"' quoth he.

He filled the dish with the 'wash-dirt,' as he called it, dipped it again and again in the yellow waters of the creek, sending out the clay-stained water with a circular twist of his wrist, in a way incomprehensible to Lance and Jack. Lastly, when bit by bit all the clay and gravel had disappeared, leaving but a narrow ring of black and gray sand around the bottom of the dish, he spoke again—

'Look there,' he said meaningly.

They looked, and saw dull red and yellow streaks on the upper edge of close-lying grains, with an occasional pea-like pebble of the same colour.

'Is that—is that——?' asked Lance in a husky voice.

'Gold!' shouted Hastings, 'yes, that's what it is. I call it an ounce to the dish, with eighteen inches of wash-dirt for the whole width of the claim; your fortune's made. It's a golden hole, nothing less, and one of the richest on the field.'

So it was.... Day after day the partners cradled the precious gravel; day after day they returned to their tent with a tin pannikin or camp kettle containing enough of the precious metal to cause the most pleasurable excitement in the owners, and to occasion exaggerated reports of their wealth and the inexhaustible richness of the claim to pervade the field.

'You'll have to look out now,' said Hastings, impressively, one day. 'You've got a most dangerous and unenviable reputation. You've supposed to have gold untold in your tent. Do you know what that means here?'

'But we take our gold to the Commissioner every day,' said Lance, 'and we see it sealed up and labelled and put in a safe before we leave.'

'That's all very well, and the most sensible thing you could do, but nothing will persuade some of those fellows, with which the gully is getting too full to please me, that you don't keep gold or cash in your tent.'

'Well, what of that?'

'What of that among some of the greatest scoundrels unhung? Fellows that for a ten-pound note would chop Mrs. Polwarth up for sausages and fry Tottie with bread sauce, after knocking both of you on the head? You don't know what a real bad digging crowd is, and when you do it may be too late.'

Now the reign of Plutus had set in, as far as Lance and his companion were concerned. A few short weeks and how had their prospects changed. What was now their position?—shovelling in gold at the rate of five hundred pounds a week per man. It seemed like a dream, a fairy tale to Lance. A year or so at most of this kind of work and he would be able to return to England in the triumphant position of a man who had seen the world, who had been, as the phrase runs, the architect of his own fortune, who had boldly accepted the alternative rather than own himself in the wrong, and who now had carried out what he had vowed to do in spite of the incredulity of disapproving friends.

And his cousin, his beloved Estelle, what would be her feelings? He wrote to her at once, telling her to abandon all doubt and fear on his account.

Where were her prophecies now? He should always bless the day on which he sailed for Australia. He might even go the length of thanking his father for his stern reproof, his unjust severities. After all it had been for the best. It had made a man of him. Instead of lounging about at home, or idling on the continent (for he would never have taken his degree if he had stayed at Oxford till he was gray), he had seen what a new country was like, met numbers of the most interesting people, learned how to carry himself among all sorts of queer characters, learned to work with his hands and to show himself a man among men. To crown all, he was making eight or ten thousand a year. With a little judicious speculation he was very likely to double or quadruple this. And in three years from the day he left she would see him back again, he had almost said dead or alive. What talks they would have over his adventures and wonderful, really wonderful, experience! loving each other as of old and rejoicing in one another's society. The life agreed with him splendidly. He was in famous condition, and except that he was sunburned and a little browner, there was no change to speak of. She would be able to judge if he had altered for the worse in manner or lost form. Perhaps he had roughened a little by associating with all sorts and conditions of men, but it would soon come back again when once more he found himself among his own people and near his heart's darling, Estelle.

Thus far the welcome letter—how welcome those alone can tell who have longed for tidings from a far country, who have waited with the heart-sickness of hope long deferred, and have at length snatched at the precious missive that told of safety and success, even of the approaching return.

Estelle Chalonier treasured this missive from a far country, read it and re-read it day after day: she watched the features change and the colour fade from her uncle's face as he listened to the exulting cry with which she announced a letter from Lance, watched the stern face soften and heard the first words of regret which had passed his lips since the day of wrath and despair.

'I was hard upon the boy, perhaps,—it's this accursed family temper, I suppose,' he said. 'Where is the lad that isn't a fool in some way or other! We are a stubborn breed, and once heated slow to cool. Tell him when you write that he will be welcome again at Wychwood. Not to stay away too

long, though, whatever his good fortune may be, for I am not the man I was, Estelle, and I should like to see my boy's face again, before—before I die.'

Here the hard voice changed, the stern man turned his head. Could this be Sir Mervyn? thought Estelle. In all her previous knowledge of him she had never known him to express regret for any act, speech, or opinion whatever, however placed in the wrong by after-consequences. That he should be really regretful and repentant struck her in the light of a species of miracle. More than that, it imbued her with a vague fear, as if there was some impending ill when such an abnormal change took place in the social atmosphere.

'Do not grieve, my dearest uncle,' said she, winding her arms around him, with a look of beseeching tenderness. 'I know, from the way Lance has written to me, that he has long since ceased to harbour resentment. He knows that he was in the wrong, though he, and I too, must I confess it, at the time, thought that you were too hard upon him. Depend upon it we shall see him in a year, if not less, and all will be forgotten in the joy of his return, in the triumph of his success.'

'God grant it,' said the old man, 'but I have evil dreams. I believe the devil enters into a Trevanion at times. Perhaps Lance may break the spell. If he has an angel for his wife like my darling Estelle, it will be all the more likely.'

Trevanion and party, of Number Six, Growlers' Gully, were 'fair on it'—'had struck it rich, and no mistake,' in miners' parlance. Fame and fortune were both theirs, assured, unchallenged; the fame, as in too many cases in this world, considerably in advance of the fortune. His partner, Polwarth, a shrewd, long-headed 'Cousin Jack' (as the Cornish miners are called), stuck steadily to his work, stayed at home with his wife and child, and beyond building a comfortable weatherboard-fronted bark cottage for them, made no difference in his equilibrium.

But it was otherwise with Lance Trevanion. His striking appearance, his manner and bearing, his reputation for wealth, coupled with romantic tales

of his family circumstances, commenced to make him a personage of consideration, as well as to cause his society to be sought after in the higher social strata in and around Ballarat. Even at the Gully, now that it had developed a true and defined 'lead'—the auriferous course of a dead and buried river of the past—a couple of branch banks had been established, shops and hotels had sprung up.

All created organisms, during certain periods of their existence, are capable of development. The conditions being varied, plants and animals, including that strangely-constituted vertebrate, man, suddenly or by graduation, but not less surely, expand and change, or decrease and degenerate, as the case may be. Physical expansion does not invariably presume moral advancement, and, indeed, the removal of restrictive pecuniary conditions occasionally conduces to the reverse result. Alas! that the delightful freedom from restraints which our civilisation renders galling, which is often described by the phrase 'money being no object,' should, in itself, be oftentimes that broad road leading to irrevocable ruin, to destruction of body and soul.

When a man arises from sound and untroubled slumber at or about five 'A.M. in the morning,' *vide* Mr. Chuckster, and within an hour is commencing a long day's work, which process is continued week in, week out, with the exception of Sundays, there is not much room or opportunity for the Enemy of man, who proverbially finds work for 'the unemployed.'

These, and chiefly for such reasons, were the dangers of 'Growlers' Gully' during the early period of their existence—an eminently peaceful and virtuous community. Hard at work from morn till dewy eve, that is from daylight to dark, a matter of fourteen hours, there was scant space or opportunity for riotous living. A quiet talk over their pipes before the so-early bedtime, a glass of beer or grog at the unpretending shanty, which, before the era of hotel licenses, was compulsorily modest and unobtrusive, was the outside dissipation indulged in by the 'Growlers.' There was sufficient prosperity to produce hope and contentment, but not enough, except in rarely exceptional cases, to bring forth the evil craving for luxury and excitement. There was no theatre, no gaming saloon (under the rose, of course), no inrush of fiends, male and female, as upon a diggings of published richness; and therein lay safety, had they known it, such as should

have made every man thankful, and every woman deeply grateful to the Higher Power that had so ordered their destiny and surroundings.

So might, perchance, have continued their Arcadian freedom from evil had not the exceptional richness of Number Six been known and bruited abroad. But, somehow, principally through Lance's carelessness, it had leaked out, been spread far and wide, been wildly exaggerated, and now, every day new arrivals from the most unlikely places in other colonies testified to the brilliant reputation which 'Growlers' had acquired. Greatness, indeed, had been thrust upon them. There was no escaping the celebrity, wholly undesired by the more thoughtful and fore-casting miners. But the majority of the adventurers of the day were young and inexperienced. Intoxicated with their suddenly-acquired wealth, they were splendidly reckless as to the morrow. They ever welcomed the irruption of the heterogeneous army of strangers which invaded their hitherto rather close borough. They treated their rash migration, made upon the flimsiest reports, as a humorous incident wholly appropriate to goldfield life. As for the risks to which such an admixture might fairly be held to expose the safety and solvency of the community, they were contemptuously indifferent.

CHAPTER VI

Among the new arrivals who came in numbers to swell the gathering crowd, whose huts and tents were now scattered for miles around the original gully, which, owing to the chronic discontent of the prospectors, had given its name to the locality, were some people from a distant part of the neighbouring colony of New South Wales. They constituted a large family party, comprising brothers, cousins, the mother of the young men, their sister, and a friend or two. Their tents were pitched in an open flat at no great distance from claim Number Six, and without any special overture on either side, a casual acquaintance commenced which bade fair to ripen into friendship. The migrating party were all native-born Australians. Gold-lured, they had travelled in one encampment from their homesteads on the upper waters of the Eumeralla, a tributary of the Snowy River. In that mountainous region, thinly settled with scattered families, tending their herds of wild cattle and wilder horses, had these stalwart men and fearless girls been born and reared. The men were fine athletic fellows, free and cordial in their manners, apparently liberal and obliging in such small matters as came into notice. Apart from his natural curiosity, too, as to the characteristics of this company of 'Sydney natives,' as they were generally called—people of pure British race and descent, who had never seen Britain—Lance was attracted by their riding feats as well as by the high quality of the unusually large number of horses which belonged to the party. That they were consummate horsemen, he, a fair judge and performer in the hunting field, at once perceived. Their ways of managing the animals, catching, handling and saddling them, were all new to him. He came to walk over to their tent in the evening, to talk over the gold news of the 'day', to hear their stories of adventure by flood and field, to him novel and interesting, and by no means unattractively rendered. Besides all this, there was another appendage to the Lawless family—one which, since the ancientest days, has sufficed to attract the ardent susceptible male of whatever age and character with steady resistless force. There was a woman in the case, and a fairly prepossessing damsel she was. The sister of the young men, Kate Lawless, was indeed a very handsome girl. Bush-bred and reared as she was,

uneducated and wholly unacquainted with many of the habitudes of civilisation, she comprised much of the perilous fascination of her sex. Tall and slight, but with a rounded symmetrical figure, there was an ease and unstudied grace in all her attitudes, which an artist would have recognised as true to the training of nature. Like her brothers, more at home in the saddle than in a chair, she compelled admiration when mounted on her favourite horse, a gray of grand action; she swept through the forest paths or amid the awkward traps and obstacles of a goldfield with such perfection of seat and hand as can only be obtained by that practice which commences with earliest childhood. Her complexion was delicate, indeed, unusually fair, save where an envious freckle showed that the summer sun had been all too rashly defied, her soft brown hair was unusually abundant, while her bright dark gray eyes had a glitter at times, in moments of mirth or excitement, which denoted, either for good or ill, a character of no ordinary firmness.

Lance Trevanion had been out of the way of female fascinations for a considerable period. The o'ermastering strength of his feelings after the quarrel with his father; the fierce, persistent determination with which he had followed up the fortune which he had vowed to gain in Australia, had for the time being dispossessed the minor frailties. But, now that wealth had begun to pour in with a flowing tide, now that leisure had succeeded ceaseless toil (for he had felt justified in putting on a 'wages man'), now that flattery, spoken or implied, commenced to indicate him as Trevanion of Number Six, 'a golden-hole man,' and the half-owner of one of the richest claims on the field, the ordinary results of more than sufficing money and time commenced to exhibit themselves.

'I don't know that I like that Lawless crowd over-much,' said Hastings to him one day. 'I'd be a little careful, if I were you.'

'Why, what's wrong with them?' answered Lance, rather hotly. 'They're fine, manly fellows, and pretty good all round. They can ride and shoot—they're very good with their hands—and I never saw smarter men to work. Quite different from what I expected Sydney natives to be.'

'And their sister's a very pretty girl—eh! Come, don't be offended, I'm only advising you for your good. But I met an old friend, who was a squatter in

their district, and he says they are a bad lot—gamblers and horse-thieves—more than suspected of worse things, indeed.'

'Well, of course, your friend may be a little prejudiced,' answered Trevanion, trying his best to repress his rising irritability. 'They may have fallen out. What's the difference between squatters and drovers? That's what they are. They told me——'

'What's the difference between country gentlemen and poachers?' replied Hastings. 'You haven't been long enough in the country to know the ins and outs of things. But, take my word for it, the sooner you drop your native friends the better.'

'Really, my dear fellow,' answered Lance, putting on a lofty and superior air, which his friend had never before observed, while the strange glitter in his eyes became more intense with every word, 'you must permit me to manage my own affairs and choose my own friends. I have not been so long in the country as yourself, but I am not quite devoid of common sense, and have seen a little life before I came here. The Lawlesses are pleasant, manly fellows—quite as good as most of the men we meet out here; and Miss Kate is a friend of mine of whom I shall allow no one to speak disrespectfully.'

Hastings was an exceptionally cool man, or he would doubtless have requested his interlocutor, shortly, to go to the devil his own way, and, thereafter, have washed his hands of him. But he owed a debt of gratitude for his first generous service which he was too sincere and genuine to forget.

'You must take your own way, I suppose,' he said good-humouredly. 'We won't quarrel, if I can help it. But I hope you won't have reason to regret not taking my advice. Have you heard who the new Police Magistrate is?'

'His name is Mac, something or other; comes from Tasmania, and knows every escaped convict in the colonies by sight, they say.'

'Oh, Launceston Mac! Is that the P.M. who is to reign over us? No doubt he's a good man, but a little too fond of appearing to know everybody, and awfully severe. He's too quick in his decision, for my taste. I feel like the sergeant in *Rob Roy*, who considers that, "Were it the Bailie's own case, he would be in no such dashed hurry."' "

'Oh, well, there are plenty of rascals here and to spare. He may try his hand on them, and welcome.'

'There's a new Sergeant of Police, too,' he continued. 'Can't remember his name; something like Barrell or Farrell. They say he's a "regular terror," as Joe Lawless expressed it.'

'Frank Dayrell! Is *he* come?' asked Hastings, with a change of tone. 'I used to know him in a wild district out back, before the gold. There was great joy when he left Wanaaring.'

'Why, what was the matter with him? I heard he was a very smart, active officer.'

'All that,' said Hastings, 'but more besides—much more. Sergeant Francis Dayrell bore the name of being one of the most unscrupulous, remorseless men that ever touched a revolver. When he has duty to do, he's all right. But, above everything, he must have a conviction. If he can manage that, with his prisoner, well and good. If not—*caveat captivus*.'

'Whatever he is,' answered Lance, 'it won't matter much to us. We can afford to pay for "Miner's Rights" now,' he added laughingly, 'and there's nothing else likely to bring us within the talons of the law.'

'I wouldn't make too sure of *that*,' his companion returned half musingly, and with a strangely altered expression. 'Dayrell is a most extraordinary man.'

That there was, in the early days of the great Australian gold irruption, a large proportion of remarkable and exceptional characters on all the goldfields, few who have the faintest recollection of that socially volcanic period will be found to deny. It could hardly have been otherwise. Adventurers of every sort and condition, of all ages and both sexes, from every clime and country, had there congregated at these wondrous auriferous centres. The first year's manual labour, which all essayed as the recognised form of ticket in the lottery, saw many of the unused toilers disgusted or discouraged. Meanwhile, a demand arose for competent persons to fill appointments the emoluments attached to which were calculated on war prices. The public and private service were both undermanned. Hence, every day well-born and well-educated mining

amateurs relinquished the pick and shovel to become gentlemen, so to speak, once more. The more fortunate became Goldfield Commissioners, Police Magistrates, Customs Officers, Clerks, Agents, Storekeepers, Inspectors of Police, Auctioneers, and what not. The salaries were large; the profits extraordinary—in many cases far exceeding the gains of the ordinary miner. The rank and file of the unsuccessful applicants, fully equal, if not, in some cases, superior to the fortunate competitors, contented themselves with becoming police-troopers, store clerks and assistants, coach-drivers, billiard-markers, or barmen. In all these conventionally humble situations they were, if sober and shrewd, enabled to save money and lay the foundation of future opulence. The police force—more particularly the mounted division—was popular with the more aristocratic waifs. It afforded a reasonable degree of leisure, a spice of danger, and the privilege of posing in *quasi* military array, besides riding a well-appointed charger and wearing a showy uniform. Among the privates and, so to speak, non-commissioned officers of the force were to be found, therefore, a large proportion of what, in a regular army, would have been called soldiers of fortune. They were occasionally impatient of discipline, wild and reckless in their habits, given to occasional brawling, drinking, and dicing, much as were the Royalist soldiery in the days of the first Charles. But, like them, they were brave to recklessness, cool and daring amid fierce and lawless crowds, and of all that strangely gathered band the wildest and most untamed spirit, yet the coolest, the most *rusé*, deadliest sleuth-hound, by general acclaim and common report, was Sergeant Francis Dayrell.

Tall and slight, with fair hair and beard, and a false air of almost effeminate softness in his blue eyes, he was wonderfully active and curiously muscular as compared with his outward appearance. That he had received the education of a gentleman all could perceive. Of his family nothing was known. Ever reticent about his own concerns, he was not a man to be interrogated. An admirable man-at-arms—promoted, indeed, in consequence of some exceptional deed of power, the taking, indeed, of a desperate malefactor single-handed; he was an unsparing martinet to those below him, merely respectful to his superiors in rank, and habitually hard and merciless to the criminals with whom he had to deal. With the exception of occasional boon companions, with whom, at intervals, he drank deeply, and, it was alleged, gambled for high stakes, he made no

friends and had no intimates. Solitary, if not unsocial, he was generally feared if not disliked, and the mixed population of the goldfield, many of whom, doubtless, were conscious of 'sins unwhipt of justice,' united in giving the sergeant a very wide berth indeed. Such was the man who had suddenly been transferred to the police district which included Growlers' Gully and its vicinity.

Among his friends, the Lawlesses, Lance was not long in perceiving that the sergeant's advent was not regarded as a wholly unimportant circumstance. He rather wondered to hear the tone of mingled dislike and bitterness with which the affair was discussed.

'Not that *they*,' Ned Lawless, the eldest of the brothers, and, in a sense, the leader of the party, laughingly remarked, 'had any call to be afraid, but there were friends of theirs, quiet, steady-going farmers and drovers, upon whom this cove, Dayrell, had been tremendously hard—treated them dashed unfairly indeed. So that if, by chance, his horse came home some day without him, he, for one, would not be surprised, nor would he be inclined to go into mourning for him.'

'If he only does his duty, though,' Lance could not help answering, '*that* ought not to make Dayrell unpopular.'

'There's ways and ways of doing things,' returned Ned. 'I quarrel with no man for doing his duty—that he's paid for. But this man's a —— dog, and I'd shoot him like a crow if he came messing round me, and think nothing of it either.'

Trevanion couldn't quite understand the savage tone with which these words were uttered; he thought that something had occurred to put Ned out, as he was habitually a good-tempered fellow. When he went to Kate for an explanation, he found himself no nearer to a solution.

'I hate the sight of him,' she said, 'with his soft voice and sneering ways. I believe he'd hang us all if he could. He nearly "run in" a young man we knew on the other side, and him as innocent about the duffing as the babe unborn. He'll get a rough turn yet, if he doesn't look sharp, and serve him right, too.'

'But *you* have no cause to mind his coming here, Kate,' he said in a bantering tone. 'You've never stolen a horse, or "stuck up" anybody— isn't that the expression?—(except me, you know). I wonder you girls don't admire a handsome man like Dayrell.'

'I wouldn't mind laying him out for his coffin,' said the girl vengefully. 'I might admire his features then. But,' and here her face assumed, for a few seconds, an expression which caused her companion to gasp in amazement, 'his turn may come yet, and if Frank Dayrell dies in his bed he's a luckier man than some of us think he'll be. By Jove!' she exclaimed suddenly, 'if that isn't him, and almost close enough to hear me. He's the devil himself, I do believe.'

By a curious coincidence the unconscious object of this discussion had emerged from a by-track, and, suddenly reining up, rode slowly past the pair. Whatever his moral qualities he was utterly *point device* as a man-at-arms. His tall erect figure and *manège* horsemanship were well displayed on the handsome roan thoroughbred which he rode as a charger. High boots, very carefully polished, with bit, stirrup-irons, and sabre-scabbard glittering in the sun, showed the military completeness of his equipment. At his sword-belt hung a serviceable navy revolver, while from toe to chin-strap no smallest detail was omitted.

As his eye fell on Lance and the girl, he nodded and laughingly raised his helmet.

'Well, Miss Lawless—we mustn't say Kate now, I expect—have you had a ride after moonlighters lately? I expect Mr. Trevanion doesn't know what the meaning of the word is. However, you and Ned will soon enlarge his limited colonial experience.'

As the trooper rode slowly past them, his well-bred high-conditioned horse arching his neck and champing the bit which had stopped him so suddenly, the girl turned pale in spite of her angry look, and lowered her defiant eyes. Without speaking more or altering his careless seat and steady regard, he sauntered slowly on, with one foot dangling sideways in the stirrup. For an instant his eyes met those of Trevanion, who, irritated by the whole bearing of the man and a certain ill-concealed air of authority, said, 'I daresay you'll

know me again. May I ask what reason you have for favouring Miss Lawless and me with your particular attention?'

The sergeant's features slightly relaxed, though his eyes maintained the same cold, penetrating inscrutable expression which had so annoyed Lance, as he replied—

'Kate Lawless and I are old acquaintances, perhaps I can hardly say friends. As for you, we may possibly be better acquainted in future. But if you take my advice—that of a well-wisher, little as you may suppose it—you'll stick to your claim, and be careful in your choice of associates.'

Before the angry reply, which was rising to his lips, could find utterance, the sergeant struck his charger lightly across the neck with his glove and cantered off, raising his helmet in a half-mocking salute to Kate Lawless.

'Insolent scoundrel,' said Lance, 'if he dares to address me again I'll knock him off his horse. If I was in my own country I'd show him the difference in our positions. But in this confounded country things are turned upside down with a vengeance. But what did he mean by saying you and he were old acquaintances?'

'He be hanged,' said the girl, whose colour and courage had apparently returned. 'We never were nearer friends than to pass the time of day. But he was stationed once on Monaro, where we all lived, and, of course, he came to the place now and then. I think he was a bit sweet upon Tessie, but she couldn't stand him and so he dropped coming to Mountain Creek. He's not worth minding, any road. We'd better finish our walk and get home for tea, I'm thinking.'

It was the early summer. The winter had been cold and wet. The Ballarat climate is by no means of that exceptional mildness which the Briton innocently believes to characterise the whole of Australia, making no allowance for widely diverging degrees of elevation and latitude. It had been severe beyond the usual average, wild and tempestuous. But now, all suddenly the delicious warmth of the first summer months made itself felt. Day after day witnessed the riotous growth of pasture and herbage, the blooming of flowerets before the joyous sorcery of a southern spring. Their path lay through the primeval woodland, bordered by an emerald carpet

studded with flower-jewels and redolent with balsamic forest odours. As the shadows lengthened and the birds' notes sounded clear and sweet through the evening stillness, the girl's voice, as she told of wild rides and solitary experiences in their mountain home, had a strangely soft and caressing tone.

CHAPTER VII

Following closely upon this little episode, a fresh discovery in Number Six demonstrated to Lance Trevanion that whatever else was raw, unfurnished, and disagreeable in Australia, the colony of Victoria generally, and Growlers' Gully, in the district of Ballarat, particularly, were the easiest places to make fortunes in, out of a book of fairy tales. Each week the yield of the claim grew richer, the balance at the bank to the credit of Trevanion and party became larger. So imposing was it that Lance seriously thought of selling his share in the claim to his mate, even if he lost a thousand or two by it. Jack Polwarth was a good fellow, and what, indeed, did a little money matter any more than an odd handful of precious stones to Sinbad in the valley of diamonds? He would be at home with his friends in, say, half a year. That is if he returned by India, took a look at the Himalayas, saw Calcutta and Madras; or why not viâ Honolulu, getting by heart the new world, including the Garden of Eden as exhibited in the isles of the southern main, before reappearing triumphant in the old. What would his father say now? Where would be his cousin Estelle's misgivings, that unswerving friend and lady-love whose letters had been as constant as her heart? What a heavenly change would it be once more to the ineffable beauty and refinement of English society after the rude environment of a goldfield, the primitive civilisation of an Australian colony, but so few years emerged from the primeval wilderness.

It was with a sort of sob or gasp that he realised the dream-picture on which he allowed his thoughts, a rare indulgence, to dwell. And after all why should he not carry out his purpose? Why indeed? Strong and unbending in matters of need and pressure, a certain indolence, an occasional tendency to irresolution, formed a portion of his character which often delayed prompt action and permitted opportunity to pass by. The loitering life he lived at present, a central figure, so to speak, amid admiring associates and envious adventurers, was pleasant enough in its way. Then the old old temptation! It would give him, yes, undoubtedly it would, a certain amount of pain and uneasiness to break off finally with Kate Lawless.

Tameless in spirit as she was, reckless of speech and fierce of mood when her ungovernable temper was aroused, Kate Lawless could be wonderfully soft and alluring, like all such women, when the tender fit took her. There was then a child-like simplicity and abandon which caused her to seem, and, indeed, temporarily *to be*, a different woman. She resembled one of those rare psychological studies—which are indeed scientifically authenticated—who lead a dual existence. For no two individuals could be more unlike than Kate Lawless in one of her 'tantrums' (as her brothers familiarly expressed it) and the same woman when the paroxysm was over, imploring forgiveness and lavishing caresses on the object of her causeless resentment. That there are such feminine enigmas no student of humanity will deny. But with all her powers of fascination, she was so uncertain in her mood that she caused Lance Trevanion the most serious doubts whether she reciprocated the affection which he had been repeatedly on the point of avowing for her. Sometimes she was especially friendly, full of fun and vivacity, taking long rides through the wild forest tracks with him, on which occasions she would astonish him by the way in which she would ride at stiff timber or gallop adown the rock-strewn ranges, breast high with fern, daring him to follow her, and shouting to imaginary cattle. At these times her whole aim and endeavour appeared to be to attract and subjugate him. At other times she was cold and repellent to such a degree that he felt inclined to break with her for ever, and to congratulate himself on being quit of so strange and unsatisfactory a friendship.

He had not told himself, indeed, that he was prepared to marry her. Democratic as he had become in many of his opinions, and conscious, self-convicted, of falsehood and treachery to his cousin Estelle, he yet in his cooler moments shrank from the idea of marrying an uneducated girl of humble extraction, reared in a wilderness and bearing traces of a savage life, beautiful exceedingly, and despite of her wilful and untamed nature, wildly fascinating, as he confessed her to be. Thus swayed by opposing currents, his heart and brain drifted aimlessly to and fro for a space, while still a strange and unreal tinge of romance was given to his life by the ever onward and favouring current of the golden tide.

Although matters had not progressed sufficiently far on the pathway to civilisation at Growlers' to establish a claim to society in any conventional acceptation, yet was there a rudimentary germ or nucleus. One or two of the

Government officials were married. There was a clergyman who had a couple of daughters, energetic, intelligent damsels, who had adapted themselves with much tact to their unusual surroundings. At the camp there were gatherings of the officials of various grades—police, gold commissioners, magistrates, and so forth, with a few of the more aristocratic adventurers whose names were known, and who were armed with introductions. It would be inaccurate to deny that there was a little loo now and then, also whist, of which the points were certainly not sixpenny ones. To these rational expedients of passing the time, which, when there was no actual business on hand, occasionally lagged, Mr. Trevanion would have been a welcome addition; good-looking, well-bred, and—more than all—exceptionally fortunate as a miner. But to all these hints and suggestions he—with a certain perverseness difficult to account for, and which was remembered in days to come—obstinately turned a deaf ear. More than one hint—well meant—was thrown out touching the expediency of being 'so thick with those Lawlesses.' Of course one could understand a young fellow being attracted by a handsome lively girl like Kate Lawless. In those wild days every man was a law unto himself, and revelled in his freedom. Yet was there not lacking, even in that *mêlée* of rude adventurers and unprecedented social conditions, more than one kindly adviser. There were men who knew the world—European and Australian—well and thoroughly. From them he received warnings and advice. But he repelled all friendly aid, and obstinate with the perverse intractability of the Trevanion nature, disregarded them all.

Beside outside acquaintance, in addition to Hastings and his mate Jack Polwarth—who with his honest-hearted good little wife never ceased to disapprove and to keep up a persistent warfare, so to speak, against the Lawlesses—he had a friend within the fortress who more than once gave him a warning, had he cared to avail himself of it.

Quiet and reserved as Tessie (or Esther) Lawless had always shown herself, he had never fallen into the error of mistaking her for a commonplace girl. Without the showy qualities of her cousin Kate, she gave token from time to time of having been better educated and differently brought up from the others. She was always treated with a certain amount of respect, and, even in Kate's most irritating moods, as she rarely replied, so was she the only one of the party who escaped her scathing tongue.

She never appeared to seek opportunity to gain Lance's attention, though when she did speak there always appeared to be some underlying reason for her remarks. One of her characteristics was a steady disapproval of the sharp tricks and double dealings of which her cousin often boasted, and which Lance did not generally comprehend. He supposed them, indeed, to be among the acknowledged customs of the country, and not considered to be illegal or discreditable.

'They are nothing of the sort,' she was accustomed to say, with considerable emphasis. 'They are theft and robbery—call them what you will; they are certain to bring all concerned to the gaol at some time or other. If people don't mind that, nothing I can say will have any effect.'

'You'll have to marry a parson,' Ned Lawless would reply. 'What do you think of the young chap that preached to us in the flat last Sunday? Why, half the squatters began by a little "duffing." Nobody thinks the worse of a man for that.'

'If they're caught they go to gaol,' replied the uncompromising Tessie. 'Then they're criminals, and can never look any one in the face again! And serve them right too in a country like this, where the gold fairly runs out of the ground into people's pockets.'

They all laughed at this, and the conversation dropped, while all hands—the girls excepted—set to at a night of pretty deep gambling, which lasted well into the small hours.

A fortnight after this, as Lance was sauntering down in the evening to the Lawlesses' camp, he found to his great surprise that there appeared to be no one at home. The tents were all down, and gone, but two.

One of the younger boys—a silent apparently stupid youngster of fourteen—was in charge of the few remaining horses and the packs left behind. He could give little or no information, except that the party had moved to a new digging, of which he did not know the name, or, indeed, in which direction it was. All he knew was that he and Tessie had been left behind, to stay till they were sent for. All the horses were gone but three. Tessie had gone out for a walk along the Creek, but would be back soon. 'Here she comes now.'

The boy pointed to a female figure coming slowly along a track which followed the banks of a little creek, near which the Lawlesses' camp had been formed, and then walked over to where the hobbled horses were grazing, as if glad to escape from the necessity of answering other questions.

The girl approached with her head down, and her eyes upon the ground, walking slowly, as if immersed in deep thought. Suddenly she raised her head and gazed at him with a peculiar expression in her brown eyes. They were not large, but clear and steadfast and—while she was speaking—had a singularly truthful expression. There was a kind of half-pitying look in them, Lance thought, which made him suppose that some misfortune had happened to the little community, of which he had so lately been a regular member and associate.

'What's the matter, Tessie?' said he. 'I can see at once that you are troubled in your mind. Why are they all gone away? Didn't Kate leave any word or message for me? All this is very sudden.'

'Mr. Trevanion,' said the girl, stopping short as he approached her, 'I sometimes think you are the most innocent person I ever met. We natives think young men from England are not very sharp, sometimes—but that is mostly about bush work and stock, which they can't be expected to know. But of all I ever met I think you are the most simple and—well, I must say—foolish.'

'You are not complimentary,' replied Lance, rather sullenly, and 'You don't rate my understanding very highly. May I ask if you have any letter from your cousin Kate for me?'

'Yes, I have,' replied the girl, speaking with more energy than he had ever before noticed in her, 'and I have been tempted to tear it to pieces and leave you to guess the meaning. If I had acted as your true friend—which I have always been—I should have done so. Take my advice and drop us all—once and for ever. Why should you persist in making friends of us? We are not good company for you—a born gentleman. Why don't you behave like one, and leave people alone who are not your equals in any respect?'

'May I ask for the letter you refer to?'

'Listen to me for the last time,' she said, coming closer to him and looking earnestly into his face. 'Listen to me, as if I was your sister—your mother—or the dearest friend in a woman's shape you have on earth. I know what is in that letter. Kate wants you to join her and the rest of the crowd at Balooka. Don't go! Do you hear what I say?—*don't go!* or you will repent it to the last hour of your life.'

'Why should I not?' asked he. 'Are you not going yourself with Billy here to-morrow?'

'I am *not* going,' she said. 'I shall go to Melbourne to-morrow by the coach, and, perhaps, never see one of them again, or you either. They have been kind to me in their own fashion. I have eaten their bread, and, therefore, I will not say more than I can help. But beware of Kate Lawless! She is not what she appears to be! She is deceiving you, and worse even than being the dupe of a heartless and unprincipled woman may happen to you. Oh, promise me,' she said, 'promise me before I leave that you will not go!'

'If I had any doubt, your last words have decided me,' he said, and as the angry light commenced to gleam in his eyes the girl's expression changed to that of wonder and strange terror, deepening visibly.

'It is himself!' she said, almost shuddering. 'Can there be two? Is the Evil One walking on the earth and working his will as in the old old days? You will not be turned now,' she went on. 'God is my witness that I have done my best. Your blood be on your own head!'

'Say good-bye, Tessie,' he said. 'I shall never forget your good intentions, at any rate.'

'Good-bye,' she said, in a tone of such sadness that he felt impressed in spite of himself. 'You will not forget *me*. No, whatever happens you will not do that. For your dead mother's sake, for your sister's, and if there is any one dearer than either beyond the seas, for *her* sake, God bless and keep you.' And, waving her hands distractedly, like a woman in a dream, she walked swiftly towards one of the tents, which she entered, and was hidden from his view.

'Here it is,' she said, reappearing, 'if you will have it,' and, as if moved to sudden despair, she cast the letter upon the ground with every gesture of

anger and contempt. 'If it was a snake you wouldn't pick it up, would you? And yet,' she went on, suddenly dropping her voice to a low, earnest whisper, 'the worst carpet snake you ever saw—a death adder, even—would do you less harm than what's in that letter, if you follow it. Be warned; oh, Mr. Trevanion, be warned.'

As she spoke her face softened, she leaned forward in a beseeching attitude, her eyes filled, and this ordinarily reserved and self-contained Tessie began to weep hysterically.

'Confound the girl!' said Lance to himself. 'What a terrible to-do about nothing at all! What's the good of coming to Australia if one can't choose one's own society? I might as well be in Cornwall again. Surely this girl isn't in love with me, too?'

His unspoken thought must have manifested itself in some mysterious fashion, though no word escaped him, for Tessie Lawless left off crying, and, wiping her eyes, with a haughty gesture, appeared to return to her usual composed bearing.

That night brought but little sleep to the eyes of Lance Trevanion. It was late when he entered his hut, and, flinging himself on the bed where, for the most part, he had known nought but dreamless repose, he commenced to think over the situation.

Should he accept the warning so solemnly given by this strange girl, who, before this, had manifested but little interest in his career, and had lived a merely negative and defensive life?

'How little we know of people's natures,' thought he, 'women's especially. Who would have thought this quiet girl had all this fire and earnestness in her? Her warning squared curiously with all that he had gathered from other sources. Was there something mysterious and by no means fair and above-board about these Lawlesses? It looked like it. And Kate! What an artful treacherous jade she had proved herself to be, if what her cousin said was true. Well, at any rate, he would go and see for himself. He knew, or thought he knew, enough of life not to entirely trust one woman's word about another. If Kate was false and deceitful, he would have the satisfaction of telling her so to her face. If she was true, well, he really did

not know what was to be done in that case. At any rate, he would go and see. Yes, he would show he was not afraid to meet them all, there or anywhere else.'

The fateful letter was short, badly written and worse spelled. It merely stated that her brothers had settled to move to Balooka, naming a new digging nearly a hundred miles away, and not far from the foot-hills of the great Alpine range. They had gone into a large purchase in horses, and were going to drive them to Melbourne in another month, when they expected to make a lot of money out of them. 'If he cared to see her again he might meet them next week at Balooka. The road went by Wahgulmerang.' This precious epistle was signed, 'Your true friend and well-wisher, Kate Lawless. P.S. If you only seen the black mare that was gave me by a friend.'

There was nothing alarming in this apparently simple and guileless missive. A ride to a new digging was not only a pleasant novelty, but distinctly in the line of his occupation as a miner, now that he was an authority as a 'golden-hole man' with local fame and reputation. He had a good horse, and though stabling was expensive he had felt justified in being well mounted, as the companion of such a horsewoman as Kate Lawless. The reference to the black mare and the generous friend rather piqued him, as was probably intended. He had never encountered any one in the guise of a rival, and felt curious to see what kind of admirer had come forward.

His preparations were not long in making. He informed Hastings and his mate Jack that he was going to Balooka and might be absent for a week or two.

They evidently suspected the nature of the magnet which was attracting him, and by their manner showed anything but cheerful approval of his plans; wise by experience, however, they refrained from expostulation.

CHAPTER VIII

More than once—many times, in fact—Lance Trevanion revolved in his mind the strange mysterious warning which he had received from Tessie Lawless. Careless, indeed reckless, as he had become lately in the gratification of his caprices; safe in the possession of wealth hitherto undreamed of and daily increasing; basking in a local splendour of reputation based on the broad pedestal of success, there was yet something in the girl's earnest tones and candour of mien which awed and impressed him. Did she—could she—know anything really important? What *could* there be behind the scenes likely to operate prejudicially as far as he was concerned? Why should he not go to this place which Kate had named, stating playfully that it was rather an out-of-the-way hole, but one which, as he was always praising up the beauties of English scenery, he might like to see? '*She* couldn't talk that sort of rubbish, but there was a big dark mountain, a running river, not like this ditch of a creek, and a flat beside it, like a small plain; snow, too, in the winter. He'd better come up and see. It would be a change after this beastly hot, dusty diggings.' So between idleness, irresolution, and the lure of womanly wiles not weakened in witchery, in a latter day and a newer world, Lance Trevanion finally decided to go to Balooka. 'He had given his word,' he told himself, 'and what a man says he should stand by, in great things or small. Such, at least, has always been the wont of the Trevanions of Wychwood.'

So next morning he sent for and saddled his horse—an upstanding, well-bred bay, with a star and two white hind legs, which he had bought a month or two since from Ned Lawless. There was no finer horse on the goldfield. More than once he had been asked from whom he had purchased him, where he was bred, what his brand was, by inquiring admirers, after a fashion which he was apt to dispose of hastily, if not rudely, as betraying the ignorance and bad form of colonists.

He had intended to make a very early start, but it so chanced that there had been an unusually rich washing-up the night before, and Jack Polwarth, honest but unlettered, was most urgent that he should make the deposit in

the bank himself, receive the receipt, and see the amount duly divided and paid in to their separate accounts. To this, after some grumbling, he agreed, though not without declaring that Jack could do it just as well himself, for Mr. Stirling, the manager of the branch of the Australian Joint Stock Bank, then doing the chief business at "Growlers'," was smart, straight, and plucky enough to run the Bank of England, if that time-honoured institution had rated at its true value the growing gold-crop of Australia, and opened there.

It may be here explained that the gentleman placed in charge of a branch bank on a leading goldfield in Australia differs widely from the portly, white-waistcoated, decorous potentate generally cast for the character in the metropolis or the large towns of the settled districts. He must be young, in order to undergo easily the shifts and privations of goldfield life. High-couraged the man needs to be, who sleeps with one revolver under his pillow and another at his right hand; himself, perhaps, and his assistant, the sole custodians of a hundred thousand pounds in gold and specie, within a bark-walled, bark-roofed shanty, surrounded by an unscrupulous population, among whom, though not disproportionately so, are some of the most reckless desperadoes, refugees, and unhung murderers anywhere to be procured. He must be free of speech and open of manner, so as in a general way to commend himself to the miner of the period; a man, as a rule, who, while respecting and preferring a gentleman in matters of business, abhors formality. It is by no means to his detriment if, in his hours of ease, he demonstrates his ability to give points at billiards or euchre to nearly all comers, or to 'knock out in six rounds' the leading talent in the glove tournaments periodically held. In addition to these various gifts and graces he must have a cool and strong head, a firm will, and a resolute determination to do his duty to his employers at whatever hazard, and finally, while not holding aloof from the amusements of the hour, to remain well governed, sober and temperate in all things, amid the manifold and subtle temptations of the 'field.'

Oftener than not when the General Manager looks around among his more promising juniors for the possessor of these qualities, he finds him among the scions of the aristocratic families (for there are these in all British Colonies, and recognised as such), the heads of whom, holding Imperial official appointments, or having received grants in the old colonial days, have failed to follow any of the numerous paths to fortune trodden by their

humbler comrades. In many instances the unsuccessful colonist of this class—often a retired military or naval officer—had anxiously desired to imbue his sons with that mercantile knowledge in which he himself stood confessedly deficient. And the youngsters, shrewdly observant of the weak point in the paternal career, in a large number of instances, have developed an aptitude for business which has regained for the family the status lost in the past. Furthermore, in the occasional adventures of a more or less dangerous nature, inseparable from a transitional state of society, the pioneer financier has more than once exhibited an amount of courage and coolness, including steadiness under fire, which has proved him a worthy descendant of the grizzled veteran who, with clasps and medals for half the battles in the Peninsular War, had never mastered the difference between principal and interest, much less the mystery of debit and credit balances.

Such a fortunate and not unusual combination was Charles—generally known as Charlie Stirling. Him the miners on more than one 'rush' were wont to pronounce emphatically 'a dashed good all-round man, if ever there was one.' Australian born, and in right of such privilege, standing six feet in his stocking soles, strong, lithe, sinewy, a fine horseman, and a sure shot, courteous ever, yet, in business matters, cautious if liberal, Charlie Stirling—one of a large family, in which all the brothers were 'men and gentlemen,' and the sisters handsome and intellectual—was, at that day, perhaps, the most popular and widely trusted bank manager out of Melbourne.

It was with this personage that Lance determined, as he expressed it, 'to waste the morning' in delivering Trevanion and party's gold, watching the same being weighed and the proceeds calculated at the rate of three pounds seventeen shillings and sixpence per ounce, duly paid to the credit of the accounts of Lancelot Trevanion and John Polwarth, respectively.

Then, as he anticipated being absent a week or two—the weather was getting very hot and he thought a change to a cooler climate would be enjoyable—the idea suddenly occurred to him that he might as well leave his brass-bound trunk containing all his English souvenirs and valuables, including letters and papers, in Mr. Stirling's care. 'The tent might be burned down or robbed in his absence,' he bethought himself, 'and Stirling is such a brick that if I came back in ten years instead of ten days, it would be as safe as when I left it. There are not so many men I'd say the same of, but if

there's any man to whom the old boast "you can trust your life to him" applies, that man is Charlie Stirling!"

Between business and pleasure the day was pretty nearly disposed of. His valise had been packed in the morning. The bright bay horse was faring well in the stable of the 'Prospector's Arms' hard by the bank—where all hands went to lunch at Mr. Stirling's invitation. He and his clerk lodged there, as far as meals went, though they took care—as, indeed, was strictly necessary—to sleep at the bank. Mrs. Delf, the smart and proverbially energetic landlady, was instructed to prepare a more than usually *recherché* collation. Champagne ornamented the festive board, of which a local magnate—the opulent squatter of the vicinity—was invited to partake, and all things being fittingly concluded, Lance Trevanion made his adieus.

'Well, good-bye, Stirling!' he said, as he mounted the resolute bay, who arched his neck and gave a playful plunge. 'You'll honour my drafts, I suppose? and, by the bye'—here he drew a rather large envelope from his shooting-coat pocket—'keep this till I return. I had a fit of the blues last week, and scribbled what you'll find inside. Good-bye, Jack'—here he shook hands with Polwarth—'I'll ride by the claim, and say good-bye to Tottie and her mother.'

Half an hour's fairly fast riding brought him to the claim, alongside of which stood the rude canvas shelter which had for so many weeks, even months, filled the place of 'home' for all the party. A true home in the best sense had it been. There had the little party enjoyed, so far, peace, security, warmth and shelter, sound sleep and wholesome meals. Near it was the shaft through whose incursion into Mother Earth's interior the *esse*, to be so much more noble *in posse*, had been reft by hard and honest toil. Even such a dwelling is not quitted wholly without regret.

'Well, good-bye, Mrs. Polwarth!' he cried as he rode up to where that worthy matron—having placed a gigantic loaf in the hot ashes of the recent fire in the open chimney—was washing and cleaning up all her belongings. 'I'm going away for a week.'

'Where to, sir?' she queried, 'if I may make bold to ask.'

'Well, up the country a bit. Ned Lawless wants me to join him at a new diggings, more than a hundred miles from here.'

'Ned Lawless!' the good woman echoed in a tone of voice by no means expressive of satisfaction. 'And what call have you, Mr. Lance, to go making free with the likes of him? I don't like none of the breed—men nor women, if you ask me, and what I've heard is a deal worse than what I've seen. They're most like a lot of gipsies, to my thinking, as a cousin of mother's went away with, and never was heard of no more. Don't have no truck with them, Mr. Trevanion. What 'ud the squire say?'

This last appeal, like many well-meaning deterrents, signally failed of its effect. With a frowning brow, such as Mrs. Polwarth had rarely if ever seen, Lance turned his horse's head, muttering, 'Don't talk nonsense, Mrs. Polwarth; things are very different from Cornwall, and the Lawlesses are my friends. I'll trouble you not to——'

At that moment, when, perhaps, something of the fierce nature of the man—of late subjected to wholesome influences—might have broken forth, a voice was heard saying, 'Kiss Tottie, Lance,' and that rosy little innocent, bright-haired and blue-eyed, like one of Guido's angels, ran forward from the tent almost up to the horse's shoulder. 'Keep away, Tot,' he called out, springing down. 'You little puss, do you want Pendragon to tread on your naughty toes?' The child ran to him, as if secure of welcome, and throwing her arms round his neck, kissed him on brow and eye, with all the loving abandon of childhood. 'Come back soon to Tottie,' she cried. 'Naughty Lance, to go away.'

'Lance come back soon,' he said, and his face softened as he looked at the child, in a way which showed how the finer chords in that mysterious mechanism, the human heart, may be stirred by one touch of simple nature. 'And I'll bring a bag of sugar-plums twice as big as this,' diving into his pocket and throwing towards her a large paper receptacle of sweets. 'Bye-bye, Tottie. Good-bye, sweetheart, good-bye,' he carolled forth, as he struck spurs into his horse, and disappeared round a turn of the winding, tree-girdled forest-road. 'May the Lord keep him from all evil, and from the Adversary,' said Mrs. Polwarth, a sound disciple of Wesley. 'His heart is that good, if his head's a bit wrong set.'

Lunch had been, perhaps, slightly protracted owing to the accompanying champagne, one consequence of which was that after going back to the claim, and saying good-bye to Mrs. Polwarth, not to speak of putting a few of his personal possessions in order at the tent, Lance Trevanion found on reference to the sun's height above the horizon that it was much later in the day than he supposed. It would not be possible without hard riding to make the stage he had proposed. There was nothing to be gained that he knew of by saving a day in the expedition; he therefore decided to stay quietly in the township that night, stable his horse at the hotel stables, retire early, and make a 'daylight start.' An apparently trivial disturbance of his original plan, yet upon such diminutive difference in action what enormous consequences frequently depend.

Day had scarce broken as Lance Trevanion rode down the slope and across the creek flat, which so lately the Lawless encampment had occupied and rendered home-like, where he had passed so many a pleasant hour. Empty and deserted, it wore to him, now, a forlorn and melancholy aspect. The boy had evidently packed the tents and removed the remaining chattels according to instructions. Tessie was, of course, also gone. She had indeed been seen on the Melbourne coach.

The day promised to be perfect. The sun stealing through the eastern woods was slowly irradiating the sombre slumberous landscape. Mists were rising from the lower levels, forming lakelets of white vapour, into which capes and promontories ran, and islands floated. The birds awakened by the sun-rays commenced with note of carol to welcome the golden azure day. The well-bred hackney stepped out gaily, shaking his head and making his curb-chain ring in a fast and easy walk. 'What a glorious climate! What a grand country this is!' thought he. 'How free is every man's life here, untrammelled by the vexatious restraints of a narrow society. The very air is intoxicating. Joyous, indeed, is this life in a new world!'

The journey was much longer, besides being rougher as to wayfaring, than Lance had expected. Following the directions given to him and the straggling tracks which the earlier digging parties had made, he began to approach the celebrated Balooka 'Rush.' He had noticed that he was gradually quitting the open forest country. All suddenly, after toiling up one range after another, he found himself upon a mountain plateau. Beneath

this, and beside a rushing, brawling, snow-fed river, wholly unlike any stream which Lance had yet seen in Australia, lay, far adown a deep glen, the already populous mining camp.

Lance gazed with astonishment at the novel and picturesque landscape. 'Am I in North Wales again?' he could not help asking himself. 'Who would have thought to have seen such a river? Such richly green meadowlands? Such a stupendous glen? And oh!' he thought, as he passed round a cape of volcanic trap-rock which impinged upon the smooth upland, 'what magic and enchantment is this?' Yes, truly, as a loftier line of summit of the great Alpine mountain chain which bisects the continent came into view. So sudden was the surprise, so strangely contrasted with all his preconceived ideas of Australian scenery was the presentment of the wondrous white battlements upreared against a cloudless azure sky, that he was constrained to rein in his horse and gaze, silent and spellbound, at the supernal splendour of the apparition. 'If Estelle were by my side! If she could but behold this entrancing prospect,' he thought. 'She, whom the view of a far blue range of hills, of a peaceful lakelet, would send into ecstasies of admiration! How often had they stood together in the fading summer eve and gazed at the wide and wondrous landscape, as they then deemed it, which extended for some twenty or thirty miles around Wychwood.' Here, with a new world unfolding to his gaze, what crowds of ideas and half-formed projects coursed through the adventurous brain of the gazer. Born of the class and moulded of the race which had produced the immortal voyagers, the unconquered warriors, the dauntless adventurers of Elizabeth's reign, Lance Trevanion needed but the stimulus of his present surroundings to be inspired with lofty and enterprising ideas. His original intention of returning home and settling down to the monotonous and luxurious stagnation of an English country gentleman's life became hateful to him. Far rather, if Estelle would join him here, would he invest in these half-tamed Australian wilds, acquire a principality along with the colossal herds and countless flocks of the typical squatter, which magnates he had seen and heard tell of. Eventually, he would embark with a capital sufficient to buy up half the Duchy, to restore the House of Trevanion to its ancient grandeur, and go down to posterity as *the* Trevanion, the latter-day champion of the race, who had redeemed the once regal name from the mediocrity which had oppressed and disfigured it. But these momentous

plans and enterprises could by no means be carried out without the companionship and solace of 'one sweet spirit to be his minister,' and in that hour of exultation and unfaltering confidence there came to him, like the strain of distant music, the low, sweet tones—the gentle chidings of his queenly Estelle. *She* would, unless he misjudged her, follow him to the ends of the earth. Why, then, should he wait to linger here amid rude surroundings—even ruder society? His business could be quite as well managed in his absence by the faithful Jack Polwarth. How suddenly the idea struck him! Why, he could take his passage in the *Red Jacket*—she was to sail in a fortnight; he had seen the advertisement in the *Port Phillip Patriot* of the day before he left Growlers' Gully—and be in England in six weeks! A month or two in England, a honeymoon trip on the continent, and they could be easily back here before next winter. Miners had done it, even in his experience. The great thing was to make a start. He would not lose time. He had lost too much already. He had half a mind to turn now, and get back as far as the Weather-board Inn he had seen about ten miles distant. What was the use, after all, of seeing this new field, Balooka—or the Lawlesses—which meant Kate? What good could come of it? Perhaps the reverse, indeed. Was there really anything hidden, at which Tessie had clearly hinted? So sharply and clearly did this new view of his plans and prospects strike him. May there not be moments when the voice of a man's guardian-angel sounds with a strangely solemn and distinct warning in his ears, for the moment drowning, as with a harp of no earthly tone, the fiend-voice which ever seeks to lure him to his doom? It would appear so. For even as Lance Trevanion turned his horse's head, and paced slowly, but resolvedly, in the opposite direction by which he had advanced, a woman rode at half-speed from out one of the forest tracks—leading a saddled horse—and reined up with practised ease in the main road, almost beside him. It was Kate Lawless.

For the moment he could scarce believe his eyes. He awoke from his day-dream with a half sense of disloyalty to his promise, as the startled gaze of the girl rested upon him. Their eyes met. In hers he thought he recognised a surprised and doubtful expression, unlike her usual fearless regard. She looked athwart the track adown which she had come, and along the main road into which she had entered. At the first clattering sound of her horse's hoofs Lance had turned his horse's head in the direction of Balooka, so that

she had not the awkward admission to make that he had been retracing his steps.

'Did you meet or pass any one on the road?' she said, as soon as they had interchanged greetings. 'I couldn't hardly make out who you were when I came up. Sure you seen no one?'

'Not a soul, except a Chinaman,' he said; 'but what does it matter? I've met *you*—and you have ever so much more colour than when I saw you last. How becoming it is!' And, in truth, the girl's cheeks showed a heightened hue, whether from emotion or exercise, which he had never observed before during their acquaintance.

For the rest, she looked handsomer than he had ever thought her. Her graceful figure swayed easily in the saddle as she steadied her impatient horse—an animal of high quality, and, unknown to Lance, as was also the thoroughbred she was leading. Her hair had become loosened at the back from the great knot in which it was mostly confined, and hung in bright luxuriance almost to her waist. Her eyes sparkled, her smile seemed the outcome of unaffected pleasure at meeting Lance again. The old witchery asserted itself—old as the birth of history, yet new and freshly fair as the dawning day. For the time Lance felt irresistibly impelled to follow where she might lead, to abide at all hazards in the light of her presence.

Where were now the high resolves—the lofty emprise of a short half-hour since? *Où sont les neiges d'antan?* Gone, gone, and for ever! Was there a low sigh breathed beside him as he rode close by her bridle-rein adown the long incline, in which they could see the diggers' tents in thousands whitening the green valley beneath them?

'So you have come to see us at last,' she said archly. 'I began to think Tessie had frightened you off it. I can't tell what's come to the girl. Billy told me she'd been pitching a lot to you: how bad we was, and all the rest of it.'

'I said I would come, didn't I? and here I am. And a grand country it seems to be. But what are you about, yourself, and whose horse, saddle, and bridle are they? You haven't been "shaking" them? isn't that the word?'

'No fear,' she answered—half shyly, half angrily, as it appeared to him. 'I suppose you think we haven't got a decent horse. I rode out with Johnnie

Kemp—one of our chaps that's working a claim at Woolshed Creek, and brought back his horse for him.'

'Johnnie Kemp knows a good horse when he sees him,' he replied, as he looked at the well-bred animal. 'You'd wonder how they got such a coat up here. And how is Ned? You left Growlers' Gully rather suddenly, don't you think?'

'That was all Ned's doing; he heard about this place being so good, and was afraid to wait. He and the boys have got a first-rate claim here; but he's been buying a lot of horses lately, and talks of starting for Melbourne with a mob next week.'

'That would suit me exactly,' said Lance. 'I should like to make one of the party, for I intend to be in Melbourne some time before the month is out.'

'What makes you in such a hurry to get to Melbourne?' the girl asked, and, as she spoke, she leaned across nearer to him and laid her hand on his horse's mane, holding her bridle-rein and the led horse in her right hand. 'Old Pendragon looks lovely, don't he? You'd better stop and keep me company while Ned's away. I shall be as miserable as a bandicoot, for the chaps are away more than half the time, and this is a roughish place—a deal worse than Growlers'; poor old Growlers'—I always liked the place myself.'

As she spoke, her voice became lower, with a softened, appealing tone in it which strangely stirred the pulses of the listener. The day was nearly done; the solemn summit of the snow range was becoming paler, and yet more pale, as the crimson and gold bars of the sunset sky faded out. There was a hush, almost an unbroken silence in the forest; far beneath, still, the mining camp appeared to be a mimic *corps d'armée*, from which one might expect to encounter sentinel and vedette. The girl's gray eyes were fixed upon him with a pleading, almost childish intensity. It was one of those moments in the life of man—frail and unstable as it is his nature to be—when resolutions, principles, the experience of the past, the hopes of the future are swept away like leaves before the blast, like driftwood on the stream, like the bark upon the ocean when the storm-winds are unchained.

What an Enchantress is the Present; Ill fare the Past and the Absent! be they never so divine of mien, so spotless of soul. Lance Trevanion placed his

hand on the girl's shoulder as she looked up in his face with the smile of victory. 'I shall have to take care of you, Kate, if Ned's going to desert the camp,' he said. 'I suppose he won't be wanting to settle in Melbourne.'

CHAPTER IX

They rode quietly adown the winding track, which the sharpness of the grade rendered necessary, until finally reaching the wide green flat, they halted before the much-vaunted 'rush' of Balooka. The early summer sun's rays in that temperate region had as yet been unable to dim the green lustre of the herbage, or turn to dust the close sward of the river meadows. The contrast was sharply accented in this still dreamy eve between the brilliant tones of the levels and the sombrely-purple shadows of the overhanging mountain, the faintly-burning sunset tints, while through all sounded the rhythmic murmur of the rushing river rippling over slate and granite bars, in the crevices of which were 'pockets' filled with gold. The strange blending of sounds which arose from the camp—an occasional shot, the barking of dogs, the low hum of many voices indistinctly heard—were not devoid in unison of a rude harmony.

'Can anything be more wonderful than this change of scenery?' exclaimed Lance admiringly. 'Who thought there *could* be such a spot in Australia? It is lovelier than a dream!'

'It don't look bad,' assented his companion. 'That's our camp to the right. You can see they've yarded the horses. Ned's in front with his gray horse, and I spot a stranger or two. Perhaps he's sold the mob "to a dealer."'

Touching the led horse with the quince switch which she used as a riding-whip, Kate dashed into a hand-gallop, and, riding at speed across the boggy runlets which trickled from the hills, pulled up short at a cluster of tents somewhat away from the main body of miners. They had been pitched close to the edge of the far-extending flat; nearly opposite was a brush and log stockyard, in which were nearly a hundred horses.

Springing from her horse, though still holding the two bridles in her hand, the girl walked up to her brother, saying as she came, 'It's all right, Ned, Trevanion's come with me. I fell in with him—My God!' she continued in an altered tone, 'what's up?' Then for the first time turning her searching glance on the plainly-dressed man with a slouched felt hat who stood by her

brother's side, she exclaimed, 'Frank Dayrell, by the Lord! Why, I thought you were a hundred miles off. What call have you to be worrying and tracking us down, like a black-hearted bloodhound that you are?'

'Hold your d—d chatter, Kate, can't you?' said her brother, whom she now noticed had handcuffs on, though, with his hands before him, it was not at first apparent. 'Why the devil didn't you keep away when you were away? I thought you and he were gone for good.'

'Johnnie Kemp was only going as far as his claim; you know that,' she answered, with a meaning look, though her cheeks grew pale and her lips became hard and set. 'Now, Sergeant Dayrell, what are you going to do to me—put the bracelets on, eh?'

Then this strange girl burst into a wild fit of laughter, which, though bordering on hysterical seizure, was yet sufficiently natural to pass for her amused acknowledgment of the humour of her situation.

At this moment Lance Trevanion, who had been gazing around with the air of a man surprised out of all ordinary power of expression, dismounted and advanced towards the man-at-arms.

'Sergeant Dayrell,' he said, 'I am quite at a loss to understand these very strange proceedings. Have you a warrant for the arrest of my friend Lawless here? Is he to be punished without trial? And for any rashness to this young lady here be assured that I will hold you accountable.'

The trooper smiled grimly as his eye, cold and contemptuous, met that of the excited speaker.

'Your *friend*, as you call him, is arrested on suspicion of stealing certain horses missing from the Growlers' Gully and the Ballarat field generally, several of which, in that yard, are already identified. *Miss Kate Lawless* will have quite enough to do to clear herself. She knows where that led horse came from. As for you,' and here his voice suddenly became harsh and menacing, 'the horse you ride is a stolen one, and I arrest you on the charge of receiving, well knowing him to be such. Put up your hands.'

Lance Trevanion had come nearer to the sergeant as he spoke, the frown upon his face becoming yet more ominous and dark, while the gloomy fire

in his eyes had become strangely intense. As the sergeant spoke the last word he drew his revolver, and pointing it full at the young man's head advanced upon him. He doubtless calculated upon the surprise which in the case of most criminals, alleged or otherwise, rendered them easy of capture, for he signed to one of the men in plain clothes who stood near to bring the handcuffs ready in his hand. But at that moment Trevanion, springing forward, knocked up the barrel of the revolver, and, catching his enemy fair between the eyes with his left, felled him like a log. He lay for an instant without sense or motion. Before Lance had time, however, to consider what use he should make of his instinctive success the two constables were upon him from either side. He made one frantic struggle, but the odds were too great, and after a short but severe contest the fetters were slipped over his wrists with practised celerity, and the locks being snapped, Lance found himself, for the first time in his life, a fettered captive.

The sergeant rose slowly to his feet and gazed upon the young man, now breathless and held on either side by the myrmidons of the law. His brow was flushed and red, but there was, at present, no mark of disfigurement.

'That was one for you, Dayrell,' said the mocking voice of Kate Lawless, as she stood by her brother, with a jeering smile on her lips. 'My word, Lance Trevanion, you got home then if you never get the chance of another round. Why don't you slip the bracelets, sergeant, and have it out man to man? I'll see fair play. You've a lot of science, we all know, but I'll back Lance for a tenner. What do you say?'

The expression on the sergeant's face had never varied from the cold and fixed expression which it had worn when he made the charge against Lance, but now he relaxed visibly and wore a comparatively cheerful air.

'You are a good straight hitter, Trevanion,' he said, 'and I like a man all the better for being quick with his hands. I didn't count on your showing fight, I must say. But you never can tell what a man will do the first time he's shopped. You'll know more about it before we've done with you.'

'Good God!' said Trevanion, 'you don't surely mean to say that you believe I have had anything to do with stealing horses? I may have been deceived. I begin to suspect that I have, but how many men have bought stolen horses

on the diggings without a thought of anything dishonest? What reason have I either, a man with more money than he knows what to do with?'

'You can tell all that to the Bench,' said the sergeant coldly. 'All I know is that I find you in possession of a stolen horse and the associate of horse-stealers. You must stand your trial like other men.'

Had the mountain suddenly rolled down, filled up the river, and pulverised the camp, Lance's astonishment could not have been more profound. He groaned as he felt the touch of the cold iron, and then sullenly resigned himself to the indignity.

'Now, Miss Tiger-cat,' said this modern presentment of Nemesis, 'you know pretty well where the horse you were riding came from, and where the one you were leading ate his corn a week ago. I must take them with me, but you can have your side-saddle. Whether you're brought into this racket depends on yourself, *you understand me.*' And with a meaning glance the sergeant turned to his men. 'One of you take the prisoners to the lock-up. Shoot either of them if they try to run. The other take these three horses and secure them at the camp stable. I'll remain here till you come back to watch these horses in the yard.'

The little procession moved on. The fettered prisoners—now linked together—the three led horses. The number was swelled by dozens of idle or curious spectators to nearly a hundred before they reached the temporary but massive wooden building which did duty as a gaol; and therein, for the first time in his life, Lance heard a prison key turned, and a prison bolt shot, upon—himself.

Words are vain things, after all. Who can essay to describe—be it ever so faintly traced—the mingled shame and surprise—the agony and the sorrow—the wrath and despair of the man unjustly imprisoned? Think of Lance Trevanion, young, gently nurtured, ignorant, save by hearsay, of crime or its punishment, suddenly captured, subjected to durance vile, in danger of yet infinitely greater shame and more lasting disgrace. Haughty and untamed—so far removed by race and tradition from the meaner crimes from which the lower human tribes have for ages suffered, it was as if one of the legendary demon-lovers of the daughters of men had been ensnared and chained. Ceaselessly did Lance Trevanion rave and fret on that never-to-be-

forgotten night. The dawn found him pale and determined, with set face and drawn lips. Every vestige of youth seemed to have vanished. Years might have rolled on. A careless youth might have been succeeded by the mordant cares of middle age. So changed was every facial line—so fixed the expression which implied settled resentment of an outrage—even more, the thirst for revenge!

When he became—after hours of half-delirious raving—sufficiently calm to reflect upon and realise his position, nothing could be clearer than the explanation. Scales seemed, metaphorically, to have fallen from his eyes. How blind! How imbecile had he been, thus to walk into the trap with his eyes open! *This*, of course, was what the girl Tessie had meant when with such disproportionate earnestness she had warned him not to go on this ill-fated journey. She knew what Ned Lawless's past had been, what any 'business' of his was likely to be; and Kate—double-dyed hypocrite and false-tongued jade that she was—how she had lured him to his doom. Perhaps not exactly that, for, of course, his utter ignorance of their villainy would appear on the trial, if it went so far, and as to buying a stolen horse it was next to impossible to avoid that—numbers of people he knew had done so; and then, what motive could she have for enticing him to Balooka, when she must have known the tremendous risk to which she was exposing him? She, surely, had no reason to wish to injure him? Surely, surely, not after her words, her looks, her changes of voice and expression, all of which he knew so well! But throughout, and above and below all his thoughts, imaginings, and wonderings, came with recurring and regulated distinctness—What a fool I have been, what a fool, what a thrice-sodden idiot and lunatic! *Now* he knew what the friendly warning of Hastings meant. *Now* he understood Mrs. Polwarth's dislike and Jack's blunt disapproval of that intimacy.

It was easily explained. He had had to buy his experience. He had paid dearly for going to that school. And who were, proverbially, the people who would learn at no other? Fools, fools, again fools!

The day had passed without his touching the simple food which had been placed before him. At sundown the constable who came to see that his prisoner was all right for the night, pitying his evident misery, and accepting the non-absorption of food and drink as an incontestable proof of first offence, tried to persuade him to 'take it easy,' as he expressed it.

'You've never been shopped before, that's seen. Well, it's happened to many a good man, and will again. Don't go back on your tucker. You've a long ride before you. We shall start back for Ballarat to-morrow. If you get clear, you're all the better for not losing heart. If you don't, it won't matter one way or the other.'

Lance nodded his head. Speech—to talk as he did when he was *that other man*, the man who was a gentleman, free, proud, stainless, who never needed to lower his eyes or doff his hat to any living being—to him now speech was impossible.

The policeman looked at him, turned again, and shook his head and walked out, locking and bolting the door mechanically.

'Dashed if I can make out that case,' said the trooper to himself. 'Dayrell knows why he arrested that young fellow, I don't. Any child can see he didn't stand in with that crowd. They've had him soft, selling him a cross horse as any man might have knowed was too good for them to own on the square; but if he gives up the horse they can't touch him, I should think. He floored Dayrell though, and that'll go agin him. The sergeant can make it pretty hot for them as he don't fancy.'

Early next morning, half an hour after a pannikin of tea and a plate of meat surmounted by a large wedge of bread had been placed in his cell, Lance Trevanion was taken out and placed upon a horse. He was helped into the saddle, the feat of mounting in handcuffs being rather a difficult one to the inexperienced captive, as any gentleman may discover by tying his hands together and making the attempt. He was permitted to hold the reins by means of a knot at the end, and, with some limitation, to direct the animal's course. But a leading-rein was buckled to the snaffle, by which a mounted trooper led his horse. Ned Lawless, also handcuffed, was similarly accommodated. One trooper rode ahead, one behind. Neither of the prisoners' horses were such that if they had got loose and essayed to escape, would have had much chance by reason of superior speed. They were leg-weary screws, and were, indeed, nearly due for superannuation, the goal of which would be reached when they had carried (and risked the lives of) a few dozen more prisoners. Dayrell remained behind at Balooka. Possibly he had some reason for the delay, but if so he did not disclose it.

What a different return journey was this from the commencement of it, when Lance had set out so light of heart, so joyous of mood, his pockets full of money, his credit unlimited, all the world before him, as the ordinary phrase goes; able to pick and choose, as he supposed, among the world's pleasures and occupations, to select, to examine, to purchase, to refuse, at his pleasure. A good horse under him, the fresh forest breeze in each inhalation exhilarating every pulse as he rode at ease or at headlong speed through the winding forest track. A man, a gentleman, rich, successful, respected, more independent than a king and unlike him, free to come or to go at his own sovereign will and pleasure.

And now, how had a few short hours, a conspiracy, heedless imprudence, and malign fate changed and disfigured him. A prisoner fettered and confined, charged with a grave offence, at the mercy of a severe and unscrupulous officer whom he had been imprudent enough to defy and later on to resist, what might he not expect?

CHAPTER X

Long and deadly wearisome was the journey to Ballarat. Necessarily slow, it became insufferably tedious to impatient men who had been used to take counsel but of their own will and caprice. An early start, a late ending to the dragging day's journey, broken but by a short mid-day halt. Such was the order of Lance's return to Ballarat, until, on the fifth day, they saw once more in the distance the smoke of the thousand camp fires and heard the distant surge-like murmur of the army of the Mine.

Wearied and heart-sick, melancholy and furious by turns, Lance Trevanion almost commenced to doubt of his own identity. When they arrived at the camp he found himself led forward between two troopers and half conducted, half pushed into a cell, the clang of the bolt seeming to intensify the strange unreality of his position. The trooper informed him that his meal would be sent in directly; that he would have to make the best of it with the blankets doubled up for a bed in a corner of the cell until next day. Then he would be brought before the police magistrate, and either discharged or committed, as the case might be.

On the journey Lance had, after his first paroxysm of rage and disgust, abundant leisure to think over and over the facts and probable consequences of his position. He was apparently to be arraigned, if committed for trial, for having in his possession a stolen horse. But could they, could any one prove that he had 'guilty knowledge—that he knew of its being dishonestly come by'? Were not half the horses then sold in Ballarat supposed to be stolen, stolen from the 'Sydney side,' from South Australia, from all parts of Victoria indeed? He had never known any one tried on such a charge, and had, indeed, thought in his ignorance that laxity about the ownership of live stock was one of the customs of the country, rendered indeed almost inevitable from the absence of fencing or natural boundaries between the immense herds and flocks.

He had not, of course, the smallest suspicion that Pendragon, the horse he had so named in memory of the old Cornish legend, which he had bought

from Ned Lawless at a high figure, was other than perfectly 'square,' as Ned would have phrased it. Had he known the truth he would have repudiated the purchase with scorn. But now, to be arrested and marched to gaol with as much formality as if he had taken a horse out of the stable of a neighbouring proprietor in Cornwall, or 'lifted' a flock of black-faced sheep, struck him as truly anomalous and absurd.

Next morning, after a night which came to an end in spite of his forlorn condition, he found himself making one of a large class of *détenues* who, for one offence or another, were to come up for judgment.

The ordinary charge-sheet of a goldfield is fairly filled as a rule, and at this particular period of the existence of Ballarat as a town a large proportion of criminals of all shades and classes had managed to make it their temporary home. Expirees from Tasmania, where the transportation system had only lately come to an end, had swelled the proportion of habitual criminals. These were daring and desperate men; an inexorable penal system had partially controlled, but failed altogether to reform them. So frequent had been the assaults upon life and property with which this class was credited, that an official of exceptional firmness and experience had been specially selected for the responsible post of police magistrate of Ballarat.

This gentleman, Mr. M'Alpine, generally familiarly and widely known as 'Launceston Mac,' was credited with using a short and trenchant way with criminals. Presumably a large proportion of his *clientèle* had been at some time or other before him in Tasmania. He had, it was conceded, a wonderful memory for faces, as also for 'accidents and offences.' It was asserted for him that he never met a man under penal circumstances that he could not recognise if encountered twenty years afterwards. It was only necessary in the case of doubtful identity to direct the attendant police to 'turn him round,' which formula was almost invariably followed by the remark, 'Seen you before, my man, on the other side, your name is so-and-so. Six months' imprisonment with hard labour.'

Doubtless in nineteen cases out of twenty the inference was correct, and the punishment just. But there was a probability that occasionally the worthy justice was mistaken. Among the hordes of criminals with which he had

been officially connected, small wonder if an occasional lapse of memory took place, and then so much the worse for the accused.

But, as in all comprehensive schemes of legislative repression the individual suffers for the general advantage, so the occasional misdirections of justice, in that era of widespread license which might so easily degenerate into lawlessness, were but lightly regarded as incident to a period of martial law; and no one gainsaid the fact that the practised readiness, prompt decision, and stern resolve which Mr. M'Alpine brought to bear upon the thousands of cases were of priceless advantage to the body politic and all law-abiding citizens.

It was this Rhadamanthus, before whom so many an evil-doer trembled, that Lance Trevanion found himself compelled to confront. He knew him, of course, by fame and report, as who did not?—but had never met him, as it happened, personally. He did not doubt, however, but that a few words of explanation would suffice to set him free. It was therefore with a sense of awakening hope that he obeyed the summons to follow one of the constables to the court-house. This was a large but not imposing building, composed of weather-boards, rude, indeed, and deficient as to architectural proportions. However, it was a great improvement upon the large tent which did duty as a hall of justice in the primitive days of the gold outbreak.

Erect upon the bench, regarding the herd of prisoners, as one by one they came before him, with a stern countenance and searching glance, sat Mr. M'Alpine. His eyes had that fixed and penetrating expression generally acquired by men who have had long experience of criminals. His face seemed to say to such: 'I can identify you, if necessary—I know every thought of your vile heart—every deed of your ruffian life. Don't dare to *think* of deceiving *me* or it will be worse for you—plead guilty if you are wise, and don't insult the court by a defence!'

Long and so sombre had been Mr. M'Alpine's experiences of every kind of iniquity, of evasion, if not defiance of the law, that it is doubtful if he considered any person ever brought before him to be perfectly innocent. Certainly not, unless conclusively proved by competent witnesses. The *onus probandi* lay with the accused. It is asserted by outsiders that all police officials in time acquire a tinge of the hunter instinct, which impels them to

pursue, and, if possible, run down every species of quarry once started, irrespective of guilt. But this, doubtless, is an invention of the enemy.

After the squad of 'drunks and disorderlies' had been dealt with, the names Launcelot Trevanion and Edward Lawless were called; 'the prisoners' were ordered to stand up.

A novel experience, truly, for the heir of Wychwood. The court was crowded. It had somehow leaked out that Trevanion, of Number Six, Growlers', had been 'run in' by Sergeant Dayrell for horse-stealing. The news had not yet got as far as the Gully proper—the time not having allowed. But every 'golden-hole man' was pretty well known on the 'field,' and Lance was a prominent personage, by repute, in the mining community.

'What the blazes has a chap like that any call to shake a horse for—that's what I want to know?' inquires a huge, blackbearded digger. 'Why, they say he's worth forty or fifty thousand, if he's worth a penny, and the claim washing-up better and better every week?'

'He never stole no moke,' returned his companion decisively, 'no more than you or me prigged the post-office clock, that's just been a-striking! He's a free-handed chap with his money, and that soft that he don't know a cross cove from a straight 'un. He's been had by Ned Lawless and his crowd. That's about the size of it.'

'They can't shop him for that, though,' said the first man, contemplatively filling his pipe. 'They say he was riding a crooked horse when he was took. Kate Lawless was with him on another. The yard was half-full of horses the Lawlesses had worked from hereabouts. It looked ugly, didn't it?'

'Looked ugly be blowed!' said his more logical and experienced friend. 'Things is getting pretty cronk if a chap can't ride alongside a pretty gal without wanting to see a receipt for the nag she's on! I believe it's a plant of that beggar Dayrell's. He wants a big case, and that poor young chap may have to suffer for it.'

'Dayrell wouldn't do a thing like that, surely,' exclaimed the first speaker in tones of amazement. 'Why, it's as bad as murder, I call it. What's to become of a swell chap like him, if he's lagged and sent to the hulks?'

'There's devilish few things as Dayrell *wouldn't* do, it's my opinion, if he thought he'd get a step by it,' replied his friend. 'But this cove's friends'll make a fight for it. They'll have law. They've got money, and so has he, of course. They'll have a lawyer from Melbourne.'

It did not appear at first as if there was much danger to be apprehended as far as Lance was concerned. Directly his case was called, he stood up and faced the Bench and the expectant crowd with a stern expression—half of defiance, half of contempt.

'May I say a few words in my own defence?' he commenced. 'I am certain that a short explanation would convince the Bench that any charge such as I am called upon to answer is ludicrous in the extreme.'

'We must first have the evidence of the apprehending constable,' said the police magistrate decisively, 'after which the Bench will hear anything you have to say.'

'But, your worship, I wish to speak a few words before.'

'After the evidence,' said the P.M. sternly. 'Swear Sergeant Dayrell.'

That official strode forward, stepping into the vertical pew which is placed for the apparent *in-convenience* of witnesses, by adding to their natural nervousness and trepidation the discomfort of a cramped wearisome posture. To him, at least, it made no difference. Cool and collected, he made his statement with practised ease and deliberation, as if reading an oft-recited passage out of a well-known volume, watching the pen of the clerk of the Bench, so as to permit that official to commit to writing correctly his oft-fateful words. They were as follows—

'My name is Francis Dayrell, senior-sergeant of police for the colony of Victoria, at present stationed at Growlers' Gully. I know the prisoners before the court. On Friday the 20th September last, from information received, I proceeded to a digging known as Balooka, situated in New South Wales, and distant about one hundred and seventy miles from Ballarat. I arrived on Monday evening the 23d, and proceeded to the camp of the prisoner Edward Lawless, whom I arrested by virtue of a warrant, which I produce. It is signed by a magistrate of the territory. In a yard close to the prisoner's camp I found a large number of horses, several of which I at once identified

as being stolen from miners at Ballarat, or in the vicinity. Others appeared to have brands resembling those of squatters in the neighbourhood. The prisoner Lawless was unable to account for his possession of these, or to produce receipts. He was about to leave for Melbourne, I was informed, in order to sell the whole mob. I arrested him and his cousin Daniel, and charged him with stealing the horse named in the warrant. While he was in custody I observed the other prisoner, Launcelot Trevanion by name, riding towards the camp in company with a young woman. She was riding one horse, and leading another. When he came up I identified both the horse he was riding and that of his companion as stolen horses, both of which have been advertised in the *Police Gazette*. I produce the *Gazette* wherein the brand and description correspond. I charged the prisoner with receiving a certain bay horse branded H. J., well knowing him to be stolen, and arrested him. I then conveyed the prisoners to the gaol at Ballarat East, where I confined them.'

This evidence—which even Lance admitted to himself placed matters in a more unfavourable light than he could have supposed possible—being read over, Mr. M'Alpine said, 'Have you any question to ask the witness?'

'Yes, your worship,' answered Lance, bringing out the last two words with apparent difficulty.

'You are aware that I had the bay horse in my possession for some weeks at Growlers', and rode him openly there?'

'Yes, certainly.'

'Then why did you not arrest me there?'

'I had my reasons, one of which was that I had not received an answer from Mr. Jeffreys—the breeder of the horse.'

'Was that with reference to the hundred pound reward offered on conviction of any one proved to have stolen one of his horses?'

'No!'

'That reward did not actuate you in arresting me on a charge of which you must know that I am innocent, if you have watched my conduct at all?'

'I *have* watched your conduct, and know you to be an habitual associate of the Lawlesses, who, as a family, are known to be among the most clever horse and cattle stealers in New South Wales. I have known you to make a practice of gambling with them for large sums. It has been stated to me that you have lost as much as five hundred pounds to them at a sitting.'

'Did you not know that I had come straight from Ballarat when I rode up to the camp at Balooka?'

'I am not in a position to state where you came from. I saw you ride up with Kate Lawless, in whose company I have repeatedly seen you. On this occasion you and she were in possession of three horses—all stolen property—the one she rode, the one she led, and the horse you rode.'

'How could I know that the horse I bought from Ned Lawless was stolen? He did not know, I believe, or he would not have sold it to me, I am sure.'

'That you will have to explain to the court,' returned the sergeant, with pitying contempt.

'Good God! Did I look like a guilty man when you arrested me?' exclaimed Lance, in a tone which had an echo of despair as plank by plank he felt his defence foundering, as it were, at every cold and sinister answer of this relentless foe.

'You made a most violent resistance,' replied the sergeant calmly, 'of which my face still bears the mark. I don't know whether that is to be taken as a proof of your innocence.'

'I appeal to your worship,' exclaimed the unfortunate accused as a nameless terror stole over him—such as Quentin Durward may have experienced when Tristan L'Hermite and Petit André were about to attach him to the fatal tree—lest, ignorant of all legal forms, he should be tried and condemned before he had a chance of exculpation. 'I appeal to your worship to permit my case to be adjourned, in order that I may bring witnesses who can prove my innocence, and also that I may obtain legal assistance. Surely you cannot sit there and see an innocent man wrongfully condemned. Though a miner, I am a gentleman of good, indeed ancient family; an act such as I have been accused of is, therefore, impossible to me. For God's sake, permit me an adjournment!'

The magistrate's face was impassive. His nature was probably not less compassionate than that of other men. But long familiarity with crime, long official acquaintance with every variety of villainy, had indurated his feelings to such an extent that but little trust in human nature, as ordinarily displayed within the precincts of his court, had survived. No doubt this young fellow looked and spoke like an innocent man; but how many criminals had looked and spoken likewise? The wholesale stealing of miners' and squatters' horses—now worth from fifty to a hundred pounds each in the Melbourne market—had reached such a pitch that the miners had declared their intention to shoot or lynch any future 'horse thieves,' as the American miners called them, if justice was not done them by the Government. Mr. M'Alpine had this in his mind at the time, and, with all proper respect for the rules of evidence, had come fully to the conclusion that it was high time that an exemplary sentence should be passed upon the very next culprit caught 'red-handed'; he therefore made no reply to the passionate appeal of the unlucky prisoner.

'Read over the evidence,' he said, in a cold voice, to the clerk of the court.

That official with colourless accuracy read out Dayrell's damaging statement on oath, as well as Lance's questions thereupon, which, as generally happens to the accused who essays his own defence, had injured rather than aided his case.

'Do you wish to ask the witness any other question?' he inquired, in a tone which would have led a bystander to think that the process was a pleasant interchange of ideas between gentlemen, which any prisoner might enjoy.

'No; certainly not, but I should like to say——'

'I understood you to apply for an adjournment, for the purpose of calling witnesses and employing a legal practitioner?'

'Certainly I did, but I wish——'

'The prisoner stands remanded to this day week at 10 A.M. Bail refused. It is understood that any authorised person is not to be denied access to him. The court stands adjourned till ten o'clock to-morrow morning.'

As this closed proceedings, the police magistrate walked slowly forth, leaving Lance to be re-conducted to prison, with, however, permission to see all friends and legal advisers.

Before the proceedings closed the sergeant had made a formal request for the adjournment for a week of the case against Edward Lawless, assigning as a reason that he was not fully prepared with the necessary evidence. This had been assented to: both prisoners were then marched back to gaol, and being locked up in separate cells, were left to their reflections.

From the sound of whistling and even singing which proceeded from the apartment occupied by Mr. Edward Lawless, the penalty of imprisonment did not appear to fall heavily upon his elastic spirits: the iron had not entered into his soul in any marked degree. But far otherwise was it with Lance Trevanion. He had buoyed himself up with the idea that he would only need to make a short explanation to the magistrate, and that he would be immediately set at liberty. In this expectation he had been bitterly disappointed. So far from his release being an easy matter, it seemed as if a fresh element of doubt, a dismal dread, undefined yet ominous, had been introduced into the affair. Would he perhaps *really* be convicted and sentenced? The idea was maddening, but innocent persons had been found guilty before, if some of the tales which he had heard were not untrue. Why not again? This was a strange country. He had been deceived and thoroughly duped, as he could not help confessing to himself. Might he not find himself yet more fatally mistaken in all his conclusions?

Seated on the floor of his cell, he rapidly fell into a state of semi-stupor as these sombre imaginings coursed through his brain, sometimes slowly and with saddest procession, at other times with almost delirious haste. Was he indeed Lance Trevanion, the free, fearless traveller of a week since? It surely could not be! What was he to do next? Life or liberty, which came to the same thing, was surely worth fighting for. He must have legal assistance if it were possible. There was hardly a lawyer in Ballarat that was *practising his profession*. A sufficient number there abode doubtless, but they were all in the year 1852 engaged in mining. After a while the ebb of adventure set in, on which a return took place to nearly all the professions. But in the spring of 1852 the golden tide was at flood-mark. It was hard to find any man in the place or position which he had formerly held.

From this mood of doubt and despair Trevanion was aroused by steps in the corridor and the opening of the door of the cell. He had but scant time to rise and stand erect when Hastings and Jack Polwarth entered—the latter with an expression of alarm and astonishment that but for his evident sincerity would have been ludicrous.

'Why, Mr. Lance—Mr. Trevanion,' cried Jack, in tones of subdued horror, 'whatever has come to ye, that they have had the face to do this? Can they stand by it, think ye, Mr. Hastings? Locking up a gentleman like Mr. Lance here and makin' oot as he's stolen a trumpery 'oss, him as wouldn't do the like for a Black Forest full of 'em. It's fair murder and worse—all the gully's talking on it, and I could fetch a hundred Cousin Jacks and Devon lads as'lld pull the place about their ears if you'd but say the word, Mr. Lance?'

'I'm afraid that would do no good, Jack,' said Hastings, whose concern, not so freely expressed, was as deep and sincere as that of Lance's faithful partner. 'I see no reason though, Trevanion, why you shouldn't be out in a week. However, all this is deucedly annoying and vexatious. Still we must be patient. Queer things happen on a goldfield. You remember my plight when first we made acquaintance?'

'Annoying!' replied Trevanion, slowly turning his frowning face, in which the lurid passion-light of his gloomy eyes had commenced to burn. 'Why in the world should I have been selected by Providence for this damnable injustice? I feel already as if I was disgraced irrevocably. How can I ever show my face among my equals again after having been arrested, handcuffed, charged with felony, locked up like a criminal? Great God! when I think of it all I wonder why I don't go mad!'

'It's no use getting excited over it,' said Hastings. 'The thing is to *do* all that we can, not to think or talk about it over-much. Stirling will be here to-morrow. He could not come to-day, but will leave his bank before the stars are out of the sky to-morrow, and will be here by breakfast-time. He could not come to-day because of business. We will see about your witnesses and manage to get a lawyer up from Melbourne in time. Keep up your spirits. There are dozens of men, and women too, that can prove an *alibi*. If my claim was as good as yours I'd swap places cheerfully with you.'

'Don't be too sure of that,' returned Lance with a sardonic smile. 'I have a kind of presentiment that evil will come of this business. Why, I know not, but still the feeling haunts me. Well, Jack, we never thought of this on board the *Red Jacket* when we were so jolly, eh?'

'Just to think of it,' exclaimed Jack, with the tears running down his honest face. 'And never a Trevanion in a prison before since that king—I can't mind his name—shut up one of them in the old Tower of London and cut his head off. But that was dying like a gentleman—that ever I should have lived to see this! I could never show my face at Wychwood or St. Austell's again.'

'Why, Jack, you're about as foolish as your—master, I was nearly saying—as your mate there, at any rate. Why, Lance is not even committed for trial. All sorts of things may happen in the meantime. *Must* happen; *must* happen. Now, we must say good-bye, Lance. I'll send you in some books. I don't see many about. For God's sake, keep up your spirits.'

The time fixed for the remand having expired, Lance and his fellow-prisoner, Ned Lawless, were brought up for their preliminary trial. All necessary arrangements had been completed; no further reason existed for delay either on the part of the Crown or of the prisoners.

The sergeant was quite ready with his witnesses; Stirling and Hastings had secured the services of the celebrated Mr. England, the great criminal lawyer, about whose capacity the general miners' opinion, as expressed on the occasion, ran thus: 'Well, if England don't get him off, nobody will.'

These important preliminaries having been settled, the crowd waited with impatience mingled with a certain satisfaction that so important a trial was really to come off and not to be strangled in its infancy, like many promising legal melodramas to which they had looked forward. There would be no mistake about this one at any rate. Sergeant Dayrell had come down in full uniform from the camp at an early hour. The show would be on soon after the clock struck ten.

At that hour punctually Mr. M'Alpine took his seat upon the bench. In five minutes the court was crowded. After the ordinary business two men were marched in with a policeman on either side and placed in the dock. They

were Lance Trevanion and Edward Lawless. The latter looked calmly around at the crowd as if there was no particular occasion for seriousness of mien. His mental attitude was easily comprehended by those of his compatriots who were present, whatever might be thought by the emigrant miners who were so visibly in the majority. Ned had played for a heavy stake—he had staked his liberty on the hazard and lost. If he had won there was a matter of two or three thousand pounds—indeed more—in the pool. That would have set him up in a decent-sized cattle station capable of indefinite development. It was a fair risk. He had taken it knowingly and with his eyes open. Now that he had lost, as the cards had been against him, there was nothing for it but to pay up. It would be three years' gaol, or perhaps five at the outside.

When Lance Trevanion stood up in the dock, confronting squarely the assembled crowd and the Bench, an almost audible shudder, accompanied by a species of gasping sigh, passed through the court. Quietly but correctly dressed, access having been possible to his raiment at Growlers', he looked thoroughly a gentleman, a man of race and gentle nurture. As he stood, calm and impassive, with a steadfast unflinching gaze, the most suspicious person, however permeated with universal distrust, could not have connected him with the meaner crimes. In a half-smile, haughty and grimly humorous, his features relaxed for a moment as he met the sorrowful gaze of Mrs. Polwarth. Then he drew himself up to his full height and awaited the first act of the drama in which he played so important a part.

The curtain was not long in rising. The clerk of the court stood up and read out the evidence of Senior-Sergeant Dayrell, taken at the first hearing of the case, as also the order of adjournment signed by the police magistrate. A stoutish dark man, with a mobile face and direct clear glance, stood up and said, 'May it please your honour, I beg pardon, your worship, I appear for the prisoner, Launcelot Trevanion.'

'By all means, pleased to hear it, Mr. England. Sergeant Dayrell, your first witness.'

'Call Herbert Jeffreys,' and in answer to the stentorian call outside of the court a gentlemanlike man with a bronzed countenance and of quiet demeanour stepped into the witness-box. On being sworn, he deposed as

follows: 'My name is Herbert Jeffreys, I am a land-holder and grazier, residing at Restdown, which is distant about one hundred and twenty miles from Ballarat. I have seen a bright bay horse with a star, outside of the court, branded "H. J.," which is our station brand, at least for all horses and cattle running on the Campaspe. I swear to the horse as my property. He has been missing for nearly twelve months. I am perfectly certain it is the horse, and cannot be mistaken. I notice a slight cut inside of the hock, which was the result of an accident. I never sold him or gave prisoner or any other person authority to take him. He is a valuable animal, worth between eighty and a hundred pounds, as prices go. We have had a large number of horses stolen during the past year.'

Cross-examined by Mr. England: 'We had more than two hundred horses before the diggings. We have offered a hundred pounds reward for the conviction of any person found stealing our horses or cattle. It was a measure of self-defence. We should soon not have had one left. Do not consider it an inducement to the police to make up imaginary cases. If people do not steal our horses the reward is a dead-letter. If they do, they deserve punishment. I never saw the prisoner Trevanion before. If I had, I should probably not have been here to-day.' (Asked why.) 'Because any one can see that he is a gentleman, and doubtless unused to this kind of work. I have no doubt that he purchased my horse without suspicion that he had been stolen. Can't say whether or not the horse has been in the pound since I saw him last.'

Trevanion looked over at the witness as he spoke thus with a frank expression of gratitude, while Mr. Jeffreys, having descended from the witness-box and signed his deposition, sat down in a chair provided for him to watch the trial.

The next witness called was Carl Stockenstrom. 'My name—ja wohl—I am a dikker from Palooga. Haf been dere all der wege more 'an dree months. On Thursday neuntzehn Zepdember, I saw de brisoner at the Gemp's Greek, ten mile from der Palooga. He was ride mit de fräulein Lawless. He ride not the horse outside de court. It was anoder. They was having one fine lark. She can ride—she ride like nodings dat I never shall see. I swear positif to de prisoner, his face, his figure, above all dings to his eyes.'

Cross-examined by Mr. England: 'I have lost a good horse myself. I did not advertise him in the local baper. Many of my mates lost theirs. I did not think it worth while. The two were driving some horses when I see dem. I saw two of them in Ned Lawless's yard, and was told they was sdolen. Police dook dem away mit de oders anyways.'

'Call Hiram Edwards.'

A gaunt American miner stalked forward, and with characteristic self-possession stepped into the witness-box.

'Diggin' at Balooka? Yes, sir; followed the first rush. Heard talk of hoss-thieves among the boys; advised to hang the first man caught riding a wrong horse, just to skeer other critters. Worked well in San Francisco, that simple expedient. Do not know prisoner personally, but saw a man durned like him on Friday, 20th September last, in company with that skunk, Ned Lawless, trading horses.

'Lost no horse? No, sir; know too much to keep one on a placer workin'. Sold mine same day I struck the gulch.'

Cross-examined by Mr. England: 'Hev a sorter dislike to swear positively to prisoner as having been in company with Lawless on that Friday. To the best of my belief he was the man. (Has the prisoner any objection to look at me for a moment.)' Then Lance turned suddenly and looked at the witness with a determined and sternly interrogatory expression. The witness changed front noticeably. 'I now swear to the prisoner as the man I saw with Lawless on Friday; positively and plum-centre. Know his eyes anywhere. First day I saw him was the Wednesday before. He and Lawless both carried stock-whips.'

Senior-Constable Donnellan deposed: 'I am a mounted trooper, at present stationed at Balooka. I know the prisoner, and have been observing him closely at Balooka for the last three weeks. Frequently saw him in company with Edward Lawless and his sister. As they were suspicious characters, or, at any rate, had a name for finding horses that were not lost, I thought it my duty to watch them.

'On the morning of Wednesday, 18th instant, I saw Lawless and prisoner ride out early from the former's camp; they went for some miles up a gully,

and on reaching the top, where there is a small plain, I saw two men meet them with a small lot (ten, I believe) of riding horses. They drove them to the camp and put them into a yard. I have ascertained that nearly all of them were stolen, and have since been identified by miners. Saw prisoner several times with Kate Lawless at Balooka; am certain that prisoner is the same man. Sent a messenger to Ballarat express to communicate with Sergeant Dayrell, who came over and arrested both prisoners.'

By Mr. England: 'Took particular notice of prisoner's appearance—prisoner is tall and broad-shouldered, with dark curly hair and dark complexion. Has no ill-will against prisoner, Trevanion. If it is sworn that prisoner was in another place, near Ballarat, at the time mentioned by me, would not believe it. It was impossible, unless a man could be in two places at once. Never spoke to prisoner at Balooka but once; noticed that he had remarkable eyes. Was at the Lawlesses' camp when he rode up with Kate Lawless; had seen him leave Balooka with her early that morning. He was riding the horse prisoner led back. Can't account for prisoner returning with a different horse and saddle, unless he "shook" it. Beg the Bench's pardon—meant he may have picked it up on the road. Thought prisoner looked slightly different, and was differently dressed. Spoke differently, a little, not much. Attributed this to seeing the Lawlesses, Ned and Dan, in the hands of the police when he returned; and was dressed differently from what he had on in the morning; had several times noticed him change his dress more than once in a day. Would swear to the prisoner; would know him by his eyes and general appearance anywhere.'

Several other witnesses—miners, stock-riders, and small farmers—were examined. They swore to ownership of various horses found in Ned Lawless's 'mob' or drove, now in charge of the police.

'Is that your case, sergeant?' inquired the police magistrate, when the last of these witnesses had, at some personal inconvenience, signed the depositions. 'I have but one other witness, your worship,' answered Dayrell with an air of great deference, 'rather a material one, however. Call Catharine Lawless.'

From whatever cause, the utterance of this witness's name produced a profound and universal sensation in the crowded court. Every miner knew

that the young Englishman had foolishly, as most people thought,—very naturally, in the opinion of others,—admired the girl, and made no secret of his feelings. For what reason was she now to be called as a witness for the Crown? Had she turned traitress? Would she betray her sweetheart in the hour of his peril? Far from immaculate, vain, violent, and reckless as she was, the girls of her class and country were proverbially as true as steel to their lovers—clinging to them more closely in adversity, ready even to stand by them on the scaffold if need were.

CHAPTER XI

'Catharine Lawless!' Thrice was her name called outside of the court, as by law directed. As the echo of the last summons died away, a tall woman closely veiled issued from a side door and walked composedly over to the witness-box. Every eye was directed towards her; no sound was audible, save some involuntary exclamation as the most sensational character of the *corps dramatique* appeared on the stage. Quietly and becomingly dressed, *bien gantée* and in all respects accurately finished as to each personal detail, she moved forward with an air of haughty indifference to her surroundings, including the court, prisoners, and spectators. These last might have deemed that she was some interesting stranger, an eye-witness by chance of deeds concerning which she was compelled to testify.

'Swear the witness,' said the magistrate, as the book was placed in her right hand, 'and will she be pleased to remove her veil?'

Thus admonished, the girl threw back her veil with a half-petulant gesture, and touching the sacred book lightly with her lips, as the solemn formula was recited, gazed around the court with an air of insouciance apparently as unstudied and natural as if she had come direct from Arcadia.

For one moment her clear gray eyes, unheeding every other creature in the crowd of spectators, rested on the two men in the dock. Those who knew her—and there were many such in the congregation—looked eagerly for some softened expression, some sign of regret, as might any woman wear when beholding her lover and her brother in the place set apart for felons, who knew them to be charged with a serious offence, and liable to years of degrading imprisonment, from which, perchance, a word from her lips might save one—might even alleviate their lot—so great is the sympathy felt for the power exercised by a handsome woman, even in the temple of justice.

Those who thus reasoned were doomed to disappointment. Her gaze passed coldly over her brother's lounging form and tranquil features, but when she encountered the stern interrogation which was written on the frowning brow

and set lips of Lance Trevanion, she drew back for an instant, and then slightly raising her head and drawing herself up, an action which displayed to perfection the symmetrical moulding of her figure, returned his regard with a glance as fierce and unfaltering as his own. For one moment only did the mental duel appear to last, for one moment was each antagonistic electric current propelled along the mutual course. Then, with an impatient gesture, she turned half round and awaited the official questioning.

The oppressive silence which up to that moment had pervaded the court ceased, as by a broken spell, and comments were audible to those immediately around the speaker, more than one of which went as follows—

'She's going to swear up, you bet your life. Never saw a woman look like her that didn't. Sooner have her on my side than against me, that's all *I* know.'

'Dayrell's been working a point to set her against him, that's where he'll score the odd trick, you'll see,' observed his equally philosophic friend. 'She's been dead nuts on that new chum, that's why she's thirsting for his blood now. I think I knows 'em.'

'What is your name?' commenced the sergeant, who in the preliminary examination was, as the police officer in charge of the case, permitted to officiate in Courts of Petty Sessions as Acting Crown Prosecutor. 'Catharine Lawless.' This answer was given in a low but distinct voice. 'You are the sister of Edward Lawless, one of the prisoners now before the Court; and you have been residing with him at Balooka, and recently at Growlers' Gully?'

'Yes. We have all been living with him since father died.'

'Just so. And you know the other prisoner, Launcelot Trevanion?' Here the sergeant feigned to examine his notebook, ostensibly to refresh his memory, but really in order to afford witness and prisoner opportunity to look at each other. Also that the court, the spectators, the magistrate, and lastly he, Francis Dayrell, might appreciate their mutual discomfort.

This Mephistophelian design was set at naught by the self-possession of the witness, who after one glance, brief as the jagged lightning and as scathing, answered deliberately—'Yes, I do know Lance Trevanion, *I know him well.*'

There was not much in this apparently harmless Saxon sentence, chiefly monosyllabic, but those who were close enough to hear the last words thrilled for long days after as they recalled the concentrated venom with which they were saturated.

'When you say you know the prisoner, Trevanion, well,' queried Dayrell, with an air of respectful interest, 'you mean, I suppose, that he was a great friend of your brothers, and of the family generally. Your brother Dan, your cousin Harry, and his sister Tessie—you are rather a large family, I believe—were all friendly towards him, as he to you?'

'Yes; very friendly; we all thought no end of him.'

'Of course, of course; most natural on your part and his. He was often at your camp, at Growlers'. Used to play a game or two of cards sometimes with your brothers—a little euchre—eh?'

'Yes; I believe so.'

'You believe so? Don't you know it, Miss Lawless? Were not the stakes rather heavy sometimes?'

'They may have been. I never played for money. The boys may have had a gamble now and then.'

'Really, your worship,' interposed Mr. England, 'I can't see what these trivialities have to do with the case. The witness is an extremely prepossessing young woman—outwardly. We admit at once that she exercised a certain fascination over my client. Why shouldn't she? *Nemo omnibus horis sapit, etc.*, particularly on the diggings. But the sergeant, apparently, will proceed to ask her if she ever sewed on a button for my client, and I appeal to your worship, if we are to sit here all day and listen to this mode of examination?'

'I must ask your worship's permission to conduct the case in my own way,' returned the sergeant. 'I guarantee that these apparently trivial details are of material importance to the case.'

'You may proceed, Sergeant Dayrell. I trust to you not to encumber the depositions with needless details.'

'I shall bear in mind your worship's directions; and now, Miss Lawless, please to attend to me, and be careful in answering the next question.' Here he fixed his eyes meaningly upon her countenance.

'You remember the evening of Monday, the 23d of this month, when I saw you ride into your brother's camp at Balooka, in company with the prisoner, Trevanion?'

'Yes; I do.'

'Had he been with you and Ned at Balooka for some time previously?'

There was a pause after the sergeant's measured and distinct words sounded through the court, and the witness trembled slightly when they first reached her ear. Then she raised her head, looked full at the two prisoners in the dock, and answered—

'Yes; he had.'

As the words left her lips, the face of Lance Trevanion worked like that of a man about to fall down in a fit. His eyes blazed with wrath and unrestrained passion. Wonder and scorn, anger and despair, struggled together in every feature, as if in a stage of demoniac possession. Placing his strong hand upon the rail of the dock, he shook the stout structure until it swayed and rattled again.

'You lie, traitress!' he said, in vibrating tones. 'I never saw Balooka before that evening, and you know it. Your words—like yourself—are false as hell!'

'I submit, your worship, that the witness must be protected,' Dayrell made haste to interpose. 'If she is to be intimidated, I cannot guarantee her most important evidence.'

A curious phase of human nature is it,—well worthy of the attention of physiologists, but none the less known to those in the habit of attending criminal courts,—that you may with tolerable certainty detect a man deliberately swearing falsely when giving evidence on oath. Villain as he may be,—scoundrel of the deepest dye,—even *he* does not altogether enjoy the sensation of, in cold blood, committing perjury before a crowd of

comrades, every one of whom knows that he is forswearing himself. Thus feeling, there is generally some token of uneasiness or shamefacedness by which the experienced magistrate or judge, and most certainly his friends and fellows, can perceive his perjury.

But, strange and mysterious as it may seem, *it is not so* in the case of a female witness. She may be deposing to the truth of the most atrocious falsehood, to what the greater part of her hearers, as well as herself, *know to be false*, and not the quiver of an eyelid nor the tremor of a muscle reveals that she has called upon the Supreme Being to witness her deliberate betrayal of the truth. For all that can be discerned in the countenance—in her mien and manner she may be clinging to the truth with the constancy of a martyr.

There was a murmur in the court from more than one voice as Lance Trevanion's heart-felt exclamation burst forth. This being promptly suppressed, the magistrate, with a more sympathetic tone of voice than he had as yet used, 'requested the prisoner not to injure his case by intemperate language. Possibly the outburst of conscious innocence, the Bench admitted, but he would warn him, in his own interest, to reserve his defence till the evidence was completed.' Lance apparently saw the force of his argument, for after one withering glance at the witness-box, he bowed his head without speaking, and resigned himself apparently to listen unmoved to all further statements.

'Did you—now consider carefully and *make no mistake*'—here the sergeant fixed his eye sternly, even menacingly, upon the girl, who stood calm and resolved before him—'did you know of your own knowledge that the prisoner, Trevanion, met your brother Ned at the Swampy Plain tableland and assisted him to drive certain horses into the yard?'

The girl looked again across to the figures in the dock, neither of whom apparently saw her, as they, by accident or otherwise, had averted their faces. Then a mysterious darksome look of pride and revenge came over Kate Lawless's face as she coolly scrutinised them both. Slowly she answered—

'Yes; I was at home when he and Ned came in from Swampy Plains with ten horses and put them into the yard.'

'You swear that?'

'Yes,' looking her interlocutor full in the face. 'Yes, I swear that.'

Her face as she pronounced the words grew fixed and more intense of expression. She changed colour, then gasped for breath, staggered, and before any man near her was quick enough to intercept her swaying form, fell, as one dead, her full length upon the floor.

'The strain has been too great for her, she has fainted,' said the sergeant. 'The witness is unable to bear further cross-examination at present. Your worship must see that. I pray for a remand of the prisoners, and will undertake that the witness appears to-morrow at ten o'clock and submits herself to the cross-examination.'

'No doubt,' said the magistrate, 'the position is most distressing, but I shouldn't have expected Miss Lawless to faint on any occasion. However, she is certainly not in a state to bear more of the witness-box to-day. The prisoners stand remanded till to-morrow morning at ten o'clock.'

The unwilling crowd gradually left the building, when much various comment arose as to the guilt or otherwise of the accused.

'Wait till England gets at that Kate Lawless,' said a digger, 'he'll turn her inside out. I don't believe half of what she says. She's gone back on Trevanion for some reason or other; now she'd hang him if she could. That's a woman all over.'

'Serve him right for havin' no more sense than to go runnin' after a bush filly like her instead of minding his business. It'll learn him better if he gets lagged over the job; it looks bad for him, now, don't it?'

'It's dashed hard lines, I say,' answered his mate, 'that a fellow should get jugged just for a bit of foolishness-like, as none of us are above now and then. I'll never believe he knew that bay horse wasn't square, and it'll be a burning shame if he gets into it.'

The day and the hour arrived. Again the crowded court—friends, foes, strangers, and acquaintances, all were there. Lance's friends from Growlers' mustered in force—Mr. Stirling, Jack Polwarth, Mrs. Polwarth, and poor Tottie, who stretched forth her little hands with a piteous gesture and then burst into tears as she saw her friend Lance placed in the dock and shut in. The crowd was visibly affected by this little incident, and more than one woman's tears flowed in unison with Mrs. Polwarth's, who bent her head down and sobbed unrestrainedly. When Kate Lawless, pale but composed, appeared and took her place in the witness-box a menacing murmur ran through the crowd, and sounds ominously like hisses made themselves audible. These were quickly repressed as Mr. England, stepping forward, commenced his cross-examination.

Fixing his eyes searchingly upon the girl's defiant face, he thus began—

'You said, I think, in your examination in chief that you knew the prisoner, Trevanion, well?'

'Yes; so I did.'

'Now, when you say you knew him well, do you mean us to believe that you were only ordinary friends and no more?'

'I mean what I said; we were very friendly—all the time we were at Growlers.'

'That's all very well, but I must have more. You know something of life, Miss Lawless, though you've lived in the bush all your days. Now didn't this unfortunate young gentleman make love to you?'

'Well, I suppose he did.'

'And you returned it, or gave him to understand that you did?'

'I did like him very much. There was no reason why I shouldn't, was there?' Here Miss Kate looked coolly at the barrister, who, trained gladiator as he was, doubted whether he had ever had to deal with a keener antagonist.

'I am not here to answer questions,' he said, very gravely. 'You are to reply to mine, as his worship will tell you.'

'Then I am to understand that you and he considered yourselves sweethearts (as the familiar expression goes) when you were at Growlers'?

'Yes, and afterwards.'

'And you have had no quarrel or misunderstanding?'

'No; none at all.'

'You wish his worship to believe that?' said the barrister, in sterner tones. 'To believe that you come here prepared to swear at the dictation of Sergeant Dayrell everything that he puts into your mouth which can tell against this unfortunate young man—your sweetheart, as you have admitted?'

'I don't care whether you believe it or not. It's the truth.'

'And your feelings have not changed towards him? Will you swear that?'

The girl hesitated. Her face flushed, then paled, her bosom heaved. She placed her hand upon her heart as if to still its beatings.

'No,' she answered, with a changed voice; 'I won't swear that.'

'Thank you, Miss Lawless. I will not trouble you with further questioning. That admission gives the key to the more important points of your evidence.'

As the girl moved back from the witness-box she was stopped by one of the constables and requested to sign her deposition. It was noticeable then that her hand trembled so that she could hardly hold the pen. She made this an excuse for requesting the clerk to write her name, to which she affixed her mark, as in such case made and provided.

The case for the Crown being closed, Mr. England proceeded to call the witnesses for the defence. The first name was that of Charles Stirling. He came forward with a firm, confident air, tempered with respect to the court. Placed in the witness-box, his evidence was to this effect—

'My name—Charles Stirling, manager of the Growlers' Gully branch of the Australian Joint-Stock Bank. Have known the prisoner, Trevanion,

intimately since his occupation of Number Six claim. Have a high opinion of him as a man of honour and a gentleman. Remember him purchasing the bay horse now proved to have been stolen from Mr. Jeffreys. Was consulted as to the purchase. Advised him then to be careful about Lawless's receipt, and to satisfy himself from whom he (Lawless) had purchased the animal. Trevanion was unwilling to believe anything against the Lawless family, and was not a man to be guided by others. As far as he knew, he was scrupulously upright and honourable. He (Stirling) was never so surprised at anything in his whole life as when he heard that Trevanion was in the hands of the police. There must be a mistake somewhere. Prisoner had a large balance to his credit in the Joint-Stock Bank. There could be no motive for saving a paltry fifty pounds by purchasing a stolen horse. If it was sworn that Trevanion had been seen at Balooka on the 19th September or previously, that statement was false, as on that day he had been all the morning at the Joint-Stock Bank disposing of a parcel of gold, seeing it weighed, and the money placed to credit.'

Cross-examined by Sergeant Dayrell: 'He was as certain that Trevanion was at his bank at Growlers' on Thursday as that he himself was at court now. Any one who swore otherwise was deceived, or else had reasons of their own for committing perjury. He did not intend to be other than respectful to the court, but felt so strongly in this matter that he could scarcely control his words. Was not aware, of his own knowledge, that Trevanion was in the habit of gambling with the Lawlesses for heavy stakes. May have heard something of the sort. Most of the young men at the diggings played a little; it afforded a relief to the monotony of their lives, and they (as far as he knew) never went very deeply into it. Was a friend—he might say a particular friend—of prisoner's. He and his mate, Mr. Polwarth, were customers of his bank. Neither had ever owed his bank money, they were always depositors.'

John Polwarth, sworn: 'Was mate and partner in "Number Six, Growlers"' with Mr. Trevanion. Had known him in England. Came out in the same ship. Could swear that he never knew the horse "Pendragon" was stolen. He was a gentleman, and couldn't steal a horse if he tried ever so hard; or buy a stolen one, knowingly. He had been with Mr. Trevanion at the bank all the morning of Thursday, 19th inst. Mr. Stirling was there, and a clerk.'

'Was he sure it was him?'

'Was he sure the judge was on the Bench now?'

'How did he explain the fact of prisoner Trevanion being seen at Balooka on Wednesday, 18th, and previously?'

'Only by believing it to be "a straight lie," or that the witness saw some one very like Trevanion.'

'Very like Trevanion?'

'Very like.'

The witness appeared to be recalling something in his mind.

'Ar hev it noo, boys,' quoth he, suddenly looking towards the Bench, 'I humbly beg your worship's pardon, but this terrible business has put things out of my head like. I see how it's all come about. There was a chap aboard the *Red Jacket*, about a year older than Mr. Trevanion then, as like him as two peas. Danged if I doan't believe it's he as have been riding about with Ned Lawless here, and all the while he's been taken for Master Lance. The name of the man he meant was Lawrence Trevenna; came from North Devon, he did, though he had a Cornish name. Had never set eyes on him since the day they landed in Melbourne. Never liked him; thought it was a case of good riddance of bad rubbish.

'Was a friend of Mr. Trevanion's; he wouldn't call him prisoner—not for no man; any way he wasn't committed for trial yet; always would be a friend—in gaol or out of it; but would not swear to a lie for him or any other man—not if it was his own brother.'

Gwennyth Polwarth was then called, and up came the poor woman—sore abashed and troubled—with Tottie clinging to her, and refusing to be separated from her mother.

'Yes, she and her husband had come out with Mr. Lance. When in the *Red Jacket* had made it up to be mates. Mr. Trevanion, though he was a grand gentleman at home, worked as hard in the claim as any man on the field; would never believe that he had aught to do with a stolen horse. It was that

Ned Lawless there, and his bold gipsy of a sister. I say it to their faces, as I have often warned him against, that's got him into this trouble.'

'Could he have been at Balooka on Thursday, or Wednesday, 18th, as was sworn by one witness?'

'Not unless he was a spirit. He came round to the claim, and said "good-bye" to me and the child on *Thursday evening*; would swear that to her dying day.'

'As to his being at Balooka, or any place a hundred miles off, it was a thing impossible. There were people in the court as wanted to swear away his life, any one could see. But there's Cousin Jacks enough at Growlers' to smash the gaol and the court-house too, if these things are to be carried on, and it would be seen yet (the witness said in her excitement) what would come of it.'

'Sergeant Dayrell would ask the witness no questions. The Bench would perceive the animus which coloured all the evidence.'

Mrs. Delf was next called. 'Her name was Mary Anne Delf; she had no call to be ashamed of it, and was the wife of the landlord of the "Diggers' Rest." Know that gentleman?' pointing to Lance. 'Well, he always stayed at her house. Dined there with Mr. Stirling, Mr. Ross (of Bundalong Station), and Mr. Polwarth, on Thursday, the 19th of September last. Remembered the day particular, because there had been a wash-up at "Number Six" the day before, and they had sold the gold to the bank, and had it weighed and settled up for.

'Was she a friend of Mr. Trevanion's? Yes; and she was proud to say so. It was a pity all his friends weren't as straight, though she said it herself. But he was as innocent of all this duffing racket as Tottie Polwarth there.'

Here poor Tottie, hearing her name, turned her eyes away from the dock, where they had been resting sadly for a long time, and said audibly—

'Isn't Lance coming, mammy?'

This pathetic appeal, joined to a solitary glance from the prisoner, proved too much for Mrs. Polwarth's self-possession, and, seizing Tottie by the

hand, she hurried from the court. Upon which Mrs. Delf, though unused to the melting mood, had recourse to her handkerchief, and sobbed aloud, as did various like-minded female sympathisers.

'Have you any other witnesses to call for the defence?' said the police magistrate, addressing Mr. England, as who should say, the case has lasted long enough.

'But one, your worship, but one. Call Esther Lawless.'

Again the densely packed assemblage was visibly moved. Here was another of those Lawless girls; and what evidence was she going to give? Surely an *alibi* had been fully proved in Trevanion's favour already. What could shatter the evidence of Mr. Stirling and Polwarth, Mrs. Delf and Mrs. Polwarth? However, here she comes.

Tessie Lawless had not been so prominently before the public of Growlers' as her cousin Kate, but, none the less, from the extreme rarity of young and good-looking women at the earlier diggings, had she been an object of curiosity and admiration. Hence she was well known by sight and reputation, and her appearance in court was consequently of the nature of a romantic incident.

'Your name is Esther Lawless, and you were residing with your cousins, at Growlers', recently,' began Mr. England, with the suave deferential manner by which counsel are won't to placate the feminine witness, 'where you knew the prisoner, Lance Trevanion?'

'Yes, certainly, I know Mr. Trevanion. He was often at our camp.'

'He was on friendly terms with all of you?'

'Yes; too much so for his own good.'

'Why do you say that, Miss Lawless?'

'Because my cousin Edward was not honest in his dealings, and I thought Mr. Trevanion might be drawn in, unwarily, as he has been, I am sorry to say.'

'Can you say anything as to the purchase of the bay H. J. horse, stated to have been stolen from Mr. Herbert Jeffreys?'

'Yes; I wrote out the receipt which Edward gave Mr. Trevanion when he bought the horse for fifty pounds from him. He was then described as purchased from Henry Jones, of Black Dog Creek.'

'How did you come to write the receipt in your cousin's presence?'

Here the witness paused for an instant, as if hesitating what to answer. Then she said, 'I was always in the habit of doing any writing that was necessary.'

'But why? for what reason?' persisted Mr. England.

'Because none of my cousins can read or write.'

As this announcement was made, evidently with reluctance, by the girl, over whose ordinarily colourless countenance a flush rose as she spoke, all eyes were turned towards Kate Lawless, who was sitting upon a bench reserved for witnesses, and afterwards in the direction of Ned. The latter celebrity smiled faintly, as if the higher education thus implied was comparatively unimportant. But on his sister the effect of the disclosure was widely different.

She turned her face quickly, and, as she did so, her eyes sparkled and her set lips expressed—if not anger, malice, and all uncharitableness—at least a far from benevolent intention towards the speaker. Making as if to rise, but repressing herself with a strong effort, she assumed a scornful attitude, as if prepared to listen with resignation.

'Do you remember any conversation with reference to the horse?'

'Yes; Mr. Trevanion asked where Henry Jones lived, and whether he had any more horses of the same breed. Ned answered that he lived at Monaro, and that he would have some more to sell when he bought his next draught from him.'

'You believe, then, that Trevanion had no idea that the horse was stolen?'

'No more than you had. He said over and over again that he must get another or two from Jones.'

'Now, Miss Lawless, you need not answer this question unless you like. *Did you know* that the horse was stolen?'

'No, I did not, or I would have warned Mr. Trevanion. I may have doubted whether everything was quite square about him; but I never thought for a moment that he was stolen.'

'May I ask you, also, what reason you were likely to have for warning Mr. Trevanion?'

'Merely that I had a friendly feeling for him, and did not wish to see him taken in.'

'A very good reason, too. Now there has been evidence to the effect that Mr. Trevanion admired your cousin Kate; that he paid her a good deal of attention?'

'Yes; no doubt he did.'

'You must excuse my asking you, but it is necessary to come to a correct understanding; was there any rivalry or jealous feeling between you?'

'Not the slightest. He was polite—he couldn't be otherwise; but he never cared two straws about me, or any one but Kate, though I was his real friend; but he never knew it.'

'Was there not a letter from Kate Lawless sent by your hand to him, after she had left for Balooka?'

'Yes; but she had to get some one to write it for her. I had a great mind not to deliver it. I wish now that I never had, and all this might have been saved.'

'That will do, Miss Esther. Stay—one more question. You had never, of course, seen Mr. Trevanion in company with your cousins before you came to Ballarat?'

It occasionally happens that an advocate, in putting a question which he believes to be perfectly innocuous, makes some fatal mistake which damages the whole of his previous evidence. The witness changed colour, and hesitated, then appeared to wish to avoid answering the question.

Mr. England divined the situation. 'It's of no consequence. The witness is not strong. You can go down, Miss Lawless.'

But it was too late. Dayrell was not the man to overlook a false move. 'I request that the witness's answer may be taken.'

'As the question has been asked, Mr. England, I think it should be answered,' said the magistrate. 'I will put it myself from the Bench.'

'Have you at any time, witness, seen the prisoner Trevanion in company with your cousins, before the family came to Ballarat?'

Esther Lawless stood erect as she fixed her eye with a troubled gaze upon Mr. M'Alpine's countenance.

'Must I answer this question, your worship?' said she; 'is it necessary in the case?'

'I think you had better,' said he, not unkindly. 'I am sure you will tell the truth.'

'I would not swear falsely to save my own life,' said the girl, in a low but distinct voice. 'I can only speak the truth while I stand here. I *did* see him riding with Ned one day before we left the Eumeralla.'

At this admission, which apparently astonished the greater number of the spectators as much as it did Mr. England and the magistrate, both prisoners turned their faces towards the witness with undisguised surprise. On the countenance of Lance Trevanion there suddenly arose a look of complete bewilderment. Abandoning his pose of scornful indifference, he beckoned hastily to Mr. England, who came over to the dock. After a whispered colloquy, he again addressed the witness.

'I do not wish in any way to lead you, or to induce you to alter any part of your evidence which you feel certain of, but I entreat you, as you value the liberty, perhaps the life of an innocent man, to reconsider your last answer. I will repeat my question. Are you prepared, upon your oath, to state that you ever saw the accused, Mr. Trevanion, in company with your cousin before you left New South Wales to come to Ballarat?'

The witness looked upward for a moment and clasped her hands. She shuddered, and essayed in vain to reply, but finally with recovered firmness of mien said, 'I wish it were not so, but I cannot be mistaken. I saw him once certainly, and I believe once again, but I did see him once, if I can believe my eyes, near Eumeralla.'

A keen observer who had watched Kate Lawless's countenance might have marvelled at the mysterious smile which stole over her features at that moment, might have noted also a look of conscious triumph mingled with sudden wonder. For an instant, as she glanced towards the dock, her eyes sought out those of her brother; they met hers with one swiftest glance of sudden meaning.

On Lance Trevanion's countenance a despair sombre and terrible commenced to settle. His attitude expressed utter hopelessness, the deepest disappointment. When Esther Lawless, after a sudden burst of tears, was permitted to leave the court, he did not raise his head. Mr. England made one of the brilliantly exhaustive speeches which had opened the prison gates to so many enterprising or unlucky personages. The court was charmed, captivated, convinced, by the overpowering rush and flow of his persuasive eloquence.

But Lance neither stirred nor looked up. The presentiment was about to be fulfilled. He was prepared for the worst.

The case was closed. Then. Mr. M'Alpine gave his decision—

'He had heard that day some of the most extraordinary and contradictory evidence that in his varied experience he had ever listened to. In view of the prisoner's high character and independent position, attested by so many witnesses, he had been on the point of discharging him, but, after hearing the witness's last answer, which amounted to an admission that the prisoner had been an associate of the Lawless family, even before they had migrated to Ballarat, he could not entertain a doubt as to a committal. It was incontestably a case for a jury. It was for them to decide as to the credibility of opposing witnesses.'

Then came the concluding formula, after which the prisoner was asked if he desired to say anything.

'Only this,' said the erstwhile proud scion of an ancient race, stainless in honour, flawless in blood, of whom he alone—oh, hard and bitter fate!—had ever linked hands with disgrace! 'Only this: that I am as innocent of all thoughts of wrong or dishonesty to any man as my mate's little child. I never knew or thought that the horse was other than honestly come by. I have been deceived—by man and woman both. But the knowledge has come too late. The witness Catharine Lawless has lied foully. The other witnesses, particularly Esther Lawless—who is good and truthful—have been deceived by the resemblance borne to me by another person. I never was at Balooka before, and never in my life saw the Eumeralla district—never heard the name even! I protest my innocence of this and all other charges. I can say no more.'

Mr. M'Alpine paused in thought for a while—an unusual course with him—then, amid the almost unnatural silence of the court, he said: 'I feel compelled to send the case for trial. Launcelot Trevanion, you stand committed to take your trial at the next ensuing Quarter Sessions, to be holden at Ballarat, on a day to be named. Bail refused. Sergeant Dayrell, call up the witnesses to be bound over to appear.'

'This court stands adjourned.'

CHAPTER XII

Bail having been refused, presumably at the instance of the police—who, in cases where there is probability of the prisoner levanting or of arrangements being made to defeat the ends of justice, are entitled to object—there remained no course but that Lance Trevanion should be re-committed to gaol. Ned Lawless was also detained for safe keeping, the same reasons operating even with greater force in his case. This was the third time that Lance had been brought forth to stand before a gaping crowd—the third time that he had been transferred to the grim precincts of a prison and heard the massive iron gates clang behind him.

'I begin to feel,' he said bitterly to Stirling, 'almost like an habitual criminal. If there is a God that judgeth the earth, as they used to tell us in old days, why am I permitted to be thus degraded, falsely accused, and unjustly imprisoned?'

It was in this period of trial and sore need that Lance discovered the nature of friendship. Genial acquaintances and friendly-seeming personages he had encountered by the hundred. These were now for the most part too busy or indifferent to visit him in his affliction. Charles Stirling, however, in spite of his onerous and responsible duties, lost no opportunity of aid or service. Sometimes he rode half the night in order to get back to his work in proper time after visiting the captive and comforting him as best he could. He petitioned the Governor-in-Council, drafting and procuring signatures to a memorial setting forth Lance's hard case and praying that he might be released on bail. He addressed members of the Bench, and essayed to persuade them to act independently, offering to find bail to any amount and lodge the money. Hastings and Jack Polwarth canvassed their fellow-miners. The newspaper press was invoked. But all in vain. The time was inopportune. So many horses had been stolen that a strong popular prejudice had arisen; justice demanded a victim. A reactionary sentiment commenced to prevail. It was openly stated that because Trevanion, of Number Six, was a 'swell' and had dropped into a lucky claim, that was no reason why he should be let off more than a poor man.

Wild and unsettled were the times too—those years early in 'the fifties.' Martial law was thought necessary for the holding in check of an army of untamed spirits. A close discriminating adherence to legal form could hardly be attained. The upshot of it all was that, to the disgust and despair of Hastings and Jack Polwarth, who had hoped against hope, all their efforts were vain, and Lance was compelled to resign himself as best he might to his enforced and protracted *duresse*.

Before leaving for Melbourne Mr. England had indeed almost guaranteed that he only needed to be placed on his trial to be acquitted, asserting that no jury in the colony could possibly find him guilty upon the evidence brought before the Bench; that a committal was very different from a conviction; that some magistrates made a point of committing for trial all prisoners brought before them so as to escape responsibility; that Mr. M'Alpine had a habit of acting in that way; that he (John George England) would take the shortest odds that the jury acquitted Lance without leaving the box.

How the weeks dragged on! Autumn was fast changing into winter when the Quarter Sessions were held. Lance had expected to have been in Melbourne about the time. Only to think of it! And had he not paltered with his duty and his solemn promise might he not have been in England now, seeing the yearly miracle of the spring transformation in that favoured clime and hearing the surges beat against the frowning headlands of Tintagel? Madness was in his thoughts. Why did he not dash his brains out against his prison walls and so end the hideous burlesque upon truth and justice, honour and common honesty even? Why had he not courage to do so? No—it would become his father's son to die in ways and fashions many and varied; but within gaol walls! No! a thousand times, no! That would be a doom impossible for a Trevanion of Wychwood.

From time to time he had gleams of hope—this miserable captive so unused to fetter and thrall. It *could* not be. It should not be. The eternal justice of heaven would be falsified were this wrong to befall him. The words of prayer that he had lisped in childhood—the Bible lessons to so many of which he had hearkened in the old Norman Church at Wychwood—what would all these be but hollow cheats and ghastly mockeries were he to be found guilty? It was a simple impossibility. He had now but to wait—to eat

out his heart for one other week, and then—oh! joy unspeakable! he would be free—free! A free man—not a prisoner! Did he ever imagine that he would attach such a meaning to the word freedom? It mattered not. Let him but once set foot outside this dismal gaol wall. Again he saw himself on the back of a good horse, or at the claim with good old Jack Polwarth and his wife and Tottie—poor dear Tottie! But here he could no longer follow out the chain of probabilities. His eyes filled with tears, and the once-proud Lance Trevanion, lowered in spirit and strength by confinement and meagre diet, threw himself upon his miserable pallet and sobbed like a child.

The 'next ensuing Court of Quarter Sessions,' to which Lance Trevanion had been committed for trial, was formally opened at Ballarat on a certain Wednesday at ten of the clock. The sheriff was in attendance, with bailiff and minor officials, and also various barristers, including Mr. England. An unusual number of police appeared on the scene, including the superintendent of the district—a very high personage indeed. All were in full uniform, while conspicuous among them stood Sergeant Dayrell, calm and impassive as usual, though a close observer might have noticed an occasional sign of impatience.

When the doors of the court-house were opened a rush took place which filled the building so completely that many were excluded and compelled to remain outside, trusting to occasional reports of the exciting matters within. The judge in his robes, attended by the sheriff, took his seat upon the bench punctually at the appointed time. And once more Lance Trevanion and his fellow-prisoner Ned Lawless were brought forth to serve as a spectacle to a wondering or sympathetic crowd, as the case might be.

The Crown prosecutor, in opening the case, alluded to 'the prevalence of a system of horse-stealing, now become so notorious; if unchecked it might lead to the gravest results. The jury would have an opportunity of hearing the evidence in detail, from which they would of course form their judgment. But they must not lose sight of the fact that the prisoners had been caught "red-handed," if he might use the expression. They were actually in possession of a large number of stolen horses, many of which

were of great value. Some had since been identified by their owners, who were chiefly miners and working-men connected with the diggings. He had no desire, he might assure them, to prejudice their minds in any way; he would merely furnish his evidence for the Crown as he was bound to do, and trust to the intelligent jury he saw before him to do their duty without fear or favour. It was a painful sight to him, as it doubtless was to them, to see two such fine specimens of early manhood arraigned for so serious an offence. But no consideration of that sort must be suffered to influence their minds. He would not detain them longer, but would call the first witness.'

As in all trials, the same witnesses as on the preliminary examinations were heard, the difference being that no written depositions were taken, the judge only recording in his notes the evidence with care and exactness. Mr. England cross-examined the witnesses with increased rigour and more searching scrutiny. Every fact or fiction in their previous history which could tend to weaken or discredit their testimony in the eyes of the jury was fully ventilated. Every motive which could possibly colour this testimony against the prisoners was suggested or exposed.

Sergeant Dayrell's evidence was unsparingly criticised. To his calm and carefully worded statements, studiously colourless, but little exception could be taken. Still, more than one *historiette* had been elicited from the distant part of the colony where he once was stationed which tended to establish his reputation for unscrupulousness, for desire for conviction at all risks. He was forced to acknowledge that he had been the apprehending constable in a well-known stock case near the New South Wales border, as well as to admit that his zeal on that occasion being in conflict with the law, had caused the committing magistrate to be mulcted in heavy costs and damages. These and other facts being mercilessly dragged forth somewhat detracted from the value of his evidence.

Then Catharine Lawless was once more called. Again it seemed that the spectators, as upon the appearance on the stage of a favourite actress, awoke to more than common excitement and intensity of interest. All eyes were upon her as she walked composedly up to the witness-box. Dressed quietly but in perfect taste as before, there was so much grace and freedom about the girl's every movement—such self-possession in her bearing—that she looked superior to her surroundings.

She was evidently on her guard against such a display of emotion or merely feminine weakness as had occurred at the first trial. Calmly and imperturbably she gave her evidence, and as before deposed to having seen Lance Trevanion in the companionship of her brother at Eumeralla, and also at Balooka long before the day of arrest.

If there be any force in the modern doctrines of the projection of nerve force—of the subtle relation between the mesmeric will power and the object of its current—then, as for one moment she turned towards the dock and confronted the lurid light that blazed in Lance Trevanion's haughty and contemptuous regard, she should have trembled and fallen to the earth.

But no such effect followed. She gazed back for an instant with a glance fierce and tameless as his own, then coldly averted her face as she repeated her lesson, as Mr. England vehemently characterised her statement.

'Then you still persist, Catharine Lawless,' said that gentleman, turning with unchivalrous suddenness upon his fair antagonist, 'you persist in declaring that you saw Lance Trevanion both at Balooka and Eumeralla on the date you have stated?'

'I have sworn I did see him,' she replied, while a shade of sullenness commenced to overspread her countenance.

'If these witnesses, Mr. Stirling, Mrs. Delf, Mrs. Polwarth and her husband, besides several others, have sworn that they saw him at Growlers' at a date which makes it absolutely impossible that he could have been within a hundred miles of the localities you mention, is that true or false?'

'I don't care what they swear, I have told the truth.'

'That is what they have sworn. Now, you know Mr. Stirling, Mrs. Delf, Jack Polwarth, and the rest, don't you?'

'Well, yes, I have seen them.'

'Do you think they are people likely to swear to an untruth?'

'I can't say. What I said was the truth.'

'And what they say—false!'

'I suppose so.'

As before, she was the last witness for the Crown. When her evidence was completed, she faced Mr. England, with one indignant, half-revengeful expression on her face, then walked slowly, and with coolest composure, from the court.

When the case for the Crown had come to an end Mr. England in an impressive speech 'put it to his Honour whether it was really necessary to waste the time of the court by calling witnesses for the defence. The other prisoner—the only accused, properly so called—had already pleaded guilty. Was it not patent to his Honour, to the jury, to every one in court, that this Edward Lawless—he desired to speak of him with no undue harshness—was the real and only criminal. His client had no doubt been highly imprudent in keeping company with such dangerous associates as the Lawlesses, male and female, had proved themselves to be, but he would ask his Honour, as a man of the world, Who amongst us, in the heedless days of youth—careless of consequences, and unsuspecting of guile—had not done likewise? Were people to be treated as criminals—branded as felons—merely for socially encountering persons afterwards guilty of felony? What a Star Chamber business would this be in a British Colony!—where, thank God, every man was under the ægis of the common law of the realm. His client, unfortunate in that degree, had merely been a spectator, a looker-on. As to the H. J. horse, he was as ignorant of all guilty knowledge as himself or his Honour; was it not the wildest flight of absurdity to imagine for one moment that a man with twenty thousand pounds to his credit in the bank would be likely to receive—knowing him to be stolen—a fifty-pound horse? The thing was absurd—so absurd that he would once more put it to his Honour whether the farce should not be ended by at once asking the jury for their verdict, which they would, he was confident, give without leaving the box.'

The judge 'felt the force of much that had been so ably presented in favour of his client, but, with every wish to afford the prisoner facilities for his defence, he was compelled to decline the application of counsel. He would prefer to hear the witnesses for the defence before summing up and addressing the jury.'

Mr. England bit his lip, but he 'bowed, of course, to his Honour's ruling,' and proceeded to call his witnesses.

Then commenced the deeper interest of the performance. Every spectator appeared to listen with concentrated attention. Not a syllable escaped attention. Not a sound arose from the dense and closely packed crowd.

All the former witnesses were called. Each in his turn gave evidence which appeared to be so conclusively in favour of the prisoner that every one in court thought with Mr. England that the jury would never leave the box. Mr. Stirling, Jack Polwarth, Mrs. Delf, all testified to the effect that Lance Trevanion had quitted Growlers' on that particular day, Friday, the 20th September, for Balooka. When asked whether it was possible for the prisoner, Trevanion, to have been seen at Balooka shortly before the date named, they, with one accord, declared it to be impossible. He had been seen every day by one or other for months before. As to his being a couple of hundred miles off, it was absolutely false and incredible. In addition to the witnesses heard previously, two miners named Dickson and Judd were called, who swore positively that they had seen the prisoner, Trevanion, on Friday, 20th September, near 'Growlers,' evidently commencing a journey to the eastward. He had a valise strapped before his saddle, and was going along the mountain road.

'Would it lead to Balooka?'

'Yes; that was the way to Balooka. One of them had been there, and a rough shop it was. They were quite positive as to his identity.'

'He was a noticeable chap, and the horse he rode wasn't a commoner either. Any man with eyes in his head would know the pair of 'em anywhere, let alone chaps as had worked the next claim but one to him and Jack Polwarth.'

Asked whether they were quite certain that they had met the prisoner on the day stated by them, or whether they thought it might have been the day before.

'It was that very Saturday morning, and no other. They were as sure of it as of their own lives. If men couldn't be sure of that they could not be sure of anything.'

Of course they knew Lance Trevanion well?

'Yes, very well, by sight. Not that they had often spoken to him. He was a gentleman, a big man in his own country, they heard tell. He kept himself a deal to himself, except in regard to the Lawless family, and he would have done well to have let them alone too.'

Tessie Lawless, when called upon, moved towards the witness-box with a much less assumed step than her cousin. She also turned her head towards the dock. Those who watched her saw her face soften and change like that of a woman who suddenly beholds a suffering child. As she scanned the pallid and drawn features of Lance Trevanion, upon which anger and despair, consuming anxiety and darkling doubt had written their characters indelibly, it seemed as though she must force her way to him and weep out her heart in bitter grief that he should be in such ignoble toils.

Then she braced herself for the effort and stood before the judge. The statement which she made was almost identical with that on a former occasion. A very good impression on the jury was evidently made by her candour and earnestness.

As she answered firmly yet modestly each question put to her by Mr. England, the judge was observed to listen with close attention and the jury to be unusually interested. Mr. England, scanning their faces with practised readiness, saw in imagination their short retirement and a unanimous verdict of 'not guilty' proceeding from the lips of the foreman. Then, as he approached the critical period of the question which had been so unlucky in its effects during the preliminary examination, he felt as nearly nervous as a man of his proverbial courage and varied experience could be. He was more than half disposed to omit the question altogether; how he hated himself for having been fool enough to put it in the first instance.

'I don't think I need trouble the witness with any other questions, your Honour,' he said tentatively; but here Dayrell rose and evidently prepared himself to interpose. With lightning quickness Mr. England decided to put the question in his own form and fashion, rather than leave it to the enemy.

'One minute, Miss Esther,' he said, as if the idea had just occurred to him. 'I think you said that you were uncertain, or could not quite recall, whether

you had ever seen the accused Lance Trevanion before you left the Eumeralla to come to Ballarat?'

This he said with a smilingly suggestive air which would have given the cue to an ordinary witness less imbued with a sense of unfaltering right than Tessie Lawless. But as the girl's clear brown eyes searched his face with a troubled expression, he comprehended that there was no hope of evasion, that he had got hold of one of those impracticable witnesses who really do speak 'the whole truth, and nothing but the truth,' to the consternation of lawyers and the disaster of defendants.

'I said that I *had* seen him before, at the Eumeralla,' she said simply, 'I can't swear anything else. I *did* see him, and it was a bad day for him—and—and for me too,' she added.

'Now think again, Miss Esther. Reflect that your answer to my question is perhaps more important than any one you ever made in your life. How can you account for Trevanion being so far from Ballarat? What business had he there, and why should he leave Growlers' Gully, to which he came from the ship, as I can prove?'

The girl looked again at the dock and those who stood therein—at Ned Lawless, who lounged good-natured as ever, and smiling to all appearance; at Lance, who stood erect, darkly frowning and with a fixed stern expression, as of one who should never smile more.

'It will break my heart,' she said, 'but I must speak the truth while I stand here. I *did* see him on the Eumeralla, before we left home for Ballarat, one day with Ned.'

'I must ask again whether there is any possibility of your being mistaken in the identity of the accused?' persisted Mr. England. 'You have heard doubtless of men being so wonderfully alike that strangers could not in many cases discover the difference?'

'Just stand down for an instant. With his Honour's permission I will recall the witness John Polwarth.'

'You are recalled upon your former oath, Mr. Polwarth. I wish to ask you whether you ever saw an individual most strangely resembling Trevanion?'

If so, when and where?'

'Yes—sartain,' replied John, looking pityingly upon Lance as he stood in the cage, as Jack afterwards designated it. 'There was a chap as called hisself Trevenna—Lawrence Trevenna—as coomed oot in ship with us, and was as like the master here as he'd been his twin.'

'Was the likeness really astonishing?'

'Stonishin'! I believe you. It was the most surprisin' likeness ever I seed, and so the missus'll tell you besides.'

'Well, what became of him?'

'Nivir heerd tale or tidings of him since he left the ship. Wasn't sorry for that either. He was that bad-tempered and fond of card-playing that I couldn't bear to have him in the same mess with me and the missus.'

Mrs. Polwarth, also recalled, gave similar evidence with considerable spirit, and hoped that some of the witnesses heard to-day might have some good cause to know the individual as she meant. 'He was death on playing cards, and that fond of money that he wouldn't leave off when he lost. He was the worst-tempered man in the ship.'

'That will do, Mrs. Polwarth. You may go and sit in the court with your husband. Now, Miss Lawless, you have heard what these two most respectable witnesses have sworn to. Are you still certain and positive in your own mind that you saw Lance Trevanion *himself* on the flats of the Eumeralla, or did not rather fall in with Trevenna, who seems born for the special purpose of complicating this most involved and unhappy case?'

A look of relief and sudden satisfaction passed over the girl's face as she answered, 'I do now feel in doubt. Oh! I will not swear positively. I never dreamed that there was any one so like Mr. Trevanion.'

'Then,' pursued Mr. England, 'having now become aware that there is an individual so strikingly like Lance Trevanion that a stranger could hardly know them apart, are you desirous to correct your former evidence, given in ignorance of the fact, by now declaring on your oath that you are unable to identify the man you saw with the prisoner, Trevanion?'

The light came back to the witness's eyes, and even a faint colour rose to her cheeks as she answered firmly, almost joyfully, 'I believe in my heart that it must have been Trevenna that I saw. I cannot swear now that I saw Mr. Trevanion.'

A faint murmur of approval arose in the court, which was promptly suppressed as the Crown Prosecutor rose.

'I do not wish, your Honour, in any way to impugn this witness's testimony. She has every desire, I feel convinced, to speak the truth. But I wish to ask her whether of *her own knowledge* she is aware that such a person as Lawrence Trevenna exists?'

'I have just heard two people swear to it,' the girl replied hastily, as if fearful that this welcome solution of a dreadful doubt should be taken from her. 'What more do I need?'

'Just so. But you must perceive that in the event—improbable, I admit, but possible—that these witnesses were mistaken or misleading, you have no knowledge of your own to fall back upon?'

'If I could only see them both together,' pleaded poor Tessie ruefully, 'I am sure I could pick out the one I saw at Eumeralla.'

'I am afraid there is no chance of that,' said the barrister, 'unless Sergeant Dayrell can produce him.'

'Perhaps it would be convenient,' answered Dayrell, in the most coldly incredulous tones, 'if I could produce a counterpart of the prisoner, Lawless, at the same time. I do not wish to distress the last witness, but one would be quite as easy as the other.'

The girl faced round, as his clear but slightly raised voice sounded through the court, and looked full at him, with scorn and indignation in every line of her countenance.

'I thought better of you, Francis Dayrell,' she said. 'You are acting a falsehood, and you know it.'

Dayrell's lips moved slightly, but no sound came from them for a moment. He bowed with an affectation of extreme courtesy before addressing the

Bench.

'Your Honour, I claim protection against such an imputation. But I make great allowance for the witness, whose relation to the prisoners excuses much.'

His Honour was understood to reprove the witness mildly but impressively, and to express a hope that she would abstain from all aggressive remarks in future.

Tessie's evidence being concluded, the Crown Prosecutor proceeded to address the jury, pointing out what, in his opinion, were the salient points of the case as brought out in evidence.

'In the first place, they would remark that large numbers of horses had been and were at that very time being systematically stolen from the miners. There existed no doubt, in the minds of persons capable of forming an opinion on such matters, that a well-organised and widely-spread association had been formed, by means of which horses stolen in one colony were driven by unfrequented routes to another, for the purpose of sale. It was not as if an occasional animal here and there had been taken. That offence, criminal in itself, doubtless, deserved some punishment. But, considering the great value of horses at the diggings, their almost vital importance in the ordinary course of mining industry, and the difficulty of following up and punishing marauders without ruinous loss of time and expense, he was there to tell the jury that a greater wrong, a more flagrant injustice, could not be inflicted on any mining community.

'With regard to the prisoners arrested and arraigned together, one had pleaded guilty and the other had denied all knowledge—all criminal knowledge—of the fact that the horse he was riding when arrested had been stolen. There had been evidence given that day before them which directly pointed to the prisoner Trevanion's general association with the Lawlesses, such evidence as, if believed by them, must lead to the conclusion that the mode of procuring and disposing of the large number of horses found in the elder Lawless's possession was not unknown to him.

'On the other hand, there had not been wanting evidence most favourable to the prisoner, Trevanion; favourable in its purport, and entitled to respect on

account of the character and position of the witnesses. It was their province to pronounce upon the credibility of the witnesses. He would not detain them longer. They were the judges of fact. His Honour would in his charge direct them as to the law of the case.'

Then Mr. England arose, threw back his gown as if preparing for action in another arena, and faced the jury with an air of confident valour.

'His learned friend, the Crown Prosecutor, had most properly confined himself to a bare statement of facts—if facts they could be called. In the whole of his experience of alleged criminal cases it had never been his good fortune to be connected with a defence, the conduct of which was so childishly clear, the outcome of which was so ridiculously easy of solution. Putting aside for the present the utter want of all reasonable motive for the commission of a felony—the perpetration of a crime by a man of good fame, family, and fortune—this extraordinary purposeless deed, for which only the wildest condition of insanity could account, he would briefly run over the evidence for the defence.

'First, as to the character of the prisoner's witnesses, shame was it, and sorrow as well, that he should have to refer to this unfortunate gentleman—he would repeat the word—by such a designation. The jury would note, giving the case that attention which was its due, that every witness for the defence was a person of unblemished character. Beginning with Mr. Stirling—their tried and trusted friend—what man within a hundred miles of Ballarat would doubt his word, not to speak of his solemn oath! Then, John Polwarth and his wife—the former a hard-working legitimate miner, one of a class that the country was proud of, and whose industry was rapidly lifting it to a lofty position among the nations. His fond and faithful wife. Charles Edward Hastings, a man of birth and culture, yet, like the majority of this population, an earnest, efficient toiler. Then their respected friend and benefactress, Mrs. Delf. He should like to see any one look into that lady's face and doubt her word. The two wages-men from the Hand-in-Hand claim, men who had no earthly interest but of upholding the truth; and last, but by no means the least in weight of testimony, Miss Esther Lawless—the witness of truth, even against her own sympathies, as any child could see.

'So much for the character of our witnesses and their reliability. Then as to the agreement of this testimony. Examined separately and without suspicion of collusion, what had been their evidence, differing only with those shades of discrepancy which before all practised tribunals absolved them from any hint of tutoring? Why, it amounted to triumphant proof beyond all question or challenge, that on Thursday, the 19th of September, Launcelot Trevanion was at the Joint-Stock Bank at Growlers' Gully, and that he could not have started on his journey to Balooka earlier than Friday, 20th, the day he was asserted to have been seen there. He held this important position to be proved, so much so that he should not again perhaps refer to it.

'Having thus briefly, but he hoped clearly, presented to them the overwhelming weight of evidence, amounting to one of the most convincing *alibis* ever proved before a court, he should pass on to the evidence for the Crown. There was an absence of direct proof, but he hesitated not to impugn the *bona fides* of Sergeant Dayrell and Catharine Lawless. He owned to regarding it with considerable suspicion. He implored the jury, as they valued their oaths, to scrutinise this part of the case most heedfully. What the motives of these witnesses might be he was not prepared to assert, but as men of the world they would probably form their own opinion. Catharine Lawless had admittedly been on friendly, more than friendly terms with the accused, why had she so completely turned round and given damaging evidence against him? In the history of light o' loves of this nature were found fatal enmities, and hardly less fatal friendships; was it not probable that jealousy, "cruel as the grave," was the motive power in this otherwise inconsequential action? Cool and high-couraged as this witness had shown herself, he could not avoid noticing signs of discomposure which pointed to unnatural feelings and untruthful statements. Was there then some relentless vengeance in the background, the secret of which was known only to the Lawless family and Sergeant Dayrell, to be wreaked upon this unfortunate victim of treachery? He was betrayed alike in love and in friendship, in business and in pleasure. This conspiracy, he could call it by no lighter name, was no accidental affair, but a carefully planned, cold-blooded, and deliberate crime. In all trials involving criminal action it was the habit of eminent judges to direct juries to examine carefully the probability or otherwise of the prisoner's *motive* for committing the offence charged against him. In this case no motive could

possibly be said to exist. Was it likely, as he had before inquired of them, that a man with a fortune, a large fortune to his credit in a bank, with a weekly income of most enviable magnitude, increasing rather than diminishing, should lend himself to a paltry theft, such as was alleged against him? It was as though the leading country gentleman of a county in Britain should steal a donkey off a common, if they would pardon him the vulgarity of the simile. Gentlemen might smile, but was there anything to excite mirth in the haggard features and melancholy mien of the unhappy young man whom they saw in that dock? Let them imagine one of their own relatives placed in that position by no fault of his own, and they could understand his feelings. He would not for an instant urge them to act inconsistently with their oath, but he implored them to avoid by their verdict that day the dread and terrible responsibility of convicting an innocent man.'

CHAPTER XIII

Then the judge, with a final glance at his notes, commenced to sum up on the evidence. He stood singular among his fellow-jurists for plain and unostentatious demeanour, both on and off the bench. In the matter of outward attire he could not be accused of extravagance. A studied plainness of habit distinguished him on all occasions. Careless, moreover, as to the fit of his garments as of their colour or quality. As a lawyer he was proverbially keen, clear-headed, and deeply read; but he wasted no time upon his judgments, and never was known to 'improve the occasion' by the stern or pathetic harangues in which his fellow-judges, for the most part, enclosed their decisions—the wrapper of the pill, so to speak. So rapid and decisive were his Honour's findings that some of them had passed into household words. When he arose from his seat, and after taking a short walk along the judicial dais, as if in mental conflict, resumed his position, the spectators knew that they would not have long to wait. "'Very honest man rides a stolen horse,'" would have been the gist of my charge, gentlemen of the jury,' he said; 'but this truly strange and complicated case demands the closest examination. The evidence presents exceptional features. On one side you have a young man of good character and means. His pecuniary circumstances should have removed all temptation to commit the offence charged. In a spirit of recklessness he associates with the Lawless family. About their character—with the sole exception of Esther Lawless—the less said the better. He buys from Edward Lawless a horse proved to have been stolen—many an honest man during the turmoil of the gold period has done the same. He has occasionally gambled for large sums, which is highly imprudent, but not felony, in the eyes of the law. The evidence for the defence proves fully—if believed—that he did not leave Growlers' Gully for Balooka until the 19th of September—competent witnesses swear positively to this fact. If you believe them, the case is at an end. On the other hand, as many swear to his having been seen at Balooka long before the day referred to, and also at Eumeralla, the old home of the Lawlesses, some of these witnesses must be in error, as the prisoner manifestly could not have been in two places at once. Catharine Lawless

had evidently an animus *spretæ injuria formæ*, he felt inclined to say, which might be freely translated into a lover's quarrel of some sort. As men of the world, the jury would largely discount her evidence. A still more remarkable feature of this truly remarkable case was that Esther Lawless—whose conscientious scruples did her honour—testified also to having seen the prisoner at Eumeralla in association with Edward Lawless. They had heard John Polwarth's evidence, and his wife's, regarding a shipmate curiously like Trevanion. Such similarities, though rare, were not unknown. There was a possibility of mistaken identity. These points, as well as the credibility of the witnesses, were for them to consider. They were the judges of fact. But it was their especial duty to give the prisoner the benefit of all reasonable doubt—a doubt which he should certainly share with them if they brought in a verdict of *not guilty*.'

When Mr. England heard the conclusion of the judge's charge, he scarcely doubted for a moment that after a short retirement of the jury his Honour's last words would be repeated by that responsible body. He therefore sat down, and calling over Charles Stirling, imparted to him confidentially his feeling on the subject. 'His Honour plainly and unmistakably was with them, and had summed up dead in favour of Trevanion. He was one of the best judges of the Victorian Bench, clear-headed and decisive, detesting all mere verbiage. A man, a gentleman, a sound lawyer—all these Judge Buckthorne was known to be. Pity he could not borrow a little deportment from Sir Desmond, who had enough and to spare.'

Thus they talked while the business of the court went forward. Another jury had been impanelled; another case called on; another prisoner had been put in the dock and placed on the farther side with Ned Lawless. They seemed to know each other. Lance cast upon him a brief, indifferent glance, and resigned himself to silent endurance.

With respect to the issue, Charles Stirling was by no means so confident as his legal friend, veteran as he was, boasting the scars of a hundred battles. But in his character of banker he had the opportunity of hearing the general public, as represented by the 'legitimate miner,' as he was fond of calling himself, which means every sort and condition of mankind, anxious to compel fortune by the primeval process, but wholly without capital to develop enterprises.

Now the jury was chiefly composed of ordinary miners. Of these it so happened that a large number had had their horses stolen. They were valuable animals at that period, most difficult to replace, and the owners, therefore, felt their loss acutely. They came to the trial with a fixed and settled intention of striking a blow at horse-stealers, to which end it was necessary that some one, they hardly cared who, should suffer.

They were determined that an example should be made. It would do good and prevent others from being so immoral and short-sighted as to rob honest miners.

'This Trevanion,' they reasoned, 'had really been mixed up with the Lawless crowd, and a worse lot, now it turned out, had never been seen near Ballarat.'

It was argued that the evidence went to show that he had been a known friend and an intimate of the family at the place with the native name, and had been seen there when horse-stealing on a large scale was being carried on.

'Kate Lawless swore point-blank to his having been away with her brothers long before the Lawless crowd had come to Growlers'. Trooper Donnellan had sworn to seeing him there. Hiram Edwards, the Yankee digger, had seen him there, and other miners. They had no call to have a down on him, even if Dayrell and the girl had.

'Besides these, Tessie Lawless, who every one knew was a straight girl, and wouldn't have said a word against him for the world if she could have helped it—even *she* had to confess that she had seen him at Eumeralla.'

'What about this chap that was said to be the dead image of him?' asked a younger juror. 'It was hard lines to be lagged innocent through another cove's work.'

'Well, they might believe that if they liked; it was put up, some thought. Jack Polwarth and his wife, like all these Cousin Jacks, would swear anything for a Cornishman. Mr. Stirling was a nice chap, but he was a banker, and wasn't likely to go back on a man with a good account. Mrs. Delf was a good sort, but Trevanion used her house regular and spent his money free. They knew what that meant. His mind was made up. If Ned

Lawless, as was waiting for his sentence, was in it, Trevanion was too. He must face the music. He'd be let off light, but it would be a lesson to him. If they didn't shop some one over this racket there wouldn't be a horse left on the field by Christmas.'

At different times, and from different speakers, such was the general tone and substance of the arguments advanced by the majority. The minority defended their position, and from time to time denied that sufficient evidence had been furnished to show guilty knowledge or participation in crime on the part of the prisoner. But, after several hours spent in debate, the minority yielded, disinclination to be locked up all night lending force to the logic of their opponents.

When the jury marched into court, after notice by the sheriff's officer to the judge that they had agreed, a hush of anxious silence reigned throughout the building. Lance stood up fearless and erect, as a soldier faces the firing-party at his execution. Ned Lawless never changed his position, but seemed as careless and unenvious as the youngest lad in court.

'How say you, gentlemen of the jury?' said the judge's associate, a very young gentleman, with discretion, however, beyond his years. 'Do you find the prisoner guilty or not guilty?'

There was an air of solemnity pervading the jurors generally, from which Mr. England at once deduced an adverse verdict. The women fastened their eyes upon the foreman with eager expectation or painful anxiety; all save Kate Lawless. For all her emotion displayed, expressed in her countenance, the prisoners might have been Chinamen charged with stealing cabbages.

There was a slight pause, after which the foreman, a burly digger who had been a 'forty-niner' in California, and had seen the first rush at Turon, uttered the word 'Guilty!' The effect of the announcement was electrical. A tumult seemed imminent. The great crowd swayed and surged as if suddenly stirred to unwonted action. Groans mingled with hisses were heard; women's cries and sobs, above which rose a girl's hysterical shriek, thrilling and prolonged, temporarily in the ascendant. The deep murmur of indignation seemed about to swell into riotous shouting, when an additional force of police appeared at the outer entrance, by whom, after vigorous expostulation, order was restored.

The judge proceeded to pass sentence, contenting himself with telling the jury that 'they had proved themselves scrupulous guardians of the public welfare, and had not allowed themselves to be swayed by considerations of mercy. Their grasp of the facts of the case was doubtless most comprehensive. It was their verdict, not his. They had accepted the sole responsibility. Launcelot Trevanion, the sentence of the court is that you be imprisoned in Her Majesty's Gaol at Ballarat, and kept to hard labour for the term of two years. Edward Lawless, the sentence of the court is that you be imprisoned in Her Majesty's Gaol at Pentridge, and kept to hard labour for the term of five years. Let the prisoners be removed.'

Then the disorder of the crowd, previously restrained, burst all bounds, and appeared to become ungovernable. Tessie Lawless fell forward in a faint and was carried out. Mrs. Polwarth shook her fist in the direction of the sacred judgment-seat, and declared in resonant tones that more would come of this if things were not mended. Snatching Tottie up, she and Mrs. Delf followed in the wake of Mr. Stirling and Hastings, continuing to impeach the existing order of things judicial, and declaring 'that an honest man and a gentleman had no show in a country like this, where straight folks' oaths counted for nought; where policemen and lying jades had power to shut up in prison a man whose shoes in England they wouldn't have been allowed to black.'

'End of first act of the melodrama,' said Hastings to Charlie Stirling, with grim pleasantry. 'Audience gone out for refreshment. "What may happen to a man in Victoria!" as the Port Phillip *Patriot* said the other day. Poor Lance! it makes me feel revolutionary too.'

The end had come. With a hoarse murmur, half-repressed but none the less sullen and resentful, the crowd surged outward from the court. A strong body of police escorted the prisoners to the van, in which, despite of threatened obstruction from some of the Growlers' Gully contingent, they were placed and driven towards the gaol, which, built on a lofty eminence, was nearly a mile from the court-house. Ned Lawless preserved his ordinary cheerful indifference, nodding to more than one acquaintance in

the crowd, as who should say, 'They don't have me for no five years, you bet!'

But Lance moved like a man in a dream. The force of the blow seemed to have arrested the ordinary action of the brain. 'Guilty! *Two years' imprisonment!* Oh, God! Was it possible! and not some evil dream from which he would wake, as in the days of his boyhood, to find himself free and happy. It could not be. The Almighty could not be so cruel, so merciless, could not suffer a wrong so foul, so false to every principle of right, truth, justice! This hideous phantasmagoria would vanish, and he, Lance Trevanion, would find himself back at Number Six, hailing the dawn with joy, ready to sing aloud as he left his couch with pure elation of spirits.'

The actuality of changed conditions was brought home to him by the prompt alteration of treatment to which he was subjected on arriving at the gaol. Marched through a large yard in which a number of prisoners were sitting or standing aimlessly about, Lance became aware that a great change had taken place in his status and prestige. Before this he was only on committal; for all the prison authorities knew, he might be acquitted, and walk forth from court unstained in reputation.

But now things were different. He was a prisoner under sentence. Bound to conform to the regulations of the establishment, who must *obey orders*. Do, in plain words, what he was told, no matter in what tone or manner couched, must perform menial services, descend from his former position to be the servant of servants, nay more, their dumb and unresisting slave, unless he saw fit to defy the terrible and crushing weight of prison authority. Should he submit? he asked himself, sitting down on the scanty bedding, neatly folded on a narrow board.

'Should he submit? or rather should he not give volcanic vent to his untamed temper, strangle the warder who next came to his cell, and "run amok," scattering the gaol guards, dying by a rifle bullet rather than by the slower but not less certain action of the prison atmosphere? Had it not killed so many another, born, like him, to a life of freedom?—and yet—he was young—so young! Life had joys in store—for a man of three-and-twenty, even if he had to waste two years in this thrice accursed living tomb! Disgrace! dishonour! Of course it was—would be all the days of his life.

Still there were other countries—other worlds, almost, of which he had since his arrival in Australia heard more than all his schooling had taught him. The Pacific Slope; the South-Sea Islands; the Argentine Republic; New Mexico; Texas; Colorado! These were localities of which many a miner talked as familiarly as Jack Polwarth of Cornwall or Devon. Two years would pass somehow. How many weeks was it? A hundred and more! The Judge, however, had ordered the time he had spent under committal to be deducted from the whole term—that was something. Well, he would see it out. He had friends still who were staunch and true. He would change his name and go to one of those places in the New World where men were not too particular about their associates' former lives—as long as they paid their way and lived a manly life. But home! Home to Wychwood! Home to his father and Estelle! Never! No! He could not look them in the face again.'

These reflections were brought to a close abruptly by the sudden opening of the cell door and the entrance of two warders, one of whom carried a suit of prison clothes. One was a tall powerful man with a hard expression of countenance and a cruel mouth. He looked at Lance with a cold, scrutinising air.

'Stand up, prisoner Trevanion,' he said, as if reading out of a book, 'and the next time you hear your cell door open comply with the regulations.'

'What regulations?' inquired Lance.

'They're on that board,' pointing to a small board placed in a corner of the cell. 'You can read, I expect? Now, strip, and dress yourself in this uniform.'

Disencumbering himself of his ordinary garments, Lance soon found himself attired in a striped suit of coarse cloth, fitted also with rough blucher boots and a woollen cap.

'Follow Warder Jackson.'

The shorter warder grinned: 'You've got to see the barber and the photographer next. You won't hardly know yourself, will he, Bracker? We've got yer photer' before you was took, and now all we want is yer jug likeness. Then we have yer both ways in case yer gives us leg-bail. Turn.'

They halted in a wide passage where a man in prison garb stood by a camera. He had been a photographer before committing the forgery for which he was imprisoned. His talents were now utilised in securing likenesses of his fellow-prisoners, a modern gaol invention which had proved of immense value in the identification of criminals who had either escaped or had committed fresh crimes.

Before being placed in position a man came out of a passage bearing a razor, with shaving materials and scissors of formidable size.

'Sit down,' said the tall warder, pointing to a bench, 'the gaol barber will cut your hair now and shave you, after this he will shave you twice a week and cut your hair every fortnight.' Subduing a frenzied impulse to seize the razor, cut every one's throat and his own afterwards, Lance sat down, and in a marvellously short time found his face denuded of moustache and whisker, while his head felt strangely cold and bristly. He submitted, vacantly staring and unresistingly, to being placed in the position proper for the apparatus. When the negative came out and was shown to him exultingly as a first-rate likeness he did not recognise himself.

This creature in the repulsive and bizarre habiliments, with cropped head and hairless face as of a patient in a lunatic asylum. Was this really himself? Was this Lance Trevanion? It could not be, unless he had gone mad. Perhaps he had without knowing it; men did not know when they lost their reason, so he had read, or how would they persist in saying they were sane? His head was burning, his eyes darkened, he gasped for breath, and before either warder could save him, fell prone and heavily on the stone floor.

He recovered to find himself in the cell to which he had first been taken. He was sitting upon the two blankets which represented bed and bedding for a hard-labour prisoner, and had been considerably propped up against an angle of the wall. He had been 'under observation' of a warder unconsciously since being carried there. This official was enabled to look in through a small barred aperture for that purpose, placed in the cell door.

When the prisoner struggled into consciousness he departed, leaving Lance to realise his position and to compose his thoughts.

Merciful heaven! what thoughts were his! Let those say who have suddenly awakened to the consciousness of crime, not only alleged but legally proved; who as criminals, in spite of denial and protest, have been tried and sentenced. To the awakened knowledge of dishonour fixed, public, irrevocable! A mark for the pity of friends, for the scorn of strangers, for the chuckling triumph of enemies! Up to a certain stage of legal conflict imagination cheats the boding heart with hope of release, victory, sudden good fortune.

But, the verdict once delivered, the sentence pronounced, hope trails her wings and abandons the fated victim; faith permits the lamp to burn so low that a breath of unbelief suffices to extinguish it; charity flees in dismay from frenzied cries and imprecations. Then this is the opportunity of the enemy of mankind. This demon train finds easy entrance into the ruined fortress of the soul. The furies are not idle. Remorse, revenge, jealousy, cruel as the grave, all the unclean and baser spirits ravenous for his soul, forsaken of God and man, as he holds himself to be, gather around the scapegoat of society as the diabolins around the corpse of the physician in Doré's terrible engraving. A carnival of evil, weird and Dantesque, begins in the lonely cell. In that hour, unless his guardian angel has the power to shield him from the dread assault of the lower forces, a transformation, such as was but fabled in old classic days, takes place. The higher qualities, the loftier aspirations, the old beliefs in honour, valour, virtue, and justice take flight for ever, while the brute attributes stalk forth threatening and unchallenged.

Day after day Lance Trevanion performed mechanically his portion of appointed work among the prison herd. To them he spoke no word. When locked up with the rest for the long long solitary night, which commenced before dark and did not end till after sunrise, under gaol rules, he sat brooding over his woes. Stirling had called with printed permission from the visiting justice to see prisoner Trevanion, but he refused to meet him. How could he bear that any of his former friends should look upon him degraded and repulsive of aspect? No! He would never see them more—while in this hateful prison-house at least. Afterwards, if he were living and

not turned into a wild beast, he would consider. Friends! How *could* a man have friends while suffering this degradation?

Towards the warders his demeanour was silent rather than sullen, but he could not be induced by threat or persuasion to affect the respectfulness which is, by regulation, enjoined between prisoners and officials. These last were indifferent, to do them justice, regarding Lance as 'a swell chap as had got it hot, and was a bit off his chump.' The exception to this state of feeling was Bracker, the head warder, who desired to be regarded with awe, and was irritable at the slightest failure of etiquette. His manner, devoid of the faintest trace of sympathy, was harsh and overbearing. To the higher class of prisoners he was especially distasteful, and from this knowledge, or other reason, they were the inmates towards whom he appeared to have the strongest dislike. It may easily be imagined that although the visiting magistrate, to whom is entrusted the duty of trying and punishing all descriptions of prison offences, is presumably impartial, yet it is within the power of any gaol official, if actuated by malicious feelings, to irritate a prisoner to the verge of frenzy, and afterwards to ensure his punishment under form of law. The trial takes place within the walls of the gaol. The warders give their evidence on oath. In a general way they corroborate each other's testimony. It is not difficult to foretell, even though the magistrate be acute and discriminating, how the decision will go. The punishments permitted in prison vary in severity. Confinement in a solitary cell with half rations, or even bread and water, for periods varying from three days to a fortnight, mark the initiatory stage of repression. Then comes the dark cell, an experience which awes the boldest.

After which, for insubordination coupled with unusual violence of speech or action, flogging may be inflicted, if a second magistrate be present at the hearing of the case. This was the code to which Lance Trevanion now found himself amenable. All ignorant of its pains and penalties, he bore himself with a sullen contempt alike of the tasks and routine observances by regulation imposed upon all prisoners. He obeyed, indeed, but with an air of indifference which provoked Bracker, who secretly resolved to 'break' him, as the prison slang goes. To that end he commenced a line of conduct which he had seldom known in his extended experience to fail. More than once, however, in his career, Bracker had been accused of cruelty to prisoners. At the last gaol where he had served the visiting magistrate had come to the

conclusion that these repeated charges were not entirely without foundation, and so reporting, his official superior had warned him that if any offence of the kind was proved against him he would be disgraced, if not dismissed. It was therefore incumbent on him to be wary and circumspect.

He commenced by speaking roughly to Lance almost every time he entered his cell, compelling him to roll up his blankets several times in succession under the pretence of insufficient neatness, swearing at him when there was no one near, and abusing him as a lazy lubber who wouldn't take the trouble to keep his cell neat and wanted to have a body-servant to wait upon him. Among Mr. Bracker's other engaging qualities was that of being a radical of the deepest dye in politics and a democrat particularly advanced. A child of the masses, he had received just sufficient education to qualify him for a rabid advocacy of certain communistic theories. Arising from this mental enlightenment partly, as well as from the fundamental condition of an envious and malignant nature, was a hatred of privileged orders and an unreasoning spite towards gentle-folk and aristocrats of whatever sex or grade. He had read accounts of the French Revolution and lamented that he had not the power to put in force, in these degenerate days, some of the drastic remedies by which 'the people' of France ameliorated their own condition and wiped out the long score of oppressions which they had suffered at the hands of their natural enemies.

As a man, a politician, and a warder he felt therefore a subtle satisfaction in tormenting a member of the hated class secretly. He felt it due to himself also, as a matter of professional etiquette, not to be 'bested' by a prisoner under sentence. He settled to his daily dole of insult with cruel craft and grim resolve. Such may have actuated a plantation overseer in South Carolina towards a contumacious 'nigger' in the good old slave-holding days before the war.

Daily the 'assistant torturer' pursued his course. Mere oaths and continuous abuse were always carefully timed to be out of earshot of all others. Daily Lance Trevanion endured in silence the varied taunts, the bullying tone, which he had never needed to bear from living man before. Indignant scorn lit up his sad despairing eyes at each fresh provocation. More deeply glowed their smouldering fires, but no word came from the tightly-

compressed lips; no gesture told of the well-nigh unendurable mental agony within, of the almost unnatural strain.

'Yes, you may look,—blast you for an infernal stuck-up aristocrat,' Bracker said one morning. 'You know you'd like to rub me out, but you're not game—*not game*—do you hear that? You and all your breed in the old country, and this too, have been living all your lives on the labour of men like me, and treating us like the dirt under your feet, and you can't salute your superiors like another prisoner. You're too grand, I suppose. But by ——, I'll break you down, my fine fellow, before I've done with you. I'll have you on your knees yet. You're not the first that's tried it on with me, and, my word! they paid for it. I'd like you to have seen them knuckle under before I left off dealing with them.'

The next day, on some transparent pretence, Lance was ordered to take up the work of one of the long-sentence prisoners, which involved menial and degrading, not to say disgusting duties. These he performed patiently and mechanically, yet with a far-off look as of a man in a dream. Even this penance was insufficient to appease the malevolence of his tormentor. He made a practice of standing near, watching his victim, enjoying the spectacle of the captive 'swell' engaged for hours in the meanest conceivable employment. From time to time he made brutal jokes upon the situation with his assistant warders or those prisoners who were always ready for personal reasons to take the side of their taskmasters.

After the night's stillness and respite—stillness how oppressive, even terrible in its unbroken silence!—Lance would brace himself to confront anew his bitter fate. He would repeat to himself all the reasons that he could summon for stubborn endurance and patient adherence to the course he had laid down for himself. But with the morning light came his inexorable foe, ordering him here and there, persisting in declaring that he was in the habit of breaking minor regulations, making a laughing-stock of him before other prisoners in every way, driving him along the road which was sure, in Bracker's experience, to land him in some act of overt insubordination.

One morning, after an hour's trial of every species of aggravation, Lance's patience so far failed him that he turned upon his persecutor and told him that no one but a coward would thus treat a man in his position, and who

was unable to defend himself or retaliate. He did not say much, but doubtless committed himself to the extent of infringing the gaol regulations, which enjoin respect and obedience to all officials.

His adversary at once seized his advantage, and ordering him back to his cell locked him up, pushing him roughly inside the door. This portion of his duty performed, he lodged a complaint in due form of insubordination against Launcelot Trevanion, hard labour prisoner under sentence.

The gaoler held over the case until the end of the week, when Mr. M'Alpine, as visiting magistrate, regularly attended to hear cases and complaints.

The trial of prisoners charged with such offences is conducted *in camera*, the magistrate, the gaoler, the parties to the complaint, and the witnesses being only present. For reasons held to be sufficient, the public and the press are excluded. Evidence on oath is taken down in writing, that the depositions may be afterwards referred to. The magistrate decides on the evidence brought before him. The accused is permitted to call witnesses. But for obvious reasons the warders and the companions in captivity of the culprit or complainant constitute necessarily the only available testimony. Thus it is to be feared that occasionally the scales of justice may be deflected, and though forms are adhered to, wrong-doing triumphs and revenge is wreaked.

So, in the present case, Bracker swore positively that Lance had habitually refused to obey orders, and on this occasion had abused and threatened him in language unfit to be repeated. He handed in a paper on which was written a selection of foul expressions of his own invention. His tale was corroborated in part by another warder, who had heard Lance speak in an excited tone of voice to the complainant—though he was not near enough to catch the sense of his words. One of the prisoners—mindful of favours to come—'swore up' in Bracker's interest, and more circumstantially confirmed his story. Against this weight of evidence Lance's denial availed nothing. His resentful demeanour tended to prejudice Mr. M'Alpine against him as being mutinous and defiant. There was no little difficulty in preserving order among the desperate *détenus* of the day, as it was. The sternest repression was thought necessary. In view of example and deterrent effect, Lance was therefore sentenced—after an admonition of curt severity

—to a month's solitary confinement upon bread and water, the last week to be passed in the dark cell.

The ill-concealed triumph depicted on Bracker's countenance was hard to bear. The solitary cell, the meagre fare, often unduly abridged, represented to a man of Lance's temperament and experiences the extremity of human wretchedness. But a sharper sting was added by Bracker's daily jeers: 'So you won't give a civil answer yet when you're spoke to,' he said, one afternoon, stirring Lance rudely with his foot. 'And you won't stand up when you're told? Wait till to-morrow, when you're due for the dark 'un—seven days and seven nights! That'll bleach you, my flash horse-thief, like a stick of celery! I'll take the steel out of yer before I've done! Bigger chaps than you have been straightened here before now!'

On the next morning, accordingly, Lance was marched to the dark cell, and thrust in so roughly that, weakened as he was by his Lenten diet, he fell down, bruised and half-fainting. There was barely sufficient room in the small circular cell for him to lie at length, and as he regained a sitting posture and strained his eyesight to discover one ray of light amid the almost palpable darkness, he realised fully the utter desolation and horror of his position. Despair took possession of him. Forsaken of God and man, as he deemed himself to be, he raved and blasphemed like a maniac, ceasing only when sheer exhaustion brought on a stupor of insensibility, from which he passed into perturbed and fitful slumbers.

He awoke only to undergo with partially renewed faculties still keener miseries. Unaware of the time which he had passed in sleep, he was ignorant whether it was day or night. No sound penetrated the thick walls of the cell. The Cimmerian gloom was unrelieved by the faintest pencil of light. Had he been dead and entombed he could not have been more utterly separated from knowledge of the outer world—from communion with the living. Days seemed to have passed since he first entered the cell. His brain throbbed. His heart-beats were plainly audible to him in the horrible silence. Delirious fancies commenced to assail him. He saw his father's form as he had last seen it, with visage stern and inflexible. He seemed to say: 'All that I foresaw has come to pass. You have dishonoured an ancient name!—blotted a stainless escutcheon! Die, and make no sign!'

Then his cousin Estelle's sweet face came slowly out of the gloom, gazing upon him with sorrowful, angelic pity. The infinite tenderness, the boundless compassion of love, shone in her starry eyes, which, in his vision, commenced to irradiate the gloomy vault. Clearer grew the outlines of her form—a celestial brightness appeared to render visible every outline of her form, every lineament of her countenance, as she inclined herself as if to raise him from his recumbent position. He threw up his arms with a cry of joyous recognition. The action appeared to recall his wandering senses. The impenetrable dungeon gloom again closed over him like a descending iron platform. A steel band appeared to compress and still more tightly environ his brain, until a deathlike swoon terminated simultaneously both agony and sensation.

CHAPTER XIV

When Lance issued from the dark cell and was relegated to ordinary confinement, he fully justified Bracker's anticipations in one respect. He was 'bleached,' as that official had described the change of complexion likely to result. His face was ashen white, his eyes had a vacant stare like those of a blind man. He staggered from weakness, so that the warders were fain to hold him up more than once. When addressed he made no answer. It seemed as if his senses had suffered partial obliteration. Bracker was not present when his victim was returned to his cell after serving the full term of punishment. The other warders, who had no special dislike to him, were indulgent rather than otherwise in their treatment and comments.

'You're a bit low, Trevanion,' one of them said; 'I'd ask to see the doctor if I were you, and get sent to hospital for a week or two. He'll order you wine, and soup, and things. You'll be slipping your cable like that other chap Bracker got into trouble about, if you don't mind.'

Lance made no reply. He sat down slowly and doubtfully upon the folded blankets at the farther end of the cell, steadying himself with difficulty against the angle of the wall.

'Now, you take my tip,' said the elder of the two men to his fellow as they left, after bolting the cell door with the clang inseparable from prison life, 'that chap will do one of three things before a month's out. Bracker's been running him too hard. He's a well-bred 'un, and they won't stand driving. He'll either die, go mad, or——'

'Or what?' said the younger man.

'Well, Bracker had better look out. Some fine morning he'll have Trevanion's fingers in his throat, and he mayn't find it so easy to get 'em slacked off again. I've known that happen before now. And when the chap was choked off it didn't matter to Dawkins. *He* was the warder. It happened when I was at the stockade.'

'Why didn't it matter?'

'Because *Dawkins was dead!* The chap laughed when they dragged him off, and said they might do what they liked with him. He'd settled Dawkins, and that was all he cared for in the world. They might hang him now, and welcome.'

'And did they?'

'Of course they did, but we old hands knew Dawkins had been tantalising him; it was a way of his with some prisoners, and this cove made up his mind to rub him out. He got him to rights, safe enough.'

'Hadn't we better tell Bracker?'

'What for? He thinks he knows everything, and wouldn't thank us. Likely think we'd been putting up something to get his place. Let him take his chance like another man.'

When the medical officer saw Lance he ordered his immediate removal to the hospital ward. He said the prisoner was dangerously low and feeble; that his health had suffered more than could be accounted for; and that there were certain bruises and excoriations which could not have been produced in any ordinary way. He spoke kindly to Lance, and advised him to follow his treatment and diet marked out for him, and to be more cheerful and resigned if he wished to get well and come safely through his imprisonment.

'You're only a young man, Trevanion,' he would say. 'After this couple of years are out there is nothing to prevent your going to the United States, or to any other part of the world where people have never heard of you, of Ballarat—hardly of Australia, for that matter. And what a deal of life there is to come for you—the best part too. Take courage and make up your mind to bear the necessary hardship of your sentence, and look forward to the day when you will go forth a free man.'

Whether acted upon by this well-meant advice, or following out some course of action nurtured like the fungus of a dungeon in the dark depths of his brooding heart, a change took place in the sullen captive's mien. He seemed thankful for the 'medical comforts' doled out to him, and availed himself of them readily. He listened respectfully to the chaplain and gaol surgeon, and when, after a fortnight's treatment in the hospital ward, he was reported fit for the ordinary discipline of the gaol, the warders with one exception declared that they would not have known him to be the same man.

The ordinary routine of prison life is scarcely calculated to develop the finer feelings in the keepers of the wild beasts in human form over whom they hold watch and ward. Boundless dissimulation, craft and subtlety, tameless ferocity, ruthless cruelty, are their leading characteristics. Apparently peaceable and harmless, theirs is but the guile of the red Indian or the dark-souled Hindoo, biding his time until the hour comes for murder and rapine. Let but the keeper relax vigilance; let the sentinel slumber at his post, and mutiny and murder are prompt to unmask. Still, with this knowledge drilled into them by decades of experience, the ordinary prison officials are just if not merciful, strict but not severe; while their own discipline is so rigorous that any departure from regulations is sternly and invariably visited on the offending official.

Bracker was an exception—for the credit of the department it must be admitted that he was the only man in that great prison-house who would have acted as he did towards any prisoner, however vexatious.

As Lance passed into his cell he saw his oppressor watching him with the expression he knew so well. He was not long left in suspense.

'Didn't Saunders complain of not being strong enough for the wood and water work, Jackson?'

'Yes, sir,' replied the under warder.

'Well, take this man here and put him in his place. He's fat and lazy enough after his loafing in the hospital to do a little work again.'

'This way, Trevanion,' said the warder. 'You've got to work in the lower yard.'

As he passed Bracker their eyes met for an instant.

'You're not worked down yet, my man,' said Bracker, with an insolent laugh. 'Wait till you've had another month's graft where I'm going to put ye. "Jimmy Ducks" aboard an emigrant ship's a fool to it.'

Lance drew himself up for an instant and looked full into his tormentor's face. The cruel cowardly eyes fell for a moment before the gaze of the patrician, degraded and despairing as he was. Then the warder quietly pushed him on.

'Don't cross him, if you take my advice,' he said. 'He's a devil all out when he goes for a prisoner, and I never knew one that didn't come off worst in the end. You lie low for a bit and give him his head. The doctor's your friend now, and he'll see he doesn't crowd you.'

Lance nodded his head in recognition of the kindness of the man's intention, then silently commenced his laborious and uncongenial task. When he returned to his cell at night worn out and exhausted by the unwonted toil, hardly recovered indeed from the pitiable weakness to which he had been reduced, he swore a bitter oath and then and there registered an unholy vow.

From that hour he awaited but opportunity to wreak a full measure of vengeance upon his adversary. He felt his strength declining day by day. Daily did he endure the cheap taunt, the cruel mockery, the ingenious expedients, by which Bracker sought to intensify his misery. But a single chance he would yet give to him, if he had the manhood to accept it.

One morning he addressed him with the usual salute.

'I wish to speak a few words to you, and before I do so I wish you to understand that I mean no—no—disrespect——'

'Speak and be d—d,' was Bracker's courteous rejoinder.

'It is only this. You have been what the people here would call "running me,"—that is, putting me to work above my strength, insulting me habitually as well. Why you should do so is best known to yourself. I can't stand it much longer. If you will leave off this line of conduct and treat me

fairly, like any other prisoner, I will promise on my part to—to—behave well and reasonably. Don't decide in a hurry—it may cost both our lives.'

Bracker laughed aloud. He stopped to look at Lance more than once, then he laughed as at too exquisite a joke. It was the mockery of a fiend exulting in the agonies of a demon-tortured soul.

He misconceived the situation. He concluded that his captive's courage had failed him; that henceforth he would be able to treat him with the contemptuous cruelty with which he was wont to finish his persecutions. He triumphed in his foresight, and could not forbear showing a cowardly exultation.

'So you've dropped down to it at last, my flash horse-duffer, have you? You've shown the white feather that I always knew was in you—a rank cur from the beginning, with all your brag. By God! I'll make it hotter than ever for you, just for this very bit of impudence. D—n ye! Get back to your muck.'

As he spoke the last words, ending with a foul expression, he had drawn near Lance, and raising his foot as if for a contemptuous kick, he placed his hands on his shoulders. The long corridor between the cells was for the moment without a second warder. With a panther-like bound Lance sprang forward, and in another moment his hands were at Bracker's throat, clutching with the grasp that death alone relaxes.

'Dog!' he ground out between his teeth. 'Your last hour is come. Die, wretch, and go to hell—die, if you had a hundred lives, scoundrel and villain that you are—die for your cruelty to a helpless wretch that never did you harm!'

So sudden was the onslaught that Bracker, though a powerful man, had no chance of resistance, never dreaming that the cowed convict, as he took Lance to be, would turn upon him. In another moment he was on his back on the floor of the cell, his foe with knee on chest awaiting the moment when the blanched features should display no sign of life, nor abating for one second the deadly gripe of the slayer of his kind.

Of his own safety—of his assured doom for killing a prison official—he thought not. The blood fury was on him. His unendurable wrongs, his daily torment, had reached the point of desperation when the human animal turns

at bay, disregarding alike the hunter's spear, the baying hound, the fast-flowing life-blood.

Another minutest subdivision of time would have settled the matter. Another dead warder would have been found by the side of a reckless and desperate prisoner. The usual inquest would have been held, when, after a verdict of wilful murder, the rope or a sentence of imprisonment for life would have terminated all public interest for a season.

But in mercy or otherwise to Mr. Bracker an attendant accidentally returned to the corridor and noticed the open cell door. This, of course, was irregular. Rushing towards it he was just in time—hardly a second too soon—to prevent Mr. Bracker, 'our late respected head warder of Ballarat gaol' as he would have been styled, from posing as a corpse, and Lance Trevanion, late of Wychwood, Cornwall, from becoming a murderer!

Some considerable time elapsed before Mr. Bracker returned fully to his senses after regaining consciousness. He had been hurled to the cell floor with such violence that concussion of the brain had taken place, while his swollen throat testified to the deadly gripe of the victim who had so nearly turned the table upon his tormentor. It was fully a week before he was in a condition to give evidence before the Visiting Justice. The interval Lance was condemned to spend in 'solitary,' to be nourished wholly on bread and water,—to be abandoned in fact to the society of the Furies, which none the less mordantly than in the days of the world's green youth rend the heart and shatter the brain of their ill-fated or guilty victim.

Lance was rapidly passing from one stage of misery to the other, from the unmerciful to the merciful woe. As he sat or lay in his cell the long hours through, the thought crossed his brain, revelled and ran riot there, that if he had only persevered in his policy of endurance, if he had been strong and patient instead of weak and impulsive, this needed not to have happened. He might probably have found some door of escape from his tribulation, not literally of course, but through the clergyman and the Visiting Justice, the latter of whom would have been most uncompromising in punishing an official who misused his power.

Now that the storm of passion was over, the fury spent, the *brevis insania* passed away, calmer reflection would intrude. To what further sentence had

he rendered himself liable? Would he be committed for attempted murder, or would it be manslaughter? Should he be condemned to a further sentence of years—long years of imprisonment? Might he not be hanged for the attempt to commit the capital offence? No doubt he intended to kill Bracker—that he would not deny. His mind was made up. If a shameful death or long imprisonment was to be his doom, he would rid himself of a worthless life. He had procured the means of self-destruction during his first remand. The feeling aroused among his fellow-captives by his daring attempt to take the life of his gaoler was peculiar and exceptional. Though many of the prisoners from motive of policy were subservient to Bracker, he was liked by no one. He had been known to be trying to 'break' or crush Trevanion. Cruelties and unnecessary severity springing from the irresponsible use of power are presumably not unknown in gaols. But the prison herd knows that at a certain point despair sets in. Reckless retribution follows, and the life of the agent or leading actor in the tragedy nearly always exacted counts with himself and his fellows merely as dust in the balance.

The criminals like to think that from their midst will arise at least one man who devotes himself to sacrifice, so only may he avenge himself and them upon their enemy. The time comes, and with curious certainty the man. Then the words of the first warder come true. The sullen patience of the harassed convict, who rarely resents routine discipline, however severe, becomes exhausted, and the debt is paid in full by a brutal murder or a life-long injury. Let it be borne in mind that 'early in the fifties' the problem of successful goldfield management was yet unsolved in Australia. The legislation had been chiefly tentative; the police and prison arrangements were incomplete. From the seething mass of the mining population, not always ruled with tact or temper, smarting under alleged injustice and excited by the enormous yield of the precious metal, arose a dangerously large and increasing criminal class. The overcrowded gaols, ample for a pastoral colony, were unable to contain them. Among the more experienced officers apprehensions of a revolt of the mining population—unhappily but too well-founded—began to assume the appearance of certainty. In such event the prisoners, if altogether centralised or confined inland, might easily be liberated—would hardly fail to be so on the first outbreak. Considering these contingencies, the Government of the day determined to relieve the pressure upon the metropolitan gaols by establishing prison hulks. Vessels

moored in the waters of Williamstown Bay could be more easily guarded—would obviously be more difficult to escape from. Ships by scores, deserted by their crews, lay at anchor motionless and tenantless as that of the Ancient Mariner. Their owners were too happy to sell at any reasonable price. The idea was approved—not sooner approved than acted upon. The *President*, the *Success*, the *Sacramento*, the *Deborah*, were purchased and forthwith proclaimed to be, and to be considered, Her Majesty's gaols. They became from that day floating prisons. There were those long after who did not hesitate to designate them as floating hells.

One of the leading ideas connected with the scheme was the compulsory labour of the convicts, who, it was thought, might be employed beneficially to themselves and to the state in building at Williamstown—then a chief port of Melbourne—wharves, lighthouses, and docks. There were millions of tons of blue-stone—a species of volcanic trap—to be had near the shore for the quarrying. Harbour accommodation was miserably insufficient. The labour of a thousand men was a valuable consideration in that day of dearth of every kind of manual labour. Long afterwards the navvies employed in the construction of the Yan Yean aqueduct received one pound sterling per day. At this time double the wage would not have furnished the labour these convicts performed, and in many instances performed well.

The *President* enjoyed the bad eminence of being styled and worked as a strictly penal hulk—an abode for refractory and desperate criminals. Many of these were, in the prison slang, 'long-sentence men,' incorrigible felons serving a life sentence for repeated offences; men who could not be trusted to work even in the iron-gangs—so skilful and determined were they in all methods of escape. Many of these were doomed never to leave the *President's* gloomy cells but for the coffin and the shroud. Others again, after performing the allotted form of strictly penal and reformatory discipline, were drafted on board the *Success*, where they underwent the more popular and varied experience of working in the quarries on the mainland—in irons, it is true, but having the excitement of a daily voyage to and fro in one of the barges used for the purpose.

When Lance was brought up for trial he found to his relief—if indeed anything could have afforded him a gleam of satisfaction—that in spite of the heinousness of his offence—penally considered—a favourable feeling had sprung up with regard to him. Now that Bracker had in their opinion got his deserts, several of the 'good conduct' prisoners came forward with voluntary statements. They had seen the injured man knocking about the prisoner Trevanion. He was always 'tantalising,' and seemed to want to provoke him to a breach of regulations. Had not spoken before, because they were afraid of Bracker, who was well known to be revengeful. It was believed in the gaol (sent round, doubtless, in the wonderful way criminals have of communicating with each other) that he had caused a prisoner in another gaol to hang himself.

Two warders had also noticed his conduct to prisoner Trevanion when he came out of hospital. Thought it severe and unnecessary. The prisoner's own statement was taken on oath. He admitted the offence, but averred that he had become reckless through consistent ill-treatment. Bracker, of course, denied everything in the most unabashed manner, looking with evil eye upon the recalcitrant warders and the 'good conduct' prisoners. But the papers had been sent for in the last inquiry made into his conduct, also upon a charge of cruelty to prisoners. The evidence, unfortunately for him, was very similar. Mr. M'Alpine, who was an unsparing foe to all official misconduct, at once decided against him. After a terrific lecture, he reminded Bracker that he had been disgraced for a former offence of a like nature. He should recommend him, therefore, for dismissal, which recommendation, to the general joy of the inhabitants of the Ballarat gaol, was promptly carried out.

'Prisoner Trevanion, whose conduct if condoned must have a bad effect upon the other prisoners (*other prisoners*, how the words fell like drops of molten lead upon his heart!), is ordered to serve the rest of his sentence on board Her Majesty's hulks at Williamstown.'

Two stern-faced men set out from Lynn
In the cold and heavy mist,

And Eugene Aram walked between
With gyves upon his wrists.

This verse, from Hood's pathetic ballad, Lance had been fond of and learned by heart as a schoolboy, little dreaming how closely the circumstances would apply to himself in the after-time.

It *would* keep ringing through his brain with incessant automatic iteration, as Lance found himself early next morning driven off to Ballarat, leg-ironed and handcuffed, in charge of two warders. The two men, with himself in the centre, took their seats in the back part of Cobb's coach, and in company with various other passengers, clerical and lay, male and female, as is the slightly unfair practice of the Government, looking at it from the standpoint of the travelling public. However, no great inconvenience having so far resulted, the sentimental objection to travel with criminals has lessened. And being decidedly the more economical mode of escort, as far as the Government is concerned, the arrangement is continued.

Of course glances of pitying wonder were cast from time to time, especially by the female passengers in the crowded coach, at the men in police uniform and the sad, sallow, clean-shaved man sitting between them. One young girl alone, though sitting nearly opposite, had exhibited no interest in the trio. She sat near the right-hand door of the coach. Closely veiled, she had turned her head towards the town and the crowd always attendant on the departure of a coach.

The clock struck six. The powerful high-conditioned horses sprang at their collars, obedient to the practised hand of 'Cabbage-tree Ned,' one of the 'stage' heroes of the period. The heavily-laden coach swayed on its thorough-brace springs and rattled down Sturt Street at the rate of twelve miles an hour. More than once had Lance been the envied occupant of the box seat beside this very driver, who, smoking the proffered cigar, was as civil to Trevanion of Number Six as an official of his exalted position could afford to be to any one.

And now he sat, chained and alone,
The 'warder' by his side,
The plume, the helm, the charger gone, etc.

Gone, gone, indeed,—how many things had gone!—fame and fortune, hope, honour,—all that made life worth living. The sooner that wretched dishonoured life went too, the better for all. Thank God, it would be easy to drop overboard from barge or boat—the waters of the bay had ended the sorrows of many a hopeless wretch, it was said. The heavy irons provided for a quick and silent escape from life's weary burden.

An involuntary sigh, as the sequel to the train of thought, from the fettered captive, together with a faint but distinct tinkle from his leg-irons, appeared to arouse the girl from her reverie.

She gazed at the prisoner long and earnestly, then with a cry of grief and despair which thrilled the hearts of all who heard her she threw herself forward, and clasping his manacled hands within her own looked into his face, worn and altered in every feature as it was, with the piteous agony of a frightened child.

It was Tessie Lawless!

'Lance! oh, Lance!' she cried in tones so full of anguish that the warders forbore to interfere, and the coach passengers listened in sympathetic wonder. 'Is this what they have brought you to? Oh, wicked wicked girl! Worse and more wicked man! For I know now how they plotted to destroy you. Your blood will be on our heads. Surely we must suffer for this if there's a God. Where are they taking you to? Oh, God! have mercy!'

The driver having inquired tersely into the occasion of the disturbance, and having gathered that a girl had recognised a friend or relation in the prisoner, lighted a fresh cigar and let his horses out adown the incline with the remark that accidents would happen, but a good-looking girl like her had no call to fret; she might have her pick of twenty new sweethearts long before this one had served his time. Women would go on like that, he supposed though, to the end of the world.

The public, as represented by the twenty inside passengers, did not exhibit undue surprise or other emotion. Some of the women whispered 'poor thing—fine young fellow too—pity he's gone wrong,' and so on. The men kept mostly mute, though not unsympathetic. They were not unused to seeing tragedies acted in everyday life in those unconventional days of the early

goldfields. The passions had lacked hiding-places such as are furnished by a highly-civilised community.

The crowded goldfields camp more nearly represented 'board ship' than the provincial life pure and simple, and things were done and said, necessarily *coram publico*, which in more conventional communities would have been wholly suppressed or excited inconvenient remark.

Therefore, after a vain attempt to persuade poor Tessie to moderate her feelings, Lance was fain to yield to the contagion of her grief. Weakened in mind and body by his late sufferings, softened by the tenderness of her every tone, and touched by the first kind words he had heard since his imprisonment, he was fain, though hating himself for the weakness, to weep for company. As the tears streamed down the convict's grief-worn countenance—tears which he vainly strived to hide with his manacled hands—every heart was touched, and those emotions of our common humanity which ennoble the species were deeply stirred. Murmurs of 'Poor things,' 'Poor girl,' 'Hard lines,' etc., were heard. Even the warders, though unused to the melting mood, were raised from out of their ordinary groove of total indifference to human suffering not provided for by the gaol regulations. After a short colloquy the one nearest to Tessie motioned to the girl to exchange seats, an offer which she thankfully accepted.

There was no dereliction of duty involved in this charity, which was heartily and unanimously endorsed by their public. Relaxation of discipline was necessarily permitted in the case of escort of prisoners from one part of the country to another. Such a task was generally looked upon in the light of a holiday by warders or police troopers. It involved change of air and scene, higher pay for a time, and with various perquisites and indulgences. All that was required of them was to deliver over their charge safely to the authorities. That being the result, they were allowed a certain latitude with regard to the means. If the prisoner thereby escaped, their punishment was exemplary. It often happened, however, that the prisoner, being a fair sort of fellow (as prisoners go), was conversed and generally associated with on terms of equality. Of course proper security was exacted. A single trooper, camping out through a stretch of thinly-inhabited pastoral country, has been compelled to handcuff himself to the prisoner nightly for his better

safeguarding. But these formalities apart, much cheerful companionship has ere now been enjoyed between the (official) 'wolf and hound.'

Hence, as the first warder observed in a gruff whisper, 'they had no call to bother their heads if the poor chap's girl wanted a yarn with him. It was the last one as he'd see for a spell, unless he fell across a mermaid.' Here the speaker, who had been a ship's carpenter once, growled a hoarse rumbling laugh. 'Let him have his bit o' luck for once. He'd got stiffish times to come, or else they'd heard wrong.'

So Tessie, sitting on the right side of Lance—there being no one to the left of him at the coach-window—leaning her head on his shoulder, commenced to whisper in his ear. The friendly warder studiously gazed at the fast-flying landscape, as if it possessed peculiarly picturesque effects. The second man almost turned his back upon Lance in his anxiety to be out of the reach of confidential communications, while Tessie's murmuring voice, instinct with more than womanly tenderness, sounded in the ear—ay, in the heart of the captive, so lately sullenly despairing of God and man—like the voice of an angel from heaven.

'You may think me immodest, Lance,' she said—'I may call you that now, may I not?—but I don't care. There are times when a woman must follow her own heart, and this is one of them. I would tell you what I feel now if there were hundreds looking on. I cannot help it; and what does my poor life matter? When I think of what you were when I first saw you! full of health, hope, and spirits, with a smile for every one, and under compliment to no living man, I felt as if my heart would burst when I saw you—saw you—as you are!'

Here the girl's tears streamed down like rain—and she sobbed, though striving with all her will power to restrain her feelings—till her slender form shook and trembled in a manner piteous to see. Her forlorn companion gazed at her silently, with a world of misery in his hollow eyes. Just at that particular juncture the conversation in the coach became, if not more cheerful, decidedly more loud and animated, and their united voices helping to drown poor Tessie's lamentations, some poor opportunity was given her to recover herself.

'You think me very silly,' she said, with a miserable attempt to smile. 'I did not know how much I cared for you until the trial—women don't always. I thought I had a friendly feeling, and no more, till I felt I could have killed Kate—wretch that she is! for the part she took against you. Then I knew—that I loved you! Oh! my God! I know now! But you would never have been told it if you had been free and rich—not now—not now either—except I thought I could do you some good—some good, after helping to ruin you. God forgive me!'

'I have been back to Ballarat, back to Eumeralla and the Snowy River, to other places, too, because I was determined to find out how the thing was worked between Dayrell and Kate.'

'And did you find out?' Lance said, and his voice sounded strangely hoarse in the girl's ear—even his voice had changed, she thought. 'What fiends there are on earth!'

'I am certain that I have,' she answered. 'I daresay you wondered—and so did I—what made Kate so venomous against you all of a sudden? Dayrell didn't like you because you thought yourself above him, and for another reason, and besides he wanted to get his name up for a conviction, because so many horses had been stolen and the Commissioner had been blaming the police.'

'What was the other reason, Tessie? I never did him any harm.'

'Well, it doesn't matter now, but he—he—chose to fancy he admired me—poor me!—when we lived at Eumeralla. I never could bear the sight of him—and showed it. One of the boys stupidly chaffed him about it after we came to Growlers', and said I was "gone upon you," as he called it. That foolishness made all the mischief, I believe. He set himself to have you somehow.'

'And he did! May God blast and wither his soul and body, as he has mine!' groaned Lance, with a savage intensity that made the girl shudder.

'Oh, don't—don't!' she cried. 'I can't bear to hear you speak like that, you seem so different when you do. Then, when you were searched, he found a letter which you had half-written to your cousin in England, and out of that he made greater mischief still. He finished it himself in his own way, and

then read it to Kate, making her believe that you had been engaged to your cousin all along, and were making game of her as a half-bred, common bush girl that you were amusing yourself with.'

'Then how about seeing me at Eumeralla? *you* swore to that!' said Lance reproachfully, unable to repress his anger as he thought of the strange medley of fact and fraud by which he had been betrayed.

'I did, God help me!' said poor Tessie, very humbly. 'Why couldn't I swear falsely, like others? It was that villain Trevenna. I have seen him since, but only for a moment or two. It is the most extraordinary likeness that ever was seen. I was deceived, and so were the other honest witnesses. He was also in the plot against you. He was an admirer of Kate's, and she played fast and loose with him. When he heard that you and she had met at Growlers', and were seen riding about together, he was furious, and vowed to shoot you if he got a chance. He was in with Ned and Dan in some cross work at Eumeralla, but only showed on occasions. He used to come across from Omeo, where, if all reports are true, the worst villains in all Australia are gathered together.'

The day was cold, and long besides to the crowded passengers, relieved only by a short mid-day halt for refreshment. The roads chiefly unmade and deep with mud, through which the steaming team rushed, unrelaxing the high rate of speed with which they had started. Their colours were hardly discernible. Along the plank road for twenty miles matters were something better; here the pace was at times little less than full speed. Even then occasionally a loose plank would fly up as a horse trod too near the end, and a shower of mud and water would be impartially distributed. Two persons only felt not the enforced tedium to be a weariness. Lance and Tessie, in the early gloom of a winter evening, were enabled to talk still more at ease. They enjoyed their opportunity, this wintry smile of fortune, as those who might never meet again in life. So many chances were against it. But this strange interview had been most beneficial to Lance. It had softened his heart and revived his drooping, well-nigh extinguished faith in Providence and his fortune. The girl persuaded him to promise that he would do his best to disarm his gaolers by good conduct. The chances were against his finding a second Bracker. She would find means of communicating with him from Melbourne. Trust her for that! She had

already given liberally to his present guards, who were fully convinced that she was a young woman deserving of every consideration.

'You promise me, on your honour,' she said, as the lights of the town and the well-macadamised street warned of the approaching halt.

'My honour?' he said drearily.

'Yes, your honour,' she answered proudly; 'I believe in it, and so will others yet.'

'I promise,' he said; 'may God bless you, Tessie, whatever may be my fate.'

They sat silently, her hands clasped around his, her head against his shoulder.

'Mine is a strange love tale,' she said, 'is it not? But for this meeting, it might never have been told. No living man shall hear such words again from me. And to think that you and I may never meet again!'

The coach stopped. There was the usual bustle of escaping passengers and mislaid luggage, as the girl threw her arms around Trevanion's neck and kissed his lips, his cheeks, his forehead, with passionate fervour.

'You are mine,' she said, 'for this day if for no other, and, unless my heart tells me false, it is the last last time! Do not forget poor Tessie; if she could have saved you with her life you would have been free and happy. May God bless and keep you.'

She descended the coach-steps slowly, and, walking calmly down the lighted street without looking back, was soon lost in the crowd of busy or pleasure-seeking wayfarers.

CHAPTER XV

After the conclusion of the sitting of the Court as presided over by His Honour Judge Buckthorne, when Lance and Ned had been carried off to undergo their allotted sentences, it was observed that Kate Lawless and Sergeant Dayrell, while apparently strolling aimlessly together along the street, were engaged in an earnest and apparently confidential conversation.

'Well, that chap was got to rights if ever a man was,' observed the Sergeant. 'There'll be some of the flashness taken out of him before he comes out again.'

The girl looked at him searchingly before she answered. When she did there was no triumph in her voice.

'Poor devil! it *was* hard lines, when you come to think of it. And all for a horse that he knew no more about than the dead! He looked at me, as he walked out, so sad and fierce-like I couldn't help pitying him.'

'You mean you might have pitied him if he hadn't thrown you over for the girl at home—if he hadn't treated you like the dirt beneath his feet after promising to marry you—after amusing himself by making love to you as if you were a South Sea Island *wahine*!'

'Perhaps he did. Suppose he did,' replied the girl musingly, evidently in one of those fits of reactionary regret which so often in the feminine nature—strange and enigmatical always—are prone to succeed the exaltation of passion. 'For all that, I feel sorry, now it's over. I can't get him out of my head, locked up in one of those beastly cells.'

'Your brother Ned's in one too. You don't seem to think of him.'

'No, I don't—not so much. Ned's different. He's been working for it these years. He's lost the deal and has to pay up. He's not one to whine either, and I'd take the odds he's out again and in the mountains long before his time's up. But when I think of Lance and what a swell chap he was, so hearty and jolly when we first seen him, I feel like a good cry.'

'Perhaps you'd like to pass him over to Tessie when he comes out,' sneered the Sergeant. 'She'd be so happy to console him.'

'I've that feeling for him yet, bad as he's treated me,' said the girl, raising her head and stamping her foot, 'that I'd kill any woman that took him from me, even now. He's played me false and thrown me over, I know, and yet, by George!' she cried, suddenly facing round upon the Sergeant, while her eyes flashed and her bosom heaved with sudden passion, 'I wonder if he *did* write all you showed me? I can't read a line, more shame to father and mother that never had me taught like that Tessie. So what's to prevent you putting down anything you liked and saying he wrote it? Suppose you'd been working a cross all along? Frank Dayrell, if I ever find out as you turned dog on me that way your last hour's come. By ——! I'd shoot you like a crow, and if I didn't I'd find somebody that would. Don't you make any mistake.'

Dayrell smiled in his old scornful way as he pointed out the extreme improbability of Lance's writing to his affianced bride in England in any other way. What else was he to say to her? 'Why, you never thought he would marry you, did you, Kate?'

'Why did he make a fool of me then?' said the girl, standing slightly back and facing the trooper as if, like the tigress which such women are said to resemble, she needed but another spark of anger to cause her to spring upon him and rend with tooth and talon. 'Why shouldn't he marry me? I'd have made him as good a wife as that girl or any other in the world, I don't care who she was. I know I'm ignorant and all that, but one woman's as good as another if she takes to a man. That makes all the difference, and I'd have blacked his boots and waited on him hand and foot, and been a good woman too, if he'd been true to me—as God hears me, I could—I would!'

And here, wrought up by a strange admixture of feelings—remorse, regret, disappointment, doubt, and suspicion—newly aroused, the half-wild daughter of the woods burst into tears and abandoned herself to the womanly indulgence of a fit of passionate lamentation.

'It's too late now, Kate,' he said after a while, coolly removing his cigar, which he had lighted at the first appearance of lamentation. 'Better clear out for Eumeralla and make it up with Trevenna. I believe you carried on with

him till Lance came on the scene. He's a handsome fellow, and Tessie, you know, and some other people couldn't tell the difference.'

Then he laughed in a sardonic, derisive manner, as though the joke was an exceedingly good one—irresistible indeed.

Kate Lawless dried her eyes and looked keenly at him with an expression of contempt and dislike which, in spite of his habitual indifference, he by no means relished.

'Frank Dayrell,' she said, 'I believe you're the very devil himself; I see your game partly now. You'd a down on Lance because Tessie was gone on him, and wouldn't look at you. That's a nice reason to lag a man for, isn't it? And if you'd play false in one thing, you would in another. I see how you've worked it, partly. When I find out the rest it'll be a bad day for you, mark my words. Good-bye.'

'Good-bye, Miss Lawless!' here he made her a deferential and elaborate bow. 'You'd better be civil though, or I may have to run in Larry Trevenna. That'll make a double widow of you—the man you'll marry and the man you were going to marry. Smart work that, eh?'

'You look out for yourself, Dayrell,' she replied, as she moved slowly away from him. 'You're pretty smart, but that mightn't save you some day. You take my tip and leave us alone from this day out.'

Thus they parted. The girl walked sullenly away—the Sergeant, strolling in another direction, hummed an air from an opera, stepping lightly as might a man without a care in the world. Had he but known the future! How heedless are the feet of men, surrounded by the traps and pitfalls of Fate, all ignorant, mercifully, that a few inches one way or the other means instant, irrevocable destruction. As for the woman, she went on her way and he saw her no more.

'I wonder what the deuce *will* become of the fair Kate?' he said musingly, and half aloud, as he strolled along leisurely towards the police camp. 'If she marries this fellow Trevenna she'll be paid out for her sins, whatever they are. He's the making of one of the most precious scoundrels that even this colony ever saw. The Lawlesses crowd can't teach him much. If he marries her there'll be murder or something like it before long. I think I see

my way to another sensational case before the game's played out—more than one indeed.'

The town at which the coach had stopped, on this his first and memorable journey as a prisoner accommodated with leg-irons and handcuffs, was Geelong, to the gaol of which town Lance was relegated for the purpose of being forwarded to the hulk *President*. Accordingly, after due course of procedure, Lance found himself one morning in a police boat seated between his two Ballarat warders in near proximity to the celebrated *Sacramento*. When they came within a certain distance of the vessel they rested on their oars and commenced a conversation. The ship's trumpet replied, but afforded no manner of information to Lance. Apparently the colloquy was satisfactory. The sentry, who had been steadily pointing his musket in their direction, presented it towards the lighthouse, and all requisite permission being obtained the momentous embarkation was commenced.

The hulk *President* was a plain solid barque of one thousand tons register, broad in the beam. Dutch-built was she, and had been strong to encounter storms, but was destined to defy such forces no more.

On the fore part of her deck an iron roof protected the galley and water-tank, giving her an expression of being settled in life. In front of and around her bows was a planked and railed gangway, along which a warder with a loaded rifle marched to and fro.

The heat of the summer suns reflected from the cloudless sky, the shimmering water plain, had blistered the paint—a staring dreadful yellow it was—upon her weather-worn hull. Armed figures walked on either side of this terrible vessel. Except the solitary boat in which Lance was a passenger, nothing seemed to come near. To his excited fancy she seemed a plague ship. He could imagine the dead in their heavily-weighted shrouds being cast in scores from her gloomy port-holes. He stared at her in sullen silence. He had lost the habit of ejaculation. What did it matter—what did

anything matter? He was in hell. In hell! What difference did the depth of the pit, more or less, make, once within the Inferno?

There was a swell, consequent on a gale which had been blowing on the previous night. The boat rocked and pitched as she came alongside of the grim ungainly hulk. His fetters made it difficult for him to step from the boat to the ladder. He tripped, and one of the warders was constrained to hold him up.

'Look out! you mustn't drop overboard and cheat Her Majesty's Government like Dickson did last month. Blest if you wouldn't go down like a stone with them clinks on.'

A quick regret passed through Lance's heart that he had not dropped quietly overboard, and so exchanged this torture-ship for eternal rest and peace. But he clambered up with one warder in front and one immediately behind.

At the deck he was met by the first and second officers, to whom an important-looking document was presented by the senior warder who had come down in charge.

'H—m, ha!' remarked the dignitary, opening it with deliberation and then glancing searchingly at Lance. 'Refractory, determined, and—put him into number fifty-six. If lower deck don't suit him, we must move him aft. Show the way, Mr. Grastow.'

The 'way' led down a narrow ladder, the gradient of which was such that the fettered man, heavily weighted as he was, had some difficulty in getting down safe. However, as before, one warder preceding and one following, he was partly supported, partly led. As he touched the deck he looked round, and for an instant laughed aloud at the grim pleasantry which, like a ray of light in a dungeon cell, had found access to his brain. He was on board a slaver! His boyhood rose up before him, and he saw himself again reading *Tom Cringle's Log* under the King's oak at Wychwood. There were the iron gratings above, through which the sun came grudgingly, which afforded the only air and light to the long low corridor into which the deck had been altered. Rows of small cells on either side, each duly numbered, into which a herd of some forty or fifty chained men were being driven, as it appeared to him. In the gloom of the half-lighted passage their dark or sallow

countenances, in which the eyes and teeth alone gleamed in relief, might well have passed for those of negroes. They laughed and talked or cursed and swore with a freedom which surprised Lance, used to the strict and silent rule of the Ballarat gaol. It was their recreation hour, he found. They had returned from their exercise on deck.

As he scanned these foul and hideous countenances, from which all semblance of the higher human attributes had departed, he shuddered involuntarily, and a groan so deep and hollow came from him that the warders who had accompanied him were affected.

'Don't you take on, Number Fifty-six,' said one, 'it's a deal worse than Ballarat, but you go in for good conduct now and your time won't be so long in runnin' out. See what you've got by behaving awkward, and they're a deal worse, if you go contrary here, than ever our lot was.'

'Down the ladder,' said the officer of the *President*; 'we've no time to spare in this ship.'

Lower, lower still, another ladder, another deck. Here the gratings were nearer to the floor, the cells were smaller and more numerous, the whole arrangement still more nearly resembling his fancy of the slave-ship. Had there been a row of miserable Africans sitting down, with another row between their knees, and another yet in the same condition, as was formerly the human method of packing the 'goods' so largely dealt in by our good friends the Spaniards, Portuguese, and French, and indeed our own most merciful and Christian nation, the illusion would have been complete. They would have sold well in Victoria at that time, doubtless, labour being so very scarce and valuable. The air, fœtid with the odours and emanations from three hundred men, having even to be filtered through the crowded deck above them, was indescribably offensive. In spite of ordinary precautions, the odour was that of galley-slaves. Below the level of the waters of the bay as this deck was, Lance could hear the waves washing beside the prison-house, while from the cells, the bolts of which were partially drawn and the opening secured with a chain, came ribald songs, yells, and curses, with an occasional noise of weeping and bursts of yet more dreadful laughter.

Walking forward still towards the stern, they came to a cell numbered fifty-six on the south side of the vessel. At no great distance, and dividing it from the after-cabin, which was used as a sort of store-room, was a grating of massive iron bars extending from one side of the ship to the other.

The padlock was unlocked, the massive bolt shot back from the staple, and Lance saw his habitation. A low, narrow cell, with heavy timber on every side, only excepting a small port-hole narrowing outwards and capable of being closed at will. The length to the concave wall of the vessel's side was about eight feet, the width scarcely six. From two iron hooks hung a rude canvas hammock. Here he must abide for the present. It would depend upon himself whether he remained there.

From the timbers of the vessel's side protruded an iron ring with a short chain dependent from it.

'What's that for?' said one of the Ballarat gaolers.

'Oh, nothing,' returned the hulk warder, 'it's there in case it's wanted.'

The narrow door closed, the heavy bolt shot into its place, the padlock-key turned, and Trevanion was alone and at sea once more. Once more Lance Trevanion found himself on ship-board, but under what different circumstances. He felt the heaving deck under his feet. The day was dark and squally, and the barque rolled and pitched in a sufficiently lively manner. The familiar movement recalled the scenes which he had loved so well. He was a born sailor, and of the breed of men that joy in the strife of wind and wave. The revulsion of feeling was so great that he staggered and well-nigh fell.

How well he remembered the last time he had been at sea; the voyage out, so free and joyous in spite of minor discomforts; the perfect independence, the hearty, unconventional comradeship, the delight with which all greeted the first step on *terra firma*; the general wonder, excitement, and eager expectation of rapid fortunes to be acquired in this strange new land of gold.

And now he was a chained and guarded felon, reserved for Heaven alone knew what new degradation, even torture, in this sea dungeon. Long before dark—the days were short in July—a warder came with bread and water.

'When do we go on shore to work?' asked Lance, thinking to adapt himself to his changed condition.

'Work? They don't do no work in the *President*; this is the punishment hulk. All you chaps is supposed to belong to the 'fractory lot—my word! some of 'em just are, and no mistake. You gets one hour a day exercise on deck. Ten on yer's sent up in the cage at a time. The rest of the twenty-four hours has to be took out in the cell.'

'My God!' groaned out the unhappy man, 'can this be true, twenty-three hours in this den? Surely such cruelty can never be permitted.'

'That's about the size of it, Fifty-six,' answered the warder, preparing to lock up and depart. 'And the sooner you make up your mind to man it, the better it'll be for you and the sooner you'll be drafted to the *Success*, when you'll have a chance of fresh air. So long.'

The lock closed, the bolt clanged, and Lance was left to sit down where the last captive had leaned his weary frame, till his prison shoes—not heavy either—had worn into the solid planking, and when at last heart and brain had risen in wild revolt and he had cast away the wasted life which had become so valueless and unendurable.

From the time when the door that closed upon hope and the outer world clanged to, Lance Trevanion sat statue-like and motionless. The day passed, the cell grew darker, the night came with no cessation of the subdued but truly infernal din of noise to which nearly every cell contributed its quota. The wind rose and moaned, the ship rocked more heavily, the waves plashed around and above his cell, and still Lance Trevanion stirred not. He *must* have slept at length, worn out and over-fatigued, for he started suddenly from a dream of Wychwood and the first meet of the season to feel the sun feebly lighting up his prison, to listen and shudder as his irons clanked with the instinctive movement.

He sat up and gazed around for a while in the half-stupefied condition produced by conflicting sensations. He endeavoured to collect his thoughts and to resolve upon a course of action. What was he to do? At present the mode of life—rather the living death—to which he felt himself condemned seemed intolerable. But much would depend upon the duration of the

strictly penal term. If it were a matter of months only, it might be borne. Then he would be 'promoted' to the *Success*, would enjoy the favoured position of being permitted to work for ten hours a day in a quarry—heavily ironed, of course—and on an equality and in company with some of the most atrocious scoundrels that any country had ever produced. It was not an alluring prospect. Still, he had at any rate no actually malignant enemy like Bracker. It might be possible to establish a friendly feeling with some of his guardians. He would make the attempt. Even escape did not seem so altogether impossible. He remembered Tessie's words. He knew that what one woman could do she would accomplish. A man here and there *had* escaped from the hulks and got clear off, several had been drowned, two had been shot. Still these were fair risks. The twenty-three hours a day in the cell constituted a maddening monotony of captivity. Yet, from whatever reason, whether from the sea air, his unexpected meeting with Tessie Lawless, or 'something which never can be expressed,' Lance Trevanion's spirits rose higher than they had done since the day of his conviction, and in the depth of his saddened heart stirred a feeling that was almost hope.

When his gaoler made his appearance with the one-pound loaf of bread which was to serve for his daily dole and the can of water similarly apportioned, he assumed a cheerful air. 'When do we go up for exercise?' he said.

'Your batch'll be sent up at eleven o'clock, Fifty-six. Then you get down just in time for dinner, half-pound boiled beef for you then, so you can save some for supper; half-pound of vegetables. That'll be the lot.'

'Now look here, I don't know your name—oh, Grastow! what I want to say is, I have only two years to serve. When I get out I shall have plenty of money. I can make it WELL worth your while to help me; what do you say? Is there any harm in that?'

'I don't know as there is, Fifty-six,' replied the gaoler warily. 'But a many of the crew of the *President* (we call 'em the crew among ourselves) says the same thing. When they gets out they nat'rally forgets. What are we to do? We can't summons 'em in the Small Debts Court; how am I to know ye ain't on that lay?'

'I can show you how if you'll carry a note from me on shore and leave it in the post-office. I'll guarantee a five-pound note is sent to any address you name within twenty-four hours.'

'Ten-pun' note might do something,' answered the warder reflectively. 'The risk's a big 'un. If I'm nabbed I lose my berth straight off and stand a blessed good chance of being brought into one of these here fancy shops myself.'

'Why, who's to know?'

'Well,' replied the warder, looking round, 'it 'ud stun yer to count the spies that seem to be bred regular in a place like this, one man watching another for the reward. But I'll chance it, I will, the first time I go ashore. Now then, you Fifty-five, what are you making all that row for?'

The occupant of the next cell, Number Fifty-five, as he was in due sequence, had apparently gone mad. He raved and shrieked, cursed and yelled continuously. He banged at the door, which he could not well kick as they had taken away his boots. But ever and anon he amused himself with wildly extravagant rhapsodies, as well as by devoting his gaolers to the infernal deities, as also the heads of any Church running counter to his sectarian prejudices. Then he was taken out, secured, and hauled before the chief officer for punishment. That autocrat ordered the sullen-visaged 'Vandemonian,' as the warders designated him, to undergo several days in the 'box' on bread and water. He was carried off, struggling and cursing, by main force, being crammed into the 'box' aforesaid. This retreat, which was inspected by Lance on another occasion, appeared to be a species of *oubliette*, apparently in the very keel of the vessel, so constructed that the delinquent could neither stand up, lie down, nor sit with ease. In addition to this rigorous confinement a gag was placed in the mouth of the offender if he refused to stop his unseemly outcry.

A few minutes before eleven o'clock Lance's door was unlocked, and he was summoned forth to take part in a new portion of the programme. Being marched into the centre of the passage, he there saw a large iron cage, of which the door, just sufficiently large to admit one man, was opened. On either side stood an armed sentry with rifle at the *poise*.

An additional pair of warders was in attendance. The inmates of the cells, called by number, not by name, shuffled or stumbled out and made for the door of the cage, like tamed wild beasts under the keeper's whip.

It was a piteous, strangely-moving sight to a lover of his kind, had such been there. Men of various types and all ages obeyed the summons—the white-haired convict, reckless and hopeless, the larger half of whose life had been spent within prison walls, and who was now doomed to linger out the last years of a ruined life in places of confinement. The whole expression of the face denoted the human wreck which the *forçat* had become. The evil eye, furtive yet ferocious, the animal mouth and jaw, the shaven, sallow cheek—every faculty once capable of rising to the loftier attributes of manhood seemed obliterated—the residuum but approached the type of the simian anthropoid—bestial, savage, obscene.

'Great God!' thought Lance, as one by one the felons passed into this cage, some young and hardly developed into fullest manhood like himself, some of middle age, some stunted and decrepit, bowed and misshapen from constant confinement and the weight of their irons, yet all with the same criminal impress upon form and feature,—'Great God! shall I ever become like these men? And yet once I had as little fear of becoming *what I am* ——'

He passed in last, the door was shut, the cage commenced to ascend. His companions grinned and chuckled as, with a brutal oath, the older convict asked what he was sent on board for.

Lance hesitated for a moment, and then, reflecting that if he attempted to show what his companions in misery might consider airs of superiority they would find some way of revenging themselves, answered in as careless a manner as he could assume—

'Well, I knocked over the head warder at Ballarat.'

'Good boy! What for?'

'He had been "running" me—wanted to make me break out, I suppose. I couldn't stand it any longer and went for him.'

'Why didn't yer choke the —— wretch?'

'Because I hadn't time.' Here the savage joy which he experienced when his enemy lay gasping beneath him came with a rush of recollection, and the old fire, so long absent, glowed lurid in his eyes. 'Another second or two and Bracker would have been a dead man.'

'Bracker, was it?' said one of the younger convicts. 'I was under him at Pentridge, and a —— dog he was! He tormented a cove there till he hanged himself. I'm dashed glad he copped it, anyhow.'

'You're a right 'un, anyhow,' said the older convict approvingly. 'It wants a chap like you now and then to straighten them infernal wretches that think a man's like a log of wood as you chop and chip at till it's all done. I learned one of 'em different on the other side, and there's one or two here as'll get a surprise yet if they don't look out.'

At this stage of the conversation the slowly-ascending contrivance reached the upper deck, and the inmates became as stolidly silent as Eastern mutes.

One by one, covered by the rifles of the deck guards, they stepped out and followed each other in the shuffling walk peculiar to heavily-ironed men along and around the deck. Each man was a certain distance behind the one immediately preceding him. The foremost man walked to the bow of the vessel. When reached, he turned stiffly round as if by machinery, and resumed the same monotonous tramp in the opposite direction.

Melancholy treadmill and mockery of locomotion as was this parade, still it was not wholly without its attractions. The vision arose before their aching eyes of the blue sky, the dancing wave, the far-off purple mountain. There drove seaward an outgoing steamer. Alas, alas! what a world of vain regrets did she evoke in Lance's mind! There were white-winged gulls, yachts and skiffs that resembled them in free and graceful flight. All these constituted a pageant impossible of production within prison walls. Then the ocean breeze, with every inspiration after the fœtid atmosphere of the lower deck, revived and in a sense exhilarated them. These joys and glories of the sea could not be shut out even from the gaze of the fettered captives, unless the further refinement of punishment of blindfolding had been added. And even in the *President* none of the officials had hit upon this deterrent device.

So by the time that Lance and his fellows had completed their allotted tramp, at the end of which time he was fatigued, unused as he was to lift his legs with such an encumbering weight, he felt, somewhat to his surprise, that his general tone had been raised. He saw the shore, then known as Liardet's Beach, which did not seem so great a distance away. He could imagine in the night, when a dense fog enveloped the mud flats of the bay, the low sandy beach, the thickets of the tall ti-tree (*melaleuca*), that either by swimming or with friendly aid a prisoner might cross the intervening stretch of mud flat, so dreary and darksome at low water, and, disappearing into the thickets, be as little likely to be again seen as a ghost flitting at cock-crow.

During the remainder of this day Lance was sensible of an unusual feeling of exaltation, so much so that when night came,—the dreary night commencing so early and ending so late, when sleep would have been the most precious of boons,—he was wholly unable to compose himself to rest, as the phrase in orthodox fiction runs: Compose himself!—irony of ironies!—with the murmur of the prison herd in his ears, in which ever and anon a maniacal shriek shrilled through the murky midnight air.

The waves plashed and the rising gale moaned as if in natural protest against the foul cargo of crime, misery, and despair amid which he lay.

In the strange half-delirious fancies which coursed through his brain, he saw, plainly as it seemed to him, the face of the God-forsaken, desperate criminal who had last occupied this very cell. He saw him sitting crouched, hour after hour, day after day, in the very place where he sat. He marked the spot where his boot-heels had worn the solid plank. He saw him taken out to punishment. He saw him return more dogged, hopeless, and defiant than before. Lastly, he could see him apparently standing upright, but in reality suspended by the twisted woollen cord, his blanket torn into strips, gone to carry his case into that ultimate court of appeal where the wrongs of earth shall be righted by the justice of Heaven.

From this time Lance Trevanion experienced a complete change of sensation. 'Cabined, cribbed, confined' as he was most literally, there seemed to have been breathed into his soul with the salt scent of the ocean that which no art of man could shut out—the hope of freedom, the promise of escape. Moreover, a brief note had reached the address agreed upon between him and Tessie, and the warder, finding it transmutable into sovereigns, had formed a different opinion of Number Fifty-six. He began to look upon him as a victim of oppression, as something out of the run of the ordinary 'crew' of the *President*; finally as a young man who was worth taking a little trouble about, and for whom it might in the end be worth encountering even the serious risk of dismissal. After all, if made worth his while, what did dismissal from the Government service amount to? It involved no moral stigma, no personal disadvantage. If he cleared out with cash enough to set up a public-house, or even a store, at some of these new goldfields which were 'breaking out' every day, how could he do better?

Having established friendly relations with his immediate attendant, Lance soon proceeded to reap the benefit of confidential intercourse. Articles of food, 'medical comforts'—luxuries, even—were smuggled in to Number Fifty-six. With the aid of these and recovered appetite, born of the sea air, and the tonic ideas which now pervaded his system, Lance improved measurably. He was reported to the chief officer for good conduct, and that dread official was pleased to address him one day, and, remarking upon his behaviour, to inform him that he would be transferred to the hulk *Success* at the end of three months, being much earlier than, from the grave nature of his offence, he might have calculated upon. Lance touched his cap, smiling bitterly as he shuffled off on his mechanical round with the faint rattle which his chains *would* make, however carefully he might be-wrap and bandage them.

At the end of three months! Well, the first week was over. It had seemed a month, and there were eleven more to follow before the penal period would be completed. In Heaven's name, what was he to do until then, hour after hour in solitude? But one little hour on deck, again to feel the free ocean breeze, to note the curling waves, the gliding sea-bird. Sometimes, indeed, even this faint solace was debarred. When the weather was rough and the hulk unsteady at her moorings, the hour's exercise, that precious respite, was forbidden. It was too difficult to haul up the cage, to supervise

satisfactorily the deck occupants. So the dark dull day was fated to end in gloom and sadness as it had commenced. Sometimes, indeed, the second day passed over without the blessed interval. Not until the bad weather came to an end were the ill-fated captives permitted the scanty dole of fresh air and sunshine.

As much of Lance's leisure time while at exercise as he could devote to this sort of reconnoitring he managed to concentrate on the mud flats, which at low tide were hardly a mile distant. These he carefully examined. He learnt by heart their bearings from the shore; satisfied himself that once there he could manage for himself. Of course there was the reverse side of the shield. The hulks—more especially the *President*, as holding a sample of the worst and most desperate criminals of the whole prison population—were most closely watched. No boats but those of the water police were permitted to come within an area marked by buoys, more than half a mile square. Was it worth while to run the risk of being caught and run down by these, or would it be more prudent to await his transfer to the *Success* and take the chance of escaping from the quarries?

The latter idea seemed feasible. Amid a regiment of convicts nearly a thousand strong, who worked from 7 A.M. to 5 P.M. in the quarries, at the piers, or the building of a lighthouse—surely amid such an army of labourers some opportunity of escape would be afforded him.

Meanwhile, in spite of adverse circumstances, matters were decidedly improving. His friendly gaoler showed him how he could keep his port-hole open in fine weather, even after locking-up time for the night, and by other concessions materially lightened for him the weary hours.

More than once too had he received a letter from Tessie, carefully written on the smallest possible scrap of paper, but with its few words of priceless value and comfort to the captive. In the last one a distinct plan of escape was devised.

At this time, among the various pursuits and avocations by means of which men of gentle nurture who had been unsuccessful at the goldfields procured a living while leading an independent life, that of wild-fowling ranked high. Game of all sorts was readily saleable at fabulous prices to the hotel and restaurant keepers of Melbourne. Every day scores of men, with pockets

stuffed with bank notes, came to the metropolis eager to embark for England with what seemed a fortune to them, or to enjoy a season of revelry preparatory to returning to Ballarat or Bendigo. There was, as the miner's phrase then went, 'plenty more where that came from.' With such free-handed customers a *recherche* dinner, with fish, game, and fruit, preceding a theatre party, was indispensable. The cost was not counted. Bills were despised in those days when every river in favoured districts was a Pactolus. Hotel-keepers and tradesfolk were reproached for their meanness in not swelling their totals to a respectable sum. The free-handed miner, whose drafts, payable in the rich red gold Dame Nature was so proud to honour, mocked at expense, and exacted profusion at his quasi-luxurious banquets. Such being the state of affairs, with teal and widgeon at ten shillings a brace, and black duck at a sovereign the pair, a reduced gentleman, with a punt and duck gun, was enabled to lead a philosophical, remunerative, and far from laborious existence.

CHAPTER XVI

It came at last—the week—the day—the very night to which Lance had looked forward with such nervous anxiety. When compelled to pace the deck for the last morning, as he trusted, with his chained comrades, he barely concealed his exultation at the thought that on the morrow he might be a free man once more. He feared it would be visible in his countenance, in his very step, which in spite of himself was almost elastic, causing his chains to clank unusually. Indeed one of his fellows in adversity noticed it.

Keen to detect the slightest change from the stereotyped prison bearing, he growled out, 'What the —— are ye at, step-dancing with your bloomin' irons, ye —— fool? They'll clap the fourteen-pound clinks on ye if ye try the shakin' lay. Stoush it, ye ——'

The words were perhaps unfit for publication, but the intention was not all unkind. The trained *forçat* had quickly divined that something not in the programme—an 'extra,' so to speak—was likely to be played, and thus warned him against premature elation.

Lance felt his heart stop as the possibility occurred to him that the caprice of a warder might order him to wear irons weighing a quarter of a hundredweight in place of the comparatively light ones which at present confined his limbs. He at once 'dropped,' as the adviser would have phrased it, and falling into the chain-gang shuffle as if instinctively, said, 'All right, Scotty, this foggy day makes a fellow want to warm his feet.'

'Warm your feet!' scoffed the convict, 'you'll be lucky if you can raise a trot without hobbles these years to come. When your time's up they'll have ye for something else, like they did me. Once they've got a cove on these —— hell-boats they don't like to let him go again.'

'How long have you been lagged, Scotty?' inquired Lance, less indeed impelled by curiosity than desirous of turning the conversation from what he felt was a dangerous direction.

'Me?' growled the convict hoarsely, glaring for a moment at Lance with his wolfish eyes—eyes which rarely met those of another steadfastly. 'I did ten stretch on the Derwent afore I come across the Straits—ten long years. That warn't enough for 'em, for I hadn't been a year at Bendigo when I was "lumbered" for robbing a cove's tent as I'd never been nigh. No! God strike me dead if I had! I knew the chap as did the "touch" as well as I know you. He and Black Douglas did it between 'em. But I'd a bad name. I'd come from the other side, and I was picked upon. I was seen going towards the tent the night before. The chaps that lost their gold swore to me; they wanted to "cop" somebody. And there was I, as was going straight and had a good claim and didn't need to rob nobody, and thought I had a chance in a new country, there was I—"lagged" and dragged aboard again, and me no more in it than a sucking child. I went *mad* pretty well, and here's the end of it. But by ——' and here the half-insane felon swore a terrible oath, 'I'll give 'em something to talk about afore I'm done, and it'll be true this time—true as death—death—death!'

Here the unfortunate creature, whose features had gradually assumed an expression of ungovernable rage, lashed to fury by the thought of real or fancied injustice, raised his voice to a shriek like the cry of a wild beast, and with every feature working like those of an epileptic, fell on the floor of the deck helpless and insensible.

'What's all this?' demanded a warder, marching to the spot, yet cautiously, as always doubtful of a rush among the fierce animals over which he and his comrades ruled. 'Dash it all, you fellows are like a lot of old women—jabber, jabber. I shall have to put some of you in the black hole if you don't look out.'

'It's only Scotty, sir,' answered a crafty-looking convict who had been looking on, with a strange mysterious smile. 'He's got a fit or somethink. He's always mad when he gets on that Bendigo yarn of his.'

'Oh, Scotty, is it?' replied the warder carelessly. 'Throw a bucket of salt water over him; he'll come to directly. Your hour's up all but five minutes, men. You can go below and keep quiet, or it'll be worse for some of you.'

So below they went, in tens and tens, one after the other, murmuring and cursing among themselves, devoting Scotty, Lance, and the warder to the

least respectable deities, yet not daring to raise their voices lest the dreaded 'black hole' or the more terrible 'box' should be apportioned to some of them with indiscriminate severity.

Lance, perhaps, was the only one who retired to his cell with a feeling of satisfaction. Gloomy was the evening, dark yet not stormy. Brooding over all things hung an enshrouding, clinging fog. The lights of the vessels in the bay were invisible until the boats almost ran against their sides, then they appeared like blurred and wavering moons. The invisible flocks of sea-birds flying landwards, true precursors of a storm, wailed and shrieked in curiously weird cadence, like the ghosts of shipwrecked mariners. Yet no breath of rising wind or gathering tempest stirred the black waveless plain which stretched for so many a mile seaward and lay illimitable between the murky shores. To those long versed in sea signs—and there were many such on board this mockery of a ship—a storm was imminent. Phantom-like, motionless, lay the *President* on the oily moveless deep, a corpse-like hull upon the lifeless water. In that hour she seemed a derelict of that dread fleet which the poet dreamed of in his weirdest, grandest poem:

'And ships were drifting with the dead
To shores where all were dumb.'

If there was a period of comparative rest and peace in that lazar ship, choked to the gunwales with human nature's foulest disorders, it was between the second and third hour after midnight. Before that time there was little or no repose, much less silence. The restless felons, debarred from work or exercise, were loath to sleep or to permit such indulgence to others. But from about an hour after midnight to the lingering winter dawn a certain, or rather uncertain, quantity of sleep was procured. Not incorrectly may it be said that then in all abodes of sin and wretchedness.

'The wicked cease from troubling
And the weary are at rest.'

The hush of nature, the strange compulsion of the tangible darkness and solemn stillness of the night, was unbroken save by the flights of sea-fowl and the occasional sound from the shore, when softly yet distinctly touching the very stern of the vessel a grating sound was heard by Lance, secreted in an old state-room. Two large-sized ports, through which a man could easily crawl and drop himself into the water or on a boat below, were open. 'Lower away,' said a carefully modulated voice, 'and look sharp.'

As he spoke a stout rope was let down, of which the man in the boat-punt laid hold. Lance leaned out through the wide port of the state-room and could just distinguish the outline of a small boat. 'Drop slowly down,' said the strange voice; 'gently does it.'

The captive had by this time seated himself on the window-sill with his legs outward. His irons were wrapped and muffled with portions of his blanket, which he had sacrificed for the purpose. A twisted rope was made of strips of the same material, a stout gray woollen, woven and milled in Pentridge, and therefore free from shoddy and mixture.

Adown this Lance cautiously lowered himself—how cautiously and anxiously! A slip—a touch of foot on the side instead of the centre of the frail bark, and failure—recapture even—were imminent. The splash would at once alarm the vigilant ears of the sentries, whose rifle-bullets would be spurting in and about the spot in no time. Inch by inch he lowered himself until he felt a man's hand touch and steady him. His feet were on the flat bottom of a ducking canoe which floated low on the surface of the stirless deep. Lower still and lower he sank down until he found himself sitting on the floor of the punt with an arm on either thwart and his back nearly touching the stern. With one strong noiseless stroke the strange boatman sent his light craft yards away from the prison-ship, and as the hull vanished abruptly, swallowed up in the Egyptian darkness of the night, Lance felt a great throb at his heart. He inhaled joyously the salt odour of the tide, for he knew that, bar accidents, he was again a free man.

'Steady,' said the boatman in a low but distinct voice as he settled to his sculls, 'another quarter of a mile and we may talk as much as you please. We shall make the shore before yon black cloud bursts, and after that no boat leaves any ship in the bay till sunrise.'

Lance sat carefully still, and indeed had little inclination to talk for a while. Swiftly, smoothly, they seemed to speed through the ebon darkness lit up from time to time by the phosphorescent scintillations which fell from the black water at each dip of the oars.

'How do you steer?' he said at length. 'It wouldn't do to get lost in this fog; we might easily be picked up, and then my fate would be worse than before.'

'See that light?' said the rower, pointing to a tiny speck like a beacon, miles away on the main.

'I do see a very small glimmering,' said Lance; 'are you sure that is the right direction?'

'That light,' said the stranger slowly, 'is a fire in a nail can which is kept alight by my mate. It stands before our hut in Fisherman's Bend, and there could not be a better place to land.'

'How so?'

'Because it is cut off before and behind by marshes. There is no track to Liardet's Beach, which is only half a mile off. There is a mud flat in front, and hardly any one but ourselves knows the channel. It's dead low water now; any boat, even if they chased us, would be stuck in the mud in ten minutes, and it isn't every one that knows how to get off again.'

'Then we're right, and I'm a free man once more. Great God of Heaven! what a feeling it is. May I ask your name, the name of a man that's saved my life?'

'My name's Wheeler. Not that it matters much, unless I'm had up for being so soft-hearted as to mix myself up with the law's victims. But one gentleman takes a fancy to help another now and then in this topsy-turvy country. I've heard and can see for myself that you're one.'

'I was,' groaned out Lance. 'People called me one. Shall I ever be one again?'

Here his irons, stirred with an involuntary movement, made a slight sound.

'That is the answer. My God, what had I done that I should be tortured thus?' His head sank down upon his knees, and he made no sound or sign till the boat glided up to the verge of the small beacon light and a second man appeared out of the darkness, taking hold of the painter which was thrown out to him.

'Haul her up, Joe, as far as you can,' said the boatman, stepping out on the low sedgy bank, so low as to be barely distinguishable above the water. 'Stop, I'll help you. Sit quiet then till we come to you.'

The shallow canoe, with the prow released from weight and tilted up, was pulled bodily on to the land. Then the men stood on either side of Lance, and, raising him from his cramped position, helped him to step on to *terra firma*, and thence into the door of a small hut, in front of which stood the nail can aforesaid.

The hut was small, but weather-tight and snug as to its interior fittings, displaying the extreme neatness coupled with economy of space often observable where men live by themselves, especially if one of the celibates happens to have been a sailor.

'This is my mate, Trevanion,' said the first mariner. 'His name's Joe Collins, formerly second lieutenant of Her Majesty's ship *Avenger*. My name you know, so we needn't stand on ceremony with one another. We are well posted up in your story, thanks to your plucky pretty friend, so there's no need for explanation. You and I are ready for supper, I suspect, so we'll turn to while Collins sees to the canoe and makes all tight for the night. There's the first storm-note; it's going to blow great guns before long, just as I thought it would.'

Mr. Wheeler rattled on in a cheery, careless sort of way, while his friend went in and out, fed the dogs, of which they had two or three couples—retrievers, terriers, and one of the tall handsome greyhounds, the kangaroo dog of the colonists. Lance knew that the talkativeness was assumed for the sake of putting him at his ease. Too strange and excited to converse himself, he could but sit in a rude but substantial chair, fashioned out of a beer-barrel and covered with a kangaroo skin, and look silently from one to the other.

Meanwhile the tea was made, the corned beef and bread set forth in a tin dish, pannikins placed ready, and the substantial bush meal, always fully adequate to the needs of a healthy man in good training, was ready. Before commencing, however, Mr. Wheeler fished forth from a species of locker a square bottle, apparently containing Hollands. From this he poured into each pannikin a pretty stiff 'second mate's glass.'

'Do us no harm this cold night,' he said. 'Your health, Trevanion, and a good journey to follow a bad start. It often happens here, take my word for it.'

The three men raised the tin pints and looked at each other. 'Thank you; from my heart I thank you,' Lance gasped out. 'God bless you both, if my wishing it will do you any good. I shall never forget this night.'

One is far from recommending, or indeed palliating, the continuous use of alcohol, but there is no evading the fact that when people are more or less exhausted, beside being chilled and dispirited, a glass of spirits, be it sound cognac, 'the real M'Kay,' or, as in this instance, good square gin, produces an effect little less than magical. There are those who, in the joyous season of early youth, or fixed in the higher wisdom of abstinence, require it not. But strictly in moderation and under exceptional circumstances it is a medicine, a luxury, an *elixir vitae*.

No sooner had the powerful cordial commenced to produce its ordinary effect than the heart of the ransomed captive was conscious of a feeling of lightness to which it had long been a stranger. Hope, timidly approaching, whispered a soothing message; a vision of distant lands and brighter days assumed form and colour. The cramped limbs recovered warmth; the sluggish blood commenced a quicker circulation. He found appetite for the simple meal, and listened with interest and amusement to the tales of moving incidents by flood and field with which, between their pipes, the woodsmen beguiled the winter evening. Lastly, the door was bolted, the dogs let loose, and Lance was invited to avail himself of a comfortable shakedown, where opossum cloaks and wallaby rugs protected him from the searching night air, now keen-edged with the fury of a howling storm. The wearied fugitive slept soundly, as he had not done for months. He awakened to find that the sun had risen and that his hosts had left him to complete his slumbers undisturbed by their exit.

His feelings when he arose and looked around were instinctively tinged with apprehension. By this time at least his escape had been made known. What excitement must have been caused! What despatches to the other prison-ships and their guards! To the water police! To the hunters of men on land and sea whose beards had been mocked at! Their energy would be further stimulated by the offer of a reward, as well as by the certainty of promotion in the event of recapture. As the captive sat up on his couch and looked through the open door upon the still waters of the river-mouth, from which the fog, now that the storm had blown itself out, was slowly lifting, he felt a shudder thrill through his frame as he realised how near he was still to his prison home, how helpless too, manacled as he was. He struggled to his feet, however, with a renewal of hope and confidence in the future. The fresh and unpolluted air acted like a cordial as he breathed it with long gasps of enjoyment. The close walls of lofty ti-tree which shut in on three sides the nook of land, indistinguishable from the water until at close quarters, provided at once a shelter and a hiding-place almost impossible of surprise. The wild-fowl swam and dived and splashed and squatted, heedless of their chief enemy man. He found himself reverting in thought to the sports of his youth, to the happy days when, gun in hand, he would have joyed to have crawled within range of the shy birds and rattled in a right and left shot.

One of his irons clanked; the rag had slipped. How the sound brought him back to the present! His lips had shaped themselves into a curse, his brow had darkened, when his hosts suddenly appeared, emerging from a creek which wound sinuously through the marshy level. Fastening up the invaluable punt, they stepped lightly out, bearing with them a goodly assortment of wild-fowl—noble black duck, delicate teal, and that lovely minute goose, the *Anas boscha*, commonly known as the 'wood duck.'

'Grand bird this,' said Wheeler, throwing down a magnificent specimen of that finest of all the family—the 'mountain duck'—with his bronzed-fawn and metallic plumage. 'Splendid fellow to look at, but that's all. Pity, isn't it? Not worth a button to eat. Why do we shoot them? you'll ask. We sell them to the bird-stuffers. They pay well at the price they give us. Now then, we'll proceed to business, which means breakfast. Spatch duck—a couple of teal, eh? How do we do it? Pop 'em into boiling water. Feathers off in a jiffy. Cut them in four, broil, and serve hot. Tender as butter, these flappers, for they're not much older. After breakfast we'll unfold the plot. Slept well? I thought so. Hope you've got an appetite.'

Lance was well aware that Mr. Wheeler's cheery, garrulous tone, not by any means characteristic of men who live lonely lives, was assumed for the purpose of concealing his real feelings and saving those of his guest. But he appeared to take no heed, merely performing his toilet with the aid of a bucket of water and a rough towel, and treating himself to a more thorough lavation than had been lately possible. Mr. Collins, R.N., had been setting-to with a will as caterer, and in far less time than one would think, a meal, in some respects not to be disdained by an epicure, appeared on the small table which, fixed upon trestles, was placed before the hut door.

'Try this teal, Trevanion; it's as plump as a partridge. Here's cayenne pepper; lemons in that net. Cut one in half and squeeze—"squeeze doughtily," as Dugald Dalgetty advises Ranald M'Eagh to do when he has his hand on the Duke of Argyle's windpipe, in the event of His Grace attempting to give the alarm. I read *A Legend of Montrose* over again last week. What a glorious old fellow Sir Walter is, to be sure! When you've finished your first beaker of tea, there's more in the camp-kettle, Australice "billy." Did I ever think—or you either, Trevanion—that we should drink tea out of a "billy," or be our

own cooks, housemaids, washerwomen, and gamekeepers all in one. Still, there are worse places than Australia, and that I'll live and die on.'

While Wheeler's tongue was going at this brisk rate, it is not to be supposed that his jaws were idle. The friends played a real good knife and fork, and Lance, between invitation and the natural temptation of, in its way, a dainty and appetising meal, followed suit. The other man gave a lively sketch of their morning's sport, and by the time breakfast was finished and pipes lighted, a well-worn briar-root having been made over to Lance on the previous evening, the gnawing feeling of consuming anxiety commenced to be somewhat allayed.

'Now we open the council of war,' began Wheeler, after two or three solemn puffs. 'Collins and I have to make a little *détour* on business which will occupy us till mid-day. Half an hour after we leave, a mysterious artificer will suddenly appear, not out of the ground, like Wayland Smith in *Kenilworth* (pray excuse any excessive quotation of Sir Walter, but the fact is we got a second-hand edition cheap last month, and have been feasting upon him ever since). Well, this lineal descendant of Tubal Cain will arise out of the ti-tree and will disembarass you of, say, any garniture which you may consider inconvenient to travel with. I don't know him; you don't know him; he don't know us; nobody knows anybody. You apprehend? But *the work will be done*. Afterwards look in that bag and you will find a rig-out, half-worn but serviceable, and somewhere about your measure.'

'Stop a minute—just permit me one minute,' proceeded Wheeler hurriedly, but ever courteously. 'A trifle more explanation is necessary. Here is your route arranged for you by your good angel, your admirable friend and protectress, with whom Collins and I are madly enamoured—but this by the way. Listen again. When you feel ready for the road, take this left-hand path through the ti-tree. You see it starting behind that bush. You cannot get off it once you are on it. Follow it for three miles. You will meet there, by a reedy lagoon, a man with two horses. Mount the one which he leads, asking no questions. He will say "Number Six?" you will say "Polwarth." Of course you are the Mr. Polwarth of Number Six on a tour of inspection. He will ride with you the whole night through, stopping only at necessary intervals. At daylight you will find yourself more than fifty miles on the Gippsland road. He will take you by "cuts" and by-tracks to a part of Gippsland from

which you may make your way to Monaro, to Twofold Bay, to Omeo—all A1 places for a man who wishes rest and seclusion for a season. You will take your choice. On the led horse—a good one, as I am informed—you will find valise, waterproof, and other necessities. Here is a pocket-book, which I am commissioned to hand to you, in which are £50 in notes and gold, besides a letter from her to whom you owe so much.'

Mr. Wheeler rattled out this full and complete code of instructions with his customary rapidity, finishing off with the delivery of the pocket-book to Lance, who held out his hand mechanically and stood staring at him for a few moments like a man in a dream.

Then he found his tongue.

'You have done for me that which many a man's brother would have declined. I am a poor creature now, and can't speak even as once I could. But may Heaven help you in your need, as you have stood by me. Some day it may be. I cannot say, but the day may come when a scion of the house of Wychwood may repay some slight portion of the debt of gratitude its most ill-fated son has incurred. Farewell, and God for ever bless you.'

The men looked in each other's eyes for a little space, one strong hand-clasp, after the manner of Englishmen, was exchanged, and they parted.

'That's a man of birth and breeding who has been wrongfully convicted, I'll stake my life,' said Wheeler to his friend, as, with gun on shoulder and long steady stride, they left the hut behind them. 'Had I not been convinced of it, all Ballarat would not have tempted me to go into the affair. But between pity and admiration for that trump of a girl, I gave way. I wonder whether his luck will turn now and all come right.'

'There's a great deal in luck in this world,' said Mr. Collins sententially. 'It's hard to say.'

Within a few minutes after the time specified, and for which Lance waited with ever-increasing impatience, a quietly-dressed individual so suddenly appeared as to startle him. He came around the side of the hut while Lance was deep in the perusal of Tessie's letter, which also contained a few lines from Mr. Stirling, telling him that his order for cash, worded in a certain

way, would always be paid to any person whom he might name at any place.

He looked up for an instant and saw the broad frame and steady eye of the stranger confronting him. 'Could this be a detective in plain clothes? The thought was madness.'

The stranger smiled. 'All right,' he said; 'I'm the blacksmith; come to take the clinks off—not the first job of the sort I've done. Sharp's the word—sit down, sir.'

Here the stranger produced from his pockets and a bag an assortment of tools of various sorts, including files of marvellous finish and temper. Seating himself, Lance freely yielded his limbs to the man of iron, who, in something under half an hour, produced remarkable results. How the heart of Lance Trevanion swelled with joy when he saw the hated manacles drop heavily upon the rug on which he had been sitting!

'So far so good,' remarked the liberator artisan. 'One of 'em's chafed your ankle, but you'll soon get over that. Ugly, ain't they? If you'll dress yourself while I take a walk along the river I'll show you what I'll do with them.'

A few minutes sufficed for the inspection of the beauties of the Yarra. When he returned, the good-looking young man with the clean-shaved face and short hair did not look in the least like the hunted convict of the previous day.

'My word,' quoth the smith, dragging out an old squee bag, 'you look fust-rate—never see any one change more for the better—for the better. Here goes!' Thus speaking, he placed the irons in the bag, which he afterwards nearly filled with the prison clothing of which Lance, even to his boots, had denuded himself. These he took into the punt, and rowing to a deep place in the river near the bank he threw in the sack, which the weight of the irons caused to sink at once. 'Many a poor fellow's been buried like that at sea,' he remarked, in soliloquy. 'I wonder if it ain't as good a way as any. The p'leece won't find them in a hurry, I bet. And now Mr. Never-Never, I'll show you the left-hand road, as I was told to. There's your track, and good luck to you.'

Lance had good reason to believe that this service had been paid for, but he could not bear that the man who had rendered him such material aid should go even temporarily unrewarded. So he extracted one of the five-pound notes from the pocket-book and presented it to him at the close of proceedings.

'You're a gentleman,' said the smith, unconsciously using the stereotyped expression of those receiving a gratuity in advance of expectation.

'I was once,' replied Lance, with a sadly humorous half-smile. 'God knows if I ever shall be one again.'

'No fear,' quoth the hammerman, with a cheery, consoling accent. 'You've got the world afore you now. Many a man in this country has been a deal lower down that holds his head high enough now. Keep up your "pecker." It'll all come right in the end.'

On the narrow marshy track, which led between thick-growing walls of ti-tree eight or ten feet high, there was not, as Wheeler averred, much chance of losing the way. Lance plodded on cheerfully for about an hour. Once he could have done the distance in far less time, but from want of exercise and other reasons he had contracted the habit of taking short steps, which he found it difficult to change. He felt altogether out of sorts, and was by no means sorry to see near a deep reed-fringed lagoon a man who looked like a stock-rider sitting on a log watching two hobbled horses that, saddled and bridled, fed close by the water's edge.

As the foot traveller emerged from the ti-tree thicket, the man walked to the horses' heads, and, after one look at the newcomer, commenced to unloose the hobbles. These he buckled on to each saddle, and, tightening the girths, said interrogatively, 'Number Six?'

'Polwarth,' was the answer returned.

Upon this he held the bridle of one of the horses and motioned for Lance to mount, after altering the stirrup to suit the stranger's length of limb. This done, he mounted and rode forward at a steady pace, turning neither to the right nor left, except when apparently some advantage would seem to be gained by it. Both horses walked fast, particularly the one which Lance

bestrode, which he found to be good in all his paces, free, clever, and in all respects a superior style of hackney.

Mile after mile did they ride after this fashion, walking, trotting, or cantering as the roads, both deep and difficult in places, permitted. The rate at which they travelled was on the whole rapid, though the guide evidently husbanded the powers of both horses in view of a toilsome journey still to be made.

An hour before midnight, pursuing a by-track for some distance, they came upon a hut in a forest near a deserted saw-pit. It had once been a snug and substantial dwelling, but the timber had long been cut and carted away, so the hut was no longer needed. The grass grew thick and green around. The guide, with practised hand, first lighted a fire in the large mud-lined chimney, and then unsaddled and hobbled out the horses. He produced from a rude cupboard bread and cold meat, tea, sugar, and the quart pot and pannikins necessary for a bush meal. These had evidently been placed there in anticipation of such a visit. Besides all this, there were a couple of rugs, and as many double blankets of the ordinary gray colour used by travelling bushmen.

The fire having burned well up, and a couple of dry back logs having been placed so as to ensure a steady glow for at least half the evening, his taciturn guide relaxed a little. 'Here we are for the night,' he said, 'though we'd best make an early start, and I don't know as we could be much more comfortable. We've plenty to eat and drink and a fire to sleep by, no cattle to watch, and a good roof over us. I've often had a worse night along this very road.'

'I daresay,' said Lance, who began to shake off his fears of immediate capture. 'This must be a queer road in wet weather.'

'I believe yer,' answered the guide. 'Many a mob of fat cattle I've drove along this very track. It's a nice treat on a wet night, sitting on your horse soaking wet through, nearly pitch dark, and afraid to give the bullocks a chance for fear they'd rush. This here's a picnic in a manner of speaking.'

'I suppose it is,' quoth Lance. 'Things might be worse, I daresay. I shall sleep well, I don't doubt. I haven't been riding much lately. Where shall we

get to-morrow night?'

'Somewhere about the Running Creek; it's a longish pull, but the horses are good and in fine buckle. You can do a long day's journey with an early start.'

Their meal over, the two men sat before the glowing fire on the rude seats which they had found in the hut. The soothing pipe helped still further to produce in Lance's case a calm and equable state of mind. To this succeeded a drowsily luxurious sensation of fatigue, which he did not attempt to combat, and, stretching himself on his rug, he covered himself with the blanket; he and his companion were soon asleep.

The stars were still in the sky when he started at a touch on the shoulder, and found that his companion had noiselessly arisen and prepared breakfast. The horses also, ready saddled and bridled, were standing with their bridles over the fork of a tree near the door. Lance was soon dressed. Breakfast over, they were in the saddle and away while as yet the first faint tinge of the dawn light had scarcely commenced to irradiate the mountain peaks which stood ranked like a company of Titans near the eastern sky-line.

With this, the second day's journey, a change commenced to make itself apparent in Lance Trevanion's mien and bearing. The fresh forest air was in his lungs, the great woodland through which they were now riding commenced to endue him with the fearless spirit of the waste. He could hardly imagine that it was so short a time since he was in fettered bondage. What a difference was there in his every movement and sensations! He began unconsciously to act the free man in tone and manner. He praised the paces of the horse he was riding, and criticised that of his guide in a way which showed that experienced person that he was no novice in the noble science of horse-flesh. He began to draw out his companion. In him he perceived, as he thought, the ordinary bushman, an experienced stock-rider, or, perhaps, confidential drover, and thence he began to wonder how much of his past history he had been made acquainted with. A chance question supplied the information.

CHAPTER XVII

'Where are ye thinking of going, boss, when we get to Bairnsdale? Twofold Bay's a terrible long way off to go prospectin'. I'd a deal sooner chance Omeo. It's only twenty miles farther on.'

'Omeo, Omeo!' repeated Lance. 'Why should I go to Omeo?'

'Haven't ye heard? There's a big show struck close by the old township. They say they're leaving Ballarat, lots of 'em, to go there. It's the richest find yet, by all accounts; shallow ground too!'

'Omeo, Omeo!' Lance again repeated half unconsciously to himself. Had not Tessie made reference to it in the coach from Ballarat? Had she not said that Lawrence Trevenna was there, the man to whose baleful shadow he owed ruin and dishonour, the ineradicable disgrace which would always be associated with his name? He had a heavy account to settle with him. When they met all scores would be cleared off. This much he had vowed to himself in the prison cell at Ballarat, in the hulk *President* in the silence of midnight, in that fœtid hold of the prison-ship, where he could scarcely breathe the polluted atmosphere, laden with crime, heavy with curses. There, in that time of horror and dread, again and again had he sworn to take his enemy's life—that one or other should die when next they met, be it where it might.

And then again, as he hoped to efface himself, to feel secure from the pursuit which he heard in every breeze and feared in every echoing hoof, where could he find so safe and unsuspected a refuge as this new digging—wild, rough, isolated as Omeo must necessarily be? Far from civilisation of any kind, on a lone mountain plateau, snow-covered in winter, only to be reached by paths so devious and precipitous that wheels could not be employed, where every pound of merchandise or machinery was fain to be carried on pack-horses. There could be no better place for a hunted man to disappear, to obliterate himself. There he could remain for the present,—unknown, invisible to all who had known the former Lance Trevanion,—until he matured his plans and could make his way to a foreign shore.

Here, as he recovered health and strength under the influence of the mountain breezes and the wild woodlands which lay so near the river-sources and the snow summits, it would be comparatively easy to transmit his share of the Number Six washings, still safe in the Joint-Stock Bank in the custody of Charlie Stirling. Here, once located and established as Dick, Tom, or Harry—surnames were in the nature of superfluities at goldfields of the class which Omeo was pretty sure to be—he could make arrangements for selling out to Jack Polwarth. Quietly and without suspicion he could arrange to have the whole of his property transferred to him in cash, and some fine morning, under cover of a trip to Melbourne on business or pleasure, he would show Australia a clean pair of heels, and in America, North or South, in some far land where his name was never heard, would live out the rest of a life with such solace as he might, might even—when Time, the healer, should have dulled the heart-pangs which now throbbed and agonised so mordantly—might even reach some degree of contentment, if not of happiness.

And Estelle! Estelle! There was the sharpest sting—the bitterest grief—the direst pang of all. Could he ever look again into those lovely, trusting eyes, having undergone what he had done? Could he ask her—angel of purity that she was; the embodiment of the refinement of generations of stainless ancestors; sheltered, as she had been, by the conditions of her birth and education from all knowledge of the evil that there is in the world,—could he ask her to lay her head upon a felon's breast?—to take his hand in life-long pledge of happiness, when at any time, in any land where this long arm of extradition could reach, the hand of justice might seize him? No! Such companionship, such love, could never be his in the future. He had lost them for ever. On the lower level to which he had sunk he must remain. To its privations he must accustom himself; the surroundings he must endure. There was no help for it. If Tessie Lawless chose to share his lot he might not deny her. She knew the whole of his story. She loved him. She had been faithful and true. She deserved any poor recompense, such as the damaged future of his life, that of a nameless man, could offer, if she chose to accept it. For Trevanion of Wychwood was dead, and his early love, with all his high hopes and noble aspirations, lay deep in the grave of his buried honour.

From the day of Lance Trevanion's arrest at Balooka, no word, by letter or otherwise, had reached Wychwood of the fortunes of its heir. Days, weeks, months succeeded each other in the uneventful round into which country life in England has a tendency to settle when ordinary interests are withdrawn or unduly concentrated. It was pitiable to note the squire's anxiety when the Australian mail was due. For him, as for Estelle, there seemed to be but one man whose fortunes were worth following in the whole world—from whom letters were as the breath of life. And now these tidings from a far land, regular, if brief and sententious, up to this time, were suddenly withheld.

With the failing health of the Squire—for he suffered from one of the mysterious class of complaints before which strong men go down like feeble children—passed away much of his fierce obstinacy, his pride and arrogance. He thought of his son as he had last seen him,—haughty, tameless, defiant, with all his faults a true Trevanion,—and now, when he hoped to have seen him once again, grown and developed, though bronzed and possibly roughened by the rude life of a colony, when he had schooled himself to recall rash words and to make the *amende* as far as his nature would permit, here he was thwarted, bewildered, maddened by this sudden arrest of all knowledge of his fate.

'The boy has had the best of the fight,' he groaned out.

Ever at his side, at this crisis chief counsellor and consoler, Estelle here rose to her true position in the house. Awakened to the necessity of taking a leading part in the family fortunes, the added weight of responsibility appeared to nerve and mould her to a loftier resolve, to a more sublimely unselfish purpose. She it was who suggested to the desponding father every shade of excuse for the stoppage of the letters which were as the life-blood to his failing constitution. She it was who ransacked the newspapers for reports, meagre as they mostly were, of the great Australian gold fields. She it was who looked up maps and authorities upon the colonies, until she even acquired the recondite knowledge, granted to so few Britons, that Victoria is not situated in New South Wales, nor Tasmania the capital of Western Australia.

Torn and rent as was her own heart when she allowed herself to think of her lover,—lost to her in the wilds of a far country, perishing in the wilderness for all she knew, exposed to dangers among savages and outlaws even more ruthless,—she yet braced up her courage. She nerved herself to bear the worst, if only she might soften the pain and anxiety which began increasingly to sap the strength of the failing head of the ancient house.

More than once had she interviewed the passengers in vessels returning from Melbourne, hungrily eager for any shred of news from Ballarat. Did they know a miner named Trevanion, or even Polwarth? How long was it since they had seen him, and what were his present circumstances? But these inquiries were vain. Few of the returning adventurers had troubled themselves to remember the names of their chance acquaintances. Others indeed had heard of the untoward fate of the young Englishman, but thought it no kindness to tell his friends. They could not possibly aid him or alleviate his condition. Better to let the bad news unfold itself in due time.

So the weary days went on. Spring glided into summer. The ancient oaks and 'immemorial elms' of Wychwood Chase were clothed anew with tender greenery. The glad, brief life of the northern summer burst into joyous fulness, then paled and waned. Autumn, with slow pace but ruthless hand, despoiled the glades and strewed the forest aisles with withered leaves and fallen chaplets. Ere the blasts of winter had commenced to herald the doom of the dying year, it became generally known that the Squire of Wychwood was failing fast—would, indeed, hardly last over the coming Christmastide. It was observed that he buried himself in his library, that he had given up all habitual modes of exercise. No guests were invited to the house, and Miss Estelle more often dined by herself than not in the great, lonely dining-room which had so often echoed with festive mirth, or, in older days, still rang with ruthless revelry.

As the Squire's health declined his affections seemed to concentrate themselves upon his niece. She had in all respects borne herself as a daughter to him—had shown even more than a daughter's sympathy and constant, watchful care.

The younger son was at college. He would be the heir to Wychwood in case the adventurer on the far Australian goldfield never returned to claim his

inheritance. Amiable, well conducted, of respectable ability and fair attainments, he had never (such is the perversity of the human heart) been a favourite of his father's. The stern old man—bitterly as he had quarrelled with the disobedient elder brother, whose nature was in so many respects a reflex of his own, yet in his heart owned him for the higher nature—recognised in him the befitting heir to his ancient demesne, to the hall in which nobles had sat and princes feasted. Now to his gloomy and brooding soul all hope was lost. Some dire misfortune, even a fatal accident, had doubtless happened—must have occurred, indeed, or Lance's chronicle of his life and adventures, meagre as to detail, but of regular recurrence, would have continued. If only he could have set eyes on Lance before he died! Could he but have told him how he had regretted the rash words and bitter speech, the prayers he had prayed for his safe return; ay, the tears he had shed in the agony of his remorse—he, the proud, inexorable Trevanion of Wychwood! It was well-nigh incredible. None of his old-time comrades and fellow-roysterers could have believed it of the Dark Squire, as the villagers then named him, with lowered tones and bated breath. But in the days of sorrow and failing strength,—when the strong man is brought low; when those hours, so long approaching, so long menacing, have come; when death seems no longer a strange visitant but a familiar friend, more welcome in truth than the sad alternation of sorrow and unrest,—the haughtiest pride of man is lowered. In those hours of lonely grief and dark despair many a recantation is made—many a vow recorded undreamed of in life's festal season.

The death-day came at last. He lingered on past the season fixed by general expectancy; but ere the first bud of the swelling leaflet had been set free by the breath of spring in his ancestral glades, the Squire lay with his warrior forefathers in the historic vault, which had not been opened since the last Lady of Wychwood had been carried there, long ere her beauty had faded. The retainers of the house, and not a few of the notables of the county, assembled to pay the last form of respect to one whom, in despite of his latter-day life of seclusion, they recognised as one of the born leaders of the land. As the long procession passed slowly along the winding road, which

at one point skirted the sea-cliff, to the venerable chapel which had seen so many solemn ceremonies celebrated connected with the family, more than one inquiry was made for the absent heir, and uniform regret expressed that he should not have returned from the far south land to claim his own and assume his rights.

When the last sad duties had been paid to him whom, in spite of his stormy outbursts of temper, Estelle could not help holding in love and pity, a strong resolve appeared to actuate the once timid girl, shrinking, as carefully-nurtured women do, from independent action and strange surroundings. The estate would go, of course, to the heir-at-law, strictly entailed as it had been for many generations. But it had been in the old man's power to dispose as he pleased of the large amount accruing from the savings of late years, and from the sale of an estate which was not included in the entail. This bequest, which had been made while the testator was of perfectly sound mind and body, was of such amount as to render Estelle perfectly independent for the rest of her life; indeed, to exalt her somewhat to the position of an heiress.

In the long conversations held in his latter days of decadence between the Squire and his niece, it had been definitely agreed that Estelle should proceed to Australia and there seek out the errant heir—should bring him back if possible by force of entreaty or persuasion to the land of his forefathers, to the rank and position handed down from the fierce warriors and splendid courtiers whose presentments frowned or smiled down upon their descendants in the old hall.

'I have such faith in you, my darling Estelle,' said the Squire, in one of his later confidences, 'that I shall die more peacefully knowing that you will search this far country for my lost unhappy boy. You have sense and courage in a degree rarely bestowed upon women. Your heart has been true to him during his long absence—this more than anxious period of doubt and dread. If he be in the neighbourhood of the place from which we last heard from him, you will be sure to gain some tidings of him. If you see him, your influence over him, powerful for good, always for good, as in the past, will save him, and once more the old ancient race, which has never yet failed of a male heir in the direct line, will be fittingly represented. If Lance, the son of whom I was so proud, returns no more from that far country, the estate will of course pass into the hands of his brother. But you are in any case

well provided for. May God bless and reward you, my darling Estelle, for your forbearing kindness to a broken-spirited man. And now, kiss me, darling; I think I could sleep.'

He slept the sleep which knows no awakening on earth.

The parting words of her uncle had for Estelle almost the sacredness of a dying command. She had vowed, kneeling by his bedside, to leave no region unexplored, to carry through the search with the completeness which characterised all her proceedings. The high courage and resolute will which were hers by inheritance from the Trevanions stood her now in good stead. With an air of quiet resolve she arranged all her personal affairs without parade or hesitation; within a fortnight her passage had been taken, a few letters of introduction procured, also a very moderate outfit suitable for a young lady travelling, if not incognito, in a very unobtrusive way. And at the appointed day and hour Estelle found herself speeding away over the waters blue in company with a stranger crowd of enforced acquaintances, borne over an unknown sea on a wild and desperate quest. Before her, in imagination, she pictured the rude solitudes of an unknown land—even the fancied perils of a lawless goldfield.

The low coast of the island-continent line, irregular and faint, appearing from out the southern sky, so long unbroken. A new land—a new city. Melbourne at last! The land how strange! The city how new! The people how foreign-appearing and *bizarre* to the voyager from the region of tradition and settled form. Estelle looked and moved like a strayed princess amid a horde of nomads. She had schooled herself into the belief that in her quest she would be called upon to suffer all kinds of privations, and to mingle with every variety of 'rough colonists.' She resolved to make a trial essay. In pursuance of this heroic resolution she preferred to go to an hotel upon her own responsibility, before delivering the letters of introduction with which she had armed herself. She was not exactly fortunate in her choice, as indeed was to be expected. However, she was agreeably surprised at the civility with which she was treated, as well as by the absence of 'roughness,' as displayed by the *habitués*, many of whom were patently

uneducated. Still Estelle made the discovery shortly, that even so recently constructed a city as Melbourne, in the fret of a gold-fever, was not essentially unlike an English town—that a handsome young woman was more or less an object of attraction and curiosity. Tolerably well veiled, doubtless; nevertheless an inquiring tone displayed itself unmistakably. And, in spite of her resolve to brave all the social inclemencies of her novel surroundings, Estelle Chaloner shrank from the implied doubtfulness to which her unprotected condition led up. Escape was easy. She smiled as she thought of her boasted independence; how soon it had failed her! Being a sensible girl, however, in the least restricted sense of the word, she capitulated forthwith, resolving to present one of the letters of introduction without delay.

Having packed up her belongings,—not too extensive,—paid her bill, and arranged all things ready for departure, Estelle picked out a 'nice' looking letter, and resolved to abide the hazard of the die. The address was, 'Mrs. Vernon, Toorak, South Yarra, near Melbourne.' The aboriginal sounding names gave no information as to distance. 'Near' might mean two miles or twenty. A man's next-door neighbour in Australia was sometimes fifty miles distant, she had heard. Happily she bethought herself of asking information of the landlady of her hotel.

'Toorak, Toorak!' said that important personage. 'Oh yes; I know it well enough, and a nice place it is—all the swell people live there! Mrs. Vernon's place is one of the best there. A grand house, and everything in style. You'd better have a cab called; they'll take you there for ten shillings, luggage and all.'

'I may not be asked to stay,' replied Estelle diffidently, 'and if I am, I am not sure that I——'

'Oh yes you will,' interposed the hostess. 'Don't talk that way. Wait till you see what sort of a place it is. And Mrs. Vernon's a lady that won't let you go, I'll answer for it.'

A short half-hour's drive across Princes' Bridge, through or around the maze of Canvastown, past the Botanic Gardens, and along a newly made and recently metalled road, brought Estelle to a pair of massive ornate iron

gates, on the northern side of the road leading along an avenue of some length.

'This is Charlton Lodge,' said the driver. 'Shall I drive to the front?'

'Certainly,' she replied, as she smiled at the question. The winding avenue was well gravelled, with a border of shaven grass, beyond which were beds filled with flowering shrubs, planted amid and underneath tall pines, with an admixture of elms, oaks, and Australian cedars. Everything exhibited careful tendance, demonstrating that although many of the best labourers had levanted to the goldfields there were still some few servitors who preferred comfort to independence. Estelle was beginning to wonder how long the preliminary approach was to last, when a velvet-piled lawn came into view, around which the carriage-drive took a sweep, her charioteer halting underneath a spacious portico of classical proportion and finish.

The cabman rang the bell, and receiving assurance from a neatly dressed parlour-maid that her mistress was at home, returned to his seat and awaited events, while Estelle was duly ushered into a handsomely furnished drawing-room of unquestionable modernity of tone.

After a reasonably short interval, employed by Estelle in a comprehensive survey of the apartment, which, indeed, bore tokens of intelligent and appreciative taste, a well-dressed elderly lady appeared.

'Miss Chaloner!' she exclaimed. 'I am truly glad to see you at last. I have been wondering what had become of you. My dear friend, Mary Dacre, wrote to me to say that you were coming out by the mail, and that you had kindly brought a letter to me. I heard of the vessel's arrival, and that you had left the vessel and gone to an hotel. I called at Scott's and Menzies's, but they had not heard of you.'

'I went to the Criterion,' said Estelle smilingly. 'I rather regretted it afterwards.'

'Of course you did, my dear, and permit me to say that it partly served you right. Why did you not come to me *at once*? Melbourne is such a queer place now since the diggings have broken out. There are all sorts of strange characters and curious people about. It is hardly a place for a young lady just now, unless under efficient chaperonage.'

Estelle gazed at the kindly old lady, whose eyes at that moment shone with maternal tenderness for an instant before she answered. Her voice softened as she said—

'You must remember, as no doubt Miss Dacre told you, that I came to Australia for a special purpose; and that if I expect to be successful in my search I cannot afford to let small obstacles stand in my way.'

'Small obstacles! That is very well, but surely you don't intend to go up to the diggings and to horrid places in the bush all by yourself?'

'That is just what I *do* intend, my dear Mrs. Vernon,—neither more nor less. I have thought over the matter scores—yes, hundreds of times—and I can see no other way. If I merely wished to see the country I might arrange things differently. But I have one important, principal, all-absorbing purpose in view. It is my star. I fix my eye on that, and all other things, even those which appear to be insuperable difficulties, must give way.'

'Dangers and difficulties, traps and pitfalls, do all those count for nothing in your list of drawbacks?'

'I must use a man's argument. I see other women have done—are doing the same—why not I? Suppose I were a sempstress or a poor governess on her way to an engagement, should I not have to do the same?—to travel unattended; to take my chance of rough or uncongenial companionship? Why am I so much more precious than other girls of my age, that I have to be fenced round with so many precautions?'

'All this is fine talking, my dear Miss Chaloner, and it's very nice of you to say so; but a young lady of position and fortune cannot—*must not*—travel about by herself as if she were a barmaid or a music-hall singer. There *is* a difference beside that of age and sex—and the disagreeables—you have no idea of the nature of them.'

'I don't know much about them, though I may partly guess, my dear Mrs. Vernon, but we Chaloners and Trevanions are said in Cornwall to be an obstinate race. My mind is made up. I must take a seat in the Ballarat coach for next Monday.'

'I am afraid you *are* an obstinate girl,' said Mrs. Vernon good-naturedly. 'Well, a wilful woman must, I suppose, have her own way. I have relieved my mind, at any rate. Now the next thing is to see how we can help you in your perilous adventure. Let me think. Do I know any Ballarat people? No, but Mr. Vernon does; if not, his friends do, which comes to the same thing.'

'I hope that you won't take all this trouble about me,' said Estelle earnestly. 'I know how to get there, with my own unaided intelligence. You would be surprised how much I know about Port Phillip from books and newspapers.'

'And you are bent upon acquiring your own colonial experience? Well, my dear, it may be all for the best in the end; but if you were a daughter of mine I should not have one happy moment from the time I lost sight of you till you returned. Do you know any one at Ballarat, or have you letters to people there?'

'There is one gentleman there whom I seem to know quite well through my cousin's letters. He was never tired of praising him. He spoke of him as his best friend. His name was Charles Stirling. He was a banker. Then there was a Mr. Hastings, and John Polwarth, Lance's partner,—both miners.'

'A banker and two miners! Chiefly young and unmarried, I suppose. And are these all your introductions in a strange town, and that town Ballarat, you dear innocent lamb that you are? Well, well; we have five days before us. Mr. Vernon will be home to dinner at seven, and we can have a council of war. Here comes afternoon tea, after which we go for a drive if you are not tired.'

'I am not in the least tired,' replied Estelle. 'And now that my departure is decided upon I am ready for anything.'

So the carriage was ordered out—a costly enough equipage in those days of unexampled enhancement of prices—the three-hundred-guinea pair of horses that consumed oats at twelve shillings a bushel and hay at seventy pounds a ton, driven by a coachman at three pounds a week. But Mr. Vernon was a merchant who had made one fortune by the lucky cargoes of mining necessities, and was fast making another by gold-buying. Such an additional item of expense as a carriage for his wife was the merest bagatelle.

So the ladies drove to St. Kilda for a breath of sea air, taking the Botanic Gardens on their way back, where there was a flower-show patronised by His Excellency, Mr. Latrobe, and all the rank and fashion of the metropolis, chiefly represented by a few squatters and club men, with a sprinkling of gold commissioners on leave.

Mrs. Vernon was not averse to the company of so distinctly aristocratic-looking a damsel as Estelle Chaloner, whose appearance, quietly dressed as she was, elicited, in that day of matrimonial competition and proportional scarcity of young ladies, endless admiring comment.

At dinner, for which they had barely time to dress, they were enlivened by the society of Mr. Vernon—a shrewd, good-humoured mercantile personage—and a gentleman whom he introduced as Mr. Annesley and described as a Goldfields Commissioner. This last was a very good-looking and correctly dressed young man, not long from England. He was in Melbourne, on leave after twelve months' hard work on the diggings, according to his own account, and had some flavour of the high spirits and abounding cheerfulness of the naval officer on shore about him. His host 'drew' him judiciously about mining life and adventure, on which he was by no means loath to enlarge. He was evidently gratified by the intense interest with which Estelle listened to his amusing and justifiably egotistic rattle, and in the innocence of his heart essayed to complete her subjugation. But, to Estelle's intense regret, he did not come from Ballarat—'had been quartered in quite a different district.' She was deeply interested in him, however, as marking a type with which Lance must necessarily have often come into contact, and she concluded an agreeable evening, widely different from her expectation of things Australian, with an assurance from Mr. Vernon that he would bring her a budget of definite information about Ballarat and its social condition on the morrow.

Had she been in a position to listen to the conversation of her host and his guest when she and Mrs. Vernon had retired for the night, and the gentlemen had adjourned to the smoking-room, she would have scarce slept so soundly.

'Lance Trevanion? of course I *had* heard of the beggar,' said the Commissioner, as he threw himself back in a settee and lighted one of Mr.

Vernon's choice cigars. 'We had a fellow from Ballarat staying at the camp at Morrison's who had been at the trial and knew all about him. But how could I tell the poor thing? What a sweet girl she is, by the way! why, she'll have half Melbourne pursuing her with proposals if she only lets them see her. Don't know when I've seen such a girl since I left England. Why she should bother her head about Trevanion now, I can't imagine.'

'Well, he's her cousin, my wife tells me, for one thing. They were engaged, it seems, too, before he left home. Sad pity that such a girl should spoil her chances here and throw herself away. But that's their nature, we all know. Tell us the tale, Annesley; I never heard.'

'As it was told to me, this was about it. This fellow Trevanion, a good-looking, well-set-up youngster, seems to have been a bad lot or a d—d fool, one can hardly say which. Anyhow, he was fond of play, and got mixed up with a crooked Sydney-side crowd. There was a girl in it, of course. They won from him, it was said. He, like a young fool, thought he might choose his own company at an Australian diggings, "all people out here being alike," or some such rot. The end of it was that he was run in for horse-stealing, or having a stolen horse in his possession. Got two years. I've heard since that he was the wrong man, but the Sergeant—queer card and deuced dangerous, that Dayrell—wanted a case—the diggers had lost so many horses that they wanted a conviction. So poor Trevanion had to pay for all.'

'What an infernal shame!' said Mr. Vernon. 'Couldn't anything be done for him?'

'Well (by Jove, this is a cigar, I must have another by and by), looks so, doesn't it? But it's necessary to be hard and sharp at the diggings or the country would go to the devil. Wrong man shopped now and then, like Tom Rattleton in California, but can't be helped. Ever hear that yarn? No! Well, I'll just light number two, and here goes: Tom, you must know, was a bit fastish before he left the paternal halls in another colony. After one of his escapades, a friend of the family, good fellow, observes one day, "Tom, it's no use talking, you'll come to be hanged." "Thank you," says Tom, "I think I'll try San Francisco; this place is too confined for a man of my talents." Gold at Suttor's Mill had just been reported.'

'And did he go?'

'Like a bird, with lots of Australian "bloods," as they used to call them. Had to work their way back before the mast, most of them. Tom had, anyhow. After the fatted calf had been duly potted, friend of the family arrives.

"Hulloa, Tom! home again? Proud to see you, my boy. Safe back to the old place, hey?"

"That is so," answered Tom, putting on a little Yankee touch, "do you remember what you said to me as I was leaving?"

"No, my boy, what was it?" Friend didn't like to own up, you see.

"Well, you said I'd come to be hanged, and, by Jove! *I nearly was* in 'Frisco. *The rope was round my neck*, sure as you're there. Took me for a gambler who'd shot a man the night before. He turned up in time to be turned off, or I should have been—well, *I shouldn't* have been here to-day."

'Friend turned quite pale, grasped his hand, and sloped. Affecting, wasn't it?'

'Good story, very,' quoth the host. 'Like Tom Rattleton. Reckless young beggar he always was—but turned out well afterwards. *Experientia docet*. Near thing, though. Now, touching this poor girl's cousin. Nothing earthly will prevent her going to look for him.'

'H—m! Does she know any one in Ballarat?'

'Mr. Charles Stirling, a banker; Hastings and Polwarth, Trevanion's mates.'

'Charlie Stirling! I've heard of him. Awfully good sort, people say. Well, he'll do all he can. If she goes up he's the man to break it to her. Dalton's Sub-Commissioner there. I'll leave a line for him. Between them both they'll see no harm come to her. Well, Number Two rivals his predecessor. It's a fair thing, I suppose. Good-night.'

A couple of days were spent pleasantly enough in Melbourne. A few of the South Yarra notables dropped in, not quite accidentally, to Mrs. Vernon's afternoon tea, whose manner and appearance rather altered Estelle's preconceived notion of colonial society. They expressed the wildest astonishment at hearing that she was about to explore Ballarat, much as in

London might a South Kensington coterie at hearing that a cherished classmate thought it necessary thus to satisfy her doubts about the Patagonians or the Modoc Indians, always ending their politest commiseration with an invitation.

Finally, all entreaties proving unavailing, Estelle was driven in before sunrise, and at 6 A.M. found herself on the box-seat of the Ballarat coach, specially commended to the care of Mr. Levi, the driver, who was waiting for the clock of the Melbourne post-office to strike, preparatory to the customary sensational start of Cobb and Co.'s team of well-groomed, high-conditioned grays.

CHAPTER XVIII

Much to Estelle's surprise, the journey, strange and unfamiliar as were all things to the English maiden of a country family, was far from unpleasant. The rapid rate of travelling, the speed and stoutness of the horses, the astonishing dexterity of the American stage-driver, were alike novel and interesting; and these were matters as to which she was qualified to judge. Like many English girls brought up in a great country-house, she rode well and fearlessly—had, indeed, for more than one season, ere the shadow fell upon Wychwood, followed the hounds with decided credit. Beginning with a pony carriage, she had in later years amused herself with driving her uncle in a pair-horse phaeton, with a groom in the back seat of course. She was therefore intelligently interested in the ease and accuracy with which the laconic Mr. Levi piloted his team alike adown crooked stump-guarded sidelings, through dense primeval forests, and over unbridged creeks, for under such perilous conditions the road to Ballarat in the early 'fifties' pursued its devious course. The driver, in whose charge she had been placed, with strong recommendations and a liberal *douceur*, by Mr. Vernon, though saturnine and sparing of speech, as was customary with that 'spoiled child of fortune,' the stage-driver of the period, was, in his way, courteous and respectful. He indicated from time to time points of interest in the landscape. He even answered her questions civilly and with a show of attention. Concerning the coach and harness, the leather springs and the formidable brake, so diverse from all English experience, he was explanatory and gracious. The day was fine, the air clear and fresh, while from the close-ranked eucalyptus exuded balsamic odours, which, to her aroused fancy and eager appreciation of the new nature which encircled her, savoured of strange health-giving powers. The flitting birds, the occasional forest cries, the great flocks of sheep, the absence of enclosures, the droves of cattle and horses with their equally wild-looking attendants, the long trains of bullock-drays and waggons—were not these the wonders and portents of the land of gold? In despite of forebodings and the sense of isolation with which Estelle Chalonier had commenced this most eventful enterprise of her life, the natural fearlessness of her race asserted itself, and,

true to the instincts of youth, her spirits rose perceptibly. When at the close of the day the coach rattled along the macadamised road which prepared the passengers for the lighted streets, the clanking engines, and yawning shafts of Ballarat, she had confessed to herself that Australia was by no means so dreadful a place as she had expected.

The team was now pulled up nervously close to the doorstep of a large well-lighted hotel, thus at once exhibiting the proverbial skill of Mr. Levi, and scattering the group of loungers which surrounded the entrance. Then a man's voice hailed the driver cheerfully, and demanded of him whether Miss Chaloner from Melbourne was on the coach.

'Right you are, Commissioner,' was the response. 'If you'll help the young lady down, reckon I've delivered her into the protection of Her Majesty's Government. Her luggage is in the rack. Joe'll have it near out by this. Good-night, Miss. The Commissioner'll take care of you.'

'Good-night, and thank you very much,' said Estelle, as, stepping downwards cautiously from the high box-seat, she found herself almost in the arms of a tall man, who half-assisted, half-lifted her down.

'Permit me to introduce myself, Miss Chaloner,' he said, 'as Mr. Dalton and Her Majesty's Commissioner of this goldfield. I had a note from a friend and brother officer in Melbourne advising me of your coming. I have arranged with Mrs. M'Alpine, the wife of the Police Magistrate, who will be most happy to receive you. You will find her cottage more comfortable than an hotel. Trust yourself to my escort and we shall be there in a few minutes.'

'This is some of Mrs. Vernon's kindness, I am sure,' said Estelle. 'Really I seem to have friends everywhere in this land of strangers.'

'May you always find it so, Miss Chaloner. Please to honour me by enrolling me among the number. This is our vehicle, and your luggage is safely packed.'

A nondescript trap with four high wheels and disproportionately large lamps stood near. Into this her companion helped her, and taking the reins dashed away into the darkness, as it seemed to Estelle, at a reckless and extravagant pace. After threading several side streets, however, and ascending a slight elevation without loss or damage, Mr. Dalton drew up beside a garden gate,

out of which issued a lady, who, taking both her hands in hers, welcomed her guest with effusive warmth.

'So glad to see you, my dear Miss Chaloner. Mrs. Vernon was afraid you would get lost in our dreadful goldfield. We trust you will find us not *quite* such barbarians as the Melbourne people think us. Mr. Dalton, you'll stay and have tea? No? Don't say you've got business; I know what *that* means—loo or poker at that wicked camp. Perhaps you'll look in to-morrow evening? You may? That's very good of you. We'll manage a whist party and a chat, at any rate. Good-night. Now, my dear, we'll have a "small and early" all to ourselves. It's just as well Dalton didn't come in. He suspected you were tired, I dare say.'

After a few more disjointed, but all hospitable and sympathetic utterances, Mrs. M'Alpine inducted Estelle into an extremely neat and comfortable bedroom, and bidding her not to trouble herself to make any change in her attire, for tea was quite ready, left her to consider the situation.

No sooner had this kindly acquaintance left the room than the strangeness of the situation appeared to force itself upon Estelle. She looked out through the open window—a hinged casement overhung with a trailing creeper, the glossy leaves of which partly obscured, partly diverted into glittering fragments of rays, the gleaming moonlight. It was a still evening. The half-audible murmur of a large population, confused and inarticulate, came faintly on her ear. There was a softness in the air which soothed her somewhat excited brain. Thinking over the strangely-varied experience of the past week, she could not help owing to herself that so far everything had been rendered easy through the kindness of these newly-found friends in a far land.

'Who knows,' she asked herself, 'whether I may not find similar aid and guidance throughout my quest? May Heaven grant it! My errand is one of sacred necessity, pledged as I am to this by my vow to the memory of the dead. As God shall help me, I will remain faithful to the end. I begin to feel that though far from dear England's shores I am still surrounded by English hearts and English homes—changed in form, and in form alone, as the latter may be. "Onward" must be my motto.'

Thus concluding her meditations, Estelle bathed her eyes, somewhat sensitised after the day's exposure, and then making some slight but befitting change in her attire, joined her hostess in the pleasant sitting-room, now devoted to the exigencies of the evening meal. Over the tea-table, and within the influence of a cheerful wood fire, the younger woman became insensibly more unreserved and confiding as to her place and purpose. Mr. M'Alpine had not returned to his home, presumably detained by business of importance. It may be surmised that neither of the ladies was deeply grieved at his absence, under the circumstances.

Being in full possession of facts, as far as Estelle had resolved to furnish them to Australian friends, Mrs. M'Alpine strongly recommended her guest to remain with her for the present, and await the coming of Mr. Stirling, who would be certain to arrive on the morrow or the day after, on being notified of her presence in Ballarat. 'Our town looks uncivilised, my dear, but Growlers' Gully (fancy such a name) is, of course, only a rude caricature of it. I don't think you could possibly exist there, though there is an hotel of some sort.'

Very gently and quietly, but firmly, Estelle made it apparent to her hostess that she was not to be shaken in her purpose. She had formed her plans carefully before leaving Melbourne, indeed during the voyage, and she had determined to see with her own eyes the very claim, as they called it, where he, the loved, the lost Lance Trevanion had worked. She must see John Polwarth, with whose name she was familiar, and his honest-hearted wife. She would never be able to rest without full and complete explanation from Mr. Stirling of all things connected with Lance's mysterious disappearance. Of course she could imagine that in Australia people often moved away to new diggings at great distances, and, she supposed, left off writing to their friends, though she could hardly account for it in her cousin's case. 'Poor thing! poor thing!' said Mrs. M'Alpine to herself, 'she will have to hear the wretched truth some time or other. *I* can't venture upon it, but I don't know a man who is more likely to break it to her gently than Charlie Stirling, and so, as she is bent upon it, the sooner she gets safely out to "Growlers" the better.'

So it came to pass that, as Mr. M'Alpine was still absent on outpost duty, a trusty messenger was despatched next day for the Commissioner, who

regretfully saw Estelle safely into the coach which, leaving daily for Growlers' at the convenient hour of 10 A.M., was the recognised mode of communication with that rising goldfield and township.

There were two horses instead of four. The coach was smaller, and by no means so well appointed. The driver was less distinguished in air and manner, but capable and civil, particularly after receiving the Commissioner's strict injunction to take great care of his lady passenger. The road was more than novel, indeed exciting, to Estelle's untravelled mind, winding amid fallen trees, bounded on either side by yawning dark-mouthed shafts of unknown depth—some desolate and deserted, with unused windlass and dangling rope; others in work, with full-laden buckets which, as they came to the surface, Estelle believed to be partly filled with gold—now crossing a rushing water-race upon a rustic bridge of most temporary nature, and finally plunging through a creek which flowed level with the feet of the inside passengers. On the farther bank of this much celebrated watercourse stood a scattered collection of huts, tents, and cottages, threading which by no particular roadway the coach dashed ostentatiously into a more closely occupied thoroughfare, in which some dozen edifices of superior pretensions denoted the business centre of the township.

Here the minor peculiarities of a goldfield, somewhat shaded off in the civilisation of Ballarat, commenced to present themselves. The 'Reefers' Arms' was an enlarged cottage, the front of which boasted the more expensive and, in goldfields architecture, more correct material of 'sawn stuff,' disposed weatherboard fashion, while the side walls, the roof, and rear of the building were composed of large sheets of stringy bark. It was wholly unlike any building which Estelle had ever imagined—certainly with a view to lodging therein. However, this was not the time to falter or hesitate; she had chosen her course and must follow it out.

Carrying her smaller property in each hand, and following the driver, who walked through a group of loiterers or still unsated revellers who encumbered the entrance, Estelle found herself in a painfully clean sitting-room, in which her guide deposited her portmanteau, merely saying, 'I'll call Mrs. Delf to see you, Miss,' and departed.

He had probably explained that the young lady was a friend of the Police Magistrate and the Commissioner. Nothing further was necessary to ensure her the utmost respect and attention which Growlers' could afford. Both functionaries were men in authority, and as such to be held in awe. Though it is probable that even without these valuable introductions any girl, though wholly unprotected, who was conventionally correct of conduct would have met with similar attention. As to the peculiarity of a young lady, apparently of position, electing to abide temporarily in such a queer locality as Growlers', the hostess was not likely to disquiet herself. So many strange things and strange people were constantly in the habit of passing across the orbit of any given goldfield that surprise was of all the emotions the most rare and difficult to arouse.

Mrs. Delf shortly presented herself: a neat, alert personage, shrewd of aspect and decisive of speech. She anticipated any inquiry of Estelle by remarking, 'Ned tells me, Miss Chaloner, as you want to stop here for a while. Well, you know Growlers' always was a rough shop, and I can't say as it's altogether A1 now, but I'll do what I can for you while you're here, Miss.'

'Thank you very much,' said Estelle. 'I may stay a few days, or even longer. Would you kindly tell me if you remember a Mr. Trevanion who was mining here more than a year ago?'

'Trevanion—Lance Trevanion? Of course I do. Belonged to Number Six. He and Jack Polwarth were mates—and a stunning claim it is this very day. Know him? Why, he stayed here the very last night he was on the field—poor fellow!'

'Then he has gone away—left this part of the country?' asked Estelle, with such anxiety depicted on her countenance that the quick-witted matron at once divined that the real truth was as yet unknown to her. 'And why do you say "poor fellow"? Has anything happened to him?'

'Oh no! Not at all, Miss—that is, not that I've heard of' ('and that's a banger, if ever there was one,' ejaculated the good woman inwardly); 'it's a manner of speaking, that's all—we were all fond of him, and sorry to lose him, you see. Is there any one else here you know, Miss? Oh! Mr. Stirling of the Bank opposite will be here to dinner at one o'clock; has his meals here

regular, though of course he sleeps at the Bank. He'll tell you all about Mr. Trevanion. Bless you, they was like brothers. As for Mr. Stirling, he's that quiet—why, whatever's up at the Bank? Not a fight, surely?'

This exclamatory query was apparently caused by a simultaneous rush of all the unoccupied portion of the population, with the exception of three men who stood up in a cart, across to the comparatively pretentious building with corrugated iron roof, legended on the front as the Joint-Stock Bank of Australia. Mrs. Delf's experienced eye had noted the formation of a ring, simultaneously with the sudden precipitation on his head of an able-bodied miner through the Bank's portal.

'It's that "Geordie" Billy, sure as I live; he's been cheekin' Mr. Stirling about his gold and got chucked out. He's a rough chap when he's had a drop. There's bound to be a row now.'

A tall brown-bearded man, decidedly in undress uniform, but effectively attired for service, had by this time appeared at the door. He wore a coloured crimean shirt, to which, however, was attached a white linen collar. His coat was off, and his sleeves had been rolled up. He watched with a smile the burly miner recover himself, and standing upright glare around him with the silent fury of the bull-dog in his small black eye.

'Are ye game to come out of your box there and stand up to a *man*?' he growled out. 'I'll show ye what it is to put your hands on me!'

The banker's answer to the challenge was to walk calmly forward, while the spectators, with cheerful expectancy, closed around, in confident trust that one of the principal excitements of their monotonous existence would not fail them.

'T'd rather see you go home, Billy, and sleep off your sulk. It's the grog that always makes a fool of you; but if you must have a licking, come on.'

'Oh dear me!' cried Estelle, who, with the most liberal allowance for the free and lawless life which colonists are believed to lead, had scarcely expected this. 'Are they really going to fight? How dreadful! That gentleman may be killed.'

'Not he, Miss. Mr. Stirling's a hard man to mark; not but what the "Geordie's" as strong as a bull, and can fight too. Come to this window, Miss; we can see it first-rate from here. They'll only have two or three rounds, and his mates'll take away Billy.'

'And is *that* Mr. Stirling?' asked Estelle, with deepest amazement. 'I thought you said he was so quiet?'

'So he is, Miss, till he's put upon. I expect Geordie said he was weighing the gold wrong, and Mr. Stirling won't likely stand that from a digger, and put him out. That's about the size of it. Oh, do look, Miss; they're going at it.'

Estelle was much minded to turn her head away. In her own country she would doubtless have thought shame to have looked on at any such spectacle. But somehow the anxiety to see how the aristocrat fared in conflict with the man of the people overpowered her scruples, so she gazed eagerly at the conflict, as might her ancestress at a tournament where her badge was worn by a knightly aspirant.

'Geordie' Billy, belonging to a section of miners who hailed from 'canny Newcassel,' was a low-set, broad-chested, unusually powerful man. Long in the reach, and in the pink of condition from severe daily labour, his enormous strength and dogged courage, independently of science, made him a dangerous antagonist. Mr. Stirling was held to be the most finished performer with the gloves on the field. It was therefore a contest of champions, and as such awaited by the crowd with keen and pleasurable expectation; and a very ugly customer indeed did Mr. Billy Corve appear, as he came forward with an activity which the various 'nips' he had indulged in that morning had but slightly impaired. Had one of those sledgehammer blows which he delivered with fierce rapidity taken effect, Mr. Stirling would have had some difficulty in 'coming to time.' But stepping back from one, eluding another by what appeared to be the slightest side movement of his head, and stopping a third neatly, he caught his advancing foe such a left-handed facer as staggered him, leaving him a prey to the body blow that followed, and which, getting 'home' to some purpose, sent him very decidedly to grass.

'Oh dear, how dreadful!' said Estelle, pale with apprehension. 'Surely they won't let them kill one another? That poor man must be badly hurt.'

'Not a bit of it, Miss. You couldn't kill Billy with an axe. He'll be all the steadier for it next round. Oh! look out, Mr. Stirling.'

This friendly admonition, which in the ardour of her partisanship Mrs. Delf screamed out at the top of her voice, was justified by the apparent success of the very ugly rush which Mr. Corve made, with the evident intention of getting to close quarters. He broke through Stirling's guard, and nearly succeeded in getting his head 'into chancery,' as that peculiar feat of the combat is designated. Once enfolded with that mighty arm, and the enormous fist left free to pound away at discretion, the classical outline of Charlie Stirling's features would have been sadly marred, perhaps permanently altered. But *dis aliter visum*. Countering with lightning quickness through the 'half-arm rally,' Stirling managed, by the exercise of desperate agility, to keep clear of the octopus-like hug, in which science would have been vain. Finally, springing backward, he evaded a final lunge, and darting in from the side administered a rattling hit on the 'point,' which for the moment completely discomfited his antagonist.

A ringing cheer went up from the discriminating crowd, while a friendly bystander, moved to apprehensive sympathy, earnestly exclaimed, 'Keep your head, Mr. Stirling; for God's sake, sir, keep your head.'

But Charlie Stirling had already seen the necessity for caution, for though his gray eyes glowed and his chest heaved as he regained his corner, he seemed to fall mechanically into the attitude of calm watchfulness with which he had commenced the encounter.

'Wasn't that grand, Miss?' exclaimed Mrs. Delf. 'Mr. Stirling's as quick on his pins as a wallaroo. I was most afeard the "Geordie" had him then. This round will settle it. Don't go in, Miss. Maybe you'll never have a chance to see a right-out good mill so comfortable again. Two to one on Mr. Stirling.'

For her life Estelle could not have moved away then, though she had turned her head a minute before, deeming that for shame's sake she could no longer look on at such a sight. But the ancient fire which glowed in the breasts of the patrician dames of Rome's proudest day, though stifled and repressed for centuries, has never quite died out of the female heart. After all, no one would be killed, or perhaps mortally wounded. Mr. Stirling was

Lance's friend, thus necessarily hers. She could not bear to leave the arena ignorant of the fate of their champion.

She had not long to wait. And now that her blood was slightly warmed by the excitement of a real battle, a combat not quite *à l'outrance*, but as near to it as is permitted in these degenerate days, she confessed to herself that there was something not wholly inglorious in this ordeal by combat.

The tall athletic form of Charlie Stirling showed to great advantage as he advanced, with head erect and elastic step, towards his truculent antagonist, whose countenance, with a splash of blood from brow to bare neck, wore a savagely stern expression. Furious at his late failure, he made a rush, with every intention of ending the fight then and there. Forcing the fighting, and compelling Stirling to use his utmost skill in warding off or evading his terrific blows, each one of which was sufficient to disable an ordinary man, he appeared at one time to have mastered his adversary. But Charlie Stirling, the hero of a hundred glove-fights, was too clever, in the language of the *lanista*. Feinting suddenly, he drew the blow, of which he had thoroughly mastered an infallible guard, at the same time getting home with his right in a terrific body blow, the effect of which brought his man forward, to be shot backward by a lightning left-hander on the temple, which stretched the brawny gladiator senseless, putting the possibility of 'coming to time' entirely out of the question.

'Great work, Mr. Stirling! You gave him "London" that time,' shouted a man who hailed from Bow Bells; and amid congratulatory cheers, in which Estelle felt a sudden impulse to join, the discomfited champion, after recovering his valuable intellects, was led off—resisting manfully, to do him justice. But his crowd was decidedly against him, and by force of numbers, in despite of oaths and protestations, he was borne off to a rival hostelry, there to drown his mortification in beer, and finish the day in a manner worthy of its auspicious commencement.

As for Mr. Stirling, he 'retired into his kingdom' (like the king in Hans Andersen), 'and shut the door after him'—presumably for ablution, for he emerged in half an hour, at the sound of Mrs. Delf's dinner-bell, arrayed in conventional garments, and, save a slightly flushed countenance and a forehead bruise, unscathed from his recent encounter.

Meanwhile Estelle proceeded to Mrs. Delf's dining-room—not without natural misgivings as to the composition of the *table d'hôte*. These, however, were set at rest by observing that only six guests were provided for. They proved to be Mr. Stirling and the manager of another bank, a commercial traveller, a gold-buyer, and a stranger unclassified, all of whom were scrupulously correct and deferential of manner. Later on she became aware that, according to the highly commendable custom of Australian hotels, even on the most recent goldfields and out-of-the-way country towns, there are two tables, corresponding to first and second class in railways. At the first those who may be considered gentle-folk are entertained, while to the second the rougher and less manageable guests are relegated.

'Miss Chaloner,' said Mr. Stirling, bowing deferentially upon entering, 'perhaps you will permit me to introduce myself, while expressing my deep regret that you should have been an involuntary spectator of such a disgraceful occurrence. We are not generally so badly behaved, though you are the only lady that has so far honoured Growlers' with a visit. We have no police to keep order, so we are obliged to protect ourselves.'

Estelle faintly smiled as she replied, 'You seem to be able to do so pretty well, if I may judge from appearances. I hope no one is severely hurt. Ought I to congratulate you on your victory?'

'You don't know how relieved I feel at your forgiveness, Miss Chaloner,' he replied. 'As for Geordie (who really is a deserving individual when sober, and a capitalist besides), he is wholly unhurt, and to-morrow you will probably see him on the most friendly terms with me and all mankind.'

Before returning to business, Stirling found means to intimate to Estelle that he was aware from Mrs. M'Alpine's letter that she wished to have some private conversation with him; that he would do himself the honour of calling upon her later in the afternoon, when he would be most happy to afford her whatever information he was possessed of about her cousin.

'Thank you very much,' she said. 'Oh, Mr. Stirling, if you knew how I have longed to find some one who could give me authentic news of his movements. And you knew him so well?'

'Yes; very well. I must go now, but you shall hear all that I can tell you.'

Easier said than done, thought he, as once more in the small inner room of his unostentatious edifice he lit his pipe and abandoned himself to fullest contemplation. 'And what in the world shall I tell her? What a glorious girl she is. What an air of refinement, and yet with what courage and high resolve she has faced the difficulties of her position. Proud, cultured, aristocratic to the finger-tips, she has volunteered to expose herself to rough journeyings, rude associates—even ruder in her imagining than the reality. And for what? For the sake of a heedless, self-indulgent scamp like Lance Trevanion, who never was good enough to black her boots. God knows, I pity him from the very bottom of my heart; but I cannot help believing that it was his own selfish obstinacy in a great measure that brought about his ruin. And now I have to tell this sweet and noble creature that her lover was till lately a convicted felon—actually at present an escaped prisoner, at the mercy of the first police trooper that falls across him. The bare idea is frightful.' And then Mr. Charles Stirling filled his pipe again to the brim and smoked on for some considerable time, apparently in a most anxious, not to say despondent, frame of mind. The irruption of a party of diggers with a parcel of gold to be weighed and deposited here temporarily diverted his thoughts, but soon after four o'clock, having finished his day's work and impressed upon his junior to keep close to the bank premises in his absence, he betook himself to Mrs. Delf's hostelry. He found Estelle awaiting him in walking attire. He proposed that they should visit Number Six claim, where Jack Polwarth still lived and worked. It was barely a mile distant. On the way he would be able to give her all the information she desired.

'Nothing would please her more. She was fond of walking, and should like above all things to see a real claim at work.' So forth they fared through the crooked, straggling street, crowded on either side with the heterogeneous buildings of a goldfield town. Turning to the south, they trod a winding track through a labyrinth of shafts of all sizes and depths of sinking. Mounds of earth thrown up in every direction gave the scene a ghastly resemblance to the cemetery of a plague-stricken city. As if unwilling to enter upon the subject so unavoidably painful, Stirling directed her attention to the various novel features of the scene. When, suddenly turning towards him, she said in a low but distinct tone of voice: 'And now, Mr. Stirling, please to tell me all you know of my unfortunate cousin. No one has said so

in so many words, but I *feel* it'—here she laid her hand upon her heart—'something dreadful has happened to him. Is it not so?'

'I wish I could deny it,' he answered, in a tone of the deepest feeling; 'but I cannot. Your heart has warned you truly. He is a most unfortunate man.'

'He has left the locality altogether then, and permanently?' she asked.

'Yes.'

'Tell me all,'—here she clasped her hands and looked so imploringly in his face that Charlie Stirling, seeing but the misery in her pleading face, felt minded to kneel down and kiss the hem of her garment. 'Oh that those eyes could so soften and glow for me,' he thought. 'And all this heavenly love and tenderness wasted. Alas!'

But he said only, 'My dear Miss Chaloner, my heart bleeds for you; you must prepare to hear the worst.'

'*Is he dead?*' said she hoarsely, in a changed voice.

'No, not *dead*. Better perhaps that he had been. Were he my brother, I should say the same.'

'Thank God for that,' she said. 'If he is alive I may look upon his face again. Tell me—tell me at once——' and here, oh marvellous and divine power of woman's love! her face lit up with a glow of gratitude and hope, which to her admiring companion's mind changed it into the presentment of a saint.

He motioned her to sit down upon one of the fallen forest trees which thickly, in places, encumbered the earth, and there told her as briefly as might be the whole miserable tale. He made but scant mention of the Lawless sisters, laying great stress upon the iniquitous nature of the trap into which Lance had fallen—the persistent hostility of Dayrell and his settled intention to secure a conviction.

'I see it all,' she said, rising from her seat and walking excitedly onward. 'I see it all. He has been the victim of a conspiracy among these wretches—poor poor Lance! Why did he insist upon coming to this unhappy land? But is he alive—alive? Justice will yet be done. I will see him if he is above ground in Australia, and together we must work, with the aid of his friends,

for an honourable release. Oh! I cannot tell you how relieved I feel,' continued Estelle. 'I am glad; I thought that he was dead. It has given me strength to bear the dreadful thought of his imprisonment. And now tell me about it, tell me while I am strong.'

Stirling saw his opportunity. It was a hard, a most painful task; but now he would go through with it. He scarce hoped that she would have made it so easy for him. This ground had now become more open, and on the bank of the ravine, widening into a green and level meadow, he saw the windlass and shaft of Number Six, above which floated a red flag, the well-known signal, brought here by Californian miners, that the claim was 'on gold.' They had still some distance to go; her feet, that were so fleet and eager a while since, became slow and listless. Ere they reached the mound on the other side of which they saw the stalwart form and good-humoured countenance of John Polwarth, he had told and she had heard the sad finale to the high hopes and joyous aspirations of Lance Trevanion.

'And now that he has escaped from these terrible hulks, I suppose there is not much chance of his being recaptured? This country is so wild and large that surely prisoners must nearly always escape?'

'No doubt they do, but not so often as we might think. The country is wild, but those who pursue them are keen and fearless. However, the place that he has reached is inaccessible and distant.'

'Thank God for that,' she said softly. 'Perhaps he can travel safely through the wilderness and find a ship for England. Oh, if he were but once at home!—at home! Why did he ever leave? But I must not break down now. Is that John Polwarth?'

'Yes, and yonder is Mrs. Polwarth at the door of that neat cottage, and Tottie standing by her. I think we may as well call upon her first, and have Jack in by and by. She is a good, kindly woman, and Lance's misfortune was a bitter grief to her.'

'He seems to have had such *good* friends around him,' said Estelle sorrowfully; 'why could they not save him? But I know that he was wilful and headstrong. Alas! alas!'

By this time they had reached Mrs. Polwarth's cottage—a mansion in the estimation of all 'Growlers,' inasmuch as it boasted of four rooms of medium size, a verandah, and a detached slab kitchen. Mrs. Polwarth, who was engaged in sweeping around her door,—a space in front of all miners' habitations being scrupulously kept clear of sticks, leaves, and other untidinesses,—halted in her occupation and greeted Mr. Stirling warmly.

'Why, whatever's brought you over to-day, Mr. Stirling? I suppose this fine afternoon? Come inside and I'll get you a cup of tea after your walk. Maybe the lady's a little tired.'

'We shall be glad of the chance, I am sure. Mrs. Polwarth, this lady is Miss Chaloner, a cousin of Lance Trevanion, our poor friend and Jack's partner. She has come all the way from England, from his old home, to see about him.'

'The Lord bless and keep us!' said Mrs. Polwarth—a devout Wesleyan, as are mostly Cornish mining folk. 'Only to think of that! It's the doing of Providence, that's what it is. Sit ye down, Miss. To think I should ever see you in my poor place. It's clean and neat what there is of it, too. And to think of your being *his* cousin—poor Mr. Lance's cousin. Many's the tear I shed thinking o'er his sad fate. Oh dear! oh dear! I'm that glad to see this day.'

'And I am very glad to see you, Mrs. Polwarth,' said the English girl, softening at once at the sight of the genuine grief displayed by the good woman, for the tears were by this time running down her cheeks. 'I have so often heard of you in my cousin's letters that I seem to know you quite well. And is this Tottie? Come to me, my dear, and tell me how old you are.'

Tottie, a pretty child, rather more carefully attired than usual, was not shy, and coming up to the pretty lady, as she ever afterwards described her, looked up wonderingly, with great blue eyes and a wistful smile.

'Mother, is this Lance's sister?' she said, with the curious childish intuition which seems to suggest so many guesses at truth—some near enough in all conscience. 'Is he coming back to Tottie?'

Mr. Stirling 'thought he would go and have a word with Jack,' and, not sorry to leave the two women to open their hearts to each other, hastily departed.

There was no particular news about Number Six. 'She was going on steady,' Jack said. 'Last week was as good as any washing-up they'd had for a month, and she wasn't half worked out yet. So that was Mr. Lance's cousin, her as had coomed with Mr. Stirling? All the way from England, too? It was her as used to write to him and tell him about the old place at home, and how his father, the Squire, was. And now the Squire was dead. And Lance, poor chap, had broke jail, and was gone nobody knew where. And this young lady was here all the way to Growlers!' It beats all. Wait till I run out this bucket and tidy myself a bit, Mr. Stirling, and I'll come over and see the young lady. It's a sight for sore eyes to see any one from the old country; no offence to you, sir, as never was there, more's the pity. But it'll do Gwenny and me to talk about for a year to come, I'll warrant.'

Thus discoursing, they walked over to the cottage, where Stirling partook of the proffered cup of tea, and Polwarth, betaking himself to a back apartment, performed ablutions which caused his honest face to shine again, and, attired in his Sunday suit, presented himself after a while to Miss Chaloner. This young lady shook him warmly by the hand, and telling him that she had heard about him in every letter which Lance had written until—until—lately, expressed her sincere pleasure at seeing him and his wife.

'You were Lance's true friend, he always said. And many a time the poor Squire and I felt so happy that he had an honest English heart and a stout English arm to rely upon in this far country.'

'Ah, Miss! Me and the wife had that feeling for him as we'd ha' done anything i' the world to keep him from harm, but there was them as he took to, against our liking, that drawed him down the wrong way. It was a bad day as he ever seed 'em. I was always at him to cut loose and quit their company. But it was all no use; he was that set and headstrong.'

'We knew that well, his poor father and I,' replied Estelle sadly; 'that strange obstinacy of his, which runs in the family, they say, seems to have been his ruin. But I've come out here on purpose to find him, and if he lives in Australia I *will* find him before I leave.'

As Estelle pronounced the last words she raised her head proudly and gazed with a fixed and steady glance into the forest path, as if in her self-imposed

task she could pierce their solitude and discover at whatever distance the object of her quest.

Her expressive countenance, even more than her words, carried conviction to her hearers of a high resolve. Stirling regarded her with mingled feelings of respect and admiration, while Jack Polwarth, in rude but honest tones, broke out with, 'And so ye shall, Miss, and we'll help ye to the last drop of our blood; won't we, Mr. Stirling? Ye have the old courage and the old spirit in ye, Miss Chaloner; I could fancy I heard Mr. Lance himself speaking, poor chap.'

'I don't wish to pose as a heroine, Mr. Stirling,' she continued, blushing slightly at the momentary excitement into which she had been betrayed, 'but I wish all my friends to understand that I have fully resolved, for several reasons, not the least of which is that so I promised his father on his deathbed, to go through with this task, and, Heaven helping me, will never abandon it while Lance is alive.'

'I can quite appreciate your feeling in the matter, Miss Chaloner,' said Stirling. 'Nothing would give me more pleasure than to join you in the search for our unfortunate friend. But I am, so to speak, chained to this spot. In all other ways you may command me, and I have good warrant for saying Jack Polwarth here, as well as Mr. Hastings, who is our staunch ally also, will join in the enterprise, heart and soul.'

'This is truly the land of warm and unselfish friendship,' replied Estelle. 'I have met with nothing else, for which I shall be grateful as long as I live. It will give me fresh confidence in my search. I never could have believed that the way would have been made so smooth for me. I feel more at home here than I have done since I left England. So I shall stay at Mrs. Delf's for a week longer, getting together all the information which I shall need.'

'I think we had better be moving, Miss Chaloner, or Mrs. Delf's gong will be sounding an alarm for tea. She has many virtues, but punctuality and scrubbing she may be said to carry to excess.'

'Amiable weaknesses, to my mind,' said Estelle, rising from her chair. 'I feel disposed to humour them, and Mrs. Polwarth, if you will have me to-

morrow, I will come down after breakfast, now that I know the way to Number Six, and spend the day with you and Tottie.'

CHAPTER XIX

Not only on that next day, but for several days following, did Estelle wend her way to Number Six soon after breakfast was concluded at Mrs. Delf's very punctual establishment. During this repast, and for some minutes afterwards, it generally happened that she found herself conversing with Mr. Stirling. That gentleman took so deep an interest in each and every question connected with Lance Trevanion, that, as she more than once owned to herself, his own brother—had he one in this strange land—could not have done more or appeared more anxiously considerate. He caused Mr. Hastings to be sent for, and that gentleman appeared dressed in a habit of the period, and by no means resembling the picturesque miner of fiction. He also exhibited a keen sympathetic interest in all Estelle's plans and prospects. He recounted his first introduction to Lance, and amused her by picturing himself as a hunted fugitive pursued by the minions of the law, finally captured and manacled. 'Nothing that mortal man could do,' he repeated with emphasis, 'was too much for him and his friends to do for Lance, a gentleman at all points—brave, generous—only too confiding; the victim of an unjust sentence—if ever a man was in this world.'

'You can't tell how grateful I am to you and Mr. Stirling for the way you have spoken of him,' she answered. 'If only the poor Squire could have heard you. Thank God! that he was spared the knowledge of his son's disgrace; danger, or indeed death, he feared might have been his portion; but imprisonment—a felon's doom and sentence—that!—oh, that! he would not have survived a week.'

'Stirling and I are his friends, Miss Chaloner,' he answered calmly. 'There is no more to be said. We are neither of us given to forming friendships lightly, or changing them afterwards—we may not be able to do all we wish—but what is in our power shall not be spared. Will you permit me at this stage to ask whether you propose to go in search of him, and how you are going to set about it?'

'There seems no doubt that when poor Lance left Melbourne—escaped from the hulks—he travelled into the interior. There is no one—no one that I know or can think of—who could give me further information. But I shall go to Melbourne. It is one stage on my journey; it may be that I may discover the next one while there.'

'I can give you positively no advice as to your movements, for the moment,' returned Hastings thoughtfully. 'I can only counsel you to remain here a few days longer, when, between Stirling and myself, some plan of action may be arrived at.'

'I am not restless,' she made answer, 'though I do not wish to lose time. Anxiety and trouble in the end may be saved by not being too hasty. I will therefore stay a few days longer than I at first intended. But on Monday next I must return to Ballarat, *en route* for Melbourne.'

'And after that?' queried Hastings, almost unconsciously. For he could not help pitying from his heart this high-souled maiden, so utterly alien in every thought and feeling to the people by whom she must of necessity be surrounded. He saw her quitting the comparative security of even this humble retreat for a doubtful, even dangerous, succession of journeys in quest of what—of whom? An outlaw and a felon! Guilty by his country's laws, and self-convicted now by his breach of prison regulations. Doubtless he had received hard measure and unjust sentence, but had he been true to himself and the traditions of his race, he needed never to have placed himself in peril of the law. 'However,' he continued in mental converse, 'she will never be persuaded—woman like—that he has descended from her ideal. She must "dree her weird," as our Scottish friends say.'

So for the next few days Estelle amused herself by studying the ordinary miner's life, partly in company with Mr. Stirling, who generally found her quietly seated in Mrs. Polwarth's cottage in the afternoon after bank hours, and partly from information derived from that worthy dame, who was far from averse to diffusing her information.

'I don't see but what it's as good a country as the one we've left, Miss,' said the shrewd matron; 'anyhow it's better for the likes of Jack and me. There's a deal of rough ways and drinking, it's true, but no one's bound to take part in it if they don't like. Jack, he's steady and sober,—I'm thankful to the Lord

for it,—and we're putting by more cash every washing-up than we ever heard talk of in the Duchy. When Tottie's a year or two older we'll send her to school in Melbourne. There's good schools there, I'm told. There's no reason why she shouldn't have the learning as we never had. We'll make a lady of her, please God.'

'I see no objection, Mrs. Polwarth, to her having the best education possible,' replied Estelle thoughtfully. 'At home we are apt to disapprove of children being educated above their station, as it is called. But in a new country every one has a chance to rise in life, if they prove worthy of it, and there is no reason why my pretty little Tottie shouldn't be as much a lady, in mind and manners, as any one else.'

'Do you really think so, Miss?' asked Mrs. Polwarth, anxiously. 'I've known girls that were spoiled in the old country by being sent to boarding-schools, and come back neither one thing nor the other. Spoiled for farm lasses, and not quite up to being ladies, in spite of their fal-lals and piano music. I'd break my heart if Tottie came to be like that.'

'I think you may put as much learning into this pretty little head as it will hold,' said Estelle, stroking the child's clustering ringlets. 'You'll always be a good girl, won't you, Tottie?'

'Tottie's mother's good girl,' said the small damsel, dimly conscious that she was under discussion, and then reading the tenderness aright in her visitor's face—that visitor so munificent in sugar plums and dolls—'and Miss Chaloner's good girl too.'

'I really believe you will, Tottie dear,' she said, lifting up the child and kissing her. 'May God bless all this prosperity to her, and to you and John also. Some people deserve their good fortune, and I am sure you both do.'

The days passed on—the final Saturday came, and still no course had shaped itself in the minds of her 'friends in council.' Tessie Lawless certainly might have furnished information, but no one knew her address. They were not even sure whether she would feel justified in disclosing

Lance's retreat. Stirling was still in much doubt—more than he cared to show—with regard to Miss Chaloner setting forth on a hopeless quest, when the daily mail arrived from Ballarat. Glancing through his letters, he stopped suddenly, arrested by the handwriting of an unopened letter. 'Lance Trevanion, by heaven!' he exclaimed, half aloud; 'just in time, too.' He tore it open. The fateful scroll commenced thus—

'OMEQ, 10th June 185—.

'Here I am, my dear Charlie, so far restored to my old feelings that I can put pen to paper again, at the very idea of which I have shuddered till now. But the fresh mountain air—we had snow for breakfast this morning—has made a man of me again; that is, as much of a man as I ever shall be till I quit Australia for good.

'After I left my *last place*, I made tracks for this digging. The most out-of-the-way, rough, rowdy hole among the mountains that ever gold was found in. It's a hard place to get to, harder still to get safely out of, populated, as it is, by all the scum of the colonies, and the rascaldom of half the world. Very different from Ballarat or poor old Growlers', though I have no reason to say so.

'How about the gold? you will say. *There is no mistake about that*. I have no mates. I am a "hatter," and have worked on my own hook—partly for occupation and partly for a blind. I have just made up my mind to prospect a reef which has been discovered near Mount Gibbo by a stock-rider called Caleb Coke. He is an ex-convict, "an old-hand," as they say here, and there are queer stories told about him, as indeed about most of the people in Omeo; but if the reef is rich—and they say nothing like it has been struck yet—I intend to have a shot at it.

'You would laugh to see my hut; it is as neat as a sailor's cabin. I lock my door when I go out, and no one has "cracked the crib" yet. I bought a sea-chest, brass-bound and copper-fastened, which found its way up here on a pack-horse, and am supposed to have gold and jewels and all sorts of valuables therein. Henry Johnson is my purser's name, but the fellows, finding that I know Ballarat, have christened me "Ballarat Harry."

'To turn to business, I think the time has come for my getting over by degrees, and very quietly, as much of my credit balance with your bank as can be safely forwarded. My plan is, of course, to clear out for the most handy port, and put the sea between me and Australia. But there's time to think of that. If you can manage it without risk, send me the portmanteau I left with Jack. It contained letters, and a good many home souvenirs that I should like to see again. My watch and rings are in a small drawer; you can send the key in a letter. If you forward a draft for a thousand, payable at a Melbourne bank to H. Johnson, or bearer, I can get it cashed here and buy gold at a heavy discount. It will be as good a way as any to transfer my share of Number Six hither, till I can transfer myself for good.

'Remember me to Jack and his wife, and kiss Tottie for me. I wonder if I shall ever see her again.

'For the present, adieu.—Yours ever, L. T.

'Address:

'Mr. Henry Johnson,

'Long Plain Creek,

'care of Barker & Jones,

'Storekeepers,

'Omeo.'

Here was a discovery!—a revelation! Stirling barely suffered himself to finish it before rushing over to Miss Chaloners with the astounding news. At first he dreaded the effect which it might have upon her, hopeless as she had been of late as to the whereabouts of the lost Lance. Still, he had noted and admired her self-control when he divulged the sad intelligence of his imprisonment. He felt unable to withhold it from her.

Leaving the bank entirely to the control of his junior,—a young man to whom goldfield experience had imparted a discretion beyond his years,—he hastened over to Mrs. Delf's, where he met Estelle just about to start for her daily visit to Mrs. Polwarth.

She looked up suddenly. 'You have news?' she said. 'I am sure it is not bad tidings. Oh! can it be? Lance found? Is he safe? Does he know I am here?'

'My news is not quite so comprehensive as all that,' he answered, looking admiringly at her fine features, so suddenly illumined with a glow of tenderness, 'but I can say with truth that the good element prevails.'

'You have heard from him then?'

'Yes,' he answered; 'by this morning's post. I have the letter here.'

'And is there—oh! is there anything in it which I should not read? May I—ought I to ask you to show it to me?' she cried.

Stirling, inwardly congratulating himself that his correspondent had refrained from mention of any member of the Lawless family, or indeed from any chance allusion which might have shocked the innocent trusting girl who now looked so imploringly at him, produced the precious missive promptly.

'Here is his letter; let him speak for himself, Miss Chaloner. There is no earthly reason why you should not see it. It will give you all the information you need. You will please excuse me until dinner-time.'

'I am for ever grateful to you,' she said, with the tears fast flowing from her shining eyes. 'I will walk down to the claim. I always feel at home there. I shall be able to think over my plans calmly if this letter changes them, as perhaps it may do.'

Thus they parted, he returning to his treasure-house just in time to see two rival parties of diggers, literally laden with gold, who were making good time in a race for the bank door, each desiring to ensure a division of the precious metal before the establishment closed. Estelle, holding fast her coveted letter, which she pressed closely to her bosom, walked slowly along the track across the flat which led to Number Six, as one that hoards yet delays the savouring of a joy too sweet and precious for hasty possession.

Passing through the shaft-riddled portion of the creek meadow, where a rich but shallow deposit had caused every yard of ground to be pierced and tunnelled, she paused upon a grassy knoll where the outcrop of basaltic rock had checked the miners' search. Here the timber had been spared, and beneath a wide-spreading angophora Estelle Chaloner seated herself, and on

a basaltic monolith, first folding her hands and making mute appeal to Heaven, commenced with hungry eyes to devour the invaluable missive.

She read and re-read—read again—word by word, and sighed over the closing lines, then folding it carefully and placing it in her bosom, walked thoughtfully forward.

So he was at Omeo (such were her thoughts), a distant, rude, isolated region as she had heard—indeed his letter so described it. But what of that; he was safe, he was well, in recovered health and spirits—thank an all-merciful God for this much. He had even *hope*—the expectation of escape—of a life of happiness in England, or in some land beyond the reach of this strange country's harsh unequal laws.

Once safely at Wychwood, who would recognise in the proud heir of this historical estate the erstwhile miner, the unjustly treated prisoner? Then what would be her part in his future life? True, he made no reference to her; perhaps in a letter to a friend, chiefly on business matters, such were hardly likely. Still, to such a friend as Mr. Stirling, so nobly steadfast and true-hearted, he *might* have said a word about his poor Estelle in the lonely manor-house, as he would picture her. But he was safe, free, almost happy in the enjoyment of his lately acquired liberty. That was happiness sufficient for the present. It would be time enough in the future to cherish other thoughts. Then walking forward with cleared brow and a resolved air she soon reached Mrs. Polwarth's cottage, before the door of which Tottie, evidently expectant, descried her and ran in to report.

'Why, you're quite late to-day, Miss,' said the good woman. 'I began to think you were never coming, and Tottie's been along the track as far as I'd let her. Sit ye down and rest. Is there anything fresh? We heard as the Ballarat men was talking of "rolling up" if the licenses wasn't lowered.'

'Yes, Mrs. Polwarth, there is news, but not about licenses; a letter has come by the mail to-day—this very day only, think of that!—from—from *him*.'

'Not from Mr. Lance; you don't say so, Miss? Who'd iver have thought on it? And is he well, has he gotten oot o' the country? The Lord bless and keep him, wherever he is.'

'I trust He will, in His great goodness and mercy. It seems so wonderful, after all these weary months, that I should actually have his letter—his own letter written to Mr. Stirling—this week here—here!' and she drew forth the priceless treasure, as it seemed in her eyes, and again devoured it with hungry regard.

Then, half replying to Mrs. Polwarth's questions, half giving vent to long-pent-up feelings which, in the presence of a tried friend of her own sex, humble in social station as she might be, flowed freely and unrestrainedly, Estelle Chaloner poured her heart out. After which she experienced a feeling of intense relief, and was enabled to confer rationally with Mrs. Polwarth about her course of action.

'I had fully intended, as you know, to go into Ballarat on Monday,' she said, 'and therefore there will be no change of plan. The difference will only be that before this dear letter came'—here she gazed earnestly at the well-known handwriting—'I had no earthly idea in what direction I should go after leaving Melbourne. Now I *do* know, and oh, how differently I feel!'

'Yes, I daresay,' said Mrs. Polwarth doubtfully; 'but then, Miss, how are you to get to Omeo? It's a mighty rough place, everybody says, a dreadful bad road, and worse a'most when you get there. Don't you think it would be more prudent-like to wait a bit and let Mr. Stirling write to him as you're here?'

'And allow him to think that I am afraid to come to any place where *he* lives? Perhaps induce him to leave his retreat for my sake and risk recapture? No! a hundred times no! I have not come so far to falter now.'

'But, my dear young lady, how will you get there? Jack heard some of the diggers talking about it, and they said all the tools and provisions and camp things had to be took up on pack-horses. Nothing on wheels could get there. And what will you do then? you can't walk.'

'I should not like to walk, certainly,' said Miss Chaloner, with a smile. 'I wonder what some of my friends would say if they saw me trudging along with a knapsack on my back. Not but what I would do that if need were. But I can ride, fairly well too, so I will not let the want of a coach stop me, I promise you.'

'And you have friends in Melbourne, and you'll see them first, now won't you, Miss?' said the kind soul, devoutly hoping that such personages, if possessed of ordinary prudence, would interpose and prevent further romantic enterprises, of the success of which she in her own mind felt deeply distrustful.

'I shall see them, of course, particularly Mrs. Vernon, who was like a mother to me; but,' continued this headstrong and imperious young woman, 'all the Mrs. Vernons and Mrs. Grundys in Melbourne will not keep me from Omeo—from any place where *he* is.'

As she spoke she raised her head, her dark eyes flashed with sudden light, and her whole frame appeared instinct with defiance of difficulties and obstacles, how numerous soever.

Mrs. Polwarth seemed to recognise a familiar trait as she sighed and merely replied, 'It runs in the family, Miss. I see you won't be said. I could fancy as Mr. Lance was standin' before me this minute. Maybe you'll get through safe, please the Lord's mercy. There'll be some as'll pray for ye night and day.'

'I know that,' she said, taking the toil-worn hands in hers. 'No girl in a strange country ever found truer friends; I wonder at it sometimes by myself. But you know Heaven helps those that help themselves, and though I am a weak woman I feel that in my difficult path I must chiefly rely on myself. I have his happiness and safety to think of as well as my own.'

The more worldly-wise matron could only press the delicate hand in hers, while the tears came to her eyes. 'If he had only thought as much about *her*!' she said inwardly.

But she held her peace as they walked together adown the track which led to the township.

At a conversation which took place on the Sunday evening preceding Estelle's departure, she repeated her thanks to Stirling and Hastings for their kindness to herself and their unswerving friendship for Lance.

'I wish our companionship had been more effectual to protect him,' said the latter; 'but, speaking among friends, I may say that he was wilful—too much so for his own good. So have been many men, however, who have never paid such a heavy penalty. After this last news, however, the question is, how we are to help him?'

'I shall travel at once to this—to where he is,' said Estelle quickly. 'You did not expect me to do anything else, did you?'

'I am afraid that I did not,' he said, smiling; though he added gravely, 'None the less, both Stirling and I think it imprudent for you to take such a journey by yourself.'

'Yet I came here safely—even pleasantly.'

'Omeo is a very different place. It has the worst reputation of any goldfield yet discovered. The outlaws of all the colonies are gathered there. Police protection is a mockery; they have no "Launceston Mac" to regulate them, and the road is impracticable for wheels—well-nigh impassable, indeed.'

'All this sounds bad,' said Estelle, 'and, if I *could* be intimidated, might prevent my wishing to go. But I am past all that feeling. I must have one more talk with you and Mr. Stirling. But on Monday I sleep in Ballarat.'

'Of course Mrs. M'Alpine will be most happy to receive you again,' he said, rather ruefully; 'and next day the coach will take you to Melbourne. I wish the rest of the journey was as plain sailing. If you would accept me as your escort to Omeo, and I could go, nothing would give me greater pleasure. But I am in honour bound to stay with my mate here and see our claim worked out, or I would leave to-morrow.'

'It is a great pity that Mr. Stirling can't shut up his bank and come too,' she replied, smiling. 'But I know enough now about mining matters to judge of the impossibility of your departing at a moment's notice. I have been wonderfully helped so far. It really appears miraculous. And I have the fullest faith that I shall not fall short of that aid which a merciful God provides for His helpless creatures in the future. I will write to you both, and hereby constitute Mr. Stirling as my banker and guardian while I remain in Australia.'

In this fashion it came to pass that on the Monday morning Estelle carried out her purpose of making the start—that all-important *premier pas* which is so often the insuperable difficulty in life.

The Growlers' Gully coach, departing with American punctuality at the appointed minute, bore her away again as box-seat passenger, and, not having more than two others besides the driver, went round by Mr. M'Alpine's cottage and deposited her at the remembered garden gate.

Before leaving she had a long and earnest conversation with Charles Stirling, whom she had grown to regard almost as a brother. His uniform gentleness of manner, his chivalrous courtesy and studious consideration for her in every possible particular, joined with a certain firmness in maintaining his opinion in matters of importance, had insensibly won upon her regard. She would have been no true woman had it not been so. Nor could she, from time to time, refrain from involuntarily drawing mental comparisons between her *fiancé* and his friend.

Their circumstances and surroundings being similar, why could not Lance have conducted himself with the prudence and self-respect which characterised Mr. Stirling, and indeed Mr. Hastings also? Perhaps the former, from holding a responsible position, was necessarily more guarded by the proprieties; but there was Mr. Hastings, whom she had seen working with his mate Bob, dressed like an ordinary miner, more roughly living and lodging even than Jack Polwarth. Yet she could see that he bore himself in all respects as a gentleman, and that such rank by others was cheerfully accorded to him. Why could not Lance——? and then she sighed deeply and turned her thoughts abruptly into another channel.

It had been decided in council that Miss Chaloner should be suffered to pursue her journey towards Omeo, at any rate as far as Melbourne, when she would again place herself under the guardianship of Mrs. Vernon. After much difficulty, the friends prevailed upon her to promise that she would not commence the journey to Omeo until Mr. Vernon had arranged for, in his opinion, a suitable escort. Thus reassured, she was permitted to depart, being seen off by Mrs. Polwarth and Mrs. Delf, besides a score or two of casual spectators and miners off work. These worthy fellows had gradually come to the conclusion that a young lady who was known to the

Commissioner, and treated with such high consideration by Mr. Stirling, must be a person of rank and title. Indeed such a report gained common credence, and Estelle was long referred to in the chronicle of Growlers' as 'the lady in her own right as had come from England to see after poor Trevanion of Number Six.'

Before leaving, Estelle had volunteered to take charge of the portmanteau which Lance had mentioned in his letter as containing some of his much-cherished souvenirs and other possessions. But Stirling had doubted the propriety of her burdening herself with a heavy and presumably valuable package. It would be sure to cause her anxiety, and from its very appearance might stimulate the cupidity of members of the lawless class, at that time by no means easy to evade while travelling. Both in her interest and Lance's he preferred to forward it by gold escort to an agent in Melbourne, who again would await the opportunity of police protection to send it on to Omeo. He would be in possession of Lance's receipt for it before she had reached Omeo; perhaps even before she had left Melbourne.

It was finally decided by the friends that Lance should not be informed of Estelle's arrival. 'It would only unsettle him,' she said. 'He might even come to Melbourne, and so run the risk of recapture. It will not be long before I rejoin him at Omeo, or the North Pole,' she added, with a smile, 'if he roams so far.'

The intervening stages were necessarily identical with those previously encountered. Mrs. M'Alpine was still hospitably eager to receive this wandering princess, as she evidently considered her to be. She would not hear of her going on to Melbourne the following day, and Estelle, fearful of the appearance of insufficiently appreciating her unusual kindness, gracefully, though reluctantly, consented. Her hostess then arranged so that a discreet selection of the officials then resident at Ballarat should arrive in the evening. These were mostly young men, among whom Estelle was pleased to greet her first Ballarat acquaintance, Mr. Sub-Commissioner Dalton. Ladies were few and far between at that period of 'the field,' but those who accepted Mrs. M'Alpine's invitation showed that the exceptional circumstances amid which they lived and moved had wrought no change in manner or mental habitudes. As for the men, Estelle found them distinctly above the average in appearance, bearing, and accomplishments. These last

Mrs. M'Alpine unobtrusively brought forward. Then it appeared that this one was well known as an artist; another sang 'like an angel,' as one of his feminine admirers expressed it, playing his own accompaniments on the piano; a third was a distinguished performer in private theatricals, while all talked well and amusingly. A rather extended course of travel, continental and otherwise, joined with army and navy reminiscences, seemed to be common to all. Mr. M'Alpine had arrived too, from some mining town with an aboriginal name, and, much to Estelle's surprise, was a punctiliously courteous and chivalrous elderly personage, mild and almost deferential in manner to ladies, and possessing a vein of quiet humour which aroused unexpected merriment from time to time,—very different, indeed, from the stern, inflexible Rhadamanthus whom she had pictured in her imaginings of the terrible 'Launceston Mac.'

When the evening came to an end—not particularly early, it must be confessed—and the piano and whist table were succeeded by a modest but very cheerful supper, Estelle came to the conclusion that she had never seen so many entertaining, cultured, and, in a sense, distinguished people gathered together in one small room in her life. That it should be her experience in this curious corner of the remote antipodes was the crowning marvel of the whole.

Melbourne again! which—so accommodating is our mental to our bodily vision—seemed quite a small London after Ballarat and Growlers'.

Mrs. Vernon, who was just about organising one of her regular winter parties, hailed Estelle's arrival with unaffected joy. This was rather dashed when she understood her guest's intention to depart for Omeo at the earliest possible moment. If the truth must be told, she considered the discovery of Lance's abiding-place at Omeo to be an unalloyed misfortune. This view of the case was of course unexpressed, out of deference to Estelle's feelings, who made it—the announcement—with such unfeigned pleasure that her hostess could not, for pity's sake, forbear the conventional words of sympathy.

'But, my dear, you cannot possibly go to that dreadful Omeo at present, if indeed at all. It was only yesterday that I heard Mr. Vernon telling some young man (a young man, my dear!) that he advised him to wait till the winter was nearly over before he started for Omeo, as the roads were positively dangerous.'

'I will wait any reasonable time, and I shall certainly be guided by Mr. Vernon's kind advice,' the girl said; 'but I am resolved to reach Omeo before the spring.'

"A wilful woman," quoted the old lady, "must, I suppose, have her way," like a wilful man, but I am charmed to see that you recognise the propriety of consulting Mr. Vernon. He has business relations with Omeo—what they are I have not the faintest idea—mining requisites, I presume—everything from picks and shovels to pianos and cornopeans—so that he will know how to manage the transport service for you. And now, my dear, come and see your room.'

Mrs. Vernon's home was enticing. A roomy, well-furnished modern house, the upper windows of which commanded a far-reaching view of the waters of the harbour and the bluffs and headlands trending easterly towards a dim and mighty forest world, beyond which again rose mountain peaks. A broad verandah protected it equally from winter rain and summer heat. The gardens, filled with exotics of every land, sloped down, with winding walks amid trim grass lawns and thickets of ornamental shrubs, to the waters of the Yarra. Exclusive enough for meditation and rambling walks, beautiful also with the carefully-guarded flowers which the half-tropical summer and mild winter of the south permit to develop in rarest beauty, had Estelle desired a restful retreat wherein to stay her pilgrim feet for a season, no pleasanter spot, no more alluring bower, could she have found. But such loitering in the path of duty, synonymous in her case with the passion around which the tendrils of her heart—the heart of a self-controlled, habitually reserved woman—entwined, was not for Estelle Chaloner. Pleased and grateful as she could not fail to be with Mrs. Vernon's motherly warmth and kindly tendance, she told herself that she would rather have been in a stagecoach, rumbling along the roughest road towards Omeo, the goal of all her thoughts and aspirations, than playing her part mechanically

among the pleasant society people seated around Mr. Vernon's handsomely appointed dinner-table.

As for that gentleman himself, he vied with his wife in welcoming his prodigal daughter, as he persisted in calling her.

'We have adopted you, my dear Miss Chaloner; ask Mrs. Vernon if we haven't. We wept till bedtime after your departure, didn't we, Mary? and now that our daughter that we lost is found, what do I hear about her going away again? It can't be done. It's against Scripture; ask Mr. Chasuble here if it isn't. The fatted calf is doomed, and she must stay for the feast.'

'I daresay you won't find me an undutiful daughter,' she replied smilingly, 'but you must wait till I have returned from the wilderness before feasting will be appropriate. I have seen little or nothing, so far, of the rude and lawless waste I was led to expect—on the contrary, refinement and courtesy seem indigenous to Australia.'

'Oh! that's all very fine,' laughed back Mrs. Vernon; 'you've been spoiled at Ballarat, but you mustn't expect to find the country full of handsome Goldfields Commissioners, six feet high, and crammed full of accomplishments—like Mr. Dalton, or even Mr. Annesley, whom you saw here. There are places so different.'

'Which we won't describe to-night, shall we, my dear?' Mr. Vernon interpolated, appealing to his wife. 'Miss Chaloner shall do as she likes, as the daughter of the house, while here and afterwards. If she wants to go to the South Pole, John Vernon & Co. will charter a ship for her, or a camel train; if Fort Bourke requires her presence, only give us a little time—that is all I ask.'

CHAPTER XX

Those adventurous wayfarers only who have traced the sources of the Snowy River, which in its southward course pierces the fertile district of Gippsland, are familiar with the strange wild region which lies between it and the northern watershed, where the Ovens, the Mitta Mitta, and the King rivers swell with their hurrying waters the Mississippi of Australia. The scenery is of a weird and wondrous majesty. Far as eye can reach, a verdurous plain extends—a mountain park, in truth, it may be called, differing from almost any other such formation in Australia. Three thousand feet above the sea, a sheet of snow in the mid-winter, it is a prairie waving with giant grasses when remorseless suns are scorching the heart of the continent into barrenness. Standing on the northern edge of the Dargo plateau, what a landscape bursts upon the view! Mount Feathertop, divided by a ravine two thousand feet in depth from Mount Bogong, with Kosciusko, king of Austral Alps, like twin Titans, rise snow-crowned in awful majesty amid the mist and cloud rack of the illimitable mountain world. Storm-swept and desolate is this region in winter. The strayed traveller wanders beneath an endless succession of wooded peaks, descends abysmal glens, and seems doomed to traverse eternally the unbroken solitudes of the primeval forest.

Here first arose the hamlet, later on the mining township, of Omeo, taking its name from the lonely lake so named by the wild tribes who had hunted on its borders and fished in its depths from immemorial ages. Who shall count the years from the launching of the first frail bark canoe on its lonely waters? Situated in closest proximity to the region of snows, which, if not eternal, commence to crown the mountain summits in the early autumn, it is separated from the more civilised portions of New South Wales and Victoria by roads which border precipices, by mountain tracks, known only to the cattle-drover and the horse-stealer, which, overhanging rivers thickly strewn with granite crags, offer suicide on easy terms to the careless or the despondent.

Rivers, full-fed from a thousand springs which have their sources in these mountains, rush from unexplored heights in the springtime, or murmur musically the long green summer through, when the great levels of Australian deserts are sun-baked as the plains of Hindostan.

Here dwell in scattered families or sparsely settled hamlets the various classes of Australian highlanders. Hardy, active, fearless are they as their Scottish prototypes;—originally recruited from the wandering stock-rider, or in later years the lonely gold-seeker prospecting the basaltic dykes and quartz-filled fissures of the foot-hills of the Australian Alps. Herds of half-tamed or wholly wild cattle and horses roam the profuse pastures, richly verdant during the short summer, though snow-covered and deathlike during the winter months. Here, late lingering and entrapped, they often perish, a company of skeletons within a circle formed by unavailing trampling of the surrounding snow only remaining in the spring to show the operation of nature's stern, irrevocable laws.

Lonely and chiefly silent this mountain land—dividing the watersheds of three colonies—pierced by precipitous defiles—barred of access by rugged ranges, the only means of crossing the savage region being by dangerous tracks skirting terrific precipices, sometimes, as is the well-known King River pass, narrow, elevated, almost in mid air, with abysmal deeps on either side.

The first dwellers in these dread solitudes were men inured to every peril of the Australian bush, to whom the faint trail of the wilderness was familiar as the field-path to the village rustic. Strayed cattle and ownerless horses accumulated in the virgin mountain pastures. These were at first driven to the nearest market by tracks only known to the outlaws of the waste, or their confederates the stock-riders in charge of rarely visited cattle-stations. Suddenly the trade developed, owing to the higher prices ruling since the gold eruption. An organised system of horse and cattle stealing arose. Outlying lots of fat cattle were 'cut out' or separated from the border herds of Monaro or Gippsland, and crossed into opposite colonies. Detection in such cases was well-nigh impossible. Much of the illegal work was done at night. If pursued, the tracks were purposely blinded by station cattle driven across the trail, while, from the rugged character of the country, strangers were at a special disadvantage. Horses averaging from fifty to a hundred

pounds each, if capable of drawing a wash-dirt cart or transporting a digger's movables from one mining district to another, were profitable plunder.

Chief among these *caterans* of the southern highlands—raiders, however, of a lower grade than their Scottish prototypes—was the well-known and deeply distrusted Caleb Coke—an ex-convict who had 'served his time,'—that is, completed the term of penal servitude to which he had been originally sentenced. He had graduated in a school of lawless license tacitly permitted by the customs of the country. Commencing as a stock-rider on Monaro Plains, then a wild unsettled region, he and his convict companions reigned unchecked amid the aboriginal tribes. Reports of capricious cruelty or savage vengeance against the blacks were more than whispered. Wild tales were told of lawless deeds—of inoffensive natives wantonly shot down in satisfaction for stock killed or missing—of reckless indulgence in all the baser passions by these modern buccaneers. The lack of police supervision enabled them to revel in every species of lawlessness unchecked and unchallenged, and as surely as any deed involving exceptional craft or cruelty came to light the name of Caleb Coke was rarely absent from the recital.

Rudely reared and wholly uneducated, this man represented the type of Englishman that in earlier days helped to found the reputation of British sailors and soldiers. Smugglers, mutineers, or buccaneers they might become, but, whatever their faults, they possessed the cardinal quality of courage in a degree unequalled by any other nation.

Scarcely above the middle height, and possessing no remarkable muscular development, Coke had proved himself the possessor of a measure of endurance and sinewy strength which rendered him totally indifferent to the hardships of a life in the wilderness. Heat or cold, night or day, on foot or on horseback, all seemed alike to Caleb Coke. Like many of the early stock-riders, though born in English hamlets and grown to manhood before expatriation, the erstwhile poachers, smugglers, or deer-stealers took kindly to the wild life of the interior of Australia. Long used to watch the habits and follow the haunts of fur and feather, the tracking of the half-tamed herds of cattle and horses came natural to the quick eyes, from childhood studious of the waste. Those among these exiled shepherds and stock-riders

whom favourable conditions of life tended to soften saved their money, acquired property, and founded families not undistinguished in the future. On the other hand, all whom misfortune had soured or crime indurated, found in their newly acquired quasi-freedom the means of safely engaging in practices more secret but not less nefarious than of old, or criminal operations on a scale hitherto unprecedented.

With the formation of a rich goldfield at Omeo, the centre of a proverbially lawless region and a roving population, the results may be imagined. Cash became plentiful, and was habitually carried in large sums on the persons of gold-buyers and other speculators. Crime for a while seemed about to overshadow the land. Fierce of aspect, ruthless in beak and talon, 'the eagles were gathered together.' Had there been an Asmodeus of the mountain, how plainly would he have descried, almost without the aid of *le diable boiteux*, the Alsatia from which, as surely as the levin-bolt from the thunder-cloud, wrong and rapine were destined to result.

With his habitual want of caution, Lance Trevanion made the acquaintance of Caleb Coke soon after he reached Omeo. That worthy, wily and unscrupulous, found means to ingratiate himself with the stranger, apparently flush of money, and no novice in mining. He made a point of providing horses when there was a newly-discovered 'rush' to inspect. In certain ventures, as so often happens, when the broad road is to be traversed, all his 'tips' proved correct. His advice, *quoad hoc*, seemed uniformly trustworthy. Coke, however, had an advantage on his side of which Trevanion little dreamed. Before long he was fully posted in Lance's history; whereas, of Mr. Coke's eventful career, beyond the careless chatter of goldfields, Lance knew nothing. Still less did he suspect aught of the sinister influence behind Coke. Not many days had elapsed after Lance had resolved to take up his abode at Omeo before he received a letter from Tessie Lawless, to whom he had sent a few lines by his returning guide. It was addressed to Mr. Harry Johnson, miner, to the care of the chief storekeeper, a man of multifarious trusts and responsibilities, keeping the post-office among other duties, and being entrusted with all deposits, from a parcel of gold to a quartz-crushing machine—from a 'last will and testament' to a baby 'to be left till called for.'

Tessie Lawless's missive—the outflow from a heart as true and faithful as ever beat in a woman's bosom—ran as follows—

'MELBOURNE HOSPITAL.

'When you receive this you will be safe—safe from persecutors, and once more—oh! that I should have to write such words—a free man again. What misery and degradation you have suffered! my poor dear unjustly punished——. I dare not even write your name for fear of—of consequences. But I shall be proud and happy all my life through that I was able to contrive to set you free—free! I have seen Mr. Wheeler since, and I could not help laughing, anxious and miserable as I have been, and am, at the way in which the affair was managed.

'You will see by the heading of my letter where I live. I am not a patient, but I was so restless and anxious until I heard of your safety that I took a situation as nurse in the Melbourne Hospital. There has been a good deal of sickness—fever, rheumatism, and so on—since the gold, and we are all kept hard at work night and day. I was always fond of helping sick people, and the work suits me exactly. So now you know where to find me. Address—"Nurse Hester Lawless, Fever Ward."

'I know, of course, that though Omeo is an out-of-the-way place, you stand a chance of being arrested at any time. So, for *my* sake, if you value my feelings, be as careful as you can. Don't make friends unless you are certain about them. You have *paid dearly for that*, haven't you? My cousin Kate married Trevenna soon after the trial. They are somewhere about Monaro, and not likely to come across you, thank goodness. He doesn't treat her well, they say, so I can fancy what their life is. *It serves her right!* You mustn't think me cruel, but I never shall forgive her as long as I live. I heard that Ned had got out of gaol, but am not sure whether it is true. Poor Ned! he was not all bad. I hope he may clear out to another colony, and keep straight for the future.

'I have been rambling on, but must now say good-bye. Good-bye, too, in earnest. I shall not write again unless I hear anything, and want to send you warning. You know my heart—I need not say that if you only tell me to "come" I will follow you to the end of the world. I do not

advise you to do it—the other way, indeed—but L—— T—— must judge for himself; though he might easily win a grander wife, but he will never never find a more loving and devoted mate than poor

'TESSIE.'

'A truer woman never breathed!' Lance ejaculated, as he read this letter in the lonely hut. 'But for her I should still be in those beastly hulks—perhaps chucked overboard some morning, with a round shot for a steadier! What in the world shall I do? What can I write to her? If she comes up here it will be sure to make people talk. They always try to find out more about a digger that's married than single, and if they find out too much, that infernal Dayrell, or some other ambitious trooper, will have the office given him, and *both* of us made miserable for life. No! she's the dearest little girl in the world, and I may as well make up my mind to tour California or South Sea Islands with her for a wife, as she says. England must be for me a foreign land henceforth, and Estelle—poor Estelle—a beautiful dream! England's no country for a man with a stain on his honour.'

""My native land, good-bye!" as Byron says. *He* never saw it again, for that matter. Heigho! I wonder if I shall? Something tells me his fate will be mine. An early death, though there is no Greece to fight for—no such luck in store for Lance Trevanion as a patriot's grave—a hero's tomb. I used to think of such things once, strange to say. How queer it seems that a soldier's death in the open, and so many many other things are henceforth for me *impossible*.

'I see nothing for it but to hang on here, putting the crowd off the scent by working, talking, dressing like any other digger, till I get my share of Number Six by degrees from Charlie Stirling,—trump that he is,—then clear for Callao or 'Frisco without beat of drum, taking Tessie Lawless with me.'

Both before and since the conviction of Ned Lawless, who was one of the originators of the Omeo cattle-stealing gang, Lawrence Trevenna had been a partner in crime, a sharer in ill-gotten profits. He it was at Eumeralla

whom the miners, the police, and indeed Tessie Lawless herself, had seen from time to time, and had mistaken for Lance Trevanion. They might well be excused. With some allowance for discrepancies in speech and manner, only observable when the two men stood side by side, few people could have told the difference.

His nature, inheriting the strongest proclivities to lawlessness of every shade and scope, needed but the occurrence of suitable conditions to develop into the commission of the darkest deeds. The comparatively easy profession of stock-lifting had, after his first chance wayfaring to the Monaro district within a few months after he quitted the ship, commended itself to him as an exciting and lucrative line of life. Athletic, bold, and attractive after a fashion, he had singled out Kate Lawless as the object of his admiration before the migration of the family to Ballarat. Becoming aware of the reckless girl's flirtation with his rival and antagonist of the voyage, he had sworn to take a deadly revenge. With the aid of the Sergeant, and acting upon the girl's jealous mood, he had been enabled to gratify his hatred to the full; and now he heard through Caleb Coke, whose information from various sources was rarely inaccurate, that his enemy had escaped from prison and was actually living in Omeo.

Trevenna's practice in connection with the 'duffing racket,' as Coke would have expressed it, was to travel through from Monaro with drafts of stolen animals and to await the arrival of others of the gang at Dargo, a place about fifty miles from Omeo. The men who met him were not suspected in their own neighbourhood, and as the stock were unknown locally, were enabled to drive them down the Snowy River into Gippsland or into Melbourne market by devious ways, known but to themselves, without arousing suspicion. Thus the mining and general population of Omeo had rarely seen and never noticed Trevenna. His beat lay on and around the Monaro district. Occasionally, when conference with Coke was necessary, he met him at the hut at Mount Gibbo, a lonely and rarely visited spot. As far as the Omeo people were concerned, Trevenna was, to all intents and purposes, an unknown man. It was, in a sense, against his interest to meet with Lance Trevanion at present. He therefore took general precautions against such an event, keeping himself, however, well posted up, through Coke, as to his rival's movements.

The destined meeting took place, however, after a fashion wholly unexpected by either, Fate proving, as of old, too strong for the machinations of mortals.

Trevanion had appointed a day to go with Coke to one of the newly opened reefs which bade fair to make Omeo the premier goldfield of Australia. It was at no great distance from the old man's hut. Lance had borrowed a horse and ridden to the point indicated by Coke, and after an hour's ride found the reef which they had come to inspect. It was in truth wonderfully rich,—the stones 'strung together with gold,' as the prospectors expressed it. Lance secured a share which could hardly fall short of an astounding profit as the claim developed; and when Coke suggested riding to his hut for a meal he readily assented.

The day was fine, the mountain air clear and bracing. The view, as they gradually ascended one of the foot-hills of the main Alpine range, was far-stretching and majestic. At the distance of a few miles, but apparently almost overhanging the lonely hut,—a substantial building, very solidly constructed,—arose the sullen shape of Mount Gibbo, snow-capped, and ever bearing on its granite ribs the marks of the Alpine winter.

A couple of savage-looking kangaroo dogs and a collie of suspicious aspect walked forward from the massive hut-door, which Lance noticed was carefully secured by a padlock. A narrow bridge of logs led across a sedgy runlet, which, like many mountain streams, was unfordable, except in occasional spots. From the hut could be seen any man or beast approaching at a considerable distance. The idea crossed Lance's mind that in the middle ages it would have been a most suitable site for the castle of a robber baron. He smiled as he thought that perhaps his friend Mr. Coke was only a later survival of those picturesque tax-gatherers.

Dismounting at the door, Coke hung his bridle-rein over a wooden peg driven into a stump close by, and, motioning to his companion to do likewise, unlocked the door.

'Hold on!' he said, as he pushed back the heavy door cautiously, and, leaning forward, pulled out by the collar a brindled bull-dog of such ferocious aspect that Lance drew back involuntarily.

'You seem to believe in dogs, Coke,' said he, as he noted the savage brute's red eye and grim jaw half approvingly. 'He would be rather a surprise to any one that called upon you when you were not at home.'

'He's not easy stopped when he goes for the throat,' said the old man, dragging the brute along by the collar and fastening him to a chain stapled into a section of a hollow log, which served as a kennel. 'He's a queer customer, is Lang. He dashed near settled a cove as got into the hut once by the winder when I was away. I was just back in time not to have to bury him, but it was a near thing.'

'One would think you had something valuable in your hut that you have to guard it so well,' said Lance, looking at the dog, now lying down licking his paws and showing his formidable teeth from time to time.

'Maybe I have, maybe I haven't,' said the old man sourly. 'Anyhow, I don't like people coming about my place when I'm away. I've always kept a dorg or two as wasn't safe at close quarters. They know it now, black fellows and white both, and lets us alone, eh, Lang, old man?'

The dog gave a low growl as he spoke, while at the same moment the collie and the kangaroo hounds raised their heads, and turning towards the road, which wound along a rocky incline from the eastward, gave a joint whimper, and seemed on the point of breaking out into a chorus of barking. Lance, looking instinctively in the same direction, saw a horseman emerging from a patch of timber, nearly a mile distant, and apparently riding at speed towards the hut. The dogs, however, appeared to have come to a conclusion in their own minds favourable to the approaching stranger, inasmuch as they lay down and awaited events.

'D—n him,' growled the old man, as, shading his eyes mechanically with his hands, he gazed searchingly at the horseman. 'What the devil brings him here now?'

'You know him then?' queried Lance.

'Know him? Well, yes,' answered Coke, with the tone of a man disgusted with things in general. 'Maybe you do too, and if you'll take a fool's advice, you'll neither make nor meddle with him. He's pretty hot property, is Larry Trevenna.'

'My God!' groaned out Lance, as his face flushed high, and then grew pale to the lips. 'This is more than I could have hoped for. Now look here, Coke,' and he turned upon the old man with a subdued wrath in every look and tone that, fearless as he was, awed the ruffianly elder. 'This Trevenna did me the worst wrong that one man can do another. Through his villainy I have been chained, starved, gaoled, treated like a dog—falsely accused, too, if ever man was. If I shoot the infernal hound as he pulls up his horse, I should be doing a good deed. If I don't, it is only that he may feel that, man to man, I am his master, and the punishment I intend to give him will not be so soon over. But if you interfere, by word or deed, by God! I'll shoot the pair of you like dogs.'

He touched his pistol as the last words came from his lips in low concentrated tones. His chest heaved, his hands were clenched until the muscles in his bare arms stood out like cordage, and the lurid fire in his deep-set eyes glowed as though ready to leap forth with volcanic flame. The resistless force of long-repressed passion asserted itself at this supreme moment.

The crafty veteran recognised the necessity of neutrality, and assumed his position with promptitude. 'Larry must take his chance. It's dashed little I care which way it goes. I'll see fair play, anyhow.'

There was little time to say more. The horseman had crossed the creek and, riding at a hand-gallop, pulled up at the door, throwing his bridle-reins, stock-rider fashion, on the ground, and leaving the hard-ridden hackney, a grand three-parts bred animal, to recover his wind and graze on the green tussock grass till he should need him.

Without apparently taking notice of the stranger who, in ordinary miner's garb, stood by the old man,—most probably taking him for a wandering prospector or hard-up 'hatter,'—he called out, advancing the while—

'I say, old King of the Duffers, do you know there's half-a-dozen chaps from Monaro waiting for you at Dobbs' Hole? They've a stunning lot of nags with them, so you'd better scratch all you know and get there before dark. Who's this cove? Perhaps he'll give us a hand? I must have a pot of tea first, though.'

He moved towards the hut door, near which Lance and the old man were standing. Lance stepped forward.

'So we meet again, Lawrence Trevenna?'

Trevenna was no coward. Still the sudden apparition of a deadly enemy—as if he had arisen from the earth—would disturb the equilibrium of most men. He started back. But a life filled with risk and imminent peril had schooled his nerves. He smiled, as if in apparent good-fellowship.

'By Jove! So it's *you*, Trevanion? Who'd have thought of seeing you here? Well, you've slipped the clinks, it seems. I was always dashed sorry you got into that scrape so deep. You'd better go shares with Coke and the rest of us in this lay. There's money in it—pots and pots of it.'

'D—n you and your money too, you scoundrel!' shouted Lance, advancing upon him with hate burning in his eyes and vengeance written on every line of his countenance. 'You!—You propose to me to share in your villainies? Have not you and your accomplices worked me ruin enough already? Put up your hands!'

Trevenna smiled and took his ground. Among the younger members of the lawless gang with which he had allied himself he had seen many a similar encounter, half or wholly in earnest. And in the pugilistic practice so popular among Australian youths of all classes, Larry Trevenna, to which cognomen he had been, for greater convenience, reduced, was held to be, if not the very cleverest of that wild band, so near the top of the class that there were few—very few—that cared to arouse his anger.

He had, as he supposed, advanced considerably in the science of the prize ring, and fondly trusted that the fast and vigil inseparable from a bushman's life would render him more than a match for any infernal swell (as he would have phrased it), especially one who had so lately 'done time,' and been therefore precluded from the enjoyment of fresh air and exercise.

Old Caleb Coke's rugged features writhed themselves into a saturnine grin as he watched the savage onset with an inherited instinctive interest.

'Dashed if I ever seen a better-matched pair,' he growled out, half unconsciously. 'I'd a walked twenty mile when I was a youngster to see a

battle like it. It's even betting—Larry's a quick hitter and pretty fit, but I doubt he's met his match. Well, it's d—d little to me who wins. First blood to Larry, by ——!'

By this time the two men were hard at it. The heavy blows on face and body, which in such a contest fall fast and furious, sounded strangely clear in the rarified mountain atmosphere—the old stock-rider and the dogs the sole spectators. These last—comrades of mankind under such ever-changing conditions—looked on with manifest interest. The bull-dog, indeed, until warned by a kick from his master, being minded to smash his chain and make a third in the encounter. The blow from Trevenna to which Coke had alluded had split the flesh above the cheek, showing the white bone underneath, as if gashed by a knife. Its effect was due less to want of skill on Lance's part than to his desperate determination to get to close quarters with his foe. And, indeed, all unheeding of the punishment, which would have staggered another man less iron-sinewed and agile, he forced his opponent before him with a succession of blows, delivered with such terrific power and rapidity that Trevenna's guard was completely broken in, eventually sending him to the earth, half stunned and motionless.

Lawrence Trevenna had underrated his foe in more than one respect. During the few weeks which he had spent in Omeo Lance Trevanion had worked harder than he had ever done in his life before. Partly to dull the memories of the past, as well as to quiet the haunting fear of apprehension, he had toiled incessantly. The keen air, the healthy appetite, the free intercourse with his fellow-men, had restored him to fullest strength and activity. Never in his life, as he stepped forward to meet his foe, had he felt more fully conscious of muscular strength and deer-like elasticity—those glorious physical gifts with which only early manhood is endowed.

As they fronted each other for the second time, face to face and eye to eye, as is the wont of men of British race in such a contest, Coke could not fail to be impressed with their extraordinary likeness to each other, and the similarity of their general cast of feature. The colour of the hair was identical, and but for a slight deviation in the direction of coarseness on the one hand, and that indescribable something which belongs to the man of birth on the other, they could hardly have been distinguished from each other by a casual spectator. In their eyes, so remarkable in both, burned in

that hour the deadliest fire of hate, the difference alone being that while it glowed furnace-bright in the orbs of Lance Trevanion, Trevenna's glare, in demoniacal malice, resembled the rage of a wild beast.

'By ——,' said the old man, as once more he marked the blood-stained faces of the desperate combatants, who again went at each other with silent fury, 'I could fancy as they was brothers. They ought to shake hands and travel the country. What a circus they'd be able to run. Ha! Larry's down agen. The Ballarat cove's too good for him.'

It was even so. For a short time only it appeared as if the issue was doubtful. There was but little thought of evasion or parrying of blows on either side. The terrific rally with which the second round ended would have brought to a close more than one world-famous fight. But Lance Trevanion fought as though each arm—like the Familiar of the enchanter—wielded an iron flail. And when Lawrence Trevenna went down, beaten dead and senseless from the last tremendous 'upper cut,' it was evident that he would not come to time.

'That last left-hander knocked him out,' said the old man, with a grin of qualified approval, while a strange expression lurked in his evil eyes. 'It ain't no use follerin' it up, as I see. Dip that pannikin in the bucket while I sluish his neck a bit. You ain't settled him this time, Harry, but it's a d—d close shave.'

'He deserves death at my hands a dozen times over,' said Lance, gazing down upon the fallen man, as Coke raised his bleeding face, and, after an interval, succeeded in restoring animation, while the dogs stood around licking their lips, as if the savour of blood had aroused their ferocious instincts. 'But I have done with him for the present. Let him cross my path again at his peril.'

Thus speaking, he turned to where his horse had been secured and made preparations for departure, waiting, however, in order to satisfy himself as to the condition of his late antagonist. That personage, after a few minutes, was sufficiently recovered to raise himself to a sitting posture, and eventually to his feet, when he supported himself by leaning against a tree.

But though temporarily worsted in the conflict, Trevenna had no whit abated of the ferocity with which he had commenced the encounter.

Declining, with a wave of the hand, the proffer of bush hospitality by the old man, Lance Trevanion made as though to mount his horse, when Trevenna shook his hand, and, with a voice hoarse and almost inarticulate, arrested his departure.

'Stop!' he said. 'I want a word with Trevanion before he goes. You've had the best of it now. I didn't think you were so good, blast you! But I'll see you at my feet yet. I've got the girl you were so sweet on, and you may thank her for being what you are—a runaway convict; d'ye hear that, Lance Trevanion? Kate Lawless is my wife now, and d—d well broke to come to heel when I crack the whip, you take your oath. I've got square with you so far, and by ——!' and here the ruffian swore a blasphemous oath, 'I'll be more than even with you yet.'

He paused, apparently more from exhaustion than from other reasons, for his disfigured face, all blood-stained though it was, grew ghastly pale as he swayed forward as though he would have fallen.

Lance rode towards him, and for an instant raised his hand; then gazing at him with deepest contempt, made answer—

'No doubt you have treated your unfortunate wife as only brutes like yourself are given to do. You are repaid in some slight degree for any cruelty to her, little as she deserves it at my hands. As for you, you scoundrel, I will shoot you like a dog if you come across me again. So I give you fair warning.'

Then Lance Trevanion mounted his horse, unheeding of food or shelter. For, as if the elemental powers had awaited the issue of the conflict, the sky was suddenly overcast, the wind arose and wailed stormily. The ranges were blotted out by driving mists, and without warning one of the sudden storms of a mountain region broke wrathfully over the plain. Another man might have sought protection. At any other time such a thought might have crossed his mind. But the fierce spirit of Lance Trevanion in that hour of overwrought feeling joyed in the elemental turmoil. Facing the tempest, he sent the spurs into his horse and drove recklessly into the very teeth of the

storm; the drenching rain, the blinding lightning, the thunder rolling above him and echoing along the mountain crags, only serving as distractions to the yet fiercer tumult raging within. Two hours' desperate riding over flooded creeks, through forest and flat, rocky ridge and sedgy morass, brought him to Omeo. The storm-swept streets were deserted, the stores and hotels filled. Pulling up at the door of his hut, he unsaddled his horse, whose heaving flanks sufficiently attested the pace at which he had covered the distance, and turned him loose, with all reasonable expectation that he would discover his owner's abode, after the manner of 'mountain' horses, accustomed from colt-hood to find their way to particular localities, wholly irrespective of times and seasons.

This duty performed, he unlocked the door, carrying the saddle and bridle inside with him. His steed trotted off briskly, after a preliminary shake, and apparently made a straight course for his home. Nor was the act of turning him loose on that wild winter evening amid the still driving rain and bitter wind in any sense cruel and unfeeling. The stock-rider to whom he belonged would remark in such a case that the rain would wash his coat clean from mud or sweat stain. He had never been shod in his life, never known a rug or a stable, and was as impervious to disease of the throat or lungs as his ancient comrades, the wild cattle of the snowfields.

CHAPTER XXI

For some days after his encounter with Trevenna, Lance Trevanion avoided as much as possible going into the township. He devoted himself to working steadily at his claim at the reef, to which he had gone before the adjournment to Caleb Coke's hut with unexpected results.

His first impulse was to prepare for sudden departure. Trevenna, as a cheap and obvious form of revenge, would probably inform the police of his identity without delay. He shuddered at the idea of recapture—nothing, of course, could be easier than to send word to the nearest police station that prisoner Trevanion, lately escaped from the hulk *President*, and for whom a reward of no trifling amount was offered in the *Police Gazette*, was living as 'Harry Johnson,' the miner, just outside of Omeo township.

Yet, upon further reflection, other considerations presented themselves: Coke and Trevenna were evidently 'working' this horse and cattle business together. They would not, presumably, be too anxious to bring the police near to the scene of their illegal practices. They would assume also that he, Trevanion, if recaptured, might reveal much to their disadvantage. Besides, he was now receiving weekly drafts to a considerable amount from Charles Stirling. These he exchanged through Barker and Co., the storekeepers at Omeo, for drafts on a Melbourne bank, keeping up the appearance of a mining speculator by buying parcels of gold from time to time, which were transmitted to Melbourne by escort—consigned to the same bank. He was loth to interrupt such satisfactory financial operations, while proceeding in a manner so favourable to his project of escape. In a few more weeks, if nothing happened in the meantime, a sum would be placed to his credit in Melbourne with which he could safely embark for San Francisco, Valparaiso, or the Islands, leaving the remainder to be sent after him.

Thus arguing, he determined to trust to the chapter of accidents, and, unless he received further warning, to abide the issue. Besides this, he believed that Coke entertained a friendly feeling towards him; even that he might

depend upon him for notice in case Trevenna was determined to play the informer.

As matters turned out, Trevenna and Coke were at that very time maturing plans with which the sudden arrival of additional police would have seriously interfered. But of this determination, as well as of its scope and intention, Lance Trevanion was ignorant.

He had not, of course, been able to keep out of sight and observation of his fellow-miners at Omeo. A parcel of gold had been offered for purchase by his friend Barker, and as it was rather larger than usual, he felt bound to go into Omeo to inspect it. His face—decisively as the battle had terminated in his favour—still bore the signs of the severe punishment which he had received. And all unheeding as he had been of the pain during the heat and fury of the conflict, the disfiguring bruises and cuts were none the less *en évidence* for days after the affair.

But this condition of facial disarrangement was too familiar to all classes of society at Omeo to cause more than faint surprise or trivial comment. 'Been having a friendly round and slipped the gloves off, Harry?' said the storekeeper. 'I didn't think there was a chap on the field that could paste you like that!'

Lance muttered something about 'accidents will happen,' and so on. 'Tell you all about it some other time.' Yet though not denying the impeachment, he showed so little desire to be questioned upon the matter that the storekeeper, a shrewd person, dropped the subject and addressed himself to the more important business of the gold purchase.

This was concluded, and the gold safely placed in the fire-proof safe, at that time a necessary part of every storekeeper's outfit, there to await the monthly or fortnightly escort. By far the greater portion of the gold so purchased was sent to town by escort—the protection of the police troopers being in general considered sufficient. In spite of the perils of the road, there were, however, always to be found men, fearless or foolhardy, as the case might be, who preferred to be the bearers of their own winnings in Nature's lottery, or of that which they had purchased as a speculation.

Lance had been working for nearly a week after making this purchase, at his claim, which, strangely enough, was the only payable one for some distance on either side. He had heard nothing further of Trevenna. Coke appeared to have left his usual haunts temporarily. Once more a feeling of comparative security came over him. The apparently peaceful and isolated nature of the locality assisted to lull his grief-worn spirit into a condition of repose.

It was noon at the Tinpot Reef. He had been working hard since early morning, and had just decided to prepare his mid-day meal. The fire was kindled, the camp-kettle placed upon it, and the water for the tea, that indispensable adjunct of the Australian's *al fresco* refection, was commencing to boil. In anticipation of this stage of proceedings, Lance had seated himself upon a fallen tree and was smoking meditatively, after the manner of his class.

It was a lonely and silent spot—on this particular occasion rendered more solitary and deserted-looking than ordinarily, from the fact that the discouraged holders of the adjoining claims had arranged to prospect a distant gully, and had, to that end, departed in a body on the previous morning. The ropes were still upon the windlasses, the raw-hide buckets on the braces. The tents and huts, with their rude adjuncts, showed that the desertion was but temporary; therefore, the camp could not legally be appropriated as 'worked and abandoned ground.' Still there was an eerie, and it might have been thought by a supersensitive resident an ill-omened, aspect about the place.

The morning had been fair, but though no clouds obscured the sky a chill wind had arisen, and the temperature seemed to fall as the rising blast became shrill-voiced and wailing.

Listening half mechanically to the boding signs of storm, Lance did not notice the clatter of hoofs as a woman came at speed along the ravine which lay to the eastward, and reined up her horse within a few yards of his camp.

He turned listlessly towards her, but started to his feet and gazed into the face of the rider with the look, half intent, half horror-stricken, as of one who views an apparition.

'Kate Lawless!' he exclaimed.

'I used to be once,' the woman made answer, in a voice which seemed struggling with an attempt at cheerfulness over-lain with habitual melancholy. 'Won't you lift me down, or have you forgotten the way?'

He was at her side in a moment, and as, with the accustomed aid, she sprang lightly to the earth, each gazed into the other's face for an instant without speaking.

'Hang the mare up to that dead tree,' she said. 'I've ridden her hard and far to-day, but she'll have to carry me across the mountain to-night; I mustn't chance letting her go. And now I suppose you're wondering what brought me here? I've got something to say to you, Lance Trevanion, that's well worth the hearing.'

'And what may that be?' he made answer coldly. 'Let me remind you that the last words I heard you speak caused my ruin, body and soul.'

'For God's sake, don't talk to me like that,' she said. 'I'm the most miserable woman this day that walks the earth. I've helped to ruin you, I know, but how I've suffered for it! I'm risking my life in coming here to-day, and except to warn you for your good I wouldn't have done it. Look at me, Lance, and see if I'm speaking true or false!'

'You took a false oath once,' he said slowly; 'why should I trust you now, Kate?'

But while he spoke he could not avoid marking the unmistakable traces which misery had imprinted upon her face and form. His voice softened, his heart relented in spite of his just scorn and indignation. How changed was she indeed! And could that haggard woman, who, with streaming eyes and sorrow-laden features, stood before him in a suppliant attitude, be the Kate Lawless of old days?

The trim and lissom girl, with an air of wild unconscious grace, lithe of form and displaying in her every movement the instinctive charm of early womanhood, had disappeared for ever. In her place stood a hard-faced woman—bitter, reckless, and despairing. Her dress, that unfailing test of feeling, showed that she had ceased to concern herself about her personal appearance. Her fair hair was carelessly twisted into a large knot, which showed behind the old felt hat which she wore: a shabby kirtle was secured with a belt around her waist above a torn and faded gray tweed riding-skirt. A red silk handkerchief knotted loosely round her neck furnished the only coquettish-looking bit of colour that her dress afforded, and, in spite of the carelessness and disorder of her apparel, formed an effective contrast to her dark gray eyes, still bright, and her abundant hair.

'You are changed, indeed, Kate,' he said musingly. 'So am I. Don't you think, by the way, I ought to call you Mrs. Trevenna?'

'Call me Kate this time,' she said; 'God knows whether we shall ever meet again. Do I look miserable, neglected, downtrodden to the very ground? For that's what I am, besides being the wife of the greatest brute, the meanest villain, ever God made. But it serves me right, Lance Trevanion; it serves me well right!'

Here the wretched woman burst into a fit of passionate weeping. Hiding her face in her hands, she sat down upon the log, and in broken sentences detailed her wrongs and described the cruelty with which she was habitually treated. Why did she marry him? Well, she hardly knew. She was restless and miserable after the trial. Ned was gone, and she was half mad, and could have drowned herself when all was over. Once in Trevenna's power, the brute had shown her that one of his reasons for making her his wife was to wreak his spite upon her as a former favourite of his enemy; to punish her by every ingenious device of callous cruelty for having preferred Trevanion to himself. She had been worked upon before the trial by the artfulness of Dayrell and Trevenna, the former having caused a letter to be written, as if from Lance to his cousin, sneering at her low birth and bush manners in a way which led her to believe that he had from the first intended to impose upon her ignorance. Hasty, credulous, and madly ungovernable in her fits of ill-temper, she had been practised on to bear false witness at the trial. Then Tessie, ignorant of the wonderful likeness of

the two men to each other, had really mistaken Trevenna for Lance, having come upon him unexpectedly in one of his trips to Eumeralla.

'And this is what I've brought you to,' she continued, gazing at his rude attire, his changed aspect; for *never* does the look of freedom and careless pride return to the man who has known the prison garb, the clanking chain,—who has once answered mechanically to the harsh summons of the gaol warder. 'A working digger, and worse. Oh, my God! An escaped prisoner. God forgive me! I don't see as *you* can. No man could that has gone through what you have!'

And here the frantic woman cast herself at his feet and bowed her head to the earth in an attitude of despairing supplication almost oriental in intense self-abasement.

In spite of his cruel wrongs, of the life-wreck and dishonour in which this woman had been chiefly instrumental, Lance Trevanion's heart was touched as he saw the once haughty and tameless Kate prone in the dust at his feet.

He raised her gently, and, seating her beside him, essayed to comfort her. 'Kate,' he said, taking her hand, 'we are two miserable wretches, destined to be each other's ruin. Why should all the blame fall upon you? Fate was too strong for us. It is over now. We must bear it as we may. If I have undergone the torments of the damned, your deadliest enemy could not have chosen a worse lot than you have made for yourself. I forgive you freely. Now you have far to go, and I must finish my shift by sundown. Let us make believe we are at the camp at Ballarat again; my dinner is nearly ready.'

A faint flicker, dying out instantly into rayless gloom, was visible in the woman's sad eyes. She dried her tears, and with a strong effort recovered her self-possession.

'You are too good to me, Lance; God bless you for it,' she murmured. 'I shall thank you to my dying day, whenever that is: I somehow think it mayn't be long. Anyway, I *will* have a few mouthfuls. There's thirty miles of mountain road to go back, and I must be home before *he* comes. I see you're marked,' she continued, looking with curiously blended sympathy and shyness at his discoloured face, 'but you're nothing like as bad hurt as *he* was, or you couldn't move about or stoop to blow up that fire. He was close

upon dead for a week after he got back. He didn't tell me who done it till one day we quarrelled when he was better. Then he half killed me,—kicked and trampled on me, as he's done many a time. If it wasn't for—for the child,'—here she hesitated and looked down,—'I'd have left him long ago.'

'Cowardly brute, ruffianly dog!' groaned Lance, grinding his teeth, 'why didn't I kill him when we met at Gibbo? I had two minds to finish him there and then. Things could hardly be worse than they are. But the next time we meet one of us dies; I swear it, as God hears me.'

'Oh! don't talk like that,' she cried, and even in his wrath Lance recognised with amazement the new element of pitying tenderness which anxiety for his safety evoked (oh! wondrous-fashioned instrument, the woman's heart! soaring to seraphic melody, yet at times clanging with frenzied discords, echoes from the Inferno); 'if there's anything of that sort you'll be sure to be taken, then it will be "life" or worse. But,' changing her tone to one of grave entreaty, 'what I came for to-day was this,—I knew you were here, no matter how; where I live we know a lot, all the worse for us and other people.'

'And what was it, Kate?'

'*I came to warn you,*' she said, as she fixed her eyes imploringly upon his countenance, 'and you believe me, just as if Tessie was talking to you this minute.'

'To take care of my horse, Kate?' he said, half jestingly; 'I haven't any to lose.'

'To take care of your LIFE!' she cried, almost with a scream. 'You have that to lose, haven't you? and unless you are carefuller than I ever knew you to be, you'll find it out too late. I overheard him and that old wretch Caleb Coke (and of all the murdering dogs I ever heard of I think he's the worst) talking over some plan they've put up, and from words I caught I made out it was about you. There was a deal about gold-buying and some hut, and a box with nuggets and things locked up in it—money as well. You'll know if that fits. The man, whoever it was, was to be "put away," as Coke said. So you take my tip! *Trust nobody about this field*, Caleb Coke above all, and get shut of Omeo the first minute you can.'

'When did you hear this?'

'The day before yesterday. They sat up late drinking, and Coke took more than he does in general; he's that full of villainy of all sorts,—robberies and murders too, people say,—that he's afraid of grog for fear of giving himself away. Anyhow, they both went off early this morning, and Trevenna's to be back to-night. So I ran up this little mare—she's the only one I've got now to my name—as soon as they were well off the place, and rode here on the chance of finding you at this reef.'

'Well, Kate, my poor girl, you've done me a good turn, if you never do another. You may have saved my life, you see. Not that it's worth much. But I've a notion of getting away to California or the Islands next month, and if I carry that out what you want me to be careful about may rise in value, do you see?'

'Oh, don't joke in that horrid way; you never used to,' said the woman, rising and gathering up her skirt, as if in preparation to depart. 'It makes my heart ache'—here she pressed her hand to her breast; 'I have one, though you mightn't think it. But oh, for my sake, for every one's sake, for the sake of that girl in England, if you want to see her again, be careful! Don't go out of sight of Omeo—if you value your life—till you start for Melbourne, and then travel in company. Coke thinks no more of a man's life than a wild dingo's, and Trevenna's as bad. The things I've heard, I wonder God lets them live. I must go now. I've stayed too long. Remember my words; they're as true as if I was on my dying-bed.'

Then she walked rapidly to where her horse stood patiently—a small roan mare, the fineness of whose limbs, together with the character of head and eye, denoted Arab blood, crossed probably with the wild 'mustang' of the hills. Trevanion kept by her side, wondering when the strange scene would end.

She made again as if to depart, for an instant touching the mare's bridle. Then, turning towards him, held out her hand—'Good-bye, Lance, and God bless you, wherever you are. You are sure you forgive me, don't you?'

'As I hope to be forgiven,' he said solemnly, unconsciously using a half-forgotten form of words, the true meaning of which had long been alien to

his heart. 'That is, you poor ill-treated Kate, I forgive you freely, and with all my heart.'

As he spoke, the woman turned upon him a countenance so transfigured by gratitude and tenderness that Lance Trevanion, for the moment, hardly recognised her, so wonderfully softened, so refined and ennobled, was every lineament by the unwonted emotions. Deep and bright in her lifted eyes shone the fires of a buried passion as she gazed for a moment into those of her companion. Then, as if inspired with sudden frenzy, she threw her arms around him, and, pressing his head to her bosom, kissed him passionately on the lips and forehead.

Disengaging herself as suddenly, she waved him back from approaching her, and, springing into the saddle, drove the astonished mare wild, plunging over the crown of the ridge and adown the rocky side of the ravine, which the roused and sure-footed animal cleared with leaps like the 'flying doe' of her native woods.

'Poor Kate!' he exclaimed, as he slowly retraced his steps, and, gathering up his mining tools mechanically, proceeded to complete his day's work; 'there is good about her after all. How queerly men and women are compounded in this mad world—as I begin to think it is. What a life hers must be, tied to a scoundrel like Trevenna! and yet *he* is a free man—whose whole life, since he came to the colony, has been criminal—while I, who, God knows, never had a thought of wrong-doing, have worn the felon's chain, and may again, who can tell? "A mad world, my masters!" in truth and saddest earnest.'

No doubt remained in Trevanion's mind, as in the seclusion of his hut that evening he pondered this singular interview, but that the woman had warned him in all good faith. If her words were not true, she was indeed the falsest of her sex. But there are looks, tones, gestures which neither man nor woman can feign; moments in which all the truth of the being comes to the surface; portions of our lives when a clearer insight is gained in the passing of seconds than can be derived from years of ordinary experience.

Such a flash of enlightenment was this, as when the lightning gleam pierces the gloom of midnight, showing the perils of the road, disclosing pitfalls and precipices previously shrouded in darkness. His course had been thus

illuminated. How heedless was he, pursuing what appeared to be a fairly open pathway; and yet, what unsuspected dangers lurked on every side. These two remorseless villains, attracted by the report of his comparative opulence,—of course the gold-buying would reach all ears,—were evidently planning his robbery and murder. If not his own, whose then could it be?

There was another man whom it possibly concerned—Con Gray, well known as a gold-buyer in Omeo. He had lately made heavy purchases—had even stated that this was his last trip to Melbourne. This man was perhaps the fated victim. Under any circumstances Omeo was no longer safe harbour. He would sell his claim on the reef. He would invest his cash in gold, and, making some excuse, join the escort, and so get to Melbourne unsuspected, and safe from being robbed on the road—if a man could be said to be safe at any point of the journey between these savage solitudes and the metropolis.

Thus having fully resolved to quit Omeo, taking whatever risks might be involved in that step rather than await the perils which seemed to be thickening around him, a feeling of impatience now took possession of Lance Trevanion. On the very day on which he had met Kate, he had 'broken down' some stone of extraordinary richness, which, though it might prove to be only a 'shoot,' in mining parlance, served to cause the value of the claim to rise measurably. He had therefore no difficulty in disposing of it to very great advantage, giving as his reason for quitting so promising a 'show' that he had decided on devoting himself to gold-buying for the future.

Meanwhile, the vision of final escape from a life of dread and suspicion, from the rude surroundings and mean shifts by which alone he could hope to secure safety under present circumstances, commenced to arise clear and inspiring before him. It seemed comparatively easy to slip down to town under cover of having gold to dispose of—as did many a miner of the period. And then—and then, once on blue water with a draft for five thousand pounds in his pocket, and more to follow at regular intervals as

long as Number Six continued 'payable,' what a vista of change, affluence, almost happiness, opened out before him! This was Saturday; on this day week the monthly gold escort would leave Omeo for Melbourne. It gave him ample time to make needful preparations. It was the last day of the month. It might be the last day of his exile.

The week passed in an uneventful fashion. It seemed to Lance Trevanion as if all things were working harmoniously for his release from the thralldom he had so long endured. The claim had been well sold. He had received the proceeds in cash, as indeed is the custom of goldfields. He had made several advantageous purchases of gold, and had received advices from the mercantile house in Melbourne with whom, through Barker and Co., the storekeepers, he had established business relations, that they would be prepared to honour his drafts or furnish him with bills of exchange in Britain or America. All things seemed prosperously working together for a noiseless and unsuspected exit from Omeo—from Melbourne—from Australia. He had reduced his worldly possessions to the smallest portable quantity, while leaving his hut and belongings in apparently the state which they would present during his absence, presuming merely a temporary absence.

So steadily had he laboured, so assiduously had he devoted himself to the arrangement of every detail which by any chance could be needed, that on the Thursday evening he was in the somewhat nervous position of a man who had nothing to do but to await the signal for departure. At the same time, he had neglected no precautions which could tend to throw his comrades of Omeo and the public generally off their guard. He had not signified his intention of starting with the escort. He had made the same arrangements which would have been necessary for the consignment of his gold if he himself was absent.

He had said casually to his friend Barker, the storekeeper, that 'he might go, or he might not; he was not sure; just as the fit might take him. Anyhow, he would only be away a fortnight. It depended upon any fresh "show" turning up. There was a talk of something towards the Snowy River.'

He had purposely, from the day of his arrival at Omeo, adopted a rough, laconic manner, in keeping with his assumed character of 'Ballarat Harry'; had been, indeed, at some pains to efface tokens of gentle blood, of culture, of refinement, of that chiefly indefinable personal accompaniment which is usually described as 'the manners of a gentleman.'

This curious possession, sometimes laboriously acquired, and yet only perfect when merely derived from the accident of birth and inheritance, is, by some shrewd observers of human nature, believed to be wholly inseparable from the individual who has once possessed it. Others believe—granting a careless habit of association, a looseness of fibre, recklessness of mood, sordid surroundings, not to mention a fixed intention of cutting loose from all the influences of early training—that wondrous, almost incredible declension may take place. One likes to fancy that the refinement produced by years of early training, joined with hereditary tendency, can never be obliterated. But

'Want can quench the eyes' bright grace,
Hard toil can roughen form and face.'

Although in the case of Lance Trevanion it would have been an exaggeration to have said with the poet—

'Poor wretch! The mother that him bare,
In his wan cheek and sunburnt hair
She had not known her child.'

But (and I who write have many a time witnessed the transformation) it is by no means so easy to recognise the 'lapsed gentleman' after he has, for whim, indolence, or necessity, played the bush labourer for a year or two. The roughened hands, the altered expression of face, the gradual disappearance of *les nuances*, the minor society tricks of expression and manner, the rough habiliments, the changed step—all these and more—the inevitable concomitants of the comparatively rude life of the miner, the 'sundowner,' the shepherd or boundary-rider—denote the disrated aristocrat. Any one of the subdivisions of Australian manual labour *does* inevitably, indisputably, change and disguise the individual, of whatever previous history. There are exceptions, doubtless; but such are rare.

In addition to the safeguards which a miner's garb, daily labour, and rude association provided against recognition, Lance had practised of set purpose the slang phrases and ungrammatical idioms common among men of his adopted occupation. This kind of verbal deterioration is more easy to acquire by careless habit than to relinquish when an upper stratum of society is again reached, as relatives of young men returning from 'back block' sojourns or 'northern territory' explorations have discovered to their regret. Taking his privations into consideration, it must not be considered very wonderful that the 'Ballarat Harry' of Omeo was a different-appearing personage from the Lance Trevanion of No. 6, Growlers', much more the haughty, rebellious heir of Wychwood.

The expected morning broke—a transcendent day of early spring, known even to this mountain land, mist-shrouded and storm-swept though it be in its winter garb. The sky was cloudless, the air breezeless, as the sun uplifted

his golden shield over the forest-clothed shoulders of the Bogong and the Buffalo.

As the pearl-gray tints of the dawn-light insensibly dissolved,—losing themselves, even as had the darker hues of the earlier morning, in a bath of delicatest pink, enriched ere the eye could trace the translucence with hues prodigal of crimson and burnished gold,—the austere marble-white snow-peaks appeared to stand forth in yet more awful and supernal splendour. Contrasted with colouring of indescribable brilliancy, they appeared a company of phantasmal apparitions in the silence of that wondrous dawn pageant.

Lance Trevanion was but a man as other men. How many times had he looked upon these and kindred wonder-signs of Nature with incurious eyes, holding them to be but ordinary phenomena with which, in the grip and peril of Circumstance, he had nought to do. But now, his nervous system being more tense, and his mental tone exalted in view of an imminent deliverance, a stir took place among faculties long disused. In curious unexplained fashion the beatific vision connected itself with his cousin Estelle, whom he had ceased to regard as a terrestrial entity. Severed from her, not less by seas and oceans than by inexorable fate, her image, bright and celestial as it had formerly appeared, was now fading rapidly; becoming fainter and yet more ethereal with each succeeding recollection.

But on this, the last morn which he hoped to spend in this wilderness, her image seemed to present itself with strangely persistent clearness before him. How she would have joyed,—she that was so passionately fond of landscape scenery, who discovered fresh beauties in every humble hillock and lowly streamlet,—could but she have stood here with him; together could they have beheld this entrancing vision. With quickened tide, the back-borne stream of memory brought to his recollection the many times they had stood hand in hand and gazed at sunset, stream, or woodland, glorified by Nature's alchemy. He could almost fancy that he heard her voice, soft and low, rich, yet so clear and distinct, as she dwelt upon each feature of the landscape with instructed enthusiasm. He recalled her dainty ways—her unvarying softness and sweetness, her unfailing tact and temper, which had so often turned the tide of the Squire's wrath, the discreet counsel that had so often been displayed in times of perplexity.

And now, what torture to think of her! of all the sweetness and beauty, divine as it now appeared to him, lost for ever, as much alien to him, henceforth and for evermore, as though she had been born on another planet!

The sudden change from the currents of his thoughts led the lonely, half-despairing man to an almost complete temporary detachment from his surroundings. He forgot much of the misery, the despair, the evil hap of this past year—that year which had been so much more eventful than the whole of his previous life. A new hope appeared to arise within his outworn, wearied heart. Might he not, if he regained the old land—might he not yet recover his position? Great heavens! was it then possible that such an elysium should be in store for him? He knew Estelle's steadfast fearless nature; he knew the sweet and loving pardon that would shine in her eyes when they met, if ever permitted by a merciful God. Was there a God? and could He be thus merciful even to a forlorn, degraded outcast like himself?

As he stood leaning, with folded arms and meditative air, against the doorpost of his humble dwelling, the clatter of hoofs along the track which led near the hillock upon which the hut stood gave a fresh current to his thoughts, and recalled him to a sense of the present. 'One day more,' he said, half aloud. 'Shall I ever see these hills and valleys again? I owe them much. They have proved good harbour for the stricken deer.'

'Who the deuce is this?' His thought shaped itself into speech as a wild-looking rider forced his horse, a half-broken colt, as near to the hut door as he could get him. The colt snorted and trembled, after the manner of his kind, but refused to budge a foot nearer. The horseman,—a long-haired, long-legged native lad,—exercising his spurs vigorously, besides devoting the colt and all his relatives to the infernal deities, was fain to hold out a scrap of paper in his hand and await Lance's approach.

'It was you as sold Number One South, on the Tinpot Reef, to Yorkey Dickson, wasn't it?' inquired the ingenuous youth, staring at Lance.

'Yes; what then?'

'Well, there's been a bloomin' row between him and his mates and Mick Doolan's crowd. They're measuring him off, and makes out as you'd took up

too much ground. He wants you to come. He give me this for ye; blank ye, I'll knock the blank head off ye, if ye don't stand quiet.'

This last communication, though in strict continuation with his previous address, was apparently intended for the colt's progressive education, that vivacious animal having taken fright at Lance's approach, and swerved backward with rear and plunge directly Lance reached out his hand for the missive. He, however, retained hold of the paper, which, after some difficulty, he deciphered—

MR. HARRY JOHNSON.

Dear Sir,—I paid you honest for Number One South, which I stand a good show of loosin' if you don't come out and prove your pegs. The Tips are trying the bluff game, and if you don't stand by me I'll be regular jumped and run off the field. Come afore dinner.

Yours trewly,
YORKEY DICKSON.

'My word! I'll have him steady enough by the time we get back to Tin Pot. Been backed first time the day afore yesterday, and of course he's touchy,' he explained, as the colt, after a wild rear, in which he nearly fell backwards, stood with his forefeet rooted to the ground and snorted, trumpet-like. 'Shall I say you're a-comin'?'

'I suppose so—yes,' slowly answered Trevanion, half absently. 'Curse the claim and all belonging to it! I never wanted to see it again. But I won't have the fellow done out of it. Tell him I've half a mind not to come, as I'm going to Melbourne to-morrow. It's lucky for him I got word to-day.'

'All right! I'll tell him you'll be there by dinner-time. So 'long!' and with the words on his lips he turned his horse's head, and with spur and shout forced him into a hand-gallop along the main track to the township, up the principal street, and opposite the hotel door before the half-tamed excited animal had time to halt or resist.

'It's an infernal nuisance,' said Trevanion, half aloud. 'But I don't want to leave things tangled up. Yorkey paid me good money, and I shouldn't like

the poor devil to be wronged by those scoundrels. I'll walk, too; it will do me good, and keep me from thinking.'

The day promised to be glorious. Slowly the mountain mist had rolled back, and gradually disclosed the tones and magically blended colour effects which the awakened morn revealed. A dull grayish green tinted the undulating prairies, stretching to the darkly dense forest which clothed the foot-hills of the Australian Alps. The sombre mountains gradually ripened in colour as the sun-rays pierced them in concentric lines, so that a graduated scale, shading from darkest green to brilliant emerald, developed hourly. Deathlike, still eternal-seeming, majestic, their snow-crowns rested on Bogong and Buffalo, with far-seen Kosciusko and Feathertop in the azure distance.

The solar heat became distinctly noticeable—indeed, bordering on oppressive. But Lance, excited in spite of himself, stepped joyously forward as he felt the miles slipping behind him, as though on some long-remembered schoolboy truant expedition. How different was the free elastic stride with which he covered the ground now from the aimless, dejected shuffle of himself and his fellow galley-slaves of the *President*! His spirits rose with each mile of the way traversed. Surely everything was turning in his favour. He would be pardoned yet, his fair fame re-established. His innocence would not be so hard to prove, after all. Tessie and Kate could now give different evidence.

'Yes! England, Estelle, Wychwood! Fate would repent her of this dire injustice. He would yet again place foot on the shore of his native land, the home of his ancestors, as surely as he would presently ascend the ridge on the other side of this Mountain Ash Gully, into which he was now descending; as surely as he would behold the plain far-stretching towards the horizon, the diggers' tents in the secluded valley.'

Thus thinking, and moving forward with eager, quickened step, he reached the bottom of the ravine, which—a notable exception to the general distribution of timber—was covered with a scrub or thicket of the mountain ash saplings for some distance back. From the course of the little stream, eastward, appeared a narrow flat, riddled with shafts long worked and

abandoned, but still furnishing, in this depth and closeness, a record of former richness.

'What would Kate say if she saw me here to-day?' he thought to himself. And then her warning rang in his ears. 'As you value your life,' he seemed to hear. 'When I get back,' he said, 'I will swear to take excellent care of myself.'

'If such a thing as prudence can be knocked into a Trevanion, surely what I have undergone should produce it. But what a lunatic! what a benighted idiot I was to leave England at all! Why couldn't I have borne the old man's petulance, like scores of other fellows that I have known? All would have come right in the end, with Estelle's help. What a girl she was! And what a fool I have been! Looking back, it seems incredible that I—that *any man*—could have been so mad, so blindly besotted! I wonder how the old Squire is now? He and Estelle must have a lonely time enough of it in the gloomy old manor-house. Well, I swear—as God hears me now—that when I return—if I ever do—I will humble myself before the old man, and, yes, try for the rest of my life to make amends to him and to her for the sorrow and anxiety which I have cost them.'

As this last thought passed through his mind, shaping itself unconsciously into articulate speech, he stopped, with his right foot raised upon a block of stone, and listened intently, with head half turned towards the thickest portion of the scrub, which here approached the narrow track worn in old days by the cattle-herds of the surrounding pastures.

At that moment a shot was heard, and Lance Trevanion fell forward on his face, temporarily disabled, if not mortally wounded. Following the report, two men emerged from the covert, one of whom carried a gun. They were Caleb Coke and Lawrence Trevenna.

'That dropped him,' said the former, with a fiendish chuckle. 'Not far from the "curl," I'd say, if it was a bullock. Many a one the old single barrel has finished. I thought she'd carry straight that distance.'

Here the wounded man moved his arm and groaned.

'Ha! my fine gentleman!' said Trevenna, 'I swore I'd have ye under my feet yet. Where are ye now?' And here the hellish villain spurned the unresisting

form of his prostrate foe. 'What do ye say about "time" now? This is the last round of all.'

'That's no good,' growled Coke, 'and d—d cowardly, into the bargain. You couldn't stand up to him when he was right, so ye may leave him alone now. He's only stunned; the ball's grazed his forehead. Lend us that tomahawk o' yourn. I'll finish him.'

Two crashing blows, one of which clove the skull even to the brain, and this man—this 'masterpiece of nature,' so lately in full possession of the strength and beauty of youth—lay a disfigured corpse.

'Now lend a hand and let's get him off the road a bit,' said Coke, as coolly as if he was directing the assistants of a slaughter-yard. 'Scrape some sand over that blood; there ain't much, but it might show. We've got to strip him first, and then it won't take long to drop him where he won't be seen again in a hurry.'

Dragged through the scrub some twenty yards or more, the dead man lay with dreadful widely open eyes as they had placed him. A heartrending spectacle surely, had but the men who now busied themselves in stripping the corpse possessed the feelings of ordinary humanity. But a lifetime of crime, for the most part undetected, had dulled the heart and brain of the older ruffian, to the exclusion of all but the baser instincts—a veritable demon disguised in form of man. Fiends of the pit could scarce have exceeded him in remorseless cruelty.

In Trevenna's case the love of gain, the hope of booty, together with complicated feelings of jealousy and revenge, rendered him callous to all natural feeling. Swiftly was the dead man divested of his clothing; his watch, a few bank notes, which he had perhaps placed in his purse in readiness for the morrow, were secured, and after counting and inspection, taken possession of by Trevenna.

This done, the old man pointed to a mound a few yards distant around which the saplings clustered thickly, showing that some time had elapsed since the shaft which it marked had been commenced.

'That's the deepest shaft on the flat; they was a-sinking for the blue "lead" and bottomed on rock. You take hold of him.'

A combined effort placed the dead man on the edge of a shaft, down which the old man peered with ghoulish glee, as if to gauge the depth. 'Hold on,' he said, as he dropped a stone. The men waited for some seconds, which seemed long, until a dull thud came up from the lower level, telling by its delay that the shaft was little under a hundred feet.

In another moment the unresisting form was drawn to the edge of the yawning black-mouthed pit, which, so wondrous straight and narrow, had been driven deeply into the bowels of the earth. A push, a heave, and the once noble and beautiful form of him who was Lance Trevanion disappeared from the face of the earth, hidden from the light of the sun, from the ken of mortal man, for ever and for ever!

As the strange dull sound, so unlike any other, which follows the fall of a human body down a deep shaft came up from below, Trevenna shuddered in spite of his hardihood.

The old man laughed aloud. 'You're only half baked yet, Larry, with all your blowing. When you've seen as many coves rubbed out as I have, you'll have better narves. We've got a ticklish game to play yet, mind ye, so don't go a-shivering and shaking like a school-girl. Take off yer duds now and collar his, and let's see how yer look.'

Trevenna, with a rude oath, repelled the accusation of softness, and doffing his own garments, which he made into a bundle and threw down the shaft, proceeded to dress himself in the dead man's clothes. This transformation effected, the curious similarity between the two men became so apparent to the only spectator that Coke yelled with apparent amazement and danced around him with fiendish delight.

'By ——!' he cried, 'if that ain't the rummiest fake ever I see. Your own mother wouldn't know the difference. Hanged if *I* could tell, and I knowed the pair on ye purty well. Pitch a log or two down the hole; it won't be long afore it falls in. It's bad standing ground, and then he won't need no tombstone. We'd as well collar our horses now and get to the cove's hut after dark. Then you start fair to-morrow morning as 'Ballarat Harry,' alias

Lance Trevanion, Esquire, and I'm d—d if there's a digger on Omeo as'll know the difference. What are ye lookin' in the grass for?'

'When we had the—the mill—I swear he had a watch-chain. It must have dropped hereabouts.'

'Well, I'm blowed!' chuckled the older ruffian, 'if that ain't a good 'un. Takin' a man's life, his money, his duds, and his watch, and then growlin' because the chain's a-missin'. You'll find it in his hut, I'll go bail.'

CHAPTER XXII

Lance Trevanion, dwelling and working by himself, had accustomed the miners around Omeo to his irregular, independent mode of life. Sometimes he was absent for days together, returning at midnight or dawn, as the case might be. When it was reported that he had been seen to enter his hut just after dark in company with another man, no one looked upon the circumstance as calling for comment. He had been at the claim which he had sold to Yorkey Dickson early in the day, and being detained there, discussing the intricacies of a mining dispute, had reached his home after sunset.

On the next morning—the one fixed for the departure of the escort for Melbourne—he was heard inquiring from the Barker storekeeper if his gold had been properly labelled and directed. 'He was not sure about going himself,' he said, 'but thought it likely he might at the last minute.' The storekeeper looked at him with a certain air of surprise. 'What are you staring at?' he asked abruptly, at the same time fixing his eyes intently on the man.

'Oh, nothing, Harry,' Barker replied apologetically, 'only I thought there was something queer about you this morning. If you'd been a drinking man I'd have thought you'd had a booze on the quiet. And your face ain't got rid of them marks yet. Seemed they was about gone, last time I seen yer.'

'They'll not last much longer,' he said grimly, 'and the man that gave them to me got the worst of it. He won't be so ready for a row in future.'

'Is that so?' inquired the trader confidentially. 'We all thought it must have been his fault, you bein' such a quiet card in a general way. Serve him right, I say.'

'So I say too,' replied his auditor. 'By the way, just send your boy over to the post-office to see if there are any letters for me. I'll have a smoke while he runs over.'

In a few minutes the letters came. One from the banker in Melbourne acknowledging his last draft and informing 'Mr. Henry Johnson' that they would receive and hold to his order the parcel of gold of which they had advices. The other, addressed to 'Mr. Henry Johnson, Long Creek, Omeo,' was in a female hand. Mr. Johnson placed it in his pocket unread, saying carelessly that it would do to read when he got home.

'He's a rum chap, that Ballarat Harry, as ever I see in Omeo,' said the storekeeper. 'Sometimes so jolly in a quiet way, and then he's as stiff and stand off as can be. But I'm dashed if ever I seen him as queer as he was to-day; why, I hardly knowed him when he came in first!'

When 'Harry Johnson' reached his hut, he sat down, and shutting the door, which he carefully secured with a bolt, took out the letter and read as follows—a sardonic smile upon his features the while—

TOORAK, *10th September 185-*.

MY OWN DARLING LANCE—Could you ever expect to receive a letter from me written in this country? In your wildest dreams, did it ever occur to you that I should come out to Australia in search of you? I told you at our last parting at dear old Wychwood that I would come, if you did not return within the time specified. I don't know that the time has quite elapsed, but when the poor old Squire died (how changed and softened he was, Lance, in his latter days you can hardly think) I could not stay in England. You never wrote. We did not know what had become of you: whether you were dead or alive. I promised him, Lance, on his deathbed, that I would seek you out. And you know we Chaloners and Trevanions hold to our word.

I know now all that you have done and suffered, my poor darling—*all!* I can partly understand why you did not write. Still you should have done so; you know you should. I am not going to reproach you or to write a long letter. But fancy me having been up at Ballarat and stayed at Mrs. Delf's inn at 'Growlers,' and know Jack Polwarth and his wife and dear little Tottie—who hasn't forgotten you—and Mr. Hastings and Mr. Stirling! I was actually there when your letter came from Omeo!

Why didn't I write? You see *now* how hard it is to bear when friends are silent. But I refrained, sorely against the grain, *for your sake*. It might unsettle you, I thought, even tempt you to come to Melbourne, where the risk would be terrible. So I waited till I could get a really good opportunity and escort for Omeo. You will see me—I am almost beside myself with joy at the thought—almost as quickly as this letter reaches you, Mr. Vernon, my kind host, says. He bought me a delightful horse—so safe and pleasant. I shall quite enjoy the ride up. A storekeeper, his wife and daughter, also an assistant, are my companions, so you see I am well protected. Have you got the ring and the token? I have mine safe. Ever and till we meet, your own

ESTELLE.

'Well, I'm blowed,' was the reader's inelegant but characteristic exclamation as he folded up the letter,—oh! rare and precious outpouring of a fond woman's love and tenderness,—'if this game isn't right into my hand! I've got his gold. I've got his cash. His girl's running fair into my arms, and, if the luck holds, I'll have his house and land in the old country. Lance Trevanion, if I haven't got square with you, the devil's in it, or Caleb Coke, which comes to the same thing! I've got to take care *he* don't turn dog on me, though. It was he put me on to plant for Trevanion in Mountain Ash Gully. We're both in it, though he fired the shot and knocked him on the head afterwards. We've gone whacks so far in the nuggets and cash in the hut; who'd 'a thought he'd such a pile stowed away there? But if I can get to Melbourne, take the girl on the hop, marry her, and clear out to England or 'Frisco the day after, as I expect he intended to have done, old Caleb may whistle for his share. By Jove! what a lucky job it was that Coke and I had a good overhaul of the hut on the quiet. It's put me up to all I wanted to know to act Lance Trevanion to the life. I've done it before, but now I'm up in my part to the letter. I've got the very clothes he was last seen in, the marks on my face *he* gave me, damn him, much about the same as I gave *him*; with putting on a bit of a drawl that he always had, the devil himself wouldn't know us apart. I wonder if he will when *my* turn comes below?'

Then the villain laughed aloud, a ghastly sound in the lonely hut and still night. The unnatural sound died away,—guilt rarely laughs long,—when,

lighting his pipe and stirring the embers of the fire in the chimney, he recommenced his meditative plotting.

'Now then, the devil of it is, that I'll have deuced little time to work things in, if this girl Estella, or whatever she calls herself, comes up to-morrow or next day. However, perhaps the shorter the time the better the chance; she'll be bustled, and won't have time to think. All I've got to do is to play Lance Trevanion to the life for a day or two, get her off to Melbourne, and follow up after. The sooner I'm off the better, for fear Kate gets wind of it and blows the whole bloomin' plant to blazes. There's nothing she'd like better, blast her! I think I can do the swell business middling near the mark. I've been studying some of those squatter toffs that come to Monaro for store catch. If a bit of slang leaks out, or a slip in grammar, why, of course, it's from associating with rough cards at the diggings, not to mention the chain-gang business; she'll believe, like all these flats of new chums, that Australian life's enough to take the shine out of any man's mind and manners, grammar, and good looks. Then the wedding! Ha! ha! if that won't be the best joke out. Fancy Larry Trevenna spliced to a real lady—a dashed handsome girl I believe she is—anyhow her likeness says so. Next day off to England or America,—the last if I can fix it—and no more Australia for yours truly.

'The best of it is, even if I *am* nabbed, I can easily prove that *I'm not him*. Then there's the bigamy racket, though I daresay if I let Kate off, she'd be glad enough to take her own way and clear out. It's a ticklish business, of course; but I stand to win or lose a heavy stake, and I'll play it out, by God! I don't see how she can doubt I'm the real man. I've read his letters and things till I nearly know all the places and people by heart. I've got the ring and the locket she talks about, and a lot of family trinkets and nicknacks, and there's no mistake we *are* as like—that is, were—as two peas. Why the deuce we should be, the devil only knows. Well, I'll have another smoke and turn in. There's a deal to think about to-morrow.'

Next day being Sunday, which even at the wildest Australian digging differs somewhat from other days, Mr. Harry Johnson dressed himself more carefully than usual, and after breakfast went 'down town'—that is, he proceeded to Barker's store, in order to gather up news generally and

discover whether Miss Chaloner was on the road up, so that he might be fully prepared for the momentous meeting.

As it happened, he found out precisely what he wanted. A young fellow had arrived that morning and had passed a party one stage back on the road answering to their description. The young man was not a miner, but a cattle-dealer, making a forced march to Monaro in order to buy store cattle. The price was rising daily, so he was riding post-haste for fear of losing the market. He had overtaken the storekeeper's party, in which were three women—one a fine-looking girl—to this he could swear—and riding a clever, well-bred hackney: such a horse was never bought in Melbourne under a hundred pounds. He believed they would be in Omeo to-morrow evening before sundown, and were going to stay at the Reefers' Arms.

On Monday, therefore, Lawrence Trevenna devoted the whole of his energies to the fullest preparation for the leading part which he had to play. He neglected no precaution. He made fresh search among the papers of Lance Trevanion. He read and re-read the letters contained in the brass-bound portmanteau which had been sent to Omeo by Charles Stirling. He reckoned up over and over again the various points on which it was necessary for him to be accurately informed in order to satisfy any lurking doubt of Miss Chaloner.

He had noted more than one reference to the chain with a coin attached, and an almost historical heirloom which he had given her at parting. The ring which Lance always wore, and which he had taken from the dead man's finger, was also alluded to. The half threat which Estelle had made to come to Australia, if Lance did not return, or write, was spoken of. Of course, as a passenger in the *Red Jacket*, he knew the day on which that vessel sailed, when she arrived in Melbourne, and those occurrences of the voyage which Lance had described in his home letters. The doubt in his mind was naturally whether this high-born damsel would throw herself into his arms with the unreserve of plighted love, and be ready to marry and depart with him from Australia at the earliest possible period; or whether she might have her doubts as to his being the right man, and so work confusion or even danger. Much was on the cards. All depended on the deal. But he held a strong hand, he told himself. Trumps, too, in profusion. And, with the

hardihood of a born and practised gambler, he stood prepared to back his luck to the last.

The following day passed slowly; but as the evening wore on he lounged over to the hotel at which the travellers were to arrive, and made it carelessly but generally known that he expected a young lady who was coming up with Caldwell and his wife and sister. He was thereupon congratulated in a jocular manner, when finally, as the early spring day was fading fast into the short twilight, the tramp of horses' feet was heard along the well-worn track which came up from the coast town, and the little cavalcade, composed of two men and three women, halted before the hotel verandah.

The inn loungers gathered around the strangers, proffering aid, much stimulated by the prospect of news. The ladies had been assisted from their steeds, and the landlord was leading the way to the principal sitting-room, in which a cheerful fire was blazing, when a tall man came through the party, and, pausing before the young lady who followed at the rear of the party, said, in a voice tremulous with emotion, 'Estelle, my darling, we meet at last!'

The girl gazed earnestly in his face for a moment, his eyes meanwhile fixed on hers with an intense and even increasingly fervid glance; then, as he wound his arm around her waist and drew her towards him, she murmured with undoubting faith—'Lance, ah! my dearest Harry, I hardly knew you at first. It must be your beard, I think. And how did you happen to be here to meet me?' she continued, disengaging herself from his embrace, as a sense of shyness and confusion commenced to assert itself as she looked around.

'And why did you not write and tell me you were in Australia before?' he said, half menacingly; 'it was hardly fair to me, I think.'

'It is a long story; we shall have plenty of time to talk it over. I did it for the best, though I daresay you will blame me. But I must go and rest a little; we are all terribly tired. You will be here this evening, though I warn you we shall go to bed early.'

She did not appear at the ordinary evening meal, sending out word that she was fatigued, and had a quite too overpowering headache. The storekeeper's

wife and daughter were loud in praise of the uncomplaining manner in which Miss Chaloner had undergone the hardships of the journey. 'It's not as if she was used to it, poor dear,' said the matron, 'like me and Bessie here, as has had to rough it all our lives, pretty near. Yet there she was, taking everything as it come, and never a growl out of her. My word! she can ride though.'

'And that horse of hers is a plum,' assented Miss Bessie; 'she looked after him well, and he's worth it. I'd like to have him, I know, instead of my old crock. I believe he's thoroughbred, or close up; and if they ever have races in this beastly hole, he'd win all the money they're game to put up, hands down.'

'Nonsense, Bessie,' replied the elder woman; 'how do you know? Your tongue goes too fast, Miss. Don't you think so, Mr. Johnson? I don't know what's come to the girls nowadays, they're that forward and think they know everything. But you're a lucky man, if it's true as you're engaged to be married to the young lady, as it seems is a fact. There's very few girls like her in this country or any other, you mark my words, and I hope you're good enough for her, that I do. I'll just go and see how she is.'

The worthy dame, on returning from the bedchamber, brought the intelligence that Miss Chaloner could not appear again, being prostrated by a nervous headache, but sent a message to Mr. Johnson that she would be quite well in the morning, and would be glad to see him after breakfast. With this ultimatum 'Mr. Johnson' was fain to be outwardly content, and, though inwardly chafing, betook himself to his hut, there to spend the night with what 'companions of Sintram' might be available. He was not, however, wholly dissatisfied with the progress made. 'Anyhow,' he thought, as, after a couple of potent 'nips,' he sat smoking over his fire, 'the first act's over, and pretty right too. She believes I'm the man, and though something or other's startled her,—like a half-broken filly,—she'll come to, after a bit. I must have a regular good pitch to her to-morrow, and bring out the cove's rings, and trinkets, and keepsakes, that she knows about. I'll have the whole thing out with her, and settle about when we're to meet in Melbourne and get spliced. It's a job that won't stand waiting about. I must get her away and on the road in a day or two, and pick up the escort and get down by myself. If I leave with her, that infernal Kate'll get wind of it and be on our

track as sure as a gun. She thinks I went to Monaro for horses, and won't be back for a month, but she'd fossich out any woman business if I was the other side of h—I, I do believe.'

'I shall be cornered,' he said to himself, pursuing the same train of thought, 'if she wants to stay here a while and see where I was working, and all that rot that women are so dashed foolish about. I must lay it out that I might be taken any day, and the sooner we both get to Melbourne and off by the first ship—the day after we're married, if possible—the safer for her dearest Lance—that's me—*me!*'—here the villain laughed aloud with fiendish enjoyment of the base deceit of which the unhappy girl was to be the victim. 'If he could only see us! ha! ha! Once we're married, there's no get over that. Once we're clear away, hang it, I'd almost like to have him alive again, to enjoy the sight of his face and see how he took it. His lady-cousin—his wife as was to be, that wouldn't touch me with a pair of tongs—if she knew—if she only knew—that it was Larry Trevenna, that used to be a stable-boy, a farm-lad, a horse-dealer's tout. If mother hadn't died, things might have been better, and old granddad too. She used to talk as if there was some mystery. I wonder if there was, and what sort. Anyhow there will be, and that's enough for the present, if it comes off.'

Estelle rose early next morning with a view to survey at leisure her novel surroundings. She had perfectly recovered from the fatigue of the previous day. The regular exercise of the bush journey had acted beneficially upon her health and spirits, as indeed such a term of travel does upon all normally constituted people. The night had been clear and frosty. As she paced the verandah, which, as in most houses of the class, absorbed the whole front of the hotel, she was first surprised, then charmed and excited, by the view of the majestic Alpine range, the snow-covered peaks of which were glittering in the rays of the morning sun.

'How grand! how inconceivably lovely!' said she, half aloud; as gradually the view opened out, in a sense expanded itself before her rapturous gaze. 'How little I expected to feast my eyes upon a scene like this! Poor Lance, poor fellow! how often such a glorious landscape as this must have comforted him in his loneliness! Perhaps he thought of me at such times; he could not help it. He used to tease me at Wychwood, I remember, about what he called my craze for scenery. I must remind him of it to-day. Yes, to-

day; how strangely it sounds! I shall have to make up my mind——' and here she seemed to fall into a musing mood, while a sigh from time to time escaped involuntarily. 'Yes,' she thought; 'it would be hardly advisable to live here after we—after we were married. Reports would be sure to get abroad, and then, perhaps, if he was recaptured his punishment would be increased, and that would kill him—would kill us both indeed. I could never survive it, I feel sure.

'Then, what would be the safer course to pursue? To go to some seaport, where they could take ship for Europe or America, as the case might be? Why should they not take their passage for San Francisco? Once landed there, who was to know Lance from any other Australian digger, numbers of whom had been backward and forward since the earliest "rush," in 1849? Melbourne in some respects would be the better port of shipment; it was nearer, more easily reached, and there was such a mixed multitude of "pilgrims and strangers," miners, speculators, colonists, Europeans, and foreigners, that any number of persons "illegally at large" (an expression she had caught in Melbourne) might pass unnoticed.'

The clang of the breakfast-bell put an end to her meditation, and exchanging the keen air of the outer world for a seat near the glowing fire, high piled with logs, she took the place reserved for her near her travelling companions of the previous day. The social atmosphere of the *table d'hôte* was less 'select' than that at 'Growlers,' but the utmost decorum nevertheless prevailed. Among the strangers to her was a middle-aged man, whom she heard addressed as Mr. Gray, and more familiarly as Con. He was a gold-buyer, about to leave for Melbourne on the following day.

'How many ounces are you taking down this time, Con?' asked a jocular miner at the other end of the table 'You'll be waited for some day, if you don't look out.'

'Not much this time, old man,' said Gray. 'But you're right; it *is* a risky game, and I don't think I'll chance it much longer. Indeed this may be my last trip.'

'Right you are,' said the furnisher of the raw material. 'I'm blessed if I'd travel that road the way you fellows do, and known to have gold on you, for

all the percentage you make out of it. There's too many cross chaps about, for my fancy and so I tell you.'

'Well, a man must live, you know, Johnny,' replied the gold-buyer good-humouredly. 'But I think I'll take your advice and cut the road after this.'

When her lover arrived, Estelle, as was natural, bent an earnest gaze upon his form and features. Neatly but plainly dressed, his stalwart figure, erect and stately, showed to great advantage among the carelessly attired loungers who thronged the entrance. His bold regard, his dark and clustering hair, his regular features, stamped him as a being of different mould, in her eyes, from the ordinary persons around them. A thickly growing beard and moustache hid the lower part of his face, and concealing much of his mouth and chin, somewhat altered (Estelle thought) the expression of his countenance. It was not wholly an improvement, though she could understand his reason for adopting the prevailing Australian fashion.

He passed carelessly into the parlour, where there were still a few people gathered around the fireplace. Putting his arm round her waist, he said jocularly, as he drew her towards him, 'So you have recovered from your fatigue. After our long separation, it seems awfully hard on me that we should see so little of each other.'

The storekeeper's wife smiled, and Miss Bessie giggled, as Estelle, blushing deeply, withdrew herself from his clasp, saying hurriedly, 'I don't think there's any necessity for being so affectionate in public. We have a great deal to talk over and decide to-day.'

It was a strange feeling that had come over her for the moment. Added to her natural dislike to such endearments before spectators of the class then present, a curious indefinable sensation of repulsion took possession of her temporarily, as strong as it was instinctive. He drew back, with a half-angry look; then, assuming an air of injured dignity, said, 'I ought to apologise. I forgot you hadn't been long out from home. We don't mind these trifles in Omeo. Do we, Mrs. Caldwell?'

'Not when people's engaged,' said the matron; while Miss Bessie tossed her head, and said, 'She thought all the gentlemen wanted keeping in their

places; she'd let them know when she'd a young man of her own, that she would.'

All this was of course painful to Estelle; but fearing, from his changed expression, that she had hurt his feelings, she proceeded to make amends, after the manner of her sex, by hastily proffering concessions. The sudden thought of his melancholy life, of his wrongs and misfortunes, almost impelled her to beg his pardon in the humblest manner for the involuntary slight. Yet the thought *would* obtrude itself of how differently Mr. Stirling or Mr. Dalton would have acted under the same circumstances, and a sigh told how grieved she felt that any environment, how sad and mournful soever, should have obscured the refinement so inherent in the blood of Trevanion.

Prompt to redress the fancied injury, she placed her hand within his arm, saying, 'I think the best thing we can do is to go for a nice long walk on this lovely day, and you shall show me a little of the "field,"—you see I understand diggers now,—and your hut, where you have been living all this time by yourself, you poor lonely hermit that you were.'

"Now that's the way to behave," said Mrs. Caldwell, smiling, with motherly approval; "I see you'll know all you've got to do after a while—girls is flighty at first, Mr. Johnson."

So they walked forth along the principal (and only) street of Omeo, not wholly without observation from the miscellaneous crowd of miners, teamsters, wayfarers, tradespeople, bushmen, and others, with which a mining town where gold is abundant—and such was then the stage at which Omeo had arrived—is filled up. More than one head was turned from time to time to gaze with interest and surprise at the distinguished-looking though plainly dressed girl 'who had come up to Ballarat Harry.'

'His luck's in, my word,' was the remark of a stalwart miner, who, pick on shoulder, was following a cart with his mate, conveying their worldly possessions. 'I wonder if they're going to live in that hut of his on the ridge. She don't look as if she'd been used to cook in a slab fireplace, or lift the lid off a camp-oven.'

'Camp-oven be blowed,' rejoined his mate, who was affectionately carrying a long-handled shovel, as being too valuable an implement to be trusted in a vehicle, 'they're a-goin' to Melbourne to be spliced; and most like he'll settle there and take to gold-buying on a big scale. He's well in, is Harry, by all accounts.'

'It beats me what she sees in him, then—a gal like her, as might have any man in the whole bloomin' colony, in a manner of speaking. Harry was a jolly, free-handed chap, as you'd see when he first come, but he's got that surly and short lately as you'd hardly know him as the same man.'

'Well, I warn't here when he first come, but from the look of him, when I see him the other day, I shouldn't be surprised if there was something "cronk" about him, for all his gold-buying.'

All unheeding of this careless but not inaccurate criticism, the lovers sauntered on. As they cleared the outskirts of the town, Estelle said, 'Now you must show me your hut. I *must* see the place where you have lived your lonely life, poor fellow. How I used to pity you, when I thought of it.'

'There it is, on that rise—this track leads up to it. It's such a miserable hovel, I hardly like you to see it.'

'Nonsense! you forget I've been to Growlers' and Ballarat, and know all about diggings. Why, it's the regular thing, like a shooting-box or a bothy in the Highlands. Everybody does it. Better men than you (I was going to say) live in huts. Why, this is quite a grand hut! What fine broad slabs, and a big padlock too. I thought the miners were so honest?'

'Sometimes,' he said; 'not always.'

They walked into Ballarat Harry's hut. Estelle sat herself down on a three-legged stool by the side of the still smouldering fire, and gazed into the pile of ashes on the hearth. Here, for so many a lonely evening, had he sat and smoked and thought—ah! with what bitterness—of a lost home, a forfeited birthright, of a father's curse, which, harmless as thistledown at first, had commenced to be so fatally prophetic. It was hard. Fate had been against him—against them from the beginning. But she would make up to him—as far as woman's love might repair the wrongs of destiny and the cruelty of man—for this dreadful episode of his life.

'Oh Lance—dear Lance!' she said; 'how you have lived through it all I can hardly imagine.'

'If I had not had the thoughts of you to keep me up,' he said, looking at her with eyes of bold admiration, 'I might have given in. But I kept always saying to myself, *she* will reward me, Stella will be mine when we meet, and all the past will be forgotten—and you *are* mine,' he said, as he took her hand in his and made as if to exact the betrothed lover's accustomed tribute.

But again a shrinking feeling of denial—for which she could not account—possessed her whole frame. She drew back shuddering. 'Pray, don't let us have any nonsense of that kind,' she said; 'there will be plenty of time by and by. At present, I feel as if I had so much rather hear all about your trial and the cruel unjust sentence which ruined you, and of your life in those dreadful hulks; I always wonder how you managed to escape.'

For one moment the flash of his eyes in stern displeasure reminded her vividly of bygone days and their lovers' quarrels at Wychwood. Then he spoke, in a voice studiously free from irritation—

'I got out through the help and managing of Tessie Lawless—a girl that cared a deal more for me than you do, if that's the way you're going to treat me. You've forgotten our old Wychwood days, I suppose. Well, as you'll have to leave to-morrow, or next day at furthest, for Melbourne, and we go different ways, we mustn't fall out, must we? I can wait. So we'd better talk over this journey.'

'Now don't be cross, my dear Lance; you must give me time. Remember, I've been a lonely and very sad woman for years, and all thoughts of love and marriage were put out of my head. Do tell me of your escape.'

'Well, I DID escape,—which is the chief thing that concerns us now,—or I believe I should have hanged myself, like the fellow that was in my cell before me—or got shot, like two other men, for trying to clear out by day. What I suffered, no tongue can tell!'—here he assumed the most tragic expression possible, and groaned as if at the recollection,—'the very thoughts of it make my blood boil.'

'But how did this girl—Tessie Lawless, was that her name?—succeed in releasing you?'

'Well, she persuaded a man who, I believe, was pretty sweet after *her*, to come one dark night with a boat to the stern of the old hulk. She sent money and bribed my warder, so I was able to get out and drop down into the boat. After I was free, she sent a man and two horses to where I could meet them, and I came up here.'

'What a brave girl! I should like to see and thank her. She must have been a great friend of yours?'

'Well, I suppose she thought a good deal of me in her way, poor thing. I believe she's in Melbourne somewhere, but I've never seen her since.'

'You don't seem to have been very anxious to thank her for all the devotion and courage, I must say. It's the way of the world, I suppose, and Australia is very like other places in essentials, I begin to suspect. And now, what are our plans to be? It will be a risk for you to remain here longer, I suppose?'

'To be sure it will. You can't tell what may happen. Any day I might be arrested. Our *dart*—our plan, I mean—is to get to Melbourne as soon as possible. You can go down with Holmes Dayton and Con Gray. A policeman goes with them as escort, and, I think, Gray's sister-in-law. You couldn't have a safer party. I shall go across country towards the Murray, and travel a way of my own. We can meet in Melbourne at any place you arrange, and be married at once—that is, the day before the vessel sails that we take our passage in for San Francisco. Then we're off as Mr. and Mrs. Johnson, and no one the wiser! What do you say to that?'

'I suppose,' she answered slowly and reflectively, 'that it would be the best plan.'

'The best plan!' he repeated, almost angrily, while a sudden flash shone from his eyes, and a frown of impatience crossed his face, which brought back old memories with magical suddenness. 'Why, of course it is. There can't be any other, unless I hang on here till that infernal hound Dayrell track me down. But you don't seem to be half keen about it. Can it be'—and here he changed his voice and looked earnestly, almost pleadingly, into the girl's face—'that you have changed your mind? If you have, say so. I have lost home and friends—everything—I know. Am I to lose you too?'

His eyes rested on the girl with almost magnetic power. Then a blush came to her cheek, as she replied—

'You have my promise, Lance, and the word of a Chalonier is sacred. Surely you should know that? Of course I will do as you wish. But—and here she smiled and raised her eyes pleadingly—you must not be hasty, but bear with me a little. All things are so strange, and the time is short. After all my looking forward to our meeting, you have taken me a little by surprise.'

'Forgive me, my darling,' he said, with well-acted warmth; 'I *was* hasty, but you know the Trevanion temper—my pride was touched. And you will be ready to start to-morrow? That horse of yours (old Vernon, or whatever his name was, is no bad judge, if he picked him) is as fit for the road as when he left Melbourne. I suppose he expected to get a commission out of you?'

'You must not talk in that way of my good old friend,' she said gravely. 'He was like a father to me; I can't be too grateful to him and his dear good wife. But I shall be quite ready to start in the morning with the people you mention. I am so glad there is a girl in the party.'

As they walked back to the inn, the arrangements for meeting in Melbourne were discussed in detail and completely sketched out. She was to go to Mr. Vernon's house, and thence, when apprised of his arrival, she would meet him at the South Yarra Church, only escorted by her friends. Mr. Vernon would 'give her away,' and she would ask them to keep the matter secret. The ceremony would be deferred till the day before the sailing of their vessel for Honolulu or San Francisco, as might be decided. Unless Fate intervened with unexampled unkindness, it seemed as though a burst of sunshine was about to break through the cloud of misfortune which had so long encircled them.

'By this time to-morrow evening,' he said, 'you will be on your way to Melbourne. It's lucky you've had so much practice lately in riding. I suppose you found it rather awkward at first?'

'Awkward?' she said, gazing at him with astonishment, 'Why, you surely must have forgotten that I hunted regularly the season before you left home.'

'Oh yes; of course—of course,' he said. 'But I seem to have forgotten so many things,'—here he assumed an air as of one indistinctly recalling long-past incidents. 'Then the horses out here are so different.'

'I don't think that at all,' she answered; 'I have seen some wonderfully fine horses here. And I am sure my good old Wanderer, that I rode up, is as grand a hackney as ever was saddled. You mustn't run down Australian horses, you know.'

'Never mind the horses,' he said pettishly; 'I wish *I'd* never seen one, out here at any rate; and now let us settle it all, how we're to meet, and all the rest of it. I'm to send a note to John Vernon and Company, Flinders Lane,—is that the address?—and you'll be ready at a day's notice, won't you?'

'Yes,' she said slowly and half absently; 'I suppose so.'

'You see it's this way,' he said, coming still nearer to her and looking into her face as if to read her inmost thoughts. 'I can't afford to hang about Melbourne. What I've got to do is to find out the first steamer, take our passages as Mr. and Mrs. Johnson, then get the license: there's a church close by the Vernons, isn't there, where all the swells go?—Toorak, or some such name. We slip over there before lunch, and next day we're man and wife and at sea—clear of Australia—free and safe for ever! What a sell it will be for those bloodhounds of police!'

As he spoke rapidly, his eyes gleamed with unholy triumph, carefully schooled as was the general expression of his countenance. In spite of her deep abiding sympathy for his sorrows, the girl's gentle spirit recoiled from the savage satisfaction displayed in his closing words.

'Oh! Lance,' she said, 'do not speak like that. It pains me to hear even a tone of lightness about our deliverance. If God permits it, we should be thankful all our lives. But even if there has been pursuit, these men that you so hate have only been doing what they supposed to be their duty.'

'You are an angel,' he said, with an air of deepest conviction and tenderness, 'too good for me and for every one. For your sake, I suppose I must forgive these rascally traps, especially if they don't run me down. And now, as we shan't see each other in the morning, just one kiss before we part for the last time.'

But again she drew back; the same indefinable feeling of repulsion arose in her instinctively, as strong, as inexplicable. 'You have not long to wait now,' she said softly; 'until then, you must humour all my whims. You will, Lance, won't you?'

'I suppose so,' he said half sullenly; 'women are all alike, full of fancies. But I *did* think you would remember old days. You used not to be so stand off and distant.'

'We were girl and boy then,' she said. 'Everything seems so changed. I can hardly fancy even now that we are to be married in a fortnight, though I have come all this way to find you out. Some strange mysterious feeling stirs within me from time to time. I can hardly explain it. It is almost like a presentiment of evil.'

He laughed suddenly, and as suddenly stopped. '*I* am not changed,' he said, 'except by what I have gone through'; then he dropped his voice into a mournful murmur, as he carelessly and apparently by chance touched the Chaloners ring. 'But if you can't make up your mind; if you would like to cry off, to leave me to my fate, say so in time. Perhaps it would be better for you after all.'

'No, Lance!' she said, and as she spoke she raised her eyes heavenward, moist with tears of tenderest sympathy, as the thought rushed across her brain of his lonely and desperate condition, abandoned by *her* as by all the world. 'We Chaloners keep faith. I am your plighted bride, and I am ready to fulfil my vow, my promise to the living and to the dead. But you must bear with a woman's weakness and consider how little time I have to prepare. What would they say at Wychwood, I wonder?'

'We're in Australia, Stella, and not in England—don't forget that,' he answered, the frown again darkening his countenance. 'I hope we shan't see the old country for many a day. We must learn to forget old ways and fashions.'

'I can never do so, wherever we may wander,' she answered, with quiet emotion. 'I don't like to hear you speak of it as a thing of course, and I wish you would call me Estelle, Lance, not Stella. You never used to do so.'

'Very well, Estelle,' he said, 'I won't do it again, if it bothers you. Stella's a common name out here; that's the reason, I suppose. And now, as we're at the hotel, we'd better say good-bye. I won't come in the morning. It's no use making people talk; they're ready enough, without helping them. You and that Miss Graham can get away with old Dayton to-morrow. It's the way everybody up here travels, and nothing's thought of it. I'll write the moment I get down. Most likely I'll be in Melbourne as soon as you.'

They parted with a simple hand-clasp, she gazing into his face as if to read the signs of a spirit worn and wearied with the worldly injustice. His face was calm, and betrayed no emotion other than deep regret at the departure of a friend. He tried to throw into the parting words the sentiment which the occasion demanded, but it was patently an effort, and had not the ring of truth or tenderness.

'He *is* changed,' she told herself, as she moved forward across the verandah of the hotel and sought her bedroom. 'How changed, I could hardly have imagined. But who would not have been altered by the frightful experience he has gone through! I must try and make him happy, as some poor recompense for all his sorrows.'

Could she have noted the dark and evil expression of her companion's face, as he lit his pipe and strode savagely along the path to his solitary hut, heard the foul oaths with which from time to time he essayed to relieve his feelings, or the vows of vengeance upon her for her coldness, she would have deemed him changed indeed.

CHAPTER XXIII

The morning of their departure rose bright and cloudless. The air was fresh and bracing, for the hoar-frost lay unthawed for hours on the wire-grass in the sheltered valleys, adown which the little cavalcade passed on the Gippsland road. The trooper, a young mounted constable of the Victorian Police, with the storekeeper, Holmes Dayton, rode in front. Then came Estelle Chaloner and her travelling companion, Janie Graham, a young girl born and nurtured in the bush, the niece of the gold-buyer Constantine Gray. She had been on a visit to Omeo (save the mark!), and was now returning to her friends. They had not gone far when Dayton, the storekeeper, turning into a forest track which ran at right angles to the main road, explained that he had occasion to meet an acquaintance on business, and would rejoin them at the next stopping-place. The trooper then fell back to effect companionship with Gray, while the girls succeeded to the leading position.

Mounted on the good steed which she had learned to love, Estelle's spirits rose as she felt his free elastic motion. Rested by his sojourn in the inn stable, he paced fast and easily along the forest paths.

Though unable to account for the feeling, Estelle was conscious of a distinct sensation of relief, almost amounting to exhilaration. She was quitting Omeo for ever, and she looked forward with pleasurable anticipation to the few days of wayfaring which the journey to Melbourne would necessitate.

'It will be my last week of freedom,' she told herself. 'I shall have to sell you, though, my poor Wanderer, you dear, good, faithful creature!' and she patted her horse's arching neck and pushed over a stray lock of his mane. 'Well, wherever I go, and whenever I see the old land again, I shall never have a better horse. I have ridden some good ones in the old country, but I doubt if any one of the lot was as sure-footed, as easy, as untiring—certainly not on the food and treatment you have had to put up with. I wish I could take you home. Indeed, if we were going back in the ordinary fashion, I *would* take you with me, whatever it cost. It would be only

buying you over again; and good horses are cheaper here, even at gold prices, than in England.

'Now let me see,' she continued, in soliloquy, 'we shall be near Melbourne by the end of this week. Then, for I suppose it would be dangerous for him to wait, I must huddle up a few dresses and be married at once. *Married at once!*' Here she sighed; the light died out of her eyes, and the freshness of the morn seemed to fade out of her face. How different was it from the meeting in Australia which she had promised herself in her more sanguine imaginings! Even if he had been comparatively poor, her fortune would have sufficed for all needs until he was enabled to claim his paternal heritage. But now, how immeasurably worse than poverty was his condition!—disgrace, dishonour,—irrevocable, perhaps inexpiable,—possibly debarring him from ever claiming his rights! She saw herself after the vow had been sworn which bound her to a dishonoured man, a passenger in a foreign vessel, voyaging to a distant land, with perhaps dangers and privations in store of which she had no previous conception. How strange and unreal it all seemed!

But it was too late to despond—to falter. She had promised: she would perform. Shrinking with maidenly reluctance from the hasty, and in a measure clandestine, union to which she found herself committed, she felt compelled to call up all the reserves of resolution, of which she had so uncommon a portion, before she could still the instinctive dislike to the next act in the drama of her destiny.

As these thoughts—sombre, hopeful, and desponding by turns—passed through her brain, the bright spring day wore on; the babbling brooklets, through which their horses plashed ever and anon, ran clear and sparkling. As Estelle Chaloner mused over her surroundings and gazed upwards through the tall white-stemmed eucalypts which, rank upon rank, hemmed in the rugged bridle-track, looked at the trooper, the gold-buyer, the rustic damsel who was to be by day and night her closely associated companion, she could hardly realise her own identity. 'How changed is my *monde*,' she thought, 'in the course of a few short months—my daily thoughts and

feelings, my plans of the present, my prospects in the future! Am I indeed the same Estelle Chaloner who sat in the old hall at Wychwood for all the long sad autumn months, who saw the red leaves fall in those ancient woods, waiting the while for the last sands of a sick man's life to run out? And now, where am I? and *what am I*? What I shall be in the future I almost tremble to think.'

Immersed in reverie, she had trusted the conduct of her horse almost entirely to his own discretion. A hackney exceptionally good in the slow paces, as are many Australian horses, the Wanderer had, for his own pleasure and satisfaction, gone forward at the top of his walking speed, which was sufficiently fast to keep her companion's horse at a jog-trot. From time to time, at an earlier stage, the rustic maiden had laughingly protested; then Wanderer was held back. However, in this particular instance the failure of consideration was unnoticed, until Estelle was aroused by a cry from her companion, so loud and vehement in tone that she knew at once that no ordinary occurrence had called it forth.

Reining up sharply, she turned in her saddle to behold a sight which blanched her cheek and well-nigh froze the life-blood in her veins.

From out the tangled forest growth, emerging from behind a gigantic eucalypt, two men, masked and armed, had stepped into the roadway, abreast of the gold-buyer and the trooper. A third man, half hidden by the bushes, levelled his fire-arm a few paces in the rear. Both girls sat horror-stricken on their horses as the trooper's carbine and the fire-arms of the robbers appeared to make simultaneous reports. The gold-buyer fell heavily from his horse in the road; the trooper staggered and swayed in the saddle, dropping his reins, but recovered himself, though evidently hard hit and unable to control his horse. The wounded man rose to his knees, but at that moment one of the masked strangers rushed over and struck him over the head. Estelle's eyes darkened, and she felt as if all sensation was leaving her; but, recovering herself, she shook her reins, and the free horse dashed down the slope leading to the creek of which they had been told, with the speed of a racer, accompanied by her terror-stricken companion, whose hackney followed suit with the instinct of his kind.

The creek was crossed almost immediately. Mile after mile fled away like a dream before either of the girls thought of drawing rein. At length, at the foot of a steep and rocky range, the horses commenced to slacken speed.

'My God!' said the girl, 'did you see that? They have murdered my poor uncle! Whatever shall we do? Do you think they will come after us? Is there any house that we can go to along this horrid road? I know we shall both be killed and planted so as never to be heard of again.'

'Let us think over our best course,' said Estelle, aroused to the necessity of self-possession in the hour of need, and in the presence of a weaker nature. 'I remember this range. Five miles on the other side is an inn, near a water-race. If we can get there we are safe; there seemed to be a good many people about when we passed up. But I hear horses galloping after us. Good heavens!'

They stopped, and, listening, could plainly hear the sound of more than one horse coming fast along the rocky road behind them.

'We must turn into the wood,' said Estelle; 'fortunately it is thick enough to hide us until we see who are following up.'

They rode some distance into the forest, the low-growing pendent shrubs of which, the product of a damp climate and constant rainfall, were sufficiently dense to shield them from observation.

Nearer and nearer came the hoof-beats. The girls gazed anxiously through the close foliage. Then a chestnut horse came round a corner of the range, upon which sat a man whose arms were apparently helpless.

'Great Heaven!' said Estelle, 'it is Beresford the police trooper. He has been wounded in the arms. See! he cannot hold the reins, poor fellow!'

'That's his chestnut horse,' said the rural young lady excitedly; 'I'd know his blaze and white stockings a mile off. But what's follerin' him up? I'm blessed if it ain't poor old Uncle Con's horse, and he's got his pack all right and reg'lar too. Those chaps is gone cronk and done their villainy for nothing. I'm dashed if I ever see the like!'

'We had better catch them up,' said Estelle; 'the Lawyers Rest is hardly five miles distant. We might help that poor Beresford.'

Suddenly relieved from the deadly fear of the close presence of the wretches whose deed of blood they had witnessed, the girls put their horses to full speed and overtook one fugitive before he reached the hill-top. Bending down from her saddle, the Australian maid caught the pack-horse's bridle, bursting into tears and loud lamentation as she recognised her dead kinsman's effects attached to different sections of the pack-saddle.

'Poor old Uncle Con,' she said, 'there's his mackintosh, his water-bag, his billy-can—all the old traps I know so well. Many a time I've joked him about them—so particular to have everything handy for camping, he was. He won't camp no more, poor old man! He said it would be his last trip, and so it was. I wonder if I shall live to see those villains hanged? That old wretch Coke's in it for one, I'll swear.'

Scarcely had they ridden another mile when they overtook the police trooper. Partly disabled and in pain, and guiding his horse with difficulty, the deathlike pallor of his face told of weakness from loss of blood; yet he braced himself gallantly for the work that lay before him.

'Let me hold your rein,' said Estelle, as she rode up to his horse's shoulder; 'are your arms badly hurt?'

'Riddled through and through,' said the young fellow, groaning. 'The brute must have loaded with slugs; my wrists feel the worst, and there's a hole in my shoulder as well. I may get some one to ride back with me from the inn. I can't leave poor Con dead on the road.'

The sight of the unpretentious slab edifice with a bark verandah which was dignified with the title of Lawyers' Rest was more grateful to Estelle's strained vision than would have been the most palatial hotel in Europe, for around it stood a dozen men, while several horses, 'hung up' to the palings of the little garden, testified to an unusual gathering. The trooper's dull eye brightened at the sight, and he looked as if the spirit within him had power to overcome the weakness of the flesh. They rode up to the door, a strange cortège, in the eyes of the miners and squatters there assembled—a woman leading a horse, upon which swayed and bent forward a wounded man,

while a girl followed with a pack-horse heavily laden and mud-splashed to the eyes.

As they reined up amid the excited crowd, the trooper lay forward in a deathlike swoon, and was only saved from falling by the strong arms which lifted him from the saddle and bore him tenderly to a couch.

In broken and disjointed sentences Estelle described the deed of blood, while the gold-buyer's niece inveighed wildly against the murderers of her uncle. He was a well-known man, and a corresponding degree of indignation was aroused, while all necessary steps were taken for the relief of the fugitives.

The gold was removed, and, after being weighed in the presence of witnesses, deposited with the landlord, as also the other effects of the deceased. Wanderer and his comrades were stabled, a comfortable room prepared by the landlord's wife for the girls, while a dozen well-armed men were ready to start for the scene of murder within ten minutes of their arrival. With them rode Trooper Beresford, recovered from his faint. Revived with eau-de-vie de Cognac, he insisted on accompanying them.

But this was a bootless errand. Beresford pointed out where the men first appeared from behind the buttress of the forest giant. The tracks were as a printed page to the experienced dwellers in the waste who stood beside him. But the gold-buyer lay dead in the centre of the road. From a gunshot wound the blood had welled forth into a pool, while his skull had been cleft with more than one stroke of an axe.

'We'd better take him back to the shanty with us, boys,' said one of the older men, by common consent elected to act as leader. 'You young chaps as has got sharp eyes hunt about, and don't leave so much as a button behind if you come across one, next or anigh him. It's no use follerin' the tracks for more than a bit, just to see which way they've headed. Beresford here ain't fit, and if they're the men we suspect, one of 'em's near Mount Gibbo by this, and the rest many a mile off some other way.'

So the dead man was placed on a horse, and the party wended their way sadly back to the little hostelry with their silent blood-stained companion.

On the morrow, at a formal meeting, it was decided that a strong body of volunteers, with a black tracker, should follow up the trail of the murderers. A reward sufficiently large to tempt an accomplice was offered for information leading to a conviction, an old comrade of the dead man subscribing more than half the amount. A messenger had been despatched to the nearest police station, and the Coroner shortly arrived to hold an inquest upon the body.

This melancholy business having been completed, and a verdict of 'wilful murder by persons unknown' having been brought in, Estelle felt sufficiently recovered to recommence her journey. Now that she had experienced one of the dread realities of goldfields life, much of her former confidence had departed. She felt an overwhelming impatience to regain the security of civilisation, and cheerfully accepted the offer of the escort of the Coroner, who was also a police magistrate. He accompanied her as far as the next township on the way to Melbourne. There were also a couple of police troopers *en route* for the barracks at Jolimont, so that nothing better could be wished. At the township they fell in with a squatter and his daughter bound for Melbourne, with whom they joined forces till Toorak once more rose to view and the winding Yarra Yarra. And now this strange and terrible occurrence had passed like the horror of a dream, and Estelle Chaloner was again in Melbourne, safe under the sheltering wing of Mrs. Vernon. Awakening on the first morning in that well-ordered home, she felt as if evil-hap or danger could never menace her more. Shaken in nerve and outworn by the journey, words could faintly express the need she felt for rest. Yet a shuddering dread possessed her lest she might be destined for experiences not less terrifying and lawless in her future.

But no season of repose was as yet for her. She must risk whatever further trials fate had in store. Her word was given; the plighted vow must be kept. The life, the very soul of him to whom she was pledged to entrust all that womanhood holds most sacred, trembled in the balance. Was she, from girlish timidity, from mere nervous shrinking and feminine reluctance, to which she could not give a name, to draw back meanly from mere personal considerations? What were her wrongs and probable privations to *his*? The die was cast.

Early in the following week the half-expected, half-dreaded fateful letter arrived. 'He had taken *their* passage,'—'*our passage*,' she repeated to herself—'in the *John T. Whitman* for Callao, in the name of Mr. and Mrs. H. Johnson. He had arranged for the marriage at the little church at South Yarra, on the morning of the day the vessel was to sail. She would sail on that afternoon, and no humbug about it; he had seen the first mate and made things right with him, so his information was good. Nothing remained, then, but for his heart's darling Estelle to hold herself in readiness to be at St. Mark's at the hour appointed, and all would yet be well. What he had suffered since they parted, no tongue could tell!... She might imagine his feelings when he became aware of the diabolical crime that had been committed. He was half-way to Melbourne when he heard of it. No doubt justice would overtake the guilty parties. '*She* had escaped—that was everything. Poor Con Gray was right when he said it should be his *last trip*.'

And so the day was at hand—close, inevitable! This was on Tuesday. Saturday was the day fixed for the sailing of the *John T. Whitman*—for the joining of two hearts, two bodies, two souls—irrevocably, eternally—in this world and the world to come. For how can the human mind realise the essential dissociation during the probation of this earthly life, or even amid the spiritualised conditions of another existence, of those *once* made one flesh—wedded, and welded together under the sanction of the most tremendous of human sacraments?

Like most prospective occurrences seen dimly and afar, Estelle Chaloner had not closely analysed her feelings when the day of doom should arrive. Now, she experienced a kind of minute analysis of her sensations, distinctly painful in its intensity. She read and re-read Lance's letter, and, among other things, marked with surprise an occasional lapse in grammar, or the use of a small letter when a capital was imperative. Even the handwriting, though more like Lance's letters from school than his latter-day epistles, seemed cramped and laboured. 'Poor fellow, poor fellow!' she said softly to herself, 'I suppose he hasn't written much lately. Australia is a bad country for correspondence, and yet——' here she smiled and blushed slightly as she recalled the pile of home letters she had watched Mr. Stirling despatch one Sunday morning, and her playful reference to his dutiful habits. 'People differ in Australia, I suppose,' she continued, 'as in all other places. What ignorant folly it is to think otherwise!' and again she sighed—sighed

deeply; then rose from her seat half impatiently. 'It is my fate,' she said; 'man or woman, who can escape their destiny?'

Of course, all Melbourne rang with the account of the Omeo Tragedy, as it was called. Every provincial paper, from one end of Australia to the other, had its moral deduction, its elaborate amplification. Murders and robberies were unhappily far from infrequent in those early days of the Gold Revolution—that social, political, and pecuniary upheaval which overturned so many preconceived opinions, and changed the destinies of states no less than individuals.

But for this special crime the horror was universal, the clamour for vengeance upon the villains who had done to death a worthy and inoffensive citizen was exceptionally loud and persistent. A friend of the murdered man offered three hundred pounds for information leading to conviction; the Government as much more. It was confidently hoped that such 'honour among thieves' as existed would disintegrate before so powerful a solvent.

Meanwhile Estelle found herself, to her surprise and slight annoyance, placed involuntarily in the position of a heroine. Her portrait was in the illustrated papers; not, however, limned from any miniature, but hit off from a thumb-nail sketch made by an ingenious but deeply respectful young gentleman connected with the press, during the passage of a brief interview. It had leaked out in some way, probably through her travelling companion, that Estelle was about to be married to a man connected with mining pursuits (so he was described) at Omeo. This fact was dwelt upon and emphasised as adding to the natural interest felt in the case. This version of the affair was more than distasteful to her; as, apart from her natural disinclination to be described and commented upon from every conceivable point of view, she dreaded lest the additional publicity forced upon her private affairs might prove fatal to

Lance's freedom.

The bridal preparations, however, went on. Mrs. Vernon, having once expressed her sincere regret at the sacrifice, so complete and uncalled for, which Estelle was about to make, and having withstood, not wholly unmoved, the indignant remonstrance of the high-souled maiden, remained

acquiescent under protest. Their vessel, an American clipper, was visited; the cabin allotted to Mr. and Mrs. Johnson criticised, but finally furnished and fitted up with many a cunning device for staving off the ills of a life on the ocean wave or lightening the *ennui* of a 'home on the rolling deep.'

Finally, the very day fixed for the ceremony *did* arrive. Estelle appeared at breakfast pale but determined, and about eleven o'clock Mr. Vernon returned from Melbourne in a cab, prepared for paternal functions. Then this abnormally small South Yarra wedding-party drove down the Toorak Road, and, not far from the entrance of Caroline Street thereunto, alighted before the small but ornate church of St. Mark's.

'By the bye, Estelle,' said Mr. Vernon suddenly (he had long since arrived at the semi-paternal stage, which included the use of her Christian name), 'I met an old friend of yours in Melbourne, just down from the diggings.'

'An old friend?' she replied smilingly.

'Well, one of your oldest in this country, excepting ourselves. Guess who it was.'

'I am sure I cannot tell,' she said, 'unless it be John Polwarth. I shall always think of him as a real friend.'

'Not very far off. Was there no one else at Growlers'? Think again.'

'Mr. Stirling or Mr. Hastings then—good and true friends both. Which of them can it be?'

'Well, it was Charlie Stirling. His father was an old friend of mine, and a better fellow than Charlie doesn't live.'

'How strange! how wonderful!' said Estelle, almost musingly. 'To think that he should be down here before Lance goes away. Do you think he will come to see—to see—the ceremony?' And here a blush faintly overspread her countenance.

'He wasn't sure. Just off the coach, and covered with mud, but would rush off to his hotel and do his best. Then he told me a piece of news about himself.'

'What was that?'

'Why, he had got a year's leave of absence, and as he had made a lucky hit in the Coming Event,—a claim that's nearly as good as Number Six, he says,—he's going to treat himself to a run home.'

'Going to England! Mr. Stirling going home! You don't say so? Who would have thought it?'

'Well, he is just the man to appreciate it thoroughly. It will improve him, as it does every Australian with the requisite amount of brains. Though I really don't see how Charlie Stirling *could* be much improved—except by a good wife,' he added thoughtfully.

'I am sure I hope he will find one,' Estelle replied; 'no one is more worthy of that or any other happiness. I wonder if he will come, and whether he will think Lance much altered?'

Mr. Vernon made no reply to this latter remark. Indeed he was strongly inclined to say, 'Confound Lance!'—or even to use a stronger expression. But he consoled himself with the conviction that it was impossible to advise women for their good—even the best of them. And thus reflecting he preceded the little party into the church.

They had purposely delayed so as to be as near the appointed hour—half-past eleven o'clock—as possible; and the half-hour chimes from the churches in the city were rhythmically audible as they entered and took their places. The gray-haired clergyman—a tall, venerable personage—advanced from the vestry and stood as expectant of the entrance of the bridegroom. As a side door opened, that personage entered from the right side of the chancel.

Mrs. Vernon gazed at the newcomer with unaffected interest. In certain respects he was a man whom no girl would have been ashamed to acknowledge—tall, erect, stalwart, his dark crisp hair and beard trimmed according to the prevailing fashion. He looked around with a quick and searching glance which apparently took in every individual in the church. Then he fixed his eyes steadily upon the group in the midst of which Estelle stood, and advanced towards his bride. He smiled as Estelle murmured his

name, and hastily shook hands with Mr. and Mrs. Vernon, who seemed hardly prepared for the salutation.

There was nothing particular to find fault with in his morning suit, yet somehow Estelle could have wished one or two details altered.

The bride looked more than once towards the rear of the church, as if expectant. But the inexorable minutes fled, and walking forward, at a sign from the clergyman, she knelt before the communion rails. One gleam of triumph, which, had she caught, would have strangely disturbed her thoughts, flashed from her companion's eyes. He knelt beside her, and the time-honoured service commenced.

Every precaution had been taken to secure secrecy in the matter of the ceremony. When the little party walked unobtrusively in and the service began, there appeared to be no spectators but those already known and invited. In some mysterious way, however, the news spread. A wedding is rarely, if ever, conducted without a few attendants not included in the original programme. Some few strangers appeared as the clergyman commenced to read the opening sentences. They were not, however, such as to attract attention. But just as the clergyman reached the words, 'Wilt thou take this woman to be thy wedded wife?' two men entered at one of the side doors and looked searchingly at the bridal pair. One of them gave vent to a sudden ejaculation, while the other, a tall man in police uniform, drenched and travel-stained, walked rapidly up to the altar. To the dismay of the congregation, he placed his hand on the bridegroom's shoulder. Not less menacing and abrupt were his words than this unusual act, of such unnatural seeming in a sacred edifice—

'Lawrence Trevenna, you are my prisoner. I charge you with the murder of a man known as Ballarat Harry, otherwise Lance Trevanion. Put up your hands,'—here the speaker's tones became harsh and resonant,—'or by ——! I'll shoot you where you stand.'

At the first touch of the stranger's hand, the bridegroom started as if to resist his captors, for by this time Charles Stirling stood by Dayrell's side. For one moment he raised his hand as if to strike his antagonist, but as he faced the pistol level with his brow, and marked the Sergeant's steady eye and grim, set countenance, his courage appeared to waver, then to fail utterly. He

mutely acquiesced while the manacles were slipped over his unresisting hands. At this moment Estelle, who had been gazing at this strange and sudden apparition with wide eyes of wonder and alarm, uttered one piercing, heartrending shriek and fell senseless into the arms of Mrs. Vernon.

Then Mr. Vernon, hitherto silent in wonder, as were the other witnesses of the scene, moved as if to address the intruder. It was not necessary to make verbal interrogation; for, advancing a few steps and bowing to the company, he thus addressed them—

'My excuse to you, reverend sir, and these ladies and gentlemen, must be the extremely urgent nature of my errand. My name is Francis Dayrell, a sergeant in the police force of Victoria, at present quartered at Bairnsdale. I have ridden night and day to effect this arrest, and must ask permission to congratulate the lady's friends upon her escape from a fate too terrible to think of. This scoundrel, who has so successfully personated his victim, the late Launcelot Trevanion, is the husband of one Catharine Lawless, through whose information his villainy has been frustrated. Mr. Stirling (here he motioned to that gentleman, who advanced to where the spectators stood amazed and awe-stricken) is in possession of the facts. I leave him to make fuller explanation.' Here Sergeant Dayrell bowed again, not without a certain ease which spoke of different experiences, and removed his prisoner.

It has been remarked that those clever people who dedicate themselves to a criminal career are prone to small oversights and inadvertent acts which often lead to their detection when success seems assured. Were it not so, such are the qualities of coolness and energy displayed by the 'irregulars' of society, that its virtuous members would have but little chance of survival in *la lutte pour la vie*. After the event every one is wise; surprised, too, that the criminal should not have perceived to what his heedlessness plainly led. The evil-doer himself is even genuinely astonished when, in his interval of enforced leisure, he gains the opportunity of reviewing his 'plan of campaign.' He perhaps owns to the gaol chaplain that he has been 'most

imprudent.' But generally he is more concerned to establish a theory of unadulterated bad luck, and to lay the blame upon every one but himself.

Such misadventure occurred to Mr. Lawrence Trevenna—not less cautious than daring, as he had previously proved himself to be. He left home with surly abruptness, telling his ill-used wife that he was going to Monaro and might be a month or more away. She was not to expect him till she saw him, and so on. A large draft of horses to take delivery of, etc.

To these considerate explanations the woman made answer that he need not trouble himself to hurry back on her account—indeed, if he never came back she would be all the better pleased. He might spare himself the trouble of telling more lies than usual, as whatever he did say about his business would make her believe something different.

'It would serve you right, you jade, if I never did come back,' he ground out between his teeth, mingling the words with a savage oath. 'I may take you at your word yet.'

'Do so,' she replied, 'and I'll go down on my knees and thank God for it. As He is my judge, if it wasn't for the child, you'd never have seen me here a day after you struck me first. Don't think I've left off cursing the day I ever set eyes on you—coward and thief—and worse than you are!'

He looked at her for one moment as she spoke, his eyes so full of murderous rage that a bystander would have thought to see him strike her to the earth. But putting strong constraint on himself, as, with a more than malevolent smile, he bade her go back to the hut and mind her baby, —'you're my wife now—for better, for worse, you know,' he sneered. 'Stay at home and mind the house while your husband's away.'

The last part of this admonition was lost upon the person to whom it was addressed, as with one fierce glance, expressive of the last extremity of hatred and contempt, the woman passed into the hut and slammed the heavy door, while her lord and master, whistling carelessly, pressed his horse's side and moved rapidly away.

In apparent pursuance of his proposed plan, Trevenna rode for a dozen miles down the Monaro road, then, wheeling suddenly to the eastward, struck across the bush until he picked up the track which led to Mount

Gibbo. There he met by appointment Mr. Caleb Coke, and was thus enabled to arrange certain illegal enterprises upon which they had resolved to embark.

For the first few days after his departure Kate felt little else but an all-pervading sense of relief, almost amounting to absolute pleasure. Lonely and depressing as was her isolated life, miles away from any neighbour; left for weeks at a time without a soul to speak to,—as she would have expressed it,—she still had her homely and simple avocations, amid which, like many a similarly situated bush matron, she found sufficient daily occupation.

She had her baby boy,—a fine sturdy year-old fellow,—her poultry, milch cows, and small patch of garden, to all of which she addressed herself in turn. By degrees a softened expression came over her face. The hard lines died out for a little space. It may have been that she even repented of the bitter words and angry mood which had of late become habitual with her. And when in the sunset-time she caught her roan mare and rode around the paddock for the cows, carrying the laughing baby boy before her on the saddle, there was a wondrous transformation of the sullen-browed shrew of the morning.

The days passed on. The weather changed. The fresh, bright, cloudless days of the early Austral summer commenced to follow each other in unbroken peaceful beauty. The proud heart of the desolate woman was insensibly touched by the softening influences of the Great Mother. 'Bird and bee and blossom taught her'—a lesson of self-reproach and faintly shadowed amendment.

'Perhaps if I took him more easy like, he'd be a better man. Suppose he'd married Tessie, I wonder if he would have been different. She was always that quiet and patient with us all. She could get round Ned and bring him straight when no one else could. Anyhow I might have a try.'

Revolving good resolutions, Kate Trevenna, who, with all her faults, was energetic and most capable in household work, as are most of the bush-bred Australian girls of her class, set to work with a will and made her dwelling and everything within fifty feet of it as neat as a new pin. The forenoon having passed quickly in this occupation, she sat down to her mid-day meal,

—a cup of tea, a slice of cold corned beef, with home-baked bread and butter of her own making,—when a traveller rode up. Him she knew well as a stock-rider on one of the far-out stations in the Monaro district.

'Come in and have a cup of tea, Billy. Let your horse go for a bit,' was the invitation by custom of the country. 'You've come a good way, by the look of him. I'm all alone, you see; Larry's gone a journey.'

'I know that, Mrs. Trevenna,' said the young fellow, taking off his saddle and putting a pair of hobbles on his horse before he permitted him his liberty; 'I've just come from Omeo.'

'Omeo? that's not where he went. He's nigh Monaro by this time, and going farther still.'

'Well, he was in Omeo last Monday,' said the stock-rider, 'or some one dashed like him. They talked as if it was Ballarat Harry. I don't know him, but anyhow Larry's bay horse Bredbo was there, for I seen *him* right enough. I couldn't be mistook about *that*. He was foaled near our old place.'

'Trevenna at Omeo! Then he never went to Monaro at all!' cried the woman, with such a look, partly of surprise and partly of wild reproach, in her eyes that the young man recoiled for an instant. Something was wrong, he saw with instinctive quickness. He made a futile effort to undo the domestic damage he felt he had brought to pass.

'Perhaps he changed his mind,' he suggested doubtfully. 'He's such a rum cove, is Larry. No one knows when he's comin' or goin' half the time.'

'I expect not,' answered the woman gloomily, as if talking to herself. 'Now look here, Billy Dykes,' she said suddenly, walking up to the man and looking into his face as if her flashing eyes could see his inmost thought, 'you and I knowed each other this years; you tell me all you heard about Larry, and keep nothing back, as you're a man.'

The young fellow seemed for the moment to have fallen completely under the spell of this fierce woman, whose burning eyes and passionate speech were for the moment suggestive of a disordered brain. He stared at her for a moment, and then replied—

'There ain't a lot to tell, Mrs. Trevenna; but I expect you have a right to hear it. He's no man to leave you like this, and there's more than me thinks it. He's gone to Melbourne, that's what's up. Barker, the storekeeper, told me.'

'Any one gone with him?'

'No; not as I heard on.'

'You're keeping something back, Billy Dykes. Don't try and humbug me, or I'll——In God's name, tell me everything. Was there a woman in it?'

'Well, she didn't go with him, they said, but, in a manner of speaking, it was all the same. He followed her, and a regular tip-top young lady, by all accounts.'

'Did you hear her name?'

'Miss Chalmers, or Challner; something like that. Not long from England.'

'*That English girl!* the *cousin*, of course,' she murmured, in a strange, low-toned, hesitating voice. 'So she's come out after all. You're mistook, Billy, old man; it was Lance Trevanion they seen—Mr. Trevanion, I mean—an Englishman, and very like Larry. They came out in the same ship. He was to marry this young lady, his cousin. And I know *he* was at Omeo.'

'That makes it all right then. You've no call to fret, Mrs. Trevenna, and I'm dashed glad of it. Only what was old Bredbo doing there? *I saw him*, and couldn't be mistook. No fear. I know every hair in his tail.'

'It *is* queer,' said the woman, whose countenance had cleared wondrously, 'but, law, she may have got away from him on the road and turned up at Omeo. Anyhow, I'll ride over and have a look. You eat your dinner now, while I go down the paddock and catch my little mare.'

The bushman addressed himself to the cold beef and damper with a sigh of relief as he watched his hostess pick up a bridle and walk rapidly across the horse-paddock.

'She's a hot 'un, by the Lord Harry,' he said to himself, as he filled a pannikin of tea from the camp-kettle near the fire. 'I wouldn't be in Larry's shoes for a trifle if he's working on the cross with her. It's a bloomin' mixed-

up fakement, anyhow. I heard as Ballarat Harry at Omeo was that like him you couldn't scarce tell 'em apart. And of course it must be him as went down with the girl. But how does Bredbo come to be there? and old Caleb Coke handy too—like an eagle-hawk shepherding a dead lamb. It looks "cronk" somehow.'

He had finished a satisfying meal, providing against future contingencies after the fashion of Captain Dugald Dalgetty (formerly of Marischal College), of happy memory, when his hostess rode up, sitting lightly yet erect on her barebacked steed, with an instinctive poise, as in the side-saddle of the period, such as only the practice of a lifetime could impart.

CHAPTER XXIV

Accustomed from earliest years to hasty departures, the nomadic Australian housewife was not long in making her simple preparation for a hundred mile journey.

The roan mare was carefully saddled and tied up to a tree. A leather valise was strapped on. Finally the child, dressed for the road, was brought out and placed upon the side-saddle, where with inbred sagacity he sat steadily and looked around with a pleased expression. Then Kate Trevenna, leading the mare to a log, lifted the child, mounted without assistance, and gathered up the loose bridle-rein.

'We're going different ways, Billy,' she said to her visitor. 'You're bound for Monaro, and I'm going to be in Omeo to-morrow, if Wallaroo here stands up. I'll stop with Mrs. Rooney to-night at the Running Creek, and leave the boy there till I come back. She's awfully fond of children, and will do for him if it's a month. I'm going to find out the rights of this business before I come back. I don't know what to think of it, and so I tell you. If Larry's left me, it's the worst day's work he ever did in his life. I've got a horrid thought in my head. I can't hardly bear to think of it. If it hadn't been for you seeing old Bredbo there I'd have known it was Trevanion. I seen him nigh hand there one day last month. But *only one of 'em* at Omeo, and him off to Melbourne after that girl! There's something that wants taking out of winding. God send it ain't as black as I fear it is. Well, so 'long.'

Thus they parted. The bushman filled his pipe mechanically while she was talking, and rode meditatively adown the well-worn track which ran towards the east; while the woman, giving her bridle-rein an impatient shake, started off at a fast amble, which her spirited hackney seemed only awaiting the signal to change into a stretching canter. She held her boy upon her knee, resting and partly supported against her right arm. Like bush children generally, he had a natural love for all sorts and conditions of horse-flesh, and as his baby fingers closed upon the rein, he seemed contented, even exhilarated by the motion, crowing and laughing with

infantine delight. As for his mother, she appeared to take little heed of his childish ways, gazing straight before her with a far-off look in her eyes and an occasional shudder, as some darker imagining crossed her brooding brain. Occasionally she varied the fast amble at which her mare slipped along the forest track by a smart canter not far removed from a hand-gallop, but which, thanks to the easy gliding stride of the gallant little animal which carried her, did not render her living burden one whit less safe or easy to carry.

The sun was low when she sighted the paddock fence of the humble homestead where she proposed to pass the night.

The fence ran across a broad green flat or meadow, which had gradually widened from the upper portion of the gurgling mountain stream which traversed it. There were no gates. They were of infrequent occurrence in those days. But the slip-rails—three in number, and fairly substantial—showed where means of ingress had been provided.

Scarce half a mile from the primitive entrance, which necessitated her dismounting, was the hut, or homestead cottage, standing upon a sort of forest cape high above the rippling creek.

As she rode up to the door of the unpretending building, walled with slabs and roofed with bark, Kate gave a sigh of relief and stopped her horse. No one appeared for a minute or two. Then she raised her voice, in the high-pitched Australian call—originally borrowed from the blacks, but since heard (unless modern novelists lie) in the streets of London—ay, even in the 'Eternal City' itself.

Before she had finished the second call, a young woman came running out from some building at the rear, and with many exclamations made haste to welcome her.

'The saints presarve us, and sure 'tis Mrs. Trevenna and her darlin' boy wid ye. 'Tis yourself is the moral of a good neighbor to be coming over to see me. And yees will stay the night—the Lord be good to us. It's no time to be travelling after dark. We'll have to take the saddle off ourselves. Sure we haven't half a man about the place, or as much as a dog. It's himself is away, and thim all afther him.'

'I'm come to stay the night,' Kate made answer, 'and I want to leave my boy with you for a day or two while I go to Omeo on business. Now you have the whole story, Mrs. Rooney. How does that suit you?'

"Tis what I do be praying for,' replied the handsome young Irishwoman, who lifted down the child without more ado and fondled him effusively. 'Here's my beauty-boy; sure I'll look after him as if he was a young governor waiting to grow up. It's the darlin' of the world he is; the finest boy betwane here and Monaro. Come in and tell us your news, alanna. And the saints be good to us, whatever are ye doing wid the horse. Are yez going to hobble him, and the paddock the best grass between here and Gipp Land?'

'I don't doubt that, Mrs. Rooney, but I must be off while the stars are in the sky, and so I must make sure of Wallaroo. She can spell afterwards, but she must travel to-morrow, if she never does again. I'll tell you all about it as soon as I've put Harry to bed.'

'Come in; arrah, don't be standing talkin' there; come in, for the sake of all the blessed saints. And you looking pale and tired like! Wait till I get you a cup of hot tay.'

'All right, Mrs. Rooney; I'll be glad to have one. I feel thirsty enough, though the evening's chilly. But while the kettle's boiling, I'll take the mare down to the creek for a drink, and then she won't be rambling about half the night looking for water. I want to be able to lay my hand on her at daylight, or before. There's a long day before us to-morrow, and perhaps Omeo won't be the end of it.'

'Saints above!' exclaimed Mrs. Rooney, who, an emigrant not long out from the Green Isle, and newly married to an 'Irish native,' was filled with daily wonder at the manners and customs of the bush,—'sure and ye does be taking terrible rides in Australia. And do ye be telling me ye'll be at Omeo by this time to-morrow? But hurry now, and I'll have a cup of tay and an egg and a buttered scone ready for ye whin ye come back.'

The saddle had been taken off and placed on a wooden stool in the verandah. Kate led her palfrey down to the clear, fast-flowing streamlet and watched her drink her fill. She then plucked a few handfuls of the strong

tussac grass which lined the little flat and rubbed dry the marks on back and girth. This, with a slight general application of the improvised currycomb, completed in her eyes all necessary grooming. Slowly, and with eyes on the ground, she retraced her steps, coming close up to the house before she unloosed the throat-strap of the bridle.

'Have you got a bell, Mrs. Rooney?' she said. 'I shall know where to look for her if it's dark.'

'To think of your wanting that now! 'Tis clivir of ye, so it is. Sure Mick left one here before he went away. Here it is now, and a good strong strap.'

The bell was fastened round the docile animal's neck, and then only was she suffered to depart, short-hobbled and quietly munching the tall gray-green grass, and looking as if no thought of wandering could ever enter her head. None the less was it probable, as her mistress well knew, that if slip-rail or panel was down she would be at her old home by morning light.

The two women sat long over the fire, talking about things new and old, the baby boy sleeping peacefully the while. Nor did Kate Trevenna find rest when at length she sought her pillow. An hour before daylight she dressed and prepared for the road, caught and saddled her horse, which she fastened to the fence in front of the hut. Taking a cup of tea and a crust of buttered bread from her warm-hearted hostess, and kissing her child again and again, she rode away in the darkness ere the first streak of dawn-light illumined the eastern sky.

'Sure and she's the fine woman,' soliloquised Mrs. Rooney, as she listened to the sharp hoof-strokes which rang clearly on the rocky track; 'she has some great sorrow on her entirely, or she'd never leave the darlin' babe this way. Anyhow, I'll be the mother he's lost, and maybe more, till she comes back. The saints be between us and harm,' with which pious utterance the kind, simple soul betook herself back to bed.

No grass grew under the roan mare's feet. Mile after mile she threw behind her; now striking out freely at half speed, now pulling up for a down-hill mile or so, over which she went at her fast, clever amble. Ere the sun was well up Kate was miles away from her resting-place of the night. A long day lay before her, for the journey would need every hour and every minute of

the time. Long and tedious was the ride to Omeo. But the good mare had ere now known many a journey when the saddle had not been off her back between dawn and dark—far into the night, indeed. The Kate Lawless of old days was tireless as a forest doe. Some change in nerve and constitution had doubtless taken place since then. None the less was she still a woman of exceptional energy and courage. And with bitter wrongs ceaselessly corroding in her heart, and the haunting fear of a dark and bloody deed uprearing itself before her in that lonely ride, she defied alike fatigue and womanly weakness with passionate disdain.

Mile after mile, over rough track and smooth, as the narrow winding but still plainly marked bridle-path led, with but rare and momentary halts, the brave roan mare, with her stretching, gliding pace, at times a hand-gallop, at times even faster still, swept on. An occasional drink in a mountain runlet—a half trot up or down the steeper hills—yet all unflinching, unswerving, the pair held onward their rapid way.

The day was far spent when the straggling tents and red-streaked mullock-heaps around the Tin Pot Reef came in view.

'Here it was,' she thought, 'where I saw poor Lance last. It isn't far to his claim—near the old dead urabba log. There it is! I'll go over and have a look.'

She rode to the spot. The reef was not abandoned. The claim was in work. The raw-hide bucket was ascending and descending with its gold-besprinkled load, as so many a time at Ballarat and other places she had watched it before.

'Curse the gold,' she said aloud, 'and all that belongs to it! It was a bad day for the country when the first speck was found.'

'Halloo! mate,' she said to the miner above ground who was pensively turning out the broken quartz on the 'paddock' side of the shaft. 'How are you doing? Ground pretty good?'

'Might be better—might be worse, missus. Can't complain,' said the man civilly.

'Wasn't this Ballarat Harry's claim?' she inquired, with an assumption of carelessness, though her voice trembled and her cheek paled. 'You bought him out?'

'That's so. Sold it to Yorkey Dickson and me. Yorkey's below. We very nigh had to fight for it, after that. Some of the "Tips" tried to bluff us out of it. Harry was a-comin' to see us through. Leastways he told a young man as we sent to him. But he never turned up. That was queer, wasn't it?'

'And you never seen him after?'

'Not a sign of him. Yorkey was for goin' into Omeo after him. Only we heard he was off for Melbourne. So we didn't bother, and the jumpers gave us best next day.'

'It *was* strange!' she said musingly. 'He was never the man to say he'd do a thing and then change his mind. No; good or bad, he'd stick to it, poor Lance! Well, I must be going. So 'long.'

Slowly the woman rode forward—rode along lost in thought, while the mare, keeping to the track instinctively, like most bush hackneys, shuffled along at her fast amble till they came to the Mountain Ash Flat, which lay between this reef and Omeo.

Here the mare made as if to follow an old cattle track, at right angles to the road, of which she possibly had previous knowledge.

'Won't do, old woman,' said Kate, aroused from her reverie by the slight change of direction; 'what road's this, I wonder? More tracks than one along it—one would think it led somewhere.' She stooped low from her horse, scanning with keen and practised vision the footmarks upon the pathway. 'God in heaven!' she suddenly exclaimed, 'how did that come there?'

In an instant she was off her horse and eagerly grasping at a glittering speck amid the grass. It was a chain—a gold watch-chain with a curious coin attached, which she knew well. She had often playfully noticed the female face upon it. Here it was. She held it to the light. A part was dimmed and mud-encrusted. It had been trodden into the earth, but since washed by the rain. And what was the stain, dark red across the gold? '*His* chain—Lance Trevanion's chain!' she murmured to herself. 'How did it come here? Of

course he may have dropped it. I'll run these tracks a bit. It looks as if—as if—but no! surely, it can't—*can't have been*. Oh, my God! they never could have *murdered him!*' As she muttered to herself, in disjointed and broken sentences, she led her horse along the narrow track, searching eagerly for the signs of passage or conflict—tokens that lie clearer than the printed page to the vision of the Children of the Waste. Yes! there *were* footmarks, deeply indented in places, as of men that bore a burden. Here was a fragment of a check shirt of the pattern the bush labourer mostly wears, there a scrap of paper; and at a turn in the thicket-bordered path a long-abandoned shaft came into view. Lower she bent, and lower still, scanned yet more earnestly the slight mark of impress, invisible save to eyesight keen as those of the wild tribes which had been wont to roam these lonely wastes.

'The grass is longer here,' she whispered to herself in low and ghastly tones. 'Something's been *dragged* this way; the edge of the shaft looks broken down. Oh, my God! poor Lance, poor fellow, is this what you've come to after all?'

With stern set lips and eyes dry yet burning with deep unsparing hate, she secured her horse to a sapling. Then lying flat upon the earth, leaned over the edge of the dark unfathomed pit, and gazed into its depths, half dreading what her boding fears had shaped. She called too, at first brokenly, then loudly on him by name—'but none answered.' The tree limbs they had cast down had been lately dragged a few paces. The recent mark did not escape her watchful eye. As she looked heavenward in her despair she caught sight of a soaring eagle. On an adjacent tree sat a detachment of crows; she knew too well what their presence portended.

She drew herself upward, then walked slowly, almost totteringly, toward the patient mare. But before reaching her she dropped suddenly on her knees, and raising her clasped hands cried aloud, 'As God Almighty hears me this day, I swear that I will take neither rest nor food until I've got the tracks of the murdering dogs that killed the man I loved. Oh, Lance, Lance! It was a bad day for you when we met first. But I'll have revenge on your murderers—revenge—blood for blood—cowards and thieves that they are. They had him crooked, I'll take my oath. And now, Lawrence Trevenna,' she said, rising from her knees, 'it's you or I for it—my life against yours to the bitter

end,' she continued, in the same broken, muttering monologue which she had half unconsciously used since she had commenced to follow the trail of blood. Half mechanically she loosed the mare and remounted. Then, giving the reins a shake, the tireless animal dashed off at half speed—a pace from which her rider never slackened until she reined up, after the darkening eve had dimmed the outlines of forest and mountain, within sight of the lights of Omeo.

She had covered nearly seventy miles since daylight. Yet the fast gliding pace at which she rode up the main street indicated no trace of fatigue on the part of her hackney. For herself, every nerve seemed at fullest tension; she felt as if she could have ridden day and night for a week.

Attaching the bridle-rein to one of the iron staples with which the verandah of the chief hostelry was supplied, she went at once to the principal store, never very far from the hotel in country townships.

'Mr. Barker in?' she inquired of a tall slouching youth who was gravely engaged in selling matches to a Chinaman. Economical of speech, like most of his countrymen, he silently pointed to a stout man in a check shirt standing before a desk. To him Kate walked.

'You're Mr. Barker?' He nodded. 'Well, I'm Mrs.

Trevenna! Has my husband, Lawrence Trevenna, been here lately?'

'I don't know as I remember,' said the trader cautiously; 'what sort of looking man is he, missus?'

'Tall and dark; what most men and all fools of women call handsome. He *said* he was going to Monaro, but he's working a "cross," it seems to me. I shouldn't wonder if he's gone to Melbourne.'

'There's no one left here for Melbourne, or indeed for anywheres, lately, except Ballarat Harry,' answered Barker. 'We know him well enough, and your description fits him to a hair. There's been a young lady as come from England all the way to marry him. It was quite pretty to see 'em together.'

'So he's gone to Melbourne—Ballarat Harry, I mean?' she asked. 'Did he talk of being back soon?'

'Well, didn't say much one way or t'other. Rather short and grumpy he was lately, was Harry. I hardly knowed him, he seemed so different. He'd had a row with some chap too, and got his face pasted a bit. P'raps that made him cut up rough like.'

'Was he badly cut, then,' asked the woman, gazing earnestly in the trader's face, 'or just a bit of a rally like—half in joke, half in earnest?'

'Not it. A regular hard-fought battle. A fight to a finish, if ever there was one. First time I didn't notice it so much. Next time I saw he'd had a fearful pounding. But I expect he's all right now.'

'All right—very likely,' assented the woman absently. 'Can you tell me where the police barracks are?'

'There's the place, near that big fallen tree, but there's no one in it. Tracy went away home to White Rock yesterday. The other chap went away with the gold escort.'

'How far to White Rock?'

'A good thirty mile. There's a straight road; you can't miss it. It starts south as soon as you cross the bridge over the creek.'

'All right,' she answered, 'there's no turn off?'

'No; half-way you come to a shepherd's hut. There's no one living there now. Keep it on your left, and the track gets plain again.'

'Thanks; good-night. I must see Tracy on business. I shall be there by bedtime, I expect.'

Then fared she forth into the night. No rest, no food for steed or rider till her errand should be done. The game, bright-eyed mountain mare, as much refreshed by the halt as a less high-caste steed would have been by a feed of corn, started away as if just mounted. Kate patted the smooth arching neck. 'Carry me well to-night, Wallaroo, and you'll never have another hard day's work as long as you live. Not if I own you, anyhow. And it'll have to be bad times when we're parted.'

Away through the darksome close-ranked forest groves—away through the rocky defiles where the mare's bare hoofs rang from time to time as on metal—away through sedgy morass and water-laden plain—away through the long gray tussac grass, which rustled wiry and dry in the hoar-frost. The stars burned and scintillated in the dark blue cloudless sky. The low moon rose and stared—redly, weird, and witch-like—upon the solitary woman threading alone the dim desolate waste. All silently, yet surely, the slow hours sped. Still wound the forest path, serpent-like, amid untouched primeval giants. Still clattered the fleet mare's hoofs along the uneven trail. The great constellation of the southern heavens had changed the aspect of its cross when a chorus of barking dogs disclosed the outpost of law and order. A couple of huts, a slab stable, a small but securely fenced paddock, made up the establishment. She rode up to the gate of the little garden, and throwing down her reins as she slipped from the saddle, walked stiffly to the door of the cottage. She rapped sharply with the end of her riding-whip.

'Who's there?' a man called out.

'It's me—Kate Trevenna. Police work. Look alive.'

'All right, Mrs. Trevenna,' replied a cheery voice. 'Wait till I strike a light. Here we are. Walk in and sit down.'

'Oh, it's you, Tracy; I'm glad of that. Look here, is your horse in the stable and fit?'

'Fit as a fiddle; what's up?'

'Hell's up—murder—robbery—the devil's turned out, or something like it. You'll have to ride, I tell you. Where's Dayrell?'

'At Warrandorf, fifty miles off.'

'That's all right,' she answered; 'he'll do it yet, if he's sharp. Can you start in half an hour and take a letter to him?'

'Yes; in a quarter. Where's your letter?'

'You go and saddle your horse. You'll have to ride harder than ever you did since you were in the force, and I'll tell you what to write. Is your paddock all right?'

'Yes.'

'Then I'll turn my mare out while you're saddling and make the fire up a bit. I see there's a back log. I must have a cup of tea and a bite before I go to bed.'

In ten minutes the trooper was back, whistling to himself and apparently as cheerful as if a fifty mile night ride over a bad road was an adventure calculated to raise any man's spirits.

'Now, Mrs. Trevenna, where's your letter? You'd better turn in with the wife when I'm gone and you've made yourself a cup of tea. There's bread and meat in the safe.'

'How far is it to where Dayrell is? Fifty odd—nearly sixty miles. I can do it in seven hours—perhaps less. I'll be there soon after daylight, so as he can start at once.'

'That will do. Get your pen and a sheet of paper and write down what I tell you. Are you ready? Begin like this—

'This is from Mrs. Trevenna—Kate Lawless that was; every word is God's truth. Lawrence Trevenna and Coke have murdered Lance Trevanion and hid his body in a shaft near the Tin Pot Reef. I tracked them down, and to-day can show the place. Trevenna went to Omeo and passed himself off as Lance to the young lady that came out from England to marry him. He's off to Melbourne, where they are to be married and start for England, he taking Lance's name, money, and wife. Ride like hell if you want to block the villain's game. Only left here a few days. That's all.'

'By Jove,' quoth the trooper, folding up the paper and putting it carefully in his pocket, 'that's something like a letter! I knew he was an infernal scoundrel, but I didn't think he was quite so bad as that. I do pity you, Mrs. Trevenna; but there's no time, is there? So I'll say good-bye to my old woman and clear. You chum in with her till to-morrow. I'll go back with you, and we'll see further about that shaft.'

Three minutes afterwards the trooper's horse-hoofs clattered along the stony track. Kate sat long over the fire, from time to time mechanically addressing herself to the simple meal which she had made ready. Then she

arose, and slowly, with uncertain steps, betook herself to the goodwife's inner chamber.

Thus, and by such means, was Lawrence Trevenna tracked—followed up—run to earth. From what trivial neglect and want of caution in 'blinding his trail' had the sleuthhounds of the law been loosed upon his flying steps; and from what apparently savoured of the merest chance had the avenger of blood been enabled to seize him in the hour of his triumph. Had but the ceremony been completed, had but the ship which sailed for Callao on the next day taken 'Mr. and Mrs. Johnson' among her passengers, what woe, limitless and irrevocable, would have been wrought! In that day no ocean telegraph was available to intercept the criminal, to ensure his arrest ere his foot touched the alien shore. Had but the trooper at White Rock been 'absent on duty,' had Dayrell been from home when he arrived at Warrandorf, the precious, indispensable time would have been lost—that day—that night during which a desperate trooper, careless of life and limb, rode on relays of horses to Melbourne, and, haggard, sleepless, travel-worn, but cool and resolute as ever, arrived before the fatal vow was sworn.

Little remains to be told. The once brave, stalwart, gladsome presentment of him who was Lance Trevanion was recovered from the shaft and identified beyond dispute. For his murder, as well as for that of the gold-buyer Gray, Trevenna, Coke, and a confederate named Fogarty were tried. All difficulties of legal proof and identification were removed by the consistent conduct of Mr. Caleb Coke. True to his unvarying principles, he turned Queen's evidence. His life was spared. Trevenna and Fogarty were hanged. Unaffected by the curses of his comrades in crime and the execrations of the crowd, Coke retired to Mount Gibbo, and there lived out to extreme old age an unblest and solitary life. His secrets died with him, and were only told *sub sigillo confessionis*.

He retained possession of the hut under Mount Gibbo to the last. But the wandering bush tramp turned aside with a curse when he marked the sinister elder standing at his door, or sitting on the rude bank surrounded by his dogs. It was popularly asserted that he abstained from the use of ardent

spirits, being fearful of betraying the crimes with the memory of which his soul was laden. But the stock-riders averred that more than once, when passing the lonely hut after midnight, they had heard shouts and curses, mingled with screams and laughter even more dreadful. These were popularly believed to proceed from the Enemy of Mankind, or some one of his lieutenants engaged in spending the evening with his sworn liegeman, Caleb Coke.

After such brief interval as sufficed for her recovery from the shock her feelings had sustained, Estelle Chaloner naturally decided to return to England. The recurring horror with which she recalled her providential escape from a fate too dreadful to conceive needed the anodyne of complete change of surroundings, of which a long voyage only could supply the requisite conditions. She therefore, to the unaffected grief of Mr. and Mrs. Vernon, caused her passage to be taken in the good ship *Candia*, in which the luxurious nature of her cabin fittings, duly provided by Mr. Vernon, caused much wonder and admiration among the other passengers. Mr. Charles Stirling, who had been so considerate as to delay his voyage, 'went home' by the same boat. It did not surprise her Australian friends to hear that he made such use of the exceptional opportunities enjoyed by a fellow-passenger, that Miss Chaloner consented to merge her future existence in that of Mr. Charles Stirling. This arrangement was completed at St. George's, Hanover Square, after the shortest interval allowed for the trousseau of a young lady of position. Mrs. Vernon's remark was something to the effect, that though she had striven to be true to her plighted faith, she really believed that Estelle liked Charlie Stirling better all the time.

Number Six, Growlers', was worked out in due course, but not before Jack Polwarth found himself one of the richest men 'on Ballarat,' as he would have phrased it. This was what the world calls the height of good fortune. But there was an even rarer possession which John Polwarth and his good wife had been gifted with, even before the advent of the gold so plentifully showered upon them. This was such a proportion of sense and shrewdness as sudden wealth and its destructive flatteries had no power to assail.

In accordance with Mrs. Polwarth's aspiration, Tottie had been sent to one of the best ladies' schools in Melbourne. Here she had received careful instruction, and enjoyed the privilege of association with girls of the higher

colonial families. Acknowledged to be 'sweetly pretty' in her maiden prime, as well as amiable, popular, and an undoubted heiress, no difficulties were placed in the way of her invitation to vice-regal entertainments. Her father's mansion in St. Kilda was noted for its princely yet unostentatious hospitality. Small wonder then that Tottie—beautiful, cultured, a lady in mind and manner, such as her mother had fondly hoped to behold her, and withal credited with 'pots of money'—should marry a distinguished globe-trotter, a man of rank and ancient birth, be presented to her gracious Majesty on her arrival in England, and gain golden opinions in every sense of the word.

The after-life of Tessie Lawless was that of the woman who, partly from a natural tendency to self-sacrifice, partly from despair and hopeless sorrow, remained in the hospital to which she had devoted her life. Her course henceforth was the onward path of duty. During an epidemic of fever several of the nurses fell victims to their labours. A modest inscription in the Melbourne cemetery bears testimony to the anxious care and continued watchfulness of Nurse Esther Lawless, the best loved and most deeply respected of all the hospital attendants.

Charles Stirling returned to Australia, but only to settle his affairs, and so that he might take up his abode in England 'for good.' His wife, naturally, could never be induced to return to Australia, even for a short sojourn. In spite of occasional twinges of regret which assail him when the continued absence of the northern sun tends to lower his spirits and suggest the 'golden summer eves' of his native land, Charlie Stirling finds the old country very fairly habitable. His wife's fortune, added to his own, provides an extremely comfortable, not to say luxurious existence, as well as an assured provision for the olive branches. The Honourable Mrs. Delamere (*née* Polwarth) and her husband—who will be a peer some day—are frequent and welcome guests. Mrs. Stirling takes great pride in introducing her beautiful Australian friend, whose fairy godmother, while endowing her with fortune and fashion, added the rarer gifts of unselfish kindness.

The estate and revenues of Wychwood went to the younger son—a devolution which afforded to all the country people unfeigned satisfaction, as removing the curse under which they devoutly believed the family to exist.

One mystery was unravelled, in the closer search made after his succession among the Squire's papers. In a secret receptacle was discovered a collection of letters which proved incontestably that Lawrence Trevenna was his natural son, born two years before his marriage to the mother of Lance Trevanion. The girl's father was a disreputable horse-and-turf-tout and betting man in a small way in a distant county; the girl herself the worthy offspring of such a father—handsome, bold, unprincipled. The Squire discovered that a deliberate plot had been laid for him. Hence his previous inexplicable hatred to all and every form of horse-racing and the gambling therewith concomitant. Attempts at blackmail were referred to as having been resisted by legal advice, but finally compromised by the payment of a comparatively large sum—only a part of which had helped to provide passage-money and outfit for Lawrence Trevenna. Some fragmentary addenda to the faded writing and curiously worded letters told of deep and bitter regret—even of repentance. But the sin had been sinned. The guilt lightly incurred in the riot of youthful passion had grown dark and menacing of aspect with the slow gathering years. And 'the vengeance due of all our wrongs' had haltingly, but with sleuth-hound deadliness, tracked down his happiness and shortened the wrongdoer's life. But for the fatal resemblance, the mysterious heritage of unbridled passion bequeathed to the Ishmaelite offspring, the heir of his ancient house had doubtless escaped injustice, imprisonment, and death. And now, 'Conrad, Lara, Ezzelia are gone.' A youthful scion—fair, blue-eyed, mirthful—makes merry in the old halls of his race. But of the wandering heir—he who defiantly quitted home, and friends, and native land in search of gold; who vowed to conquer fortune with the aid of the strong arm and tameless heart; to return successful, rich, honoured of all men; to claim his bride in his own ancient hall—of him the oaks in the Druids' Grove of Wychwood murmur to the midnight stars, 'Nevermore.'

THE END

POPULAR NOVELS BY THE SAME AUTHOR.

ROBBERY UNDER ARMS.

A STORY OF LIFE AND ADVENTURE IN THE BUSH AND IN THE GOLD-FIELDS OF AUSTRALIA.

GUARDIAN—"A singularly spirited and stirring tale of Australian life, chiefly in the remoter settlements.... Altogether it is a capital story, full of wild adventure and startling incidents, and told with a genuine simplicity and quiet appearance of truth, as if the writer were really drawing upon his memory rather than his imagination."

SPECTATOR—"We have nothing but praise for this story. Of adventure of the most stirring kind there is, as we have said, abundance. But there is more than this. The characters are drawn with great skill. Every one of the gang of bushrangers is strongly individualised. A book of no common literary force."

THE MINER'S RIGHT.

A TALE OF THE AUSTRALIAN GOLD-FIELDS.

ATHENÆUM—"The picture is unquestionably interesting, thanks to the very detail and fidelity which tend to qualify its attractiveness for those who like excitement and incident before anything else."

WORLD—"Full of good passages, passages abounding in vivacity, in the colour and play of life."

THE SQUATTER'S DREAM.

SATURDAY REVIEW—"It is not often that stories of colonial life are so interesting as Mr. Boldrewood's *Squatter's Dream*. There is enough story in the book to give connected interest to the various incidents,

and these are all told with considerable spirit, and at times picturesqueness."

FIELD—"The details are filled in by a hand evidently well conversant with his subject, and everything is *ben trovato*, if not actually true. A perusal of these cheerfully-written pages will probably give a better idea of realities of Australian life than could be obtained from many more pretentious works."

A SYDNEY-SIDE SAXON.

GLASGOW HERALD—"The interest never flags, and altogether *A Sydney-Side Saxon* is a really refreshing book."

ANTI-JACOBIN—"Thoroughly well worth reading.... A clever book, admirably written.... Brisk in incident, truthful and lifelike in character.... Beyond and above all it has that stimulating hygienic quality, that cheerful, unconscious healthfulness, which makes a story like *Robinson Crusoe* or *The Vicar of Wakefield* so unspeakably refreshing after a course of even good contemporary fiction."

A COLONIAL REFORMER.

GLASGOW HERALD—"One of the most interesting books about Australia we have ever read."

SATURDAY REVIEW—"Mr. Boldrewood can tell what he knows with great point and vigour, and there is no better reading than the adventurous parts of his books."

*** END OF THE PROJECT GUTENBERG EBOOK NEVERMORE ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the

collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with

this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official

version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.

- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES

EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a)

distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact

links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility: www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.